Study Aids

Torts

Outline

Fourth Edition

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Torts

Quimbee Outlines

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I. Torts Generally

A tort arises if someone acts to harm another either with the needed culpability or under circumstances creating strict liability (liability without culpability).

A. Act

An act is a voluntary (1) bodily movement or (2) inaction, provided the law requires action.

B. Intent

Intent is (1) the conscious objective to do something or cause a result or (2) substantial certainty of causing a result.

1. Transferred Intent

Intent to commit one intentional tort against one victim transfers to other torts or victims, if the actor starts committing one tort against one victim but commits a different tort against the same victim, the same tort against a different victim, or a different tort against a different victim.

2. Forming Intent

Anyone who can form a thought can form intent, including children, incompetents, and insane people.

C. Recklessness

Recklessness is consciously disregarding an unreasonably high risk of a result.

D. Negligence Generally

Negligence is unreasonable carelessness.

II. Intentional Torts against Persons

Intentional torts against persons include (1) battery, (2) assault, (3) false imprisonment, and (4) intentional infliction of emotional distress (IIIED).

A. Battery

Battery arises if the actor (1) intentionally (2) causes the victim (3) harmful or offensive physical contact. Harmful contact is contact causing ***physical*** impairment, pain, or illness. Contact is offensive if (1) a reasonable person of ordinary firmness would find the contact

offensive under the circumstances, or (2) the actor deliberately exploits the victim's unusual sensitivity, even if a reasonable person would not find the contact offensive.

B. Assault

The actor (1) intentionally (2) causes the victim reasonable apprehension (belief) of (3) imminent battery. The victim must reasonably believe the actor can and will perform the battery.

C. False Imprisonment

The actor (1) intentionally (2) confines a victim (3) to a bounded area, and (4) the victim is aware of or harmed by the confinement.

1. Confinement

Confinement must limit freedom of movement in all directions for some appreciable (if slight) time, using (1) physical restraint, (2) threats or duress (including the prospect of severe humiliation or embarrassment), or (3) false pretense of lawful authority to which the victim submits.

2. Without Lawful Authority

Confinement must be without legal authority or privilege (*e.g.*, lawful arrest).

a. Shopkeeper's Privilege

A shopkeeper may detain someone the shopkeeper reasonably believes to be shoplifting, but only for a reasonable time and in a reasonable manner.

i. Reasonable Time

The detention may last only (1) as long as reasonably necessary to confirm shoplifting or (2) until the police arrive.

ii. Reasonable Manner

The shopkeeper may use only force reasonably necessary to detain the subject and must not cause unnecessary humiliation or discomfort.

3. Reasonable Means of Escape

Confinement fails if the victim has a reasonable means of escape and is or should be aware of it.

D. IIED

An actor (1) engages in extreme and outrageous conduct and, so doing, (2) intentionally or recklessly causes the victim (3) severe emotional distress.

1. Extreme, Outrageous Conduct

The highly unusual conduct exceeds common insults or trivialities, transcending the bounds of civilized decency. Several factors, if present, tend to make a finding of extreme and outrageous conduct more likely, including (1) abuse of power, (2) abuse of a special relationship of trust and confidence, (3) repeated conduct or a pattern of conduct, (4) public humiliation, (5) ethnic or racial bias, (6) deliberately exploiting a victim's peculiar sensitivity (*e.g.*, a phobia), and (7) exploiting a vulnerable class (*e.g.*, children or the elderly).

2. Severe Emotional Distress

Severe emotional distress is greater than a reasonable person of ordinary firmness could endure under the circumstances, usually manifesting objectively (*e.g.*, gesticulation, weeping, insomnia, etc.).

III. Intentional Torts to Property

Intentional torts to property include: (1) trespass to land, (2) nuisance, (3) conversion of chattel, and (4) trespass to chattel.

A. Trespass to Land

The actor (1) intentionally and (2) unlawfully (without consent or privilege) (3) causes physical entry by a person or object on land (4) in another's possession. The actor need only intend to commit some act that happens to cause physical entry and need not have reason to know about the victim's possessory rights.

B. Public Nuisance

The actor unreasonably interferes with a right to use or enjoy land shared by the general public—a right involving the public peace, safety, comfort, or convenience. The plaintiff must be either (1) a private individual who suffered particularized, significant harm (*e.g.*, loss of livelihood) or (2) a public representative (*e.g.*, a government official or concerned citizens' group authorized to sue). The plaintiff need not have property rights.

C. Private Nuisance

The actor (1) significantly and (2) unreasonably interferes with (3) the victim's use and enjoyment of (4) land in the victim's possession (5) with intent, recklessness, or negligence or by conducting an abnormally dangerous activity that could give rise to strict liability. The plaintiff must have a possessory interest in land.

1. Significant Interference

Significant interference transcends minor annoyance, being offensive or intolerable to the ***average person*** (not just the victim) in the community.

2. Unreasonable Interference

Interference is unreasonable if no reasonable possessor should have to endure it. Factors include the utility of the possessor's use; the neighborhood's character; social expectations; and whether the nuisance is of unusual magnitude, frequency, or duration.

D. Conversion of Chattel

The actor (1) intentionally exercises control (2) over chattel (movable personal property) (3) in another's possession and, so doing, (4) so seriously interferes with the victim's superior rights in the chattel that it is fair to compel the actor to pay the chattel's full value. Outright theft or destruction usually suffices but is unnecessary.

1. Intent, Conversion

The actor must intentionally perform an act that happens to interfere with the victim's superior rights in the chattel. The actor need not know or have reason to know of the victim's rights.

2. Interference

Interference entails using the chattel inconsistently with the victim's rights.

3. Sufficiently Serious Interference

Several factors support requiring the actor to pay the chattel's full value: (1) deprivation of full value (*e.g.*, theft or destruction); (2) serious usurpation of the victim's rights (regardless of effect on value); (3) the extent and duration of the actor's control; (4) deliberate or knowing interference; and (5) substantial damage, inconvenience, or expense.

E. Trespass to Chattel

The actor (1) intentionally does an act that (2) happens to interfere with (3) the victim's superior right to possess chattel, but (4) not seriously enough to justify requiring payment of its full value. Interference includes (1) depriving the victim of the chattel's use for an appreciable (if brief) time or (2) materially impairing usefulness or value (*e.g.*, causing damage to the chattel, such as denting a fender on a car).

IV. Defenses, Intentional Torts

Intentional torts are subject to defenses.

A. Consent

Effective express or implied consent is a defense to all intentional torts, provided the actor's conduct remains within the scope of consent. To give effective consent, a person must (1) know all material facts, (2) consent without duress or coercion, (3) not be underage, and (4) suffer no mental defect preventing her from understanding the material facts or making her unusually susceptible to suggestion.

B. Defense of Person

An actor may use physical force against persons insofar as the actor reasonably (if mistakenly) believes it necessary to defend herself or another against imminent, unlawful force. Retaliation and preemptive strikes are forbidden. The force must not be significantly greater than what the actor reasonably believes necessary.

1. Deadly Force

Deadly force is permitted if the actor reasonably believes it necessary to prevent imminent death or serious bodily injury. Some jurisdictions impose a limited duty to retreat before using deadly force.

2. Initial Aggressor's Privilege

The initial aggressor may use force in defense only if the target (1) uses excessive force in defense or (2) uses force after the initial aggressor backs off, clearly communicating intent to cease force.

C. Public Necessity

The actor reasonably believes interfering with another's property is necessary to avoid public disaster (*e.g.*, killing a rabid dog to prevent the spread of rabies). For trespass to ***land***, the disaster must be ***imminent***. The actor is not liable for property damage reasonably necessary to prevent the public disaster but is liable for further damage.

D. Private Necessity

The actor reasonably believes that interference with another's property is necessary to prevent serious harm to private persons or their property. The actor must compensate the victim for damaged or lost property.

E. Recapture, Reclamation of Property

An actor may enter another's land and remain there as long as reasonably necessary to reclaim property, provided the entry is (1) at a reasonable time, (2) in a reasonable manner, and (3) without breach of the peace or force against a person. If someone has just taken chattel wrongfully, is ***currently*** fleeing, and has not gotten away, the owner may pursue the taker and use reasonable, ***nondeadly*** force to reclaim the chattel.

F. Defense of Property

The actor may use reasonable ***nondeadly*** force to defend land or chattel. If reasonable, the actor must first demand that the wrongdoer stop.

G. Mistake Insufficient

The circumstances justifying force to defend or recapture property must exist; reasonable belief is insufficient.

V. Negligence

The actor (1) owes the victim a ***duty*** to conform to (2) a ***standard of care*** and (3) ***breaches*** that duty, (4) ***actually*** and (5) ***proximately causing*** the victim (6) ***harm***.

A. Duty

The actor must owe the victim a duty of care.

1. Foreseeable Risk

A duty arises if the actor should reasonably foresee that her conduct creates an unreasonable risk of harm to another.

a. Cardozo View

The majority Cardozo view imposes a duty ***only*** insofar as the conduct creates reasonably foreseeable risk of harm to someone ***in the victim's position***. Others, though injured, are owed no duty.

b. Andrews View

Under the Andrews view, if the actor's conduct could reasonably foreseeably harm someone, a duty flows to anyone the negligence harms.

c. Duty, Rescuers

Generally, rescuers are foreseeable victims who might be injured trying to help someone imperiled by negligence, including the actor.

d. Firefighter's Rule

An actor is generally not liable to public-safety officers responding to an emergency caused by her negligence but is liable for intent, recklessness, or negligence unrelated to the cause.

2. Creating Risk

An actor owes a duty if she has reason to know that her conduct (culpable or not) has exposed the victim to risk of harm; the duty requires reasonable care to prevent foreseeable future harm.

3. Reasonable Reliance, Voluntary Undertaking

The actor owes a duty to anyone (1) she voluntarily undertakes to assist, with or without compensation, or (2) who reasonably relies on her promise. There is no general duty to rescue another (though such a duty may arise in specific circumstances), but someone who undertakes a rescue must use reasonable care to avoid injuring the person assisted.

B. Standard of Care

Someone with a duty must follow the standard of care to avoid liability.

1. General Adult Standard

An adult must exercise the care of a reasonable person under the circumstances to avoid causing reasonably foreseeable harm. A reasonable person is (1) sane and of average intelligence with (2) the knowledge, foresight, and experience of an average community member (plus the actor's superior attributes) and (3) the actor's physical characteristics, together with reasonable awareness of them.

2. Minors

A minor must behave reasonably for a child of like age, intelligence, mental condition, and experience under the circumstances. The adult standard applies to children undertaking

activities carrying inherent risk of grave injury if not conducted with a reasonable adult's care and skill (usually, operating a motorized vehicle).

3. Duties of Land Possessors

Land possessors may owe duties of care to some occupants.

a. On-Premises Activities

A possessor owes most occupants a duty to use reasonable care in conducting on-premises activities to avoid injuring the occupants.

b. Open, Obvious Risks

Generally, a possessor owes no duty regarding open, obvious risks.

c. Invitee

An invitee is on the premises with the possessor's permission for either (1) business dealings benefitting the possessor or (2) a purpose for which the premises are publicly open. An invitee must remain within the invitation's time and space limitations, or else become a licensee or trespasser.

i. Dangerous Conditions, Invitee

As to an invitee, the possessor must remedy or warn about any unreasonably dangerous natural or artificial condition if (1) the possessor knows about these things, or (2) a reasonable inspection would reveal them.

d. Licensee

A licensee is on the premises by the possessor's consent or by privilege. The licensee must remain within the scope of the consent or privilege, or else become a trespasser. The possessor owes the licensee no duty of inspection but must take reasonable steps to warn about or remedy any unreasonably dangerous natural or artificial condition if the possessor (1) is aware of the condition and risk and (2) knows or should know that the licensee is unlikely to discover it.

e. Trespasser

A trespasser is on the premises without consent or privilege. If the possessor knows or has reason to know of the trespasser's presence and knows the trespasser is approaching a nonobvious, artificial condition posing risk of serious injury or death, she must warn the trespasser. If the possessor neither knows nor should know of the trespasser's presence, she must avoid intentionally or recklessly injuring the trespasser

(*e.g.*, deadly traps or recklessly failing to remedy a known, seriously dangerous condition).

f. Attractive-Nuisance Doctrine

If the possessor knows or should know that children will likely trespass upon a place where an artificial condition poses risk of death or serious harm to them, the possessor must take reasonable steps to protect them—provided (1) the child would be too young to appreciate the danger, and (2) the condition's utility and the burden of eliminating the risk are slight compared to the danger to child trespassers.

4. Landlord's Duties

A landlord has no duty to a tenant or her guests to warn about or remedy defects in the premises, except insofar as the landlord (1) contractually agrees or voluntarily undertakes to repair, (2) retains control over the premises (*e.g.*, common areas), (3) fails to warn about or fix a known defect not reasonably discoverable by the tenant, or (4) leases the premises for public use. Most jurisdictions also impose an implied warranty of habitability requiring a residential landlord to maintain the premises in a reasonably safe and habitable condition.

5. Duty to Control Third Parties

With exceptions, a person generally has no duty to protect another from third parties.

a. Actor's Conduct

An actor must use reasonable care to protect another from third parties if the actor (1) voluntarily undertakes to do so or (2) knows or should know that she has placed someone at unreasonable risk of harm by third parties.

b. Custody

An actor with custody or control over someone must use reasonable care to prevent that person from harming others and others from harming that person.

c. Therapist

If a therapist determines or should determine that a patient presents a serious danger of violence, the therapist must use reasonable care to prevent the violence (*e.g.*, warning the victim and police or committing the patient).

d. Doctor

A doctor with reason to believe a patient poses unreasonable risk of harm to others due to physical limitation or disease must warn the patient to take reasonable steps to minimize the risk, unless perhaps the patient is as capable of appreciating the risk as the doctor is.

e. Public-Duty Doctrine

The police owe no duty to protect one person, unless (1) they voluntarily undertake to do so by affirmative act that (2) reasonably induces a person's reliance on the protection.

6. Medical Malpractice

Medical-malpractice claims are specialized negligence claims.

a. General Practitioner

Depending on jurisdiction, a general practitioner must perform at the level of an ordinarily careful, skillful, and prudent physician in (1) the same locality, (2) the same or ***similar*** localities, or (3) the same or similar circumstances (including locality).

b. Specialists

A medical specialist must behave like a reasonably careful, skillful, knowledgeable, and prudent specialist in the same discipline under the circumstances.

c. Good Samaritan Statutes

A physician or other rescuer may be immune from liability for negligence (not recklessness) (1) assisting at the scene of a medical emergency while (2) under no preexisting duty to assist.

d. Informed Consent

A doctor may be liable for failing to obtain a patient's informed consent to a treatment or procedure, provided (1) the doctor failed to disclose a material risk, (2) the victim would have rejected the treatment or procedure upon proper information, and (3) the risk caused the injury.

7. Negligence per Se

A law's requirements may replace the general standard of care if the law (1) contains a mandatory, specific command; (2) is penal; and (3) is meant to protect a class of persons including the victim from the type of accident that occurred.

a. Exceptions, Negligence per Se

Negligence per se is inapplicable if obeying the law would be more dangerous than disobeying, or if the actor is (1) unable to comply despite reasonable efforts, (2) reasonably ignorant of the occasion to comply, or (3) confronted with an emergency not his fault (*e.g.*, jaywalking to escape an approaching menacing dog).

C. Breach of Duty

An actor breaches a duty by not following the standard of care.

1. Unreasonableness

The plaintiff must show that an alternative, reasonable course of conduct available to the defendant would have prevented or mitigated the injury, balancing (1) the likelihood and magnitude of harm against (2) the social utility of the defendant's conduct and the alternative's burden, cost, and risk.

a. Res Ipsa Loquitur

The accident's occurrence is prima facie evidence of breach if (1) the accident would not ordinarily occur without negligence, (2) the injurious instrumentality was under the actor's primary control when the accident occurred, and (3) other factors likely did not cause the harm.

D. Actual Causation

The breach must actually cause harm.

1. But-For Test

The breach is an actual cause if the harm would not have transpired without it.

a. Concurrent-Causes Doctrine

The breach is an actual cause if (1) multiple forces, including the breach, combine to cause the harm, and (2) no one force alone could have caused it.

2. Substantial-Factor Test

The breach is an actual cause if: (1) multiple forces, including the breach, combine simultaneously to cause the harm; (2) any force alone could have caused the harm; (3) determining which force caused which portion of the harm is impossible; and (4) the breach was a substantial factor in causing the harm.

3. Alternative-Causes Doctrine

If one of multiple negligent actors caused the harm, but proving which is impossible, each must show that her negligence did not cause the injury, or else be liable.

E. Proximate Causation

An actor is liable only for harms of the same general type as the reasonably foreseeable risk from the breach. The actor is liable for the full extent of harm, even if exacerbated by the victim's unforeseeable vulnerability.

1. Foreseeable Intervening Force

An intervening force combining with the breach and helping cause the harm does not defeat proximate cause if reasonably foreseeable. Foreseeable intervening forces include third parties' negligence and natural responses to the actor's negligence, such as panic and flight.

2. Unforeseeable Intervening Force

An unforeseeable intervening force is typically a ***superseding cause*** defeating proximate cause. Third parties' crimes and intentional torts are generally unforeseeable, absent a legal duty to protect from third parties. One may be liable if the ***type*** of harm is foreseeable, but the catalyst is unforeseeable.

3. Abated Risk

An actor is not liable for harm by an intervening force arising after the foreseeable risk of harm from the breach has abated.

F. Harm

Harm is loss or detriment. Personal injury or property damage is always recoverable in tort. Emotional harm is recoverable if traceable to (1) physical harm or (2) intentional or negligent infliction of emotional distress. Purely financial or economic harm normally is not recoverable in tort, though there are exceptions.

G. Negligent Infliction of Emotional Distress (NIED)

NIED allows recovery for emotional harm not traceable to physical harm.

1. Near-Miss NIED Action

A near-miss NIED action arises if (1) the victim is foreseeably placed (2) at a significant, unreasonable risk of (3) imminent physical injury that never materializes; (4) this causes the victim severe emotional distress; and (5) the impact or zone-of-danger rule, depending on jurisdiction, is satisfied.

a. Impact Rule

Distress must arise from physical contact, even if slight, at the time of the tort. Though this contact need not cause any harm, it must occur, or else there is no NIED claim.

b. Zone-of-Danger Rule

The breach must put the victim at reasonably foreseeable risk of imminent physical harm, and the victim must actually, reasonably fear for her own safety. Some jurisdictions also require symptoms like headaches or trouble sleeping to furnish some objective indicia of severe emotional distress.

2. Bystander, NIED

A bystander may recover for NIED if she suffers severe emotional distress from watching the actor negligently injure another (the primary victim).

a. Family Relationship with Primary Victim

Courts traditionally required that the bystander be closely related to the primary victim by blood or marriage, though some acknowledge other close relationships (*e.g.*, longtime unmarried cohabitants).

b. Presence, Observation

The bystander must be present and perceive the injury as it occurs or, in some jurisdictions, arrive shortly after the injury and before the primary victim's location or condition changes.

VI. Defenses, Negligence

Defenses to negligence include (1) contributory negligence, (2) comparative fault, and (3) assumption of risk.

A. Contributory Negligence

In contributory-negligence jurisdictions, the defendant is ***completely absolved*** if the plaintiff's negligence actually and proximately caused the injury.

1. Last-Clear-Chance Doctrine

Contributory negligence is inapplicable if the defendant had the last clear chance to avoid harm by reasonable care. If the plaintiff's negligence placed her in a position of peril, from which she could not reasonably escape, then the last-clear-chance rule applies only if the defendant knew or (in many jurisdictions) reasonably should have known of the peril. Otherwise, the last-clear-chance doctrine applies only if the defendant actually knew of the peril.

2. Rescue Doctrine

Contributory negligence is inapplicable if the plaintiff negligently (not recklessly) injures herself trying to rescue the defendant from a predicament resulting from the defendant's negligence.

B. Comparative Fault

In most jurisdictions, the plaintiff's negligence will reduce, not necessarily bar, recovery.

1. Pure Comparative Fault

The factfinder determines each party's percentage of fault for the accident, including the plaintiff's. Recovery is then reduced by the plaintiff's percentage of fault.

2. Modified Comparative Fault

Modified comparative fault is the same as pure comparative fault, except the plaintiff cannot recover if her percentage of fault exceeds or, in some jurisdictions, equals 50 percent.

C. Assumption of the Risk

A negligent or reckless actor is not liable to a victim who (1) is aware of an unreasonable risk of harm from negligence or recklessness but (2) voluntarily proceeds anyway.

1. Express Assumption of the Risk

The victim expressly assumes the risk by contractual agreement or other affirmative manifestation. Some risks may not be assumed (*e.g.*, medical malpractice, especially in emergencies).

2. Implied Assumption of the Risk

Implied assumption of the risk means that the victim (1) knowingly, voluntarily participates in inherently risky activities (primary assumption of the risk) or (2) knowingly proceeds despite danger created by the defendant's negligence (secondary assumption of the risk). Not all jurisdictions recognize secondary assumption of the risk, but those that do not recognize secondary assumption of the risk often reach the same result under different reasoning (*e.g.*, finding no duty of care).

VII. Liability

A plaintiff may recover damages from a liable defendant.

A. Apportioning Liability

Liability must be apportioned among responsible parties, including the victim.

1. Acting Independently

If the responsible parties acted independently, each is responsible for the portion of the injury that he caused (causal apportionment). If it is impossible to tell which party caused which portion of the injury, the factfinder will allocate responsibility based on fault (fault-based apportionment) instead of causation.

2. Concert

If multiple tortfeasors knowingly acted in concert, each is jointly and severally liable for 100 percent of the harm attributable to the tortfeasors' misconduct.

3. Recovery, Fault-Based Apportionment

If responsibility is allocated based on fault, recovery depends on whether the jurisdiction imposes (1) several or (2) joint and several liability.

a. Several Liability

From a given tortfeasor, the plaintiff may recover only that tortfeasor's share of the award.

b. Joint and Several Liability

The plaintiff may recover the total award from one, some, or all tortfeasors, regardless of allocation.

c. Joint and Several Liability, Contribution

Among jointly and severally liable tortfeasors, a tortfeasor who paid more than her share may recover the excess from the others.

d. One-Satisfaction Rule

The plaintiff may recover up to 100 percent of the award and no more.

B. Vicarious Liability

One party may be vicariously liable due to a special relationship with the primary tortfeasor. The plaintiff may recover from the vicariously liable party to the same extent and on the same terms as from the primary tortfeasor.

1. Respondeat Superior

An employer is vicariously liable for an employee's tort if (1) a master-servant relationship between the employer and employee exists at the time of the tort, and (2) the tort is committed within the scope of employment.

a. Master-Servant Relationship

A master-servant relationship generally means the employer has power to control both the end result and the manner and means of performing the work.

b. Scope of Employment

Generally, an employee's conduct is within the scope of employment if the employee works for the employer substantially within the employer's authorized time and space limitations, and the conduct is motivated (at least partially) by a desire to serve the employer.

i. Going-and-Coming Rule

The employer is generally not liable for an employee's torts committed during a commute to or from work, though this rule has exceptions.

ii. Frolic

A tort during a frolic is not within the scope of employment. A frolic generally occurs if the employee (1) significantly departs from the employer's authorized time and space constraints or (2) acts without substantial motivation to serve the employer.

iii. Detour

A tort during a mere detour ***is*** within the scope of employment. A mere detour is a minor deviation from the employer's designated time, place, and business in conduct otherwise substantially devoted to serving the employer.

c. Vicarious Liability, Intentional Torts

An employer is normally not vicariously liable for an employee's intentional torts, unless (1) the conditions leading to the tort are attributable to the job, and (2) the tort is reasonably foreseeable due to the job's nature (*e.g.*, bouncer).

d. Independent Contractors

Without a master-servant relationship, the employee is an independent contractor. An employer is vicariously liable for an independent contractor's torts only if an exception to the general rule of nonliability applies.

i. Inherently Dangerous Work

Work is inherently dangerous, imposing vicarious liability for an independent contractor's torts, if the employer knows or should know that the work creates a peculiar risk of harm without special precautions (***e.g.***, unusually dangerous cargo).

ii. Nondelegable Work

Some duties, on public-policy grounds, may not be delegated to an independent contractor (***e.g.***, emergency-room physician's duty of competent care).

C. Abnormally Dangerous Activities

Strict liability for abnormally dangerous activities arises if (1) the actor knows or should know the activity carries inherent, high risk of great harm that cannot be remedied by ***anyone's*** reasonable care; (2) the activity is unusual in the community; and (3) the injury flows from the activity's abnormally dangerous aspect.

D. Livestock

Generally, an owner of farm animals not traditionally kept as pets (*e.g.*, oxen or cows) is strictly liable for personal injury or property damage that is the natural, probable consequence of a farm animal's trespass on land.

E. Domesticated Animals

The owner of an animal whose species is traditionally kept as pets is strictly liable if: (1) at the time of the injury, the owner knows (or should know) the discrete animal has a dangerous

propensity uncommon for the species, and (2) the propensity foreseeably causes the harm. This rule is often termed the "one free bite" rule.

F. Wild Animals

An animal's owner is strictly liable if (1) the animal belongs to a dangerous species not generally domesticated, and (2) the wild characteristic of the species causes the harm. This applies even if the individual animal is harmless.

G. Defenses, Strict Liability

Strict-liability recovery may be diminished or barred if the victim: (1) knowingly and unreasonably confronts a risk from the animal or abnormally dangerous activity, (2) voluntarily comes into contact or proximity with the activity or animal to secure a benefit, or (3) ***willfully*** trespasses onto the actor's property (though some authority diverges on this point).

H. Products Liability

To recover, the products-liability plaintiff must show that (1) a product defect actually and proximately caused the harm, and (2) the defendant is liable under one products-liability theory.

1. Manufacturing Defect

A manufacturing defect exists if the product is unreasonably dangerous because it physically departs from its intended design. An unreasonably dangerous product is more dangerous than a reasonable consumer should expect it to be if reasonably foreseeably used or misused.

2. Design Defect

A design defect exists if the product is unreasonably dangerous, though it ***does not*** depart from its intended design.

a. Consumer-Expectation Test

In some jurisdictions, the product is unreasonably dangerous if the product as designed is more dangerous than a reasonable consumer should expect it to be if reasonably foreseeably used or misused.

b. Risk-Utility Test

In some jurisdictions, a product is unreasonably dangerous if the risk associated with using it outweighs its utility, and there is a reasonable alternative design that (1) would make the product safer in total (2) without substantially decreasing its usefulness and (3) is technically and economically feasible.

3. Informational Defect

An informational defect exists if the product is unreasonably dangerous for lack of adequate warnings informing the average user about: (1) the existence, nature, and scope of risks of foreseeable use or misuse and (2) how to avoid the danger, if possible. The plaintiff must show that she would have heeded the warning. Most courts rebuttably presume the plaintiff would have heeded a reasonable warning.

4. Strict Products Liability

Products liability exists without culpability if (1) the actor is a commercial supplier in the business of selling the product, (2) the product was defective when it left the actor's control, and (3) the product's condition did not significantly change after leaving the actor's control or before the harm.

a. Special Inference

A defect existing when the product left the actor's control and the lack of intervening change may be inferred if: the accident (1) typically occurs only because of a defect and (2) was not caused solely by other factors.

b. Liable Sellers

Every commercial supplier in the chain of distribution can be strictly liable.

5. Negligence, Products Liability

Negligence is one products-liability theory.

a. Manufacturer, Manufacturing Defect

A manufacturer is liable in negligence if, due to his failure to (1) use reasonable care in manufacturing and handling the product or (2) implement reasonable testing procedures, the product contained a manufacturing defect upon leaving the manufacturer's control.

i. Res Ipsa Loquitur, Products Liability

The factfinder may infer negligence if (1) the accident would not ordinarily occur without the manufacturer's negligence; (2) the product was under the manufacturer's exclusive control when the negligence occurred or did not substantially change condition after leaving the manufacturer's control and before the accident; and (3) other forces likely did not cause the accident.

b. Manufacturer, Design and Informational Defects

A manufacturer is liable in negligence for a design or informational defect if he (1) knew or should have known of the defect and (2) put the product into the marketplace without reasonable care to fix the defect or provide reasonable warnings.

c. Intermediate Seller

In products liability, intermediate sellers are not normally held liable for negligence, yet if an intermediate seller knows or has reason to know that a product is defective, he must (1) reasonably inspect for defects and (2) take reasonable steps to avoid harm to foreseeable users (*e.g.*, by warning).

VIII. Dignitary Torts

A dignitary tort involves reputational harm or privacy invasion.

A. Defamation

Defamation is (1) publication to a third party (2) of a false, defamatory statement of fact (3) of and concerning the victim (4) that harms the victim's reputation.

1. Publication

The actor must negligently or intentionally cause the statement to be communicated to a third party who perceives and comprehends it.

a. Republication

Generally, someone repeating a defamatory statement is liable for defamation, even if she correctly attributes the statement to another. A secondary publisher (*e.g.*, a bookseller) is not liable for republication in the course of business, unless the secondary publisher knows or has reason to know of the defamation.

2. False Statement

Historically, courts presumed any defamatory statement false, requiring the defendant to prove truth as a defense. Now, the plaintiff often must prove falsity.

3. Defamatory Statement

A defamatory statement tends to harm the victim's reputation, at least (1) in a substantial minority of the community or (2) with social or professional associates.

4. Statement of Fact

The statement must state or imply objective information capable of being proven true or false.

5. Of and Concerning

It must be that a recipient could reasonably determine that the statement refers to the victim, even if the actor does not intend to. A group generally cannot be defamed, unless it is so small that a reference to the group can be understood to include each member.

6. Reputational Harm

The plaintiff must prove the defamatory statement harmed her reputation. Harm to reputation, or general damages, will be presumed in cases involving (1) libel or (2) slander per se. Otherwise, the plaintiff must prove special damages, that is, specific economic consequences from the reputational harm (*e.g.*, lost business).

a. Libel

Historically, libel has referred to defamation by mass publication, usually in written form (*e.g.*, a book, magazine article, newspaper article, etc. These days, libel might also include defamation in Internet postings, movies, videos, and suchlike.

b. Slander per Se

The communication is slander (spoken words) accusing the victim of: (1) crime; (2) present affliction with a loathsome disease (*e.g.*, a venereal disease); (3) traits incompatible with the victim's business, trade, or office; or (4) sexual misconduct or impurity (*e.g.*, adultery).

7. Constitutional Limitations on Defamation Actions

Under the First Amendment, to recover for defamation, a public figure must prove: (1) the traditional defamation elements, (2) falsity, and (3) actual malice.

a. Types of Public Figures

A public figure is (1) a public official; (2) someone of pervasive, general notoriety; or (3) someone with notoriety regarding a public issue, who is a public figure only regarding that issue.

b. Actual Malice

Actual malice means the actor (1) knows the statement is false, (2) publishes the statement with reckless disregard of truth or falsity, or (3) deliberately avoids learning facts bearing on truth or falsity (willful ignorance).

c. Private Figures

If the plaintiff is a private figure (*i.e.*, not a public figure), and the statement involves a matter of public concern, the plaintiff must prove (1) falsity and (2) at least negligence (though the states may impose higher thresholds of culpability, such as actual malice). There are no significant constitutional limitations on a private figure's suit over matters of private concern.

d. Constitutional Limits, Damages

In a case involving (1) a public-figure plaintiff or (2) a matter of public concern, the plaintiff must show actual malice to recover presumed or punitive damages.

B. False Light

An actor publicizes false information significantly misrepresenting the victim's characteristics, conduct, or beliefs, and the false portrayal would be highly offensive to a reasonable person. The statement need not harm reputation. Publicizing means communicating to (1) the public, (2) so many persons that the statement is substantially certain to become public knowledge, or (3) a group whose opinion is important to the victim (*e.g.*, coworkers, fellow churchgoers).

C. Qualified Privileges

A qualified privilege defeats liability for defamation or false light and may be lost through abuse (*i.e.*, actual malice, excessive publication, or publication unrelated to the interest the privilege protects).

1. Fair Reporting

The publication is an accurate, fair, and complete report of (1) an official action or proceeding or (2) a public meeting dealing with a matter of public concern. Actual malice is ***not*** abuse of this privilege.

2. Statements in the Public Interest

The statement is made to public officials about matters implicating their duties.

3. Fair Comment

The statement is (1) an opinion or criticism (2) concerning a matter of legitimate public interest, and it is (3) based on disclosed or generally known facts that are (4) true, mutually assumed true by both speaker and recipient, or gleaned from a privileged prior statement.

4. Statements in Others' Interests

The statement (1) relates to a sufficiently important interest of the recipient or a third party (*e.g.*, a pecuniary interest), which the speaker reasonably believes the statement necessary to protect, and (2) comports with general standards of decency (usually, the statement is communicated on request, not gratuitously, and there is some relationship between the speaker and the recipient of the statement, such as a family or professional relationship).

5. Common-Interest Privilege

Multiple people with a common business, pecuniary, or professional interest in a matter are privileged to exchange information with one another, if the communication is reasonably related to protecting the interest, and the speaker breaches no legal duty by communicating the information.

6. Self-Vindication

The statement is to protect sufficiently important interest of the speaker (*e.g.*, the speaker's reputation), and the speaker reasonably believes the statement will aid in lawfully protecting that interest.

D. Absolute Privileges

An absolute privilege absolves liability for defamation or false light even if abused. Absolute privileges include any statement:

- by a federal or state legislator performing legislative functions, regardless of relevance to legislative business;
- by an executive-branch official in the course of her public duties, if the statement reasonably relates to executive functions;
- by an attorney, party, juror, witness, or judge in judicial proceedings, if the statement reasonably relates to the proceeding's subject matter;

- between spouses; or
- the actor legally must facilitate, permit, or transmit without censorship.

I. Torts Generally

A tort generally arises if an actor (1) acts (2) with the required level of culpability (3) to cause harm to a victim. The law will provide the victim with a civil remedy against the actor. [*See Tort*, *Black's Law Dictionary* (10th ed. 2014).]

A. Act

An act, in tort law, may be either (1) an act of ***commission*** or (2) an act of ***omission***. [*See* Restatement (Second) of Torts § 6 cmt. a.]

1. Act of Commission

An act of commission is what most people might think of as an ***affirmative*** act or a ***voluntary*** act. Put differently, an act of commission is a movement of the body that produces a discernible effect or is the external manifestation of the actor's will. An involuntary muscular contraction like a spasm, by contrast, is not an act of commission. [*See* Restatement (Second) of Torts § 2, with comments.]

Example:

A child extended his foot, meaning to cause a woman to trip and fall. The child's behavior was an act of commission. Extending the foot was a voluntary bodily act, as opposed to an involuntary movement.

2. Act of Omission

An act of omission arises if a person ***fails to act***, provided that the law imposes an ***affirmative duty*** to act. [*See Act of Omission*, *Negative Act*, *Black's Law Dictionary* (10th ed. 2014).]

Example:

A therapist knew that a patient posed a serious risk of harm to a potential victim. In that event, the jurisdiction's law required the therapist to warn the potential victim. Even so, the therapist did not warn the potential victim. The therapist has committed an act of omission by failing to do what the law required.

B. Culpability

Culpability is an actor's mental state. Most torts require the plaintiff to prove that the defendant acted with a particular mental state as an element of the tort. In tort law, the most important mental states are (1) ***intent***, (2) ***recklessness***, and (3) ***negligence***.

1. Intent Overview

Intent generally arises if an actor acts (1) with the ***purpose*** of causing a particular result or (2) with the ***substantial certainty*** that the act will cause a particular result. [*See* Intentional Torts, *infra*.]

2. Recklessness Overview

A reckless actor ***consciously disregards*** an ***unreasonably high risk*** that a particular harm will result from the actor's conduct. [*See* Restatement (Second) of Torts §§ 8A, 46, 500, with comments.]

3. Negligence Overview

Negligence exists if an actor ***fails to exercise reasonable care*** and, in so doing, causes harm to a victim. [*See* Negligence, *infra*.]

C. Causation and Harm

To recover in tort, the plaintiff must normally prove that the defendant's conduct ***caused*** the plaintiff to suffer some legally cognizable ***harm***. In some cases, the mere commission of the tort is sufficient harm, so that the plaintiff need not prove harm separately. In most cases, however, the plaintiff must prove harm as an element distinct from the tortious act itself. [*See* Actual Causation, Proximate Causation, Harm, *infra*.]

II. Intentional Torts against Persons

An intentional tort occurs if an actor acts with the ***intent*** to do something or to bring about a particular result, and the act ***causes*** legally cognizable ***harm***. The major intentional torts against persons are ***battery***, ***assault***, ***intentional infliction of emotional distress*** (IIED), and ***false imprisonment***.

A. Intent Defined

The level of culpability required for all intentional torts is intent, except that IIED requires either intent or recklessness.

1. Purpose or Substantial Certainty

Intent can mean either ***purpose*** or ***substantial certainty***. [*See* Restatement (Second) of Torts § 8A, with comments.]

a. Purpose

Purpose is the ***conscious objective*** to do a particular thing or to cause a particular result. [*See* Restatement (Second) of Torts § 8A, with comments; Model Penal Code § 2.02(2)(a)(i).]

Example:

A baseball player swung a bat at a spectator, meaning to injure the spectator. The bat contacted the spectator's nose and broke it. The player acted with the purpose to injure the spectator because it was the player's ***conscious objective*** to cause that result.

b. Substantial Certainty

An actor acts with ***substantial certainty*** if the actor is ***aware*** that a particular outcome is ***virtually certain to result*** from the act. [*See Garratt v. Dailey*, 279 P.2d 1091 (Wash. 1955); Restatement (Second) of Torts § 8A, with comments.]

Example:

A shooter fired a single bullet from a gun into a crowd of people. The shooter wanted to disperse the crowd, not to harm anyone. The shooter was aware, however, that the bullet was virtually guaranteed to injure someone in the crowd. The shooter was held to have intended any resulting injury, because he was substantially certain that the bullet would strike and injure someone.

2. Intent as Opposed to Motive

Intent should not be confused with ***motive***. Intent describes an actor's choice to act in a certain way or to cause a particular result. Motive describes an actor's reasons for making that choice. A person can commit an intentional tort without having an evil motive or a desire to cause harm. [*See* Restatement (Second) of Torts § 8A, with comments; *Motive*, *Black's Law Dictionary* (10th ed. 2014).]

3. Who Can Form Intent

Virtually anyone capable of forming a thought can form the intent required for an intentional tort. This includes very young children, mentally incompetent people, and insane people. [*See Garratt v. Dailey*, 279 P.2d 1091 (Wash. 1955); *Polmatier v. Russ*, 537 A.2d 468 (Conn. 1988).]

Examples:

(1) A patient at a mental hospital harbored an insane delusion that an orderly was a monster out to kill the patient. Acting on that belief, the patient lay in wait and attacked the orderly. Despite the patient's insanity, the patient formed the intent required for the intentional tort of battery (intentionally causing harmful or offensive physical contact to another), because it was the patient's conscious objective to attack the orderly. [*See* Battery, *infra*.]

(2) A six-year-old child's aunt was supervising the child as he played in the aunt's backyard. The aunt moved to sit down in her lawn chair. As she did so, the child moved the chair out from underneath her, meaning to cause her to fall and thus embarrass her as a prank. The aunt indeed fell and sustained serious injuries. Although the child was merely six years old, he formed the requisite intent for battery (intentionally causing harmful or offensive physical contact to another). The child's conscious objective was to cause the aunt to fall to the ground. [*See Garratt v. Dailey*, 279 P.2d 1091 (Wash. 1955).]

4. The Eggshell-Skull-Plaintiff Rule

A tortfeasor is normally liable for the ***full extent*** of the harm caused by the tort. This is so even if the severity of the harm is due to the victim's innate condition or vulnerability, of which the tortfeasor could not possibly have been aware. [*See White v. Muniz*, 999 P.2d 814 (Colo. 2000).]

Note: Though this rule most often arises in relation to intentional torts to the person, it applies to any tort that causes personal injury, such as negligence.

Example:

A man slapped the back of his friend's head, meaning only to cause momentary pain and embarrassment. The man was unaware that the friend had a rare genetic condition that made the friend's bones unnaturally fragile. Accordingly, the slap injured the friend severely, far beyond what a person without the condition would have suffered. If the man is found liable for battery, then he will be liable for the full extent of the friend's injuries. This is true even though the man did not intend to cause injury of that magnitude.

5. Transferred Intent

An actor may intend to commit an intentional tort against one person. However, through mistake or happenstance, the actor may wind up committing (1) a different intentional tort against the same person, (2) the same intentional tort against a different person, or (3) a different intentional tort against a different person. In these cases, the defendant's initial intent will ***transfer*** to the tort the defendant actually committed or to the person

the defendant actually harmed. Transferred intent applies to ***assault***, ***battery***, ***false imprisonment***, ***trespass to land***, and ***trespass to chattels***. [*See Hall v. McBryde*, 919 P.2d 910 (Colo. App. 1996).]

Examples:

(1) At a bar, a drunk patron attempted to commit the intentional tort of battery (intentionally causing another to suffer harmful or offensive physical contact) by punching the bartender. However, the patron missed the bartender and struck a waitress instead. The patron will be liable for battering the waitress. Even though the patron never meant to hit the waitress and did so only by accident, based on transferred intent, the patron will be deemed to have intended to batter the waitress. [*See* Battery, *infra*.]

(2) A motorist attempted to commit the intentional tort of battery (intentionally causing another to suffer harmful or offensive physical contact) by running down a pedestrian with her car. The pedestrian avoided the car, but during the attempt, the pedestrian felt a reasonable apprehension of imminent harmful contact (the definition of the intentional tort of assault). The motorist's intent to commit battery will be transferred to satisfy the intent requirement of the separate intentional tort of assault. The motorist will thus be deemed to have intended to assault the pedestrian, even though the motorist meant to commit battery, not assault. [*See* Battery, Assault, *infra*.]

B. Battery

Battery occurs if an actor (1) ***intentionally*** (2) ***causes*** (3) ***harmful or offensive physical contact*** with a victim. The contact need ***not*** be both harmful and offensive. In some jurisdictions, the actor does not need to intend to harm or to offend the victim. It is sufficient if the actor intentionally causes the contact, and the contact would be harmful or offensive to a reasonable person in the victim's position. Perhaps the majority view, however, is that the intent requirement applies to both (1) causing physical contact and (2) the contact's harmful or offensive nature. In most cases, the distinction between these two approaches produces no meaningful difference in the result. Most rational people at least know that an act such as a shove, punch, or kick is substantially certain to harm or offend. In cases involving children or mentally ill adults, though, the distinction can be crucial. [*See* Restatement (Second) of Torts §§ 13, 18, with comments; *White v. Muniz*, 999 P.2d 814 (Colo. 2000).]

Example:

An octogenarian with a mental illness was placed in an assisted-living facility. An orderly attempted to change the octogenarian's adult diaper. As the orderly did so, the octogenarian became uncooperative and belligerent, eventually striking the orderly, causing injury, and

ordering her out of the room. The octogenarian intended to strike the orderly. However, due to the octogenarian's mental illness, the octogenarian could not appreciate, let alone intend, that this act would harm or offend the orderly. In jurisdictions applying the intent requirement only to the physical-contact element of battery, and not to the harmfulness or offensiveness of the contact. the octogenarian is liable for battery. The octogenarian intended to and did strike the orderly. But under the majority view, the octogenarian is not liable for battery. Although the octogenarian intended physical contact with the orderly, the octogenarian lacked intent to harm or offend her. [*Cf. White v. Muniz*, 999 P.2d 814 (Colo. 2000).]

1. Physical Contact

Physical contact can be (1) ***direct*** contact, (2) ***indirect*** contact, or (3) ***remote*** contact.

a. Direct Contact

Direct contact occurs if the actor causes a part of her own ***body*** to contact a part of the victim's ***body***. [*See* Restatement (Second) of Torts § 18, with comments.]

b. Indirect Contact

Indirect contact is contact not with someone's body, but with ***something intimately connected*** to someone's body, such as clothing or something the person is holding in her hand. [*See* Restatement (Second) of Torts § 18 cmt. c.]

Example:

A restaurant employee struck a tray from a patron's hands. The tray was intimately connected with the patron's body. The contact made by the employee's hand and the tray was indirect contact.

c. Remote Contact

Remote contact occurs if an actor causes ***some object or instrumentality*** to make physical contact with a victim. [*See* Restatement (Second) of Torts § 18 cmt. c.]

Example:

A homeowner ordered a guard dog to attack a pedestrian passing by on the sidewalk, and the dog bit the pedestrian's hand. By controlling the dog, the homeowner set in motion a chain of events that caused the dog to make bodily contact with the pedestrian. Thus, the homeowner made remote contact with the pedestrian.

2. Harmful Contact

Contact is harmful if it impairs someone's physical condition or causes physical pain or illness. Mere emotional trauma does not make bodily contact harmful. ***Physical*** injury or impairment is required. [Restatement (Second) of Torts § 15.]

3. Offensive Contact

Contact is offensive if it would offend a ***reasonable person*** of ordinary firmness. Contact is also offensive if made ***without the victim's consent***, at least if a reasonable person under the circumstances would find nonconsensual contact offensive. [*See* Restatement (Second) of Torts §§ 13, 18-19, with comments.]

a. Introduction to Consent

Consent is a defense to battery, even if the contact is harmful. [*See* Consent, *infra*.]

b. Offensive to a Reasonable Person of Ordinary Firmness

Contact is not offensive merely because it subjectively offends the victim. Rather, an ***objective*** standard applies; contact is offensive only if a ***reasonable person*** of ordinary firmness in the victim's position would be offended by the contact. In other words, contact is offensive only if it is not warranted, considering the social customs and usages prevailing at the time and place the contact occurs. [Restatement (Second) of Torts § 19.]

Examples:

(1) As a woman left a crowded subway train, other passengers bumped and jostled her. Even if this contact subjectively offended the woman, a reasonable person in her position would not have been offended. Social usage dictates that a person must tolerate a certain degree of incidental bodily contact within crowds. Thus, the passengers did not batter the woman.

(2) A teenager noticed an elderly woman, to whom he was a stranger, stumble and waver on a flight of stairs. Just as the elderly woman was about to fall, the teenager caught hold of the elderly woman to steady her. The teenager has not committed battery. Even if the elderly woman somehow found this physical contact harmful or offensive, a reasonable person in her position likely would not. The teenager's obvious purpose in contacting the elderly woman was to prevent her from falling down the stairs, and virtually any rational person would find this contact acceptable.

c. The Unusually Sensitive Victim

The objective definition of offensiveness is meant to preclude cases in which unusually sensitive victims bring battery claims based on contact that would not offend a reasonable person of ordinary firmness under the circumstances. However, contact may be offensive even though it would offend only an unusually sensitive person, if the actor ***deliberately exploits*** a victim's unusual sensitivity. [*See* Restatement (Second) of Torts § 19, with comments.]

Example:

A teacher decided to play a practical joke on her colleague. The colleague had a profound and irrational fear of butterflies, of which the teacher was aware. To that end, the teacher placed a beautiful and harmless butterfly on the colleague's shoulder. The colleague was deeply upset and offended. Under these circumstances, the teacher committed offensive contact. True, a reasonable person likely would not be offended at physical contact with a harmless butterfly. Yet here, the teacher deliberately exploited the colleague's phobia of butterflies. [*See* Restatement (Third) of Torts: Intentional Torts to Persons § 103 Illustration 5 (Tentative Draft No. 1, 2015).]

4. Awareness of Contact

Battery does ***not*** require that the victim be aware of the contact or its harmful or offensive character when it occurs. For example, a plaintiff can recover for harmful or offensive contact that occurs while the plaintiff is unconscious or sleeping. [Restatement (Third) of Torts: Intentional Torts to Persons § 101 cmt. e (Tentative Draft No. 1, 2015).]

C. Assault

An assault occurs if an actor engages in an overt physical act that is intended to and does in fact cause a victim to entertain a ***reasonable apprehension*** of an ***imminent battery***. Also, under the doctrine of transferred intent, an attempted, failed battery usually constitutes assault, because the attempt generally puts the intended target in reasonable apprehension of imminent battery. [*Etherton v. Doe*, 597 S.E.2d 87 (Va. 2004); *see* Transferred Intent, *supra*.]

1. Words Alone Insufficient

Under the prevailing view, ***words alone***, even threatening words, ***cannot*** constitute an assault. However, menacing words combined with a physical act, or as understood in the surrounding circumstances, may make the victim's apprehension more or less reasonable than it would be without the words. [*See* Restatement (Second) of Torts § 31, with comments.]

Example:

A robber, brandishing a knife, confronted a pedestrian in a dark alley and said, "Give me your wallet." These words alone do not constitute assault. However, the implied threat—considered together with the location, setting, and weapon—likely caused the pedestrian to entertain a reasonable apprehension of imminent battery under the circumstances.

2. Reasonable Apprehension

To reasonably apprehend an imminent battery, the victim must ***actually and reasonably believe*** that the actor (1) has the ***ability to carry out*** the anticipated battery and (2) ***will*** in fact do so. [Restatement (Second) of Torts §§ 24, 33, with comments.]

a. Actor's Intent to Carry Out Anticipated Battery

An actor who does not intend to batter a victim may nonetheless commit assault if the victim has ***reasonable cause*** to believe that the actor intends a battery. [*See* Restatement (Second) of Torts § 33, with comments.]

Example:

A mugger pointed a gun at a man and verbally threatened to shoot him. The mugger did not subjectively intend to shoot the man. Even so, the mugger committed assault, because the man had reasonable cause to believe that the mugger intended to shoot him.

b. Defendant's Ability to Carry Out Anticipated Battery

If an actor lacks the actual ability to carry out the anticipated battery, the actor may nonetheless be liable for assault if he has the ***apparent ability*** to commit the battery—that is, if a reasonable person in the victim's position would believe the actor could carry out the battery. [*See* Restatement (Second) of Torts § 33, with comments.]

Example:

An assailant pointed an unloaded gun at a woman and verbally threatened to shoot her. The woman did not know that the gun was unloaded. True, the assailant could not carry out the shooting. Yet from the perspective of a reasonable person in the woman's position, he had the apparent ability to do so and is therefore liable for assault.

c. Apprehension Distinguished from Fear

Apprehension means ***expectation***, not fear. Thus, an actor can be liable for assault even if the victim is unafraid. [4 *Modern Tort Law: Liability and Litigation* § 42:6 (2d ed.).]

Example:

A bodybuilder was arguing with a weakling. The weakling swung his fist at the bodybuilder; the punched missed. The weakling committed assault, even if the bodybuilder was never afraid of the weakling. Due to the attempted punch, the bodybuilder apprehended, or expected, an imminent battery by the weakling.

3. Imminent Battery

For an assault to occur, the victim must reasonably apprehend an ***imminent*** battery. Imminent means occurring with no significant delay, and it should not be confused with contact to occur at some future time. A battery that might take place at some indefinite future time involves significant delay and is thus not imminent. [Restatement (Second) of Torts § 29.]

Example:

A loan shark threatened to break a borrower's legs if the borrower did not fully repay a loan by noon the following day. Even if the borrower reasonably apprehended a battery on the following day, this would not be soon enough to be imminent for purposes of assault.

4. Conditional Assault

An actor can commit assault by forcing the victim to choose between suffering a battery and obeying some command that the actor is not privileged to enforce via battery. However, assault does not occur if the actor merely states that he would commit battery against the victim if the circumstances were different. [Restatement (Second) of Torts §§ 30-1, with comments and illustrations.]

Example:

A mugger pointed a gun at a pedestrian and threatened to shoot the pedestrian if she did not hand over her purse. The mugger had no legal privilege either to shoot the pedestrian or to take her purse. The mugger therefore committed assault, even though the pedestrian could have avoided the threatened battery by handing over the purse.

Compare:

A worker told his colleague that he would punch the colleague if a police officer were not standing nearby. The worker did not commit assault; he simply stated that he would batter his colleague if the circumstances were different.

D. False Imprisonment

False imprisonment occurs if an actor (1) ***intentionally*** (2) ***confines*** a victim (3) to a ***bounded area***, and (4) the victim is either ***aware*** of the confinement or ***harmed*** by it. [*See* Restatement (Second) of Torts § 35 note, §§ 36-42.]

1. Confinement within a Bounded Area

A victim is confined within a bounded area if his freedom of movement is ***restricted in all directions***. Thus, an actor does not confine a victim merely by preventing the victim from going where he wants to go. The bounded area's borders do not have to be precisely defined, nor does the bounded area have to be of any particular size. For instance, some cases have held that an entire state can be a bounded area, though other authority has held that an entire country cannot. [*See* Restatement (Second) of Torts § 36, with comments and illustrations.]

a. Reasonable Means to Escape of Which Victim Is Aware

An actor does not commit false imprisonment if there is a ***reasonable means of escape***, of which the victim ***is or should be aware***. A means of escape is reasonable only if a reasonable person in the victim's position would use it under the circumstances. [*See* Restatement (Second) of Torts § 36 cmt. a.]

Example:

A teenager placed an elderly woman in a room with no means of exit except a door. The teenager left the door unlocked but stationed an attack dog outside the door. The woman could have escaped by overpowering the dog. However, attempting to do so would have presented an unreasonable risk of harm to the woman. Therefore, the teenager confined the woman, having left her no reasonable means of escape.

Compare:

A prankster placed an able-bodied adult in a room with no means of exit except a door and a window large enough to accommodate a person of average size. The window was one foot above the floor and two feet above the ground outside. The prankster locked the door from the outside but did not lock the window. The prankster did not confine the adult, because the adult could reasonably have escaped through the window.

b. Ways to Confine the Victim

An actor can confine a victim by (1) ***physical restraint***, (2) ***threats***, (3) a ***false pretense*** of ***lawful authority***, or (4) breaching a ***duty to release*** the plaintiff from confinement.

i. Physical Restraint

Physical restraint occurs if an actor uses an ***actual or apparent physical barrier*** to keep the victim from leaving the bounded area. The barrier must leave no reasonable means of escape of which the victim is aware. [Restatement (Second) of Torts § 38.]

Examples:

(1) A woman placed a man in a room with no means of exit except an unlocked, concealed door, of which the man was unaware and had no reason to be aware. The room was a physical barrier sufficient to confine the man. [*See* Restatement (Second) of Torts § 38 cmt. a & Illustration 1.]

(2) An elderly man depended on crutches to walk. A youth stole the man's crutches, leaving him unable to walk. The youth confined the man, because the youth rendered him physically unable to move in any direction.

ii. Confinement by Threats or Duress

An actor can confine a victim by forcing the victim to choose between forfeiting her freedom of movement or suffering some other ***adverse consequence***. The actor must deprive the victim of any meaningful choice whether to leave the bounded area. Threats or duress can take various forms. [*See* Restatement (Second) of Torts §§ 40, 40A, with comments and illustrations.]

1) Threat or Use of Force against the Victim

An actor can confine a victim by using force or threatening ***immediate*** force against the victim's person. These threats can be express or implied. However, if the threatened force is to occur only sometime substantially later, then there is no confinement. [Restatement (Second) of Torts § 40 cmt. b.]

Example:

A woman sat alone in a room. A man walked up to the lone door leading into or out of the room brandishing a baseball bat. The man said, "You can try and leave this room, but if you do, you'll get the bat." The woman submitted to the threat and remained in the room. The man has confined the woman to the room. [*Adapted from* Restatement (Second) of Torts § 40 Illustration 1.]

Compare:

A woman sat alone in a room. A man walked up to the lone door leading into or out of the room with no weapon. The man said, "If you leave this room in the next hour, I'll beat you senseless when I next see you on the street." The woman submitted and remained in the room. The man has not confined the woman. The man's threat of violence was not imminent, but rather was to take place at some indefinite future time. [*Adapted from* Restatement (Second) of Torts § 40 Illustration 2.]

2) Threat or Use of Force against the Plaintiff's Close Relative

An actor can confine a victim by using force or threatening immediate force against a victim's ***close family member***. These threats can be express or implied. [*See* Restatement (Second) of Torts § 40A cmt. a, illus. 1.]

3) Threat or Use of Force against the Plaintiff's Property

An actor can confine a victim by using force or threatening immediate force against the victim's ***property***, so that the victim must either forfeit his freedom of movement or leave the property at the actor's mercy. [*See* Restatement (Second) of Torts § 40A cmt. a, illus. 2.]

Examples:

(1) A sophomore and a junior studied together at a library. The sophomore took the junior's purse and refused to give it back, even though the junior wanted to leave. The sophomore confined the junior to the library.

(2) At a neighbor's house, a man picked up a priceless antique vase and threatened to smash it if the neighbor left the room. The man confined the neighbor to the room.

4) Use of Embarrassment or Public Humiliation to Confine the Victim

An actor can confine a victim by making it so that the victim will suffer severe embarrassment or humiliation immediately upon leaving the bounded area. [*See* Restatement (Second) of Torts § 36 cmt. a., illus. 5.]

Example:

While a member of a health club was showering at the club, a club employee stole the member's clothes. The employee confined the member by making it impossible for the member to leave the shower area without the humiliation of

being naked in a public place. [*Adapted from* Restatement (Second) of Torts § 36 illus. 5.]

iii. Confinement under False Pretense of Lawful Authority

Confinement occurs if an actor ***falsely claims*** to have the ***legal authority*** to confine the victim, and the victim ***submits*** to the asserted authority. This is true even if the victim harbors doubts as to whether the asserted authority is genuine. [Restatement (Second) of Torts § 41.]

Example:

A private security guard in an office building wore a uniform resembling a police uniform, but the guard had no lawful power of arrest. An office employee dropped litter on the floor while walking out of the building. The guard physically blocked the exit and threatened to arrest the employee if she did not return to pick up the litter. The employee complied, though she doubted whether the guard could lawfully arrest her. The guard confined the employee. The guard falsely asserted lawful authority to confine the employee, and she submitted to the assertion.

iv. Breach of Duty to Release from Confinement

If a victim has been lawfully confined (for example, in a jail), an actor with lawful custody over the victim has a duty to release the victim once the lawful term of confinement has ended. An actor who breaches this duty confines the victim, for purposes of false imprisonment. [Restatement (Second) of Torts § 45.]

c. Moral Pressure or Mere Persuasion Not Confinement

No level of moral pressure or persuasion, no matter how strong, can amount to confinement, unless it rises to the level of confinement by duress. [*See* Restatement (Second) of Torts § 40A, Reporter's Notes.]

Example:

A woman and her friend were dining at a restaurant, and they started to argue. The woman got up to leave the table, and the friend threatened never to speak to the woman again if the woman left. Whether the woman remained at the table or not, the friend never legally confined her. The friend merely exerted moral or emotional pressure that did not rise to the level of confinement by duress.

d. Duration of Confinement

Confinement for ***any appreciable length of time***, no matter how brief, can give rise to liability for false imprisonment. [*Crown Cent. Petroleum Corp. v. Williams*, 679 So.2d 651 (Ala. 1996).]

2. Confinement without Lawful Authority

False imprisonment requires that the actor confine the victim ***without legal privilege or authority***. Privilege or authority to confine a person can arise in several ways. [*State v. Dett*, 891 A.2d 1113 (Md. 2006).]

a. Lawful Arrest

A police officer or a private citizen may lawfully ***arrest*** a person under certain circumstances.

i. Lawful Arrest by Police Officer with Valid Warrant

An arrest by a police officer is lawful if done pursuant to a valid warrant. [*See Payton v. New York*, 445 U.S. 573 (1980).]

ii. Lawful Arrest by Police Officer without a Warrant

A warrantless arrest by a police officer is lawful if the officer ***reasonably believes*** that the arrestee has committed, or is about to commit, (1) a ***felony*** anywhere or (2) a ***misdemeanor breach of the peace*** in the officer's ***presence***. Many jurisdictions have statutes allowing a police officer to arrest someone for any misdemeanor committed in the officer's presence. [4 *Modern Tort Law: Liability and Litigation* § 41:14 (2d ed.).]

iii. Permissible Degree of Force by Police Officer

A police officer must use no greater force than is reasonably necessary to make the arrest. [*See Tennessee v. Garner*, 471 U.S. 1 (1985).]

iv. Reasonable Mistake by Police Officer

An arrest by a police officer is lawful, even if the arresting officer makes a reasonable mistake as to the occurrence of the crime, the type of crime, or the perpetrator's identity. An unreasonable mistake, though, renders an arrest predicated on it unlawful. [4 *Modern Tort Law: Liability and Litigation* §§ 41:14 (2d ed.).]

v. Lawful Arrest by a Private Citizen

A private citizen may lawfully arrest someone if a felony has ***actually*** occurred, and the citizen ***reasonably suspects*** that the person arrested is the perpetrator. A private citizen may make a reasonable mistake as to the perpetrator's identity but ***not*** as to whether a felony actually occurred. In addition, a private citizen is privileged to arrest someone who has committed a ***misdemeanor breach of the peace in the citizen's presence***. Like a police officer, a private citizen must use no greater force than is reasonably necessary to make the arrest. [*Great Atl. & Pac. Tea Co. v. Paul*, 261 A.2d 731, 738-39 (Md. 1970); 4 *Modern Tort Law: Liability and Litigation* §§ 41:14 (2d ed.).]

b. Shopkeeper's Privilege of Investigatory Detention

In some jurisdictions, if a shopkeeper ***reasonably believes*** that someone is shoplifting or attempting to shoplift, the shopkeeper may detain the person for a ***reasonable time*** and in a ***reasonable manner*** to investigate. [*E.g.*, *Guijosa v. Wal-Mart Stores, Inc.*, 6 P.3d 583 (Ct. App. Wash. 2000).]

i. Reasonable Belief

The shopkeeper's mere subjective belief that the detainee is shoplifting or attempting to shoplift is not enough. The test is objective. The shopkeeper must be aware of circumstances that would cause a ***reasonable person*** to infer that the detainee is an actual or would-be shoplifter. [*Guijosa v. Wal-Mart Stores, Inc.*, 6 P.3d 583 (Ct. App. Wash. 2000).]

ii. Reasonable Time

The detention must last ***no longer than is reasonably necessary*** under the circumstances to confirm whether the detainee has in fact shoplifted or attempted to shoplift. The shopkeeper may usually hold the detainee long enough for the police to arrive and handle the matter as they deem appropriate. [*Guijosa v. Wal-Mart Stores, Inc.*, 6 P.3d 583 (Ct. App. Wash. 2000).]

iii. Reasonable Manner

A shopkeeper may use no greater force than is ***reasonably necessary*** to effectuate the detention. Also, the shopkeeper must not cause the detainee unnecessary embarrassment, humiliation, pain, or discomfort, as by using excessive force, taunting, denying water, or denying restroom access. [*See Dillard Dept. Stores, Inc. v. Silva*, 148 S.W.3d 370 (Tex. 2004).]

Example:

A security guard at a retail store saw a teenager take a baseball cap from a display rack, remove the price tag, and make toward the exit wearing the cap on his head. The guard stopped the teenager at the threshold of the exit, demanding that the teenager accompany her to the store's back offices while she called the police. When the teenager declared his intent to leave, the guard placed her hand on his shoulder and insisted that he accompany her, which he did. The guard promptly called the police, who arrived 30 minutes later. Here, the guard had a shopkeeper's privilege to detain the teenager. The teenager's tearing the tag off the cap and making toward the exit while wearing it gave the guard reasonable grounds to believe he was shoplifting. The guard detained the teenager for only long enough for the police to arrive and sort things out. [*Adapted from Guijosa v. Wal-Mart Stores, Inc.*, 6 P.3d 583 (Ct. App. Wash. 2000).]

Compare:

A teenager brought three shirts back to the retail store where he had purchased them, meaning to return them. He had forgotten, though, to bring his receipts. A burly store security guard accused the teenager of shoplifting. When the teenager could not produce the receipts, the guard tackled the teenager, handcuffed him, and led him away, cuffed, to the store's back offices. While awaiting the arrival of the police, the guard and another store employee taunted the teenager and refused him a glass of water that he needed to take his migraine medication. Here, even if the guard had reasonable grounds to believe the teenager had shoplifted, the guard did not use reasonable force nor detain the teenager in a reasonable manner. Being led away in cuffs was unduly embarrassing to the teenager, and the taunting and denial of water amounted to needless humiliation and discomfort. [*Adapted from Dillard Dept. Stores, Inc. v. Silva*, 148 S.W.3d 370 (Tex. 2004).]

3. Confinement Known or Harmful to Victim

False imprisonment typically requires that the victim be ***aware*** of the confinement. However, rarely, the victim may be unaware of the confinement. In that event, false imprisonment still occurs if the confinement ***harms*** the victim. [*See* Restatement (Second) of Torts § 42.]

Example:

A kidnapper took a six-day-old infant and locked him in the vault of an abandoned bank. The infant remained in the vault for several days before someone found him and returned him to his parents. While in the vault, the infant suffered hunger and thirst to such an extent that his health was harmed. Here, the kidnapper is liable for false imprisonment.

The infant was almost certainly unaware of the confinement, being only a few days old. Yet the confinement harmed the infant, because his health suffered due to lack of food and water. [*See* Restatement (Second) of Torts § 42 illus. 3.]

4. Consent and Other Defenses

False imprisonment is subject to many of the same general defenses as the other intentional torts. In particular, the victim's valid ***consent*** is a defense to false imprisonment. [*See Ellers v. Coy*, 582 F. Supp. 1093 (D. Minn. 1984); Restatement (Second) of Torts § 892A.]

E. IIED

IIED occurs if an actor (1) engages in ***extreme and outrageous conduct***, by which the actor (2) ***intentionally*** or ***recklessly*** causes a victim to suffer (3) ***severe emotional distress***. Unlike other intentional torts, IIED can arise from the actor's intent ***or*** recklessness. [*See GTE Southwest, Inc. v. Bruce*, 998 S.W.2d 605 (Tex. 1999).]

1. Extreme and Outrageous Conduct

Conduct is extreme and outrageous if it goes beyond the bounds of human decency or if a civilized society would regard it as atrocious and totally intolerable. Put differently, extreme and outrageous conduct exceeds the bounds of what a civilized society is prepared to accept. [*See* Restatement (Second) of Torts § 46 cmt. d.]

a. Relationship with Other Torts

Conduct that is extreme and outrageous may also give rise to an intentional tort other than IIED, such as battery or false imprisonment. Generally, courts do not apply the elements of IIED if the actor's conduct fits the definition of another intentional tort. In these cases, courts simply consider emotional distress when computing damages arising from the primary tort. [*See* Restatement (Second) of Torts § 47, with comments.]

b. Trivial Insults, Indignities, and Annoyances

Common insults, indignities, annoyances, petty oppressions, and rude and insolent conduct are things that many people encounter in everyday life. Consequently, these things typically do not constitute extreme and outrageous conduct. [*See* Restatement (Second) of Torts § 46 cmt. d.]

i. Exception for Common Carriers and Innkeepers

Despite the general rule, common carriers (such as airline or bus operators) and innkeepers may be liable for mere ***gross insults*** to their patrons, provided the patrons are reasonably offended by the insults. [Restatement (Second) of Torts § 48.]

c. Factors Indicating Extreme and Outrageous Conduct

The determination of whether conduct is extreme and outrageous is a fact-intensive one, made in light of all the relevant circumstances. However, the cases have identified several factors that make a finding of extreme and outrageous conduct more likely.

i. Abuse of Power

Conduct is more likely to be extreme and outrageous if the actor is in a ***position of authority*** over the victim—*e.g.*, the victim's supervisor at work. This factor is especially significant if the actor ***abuses*** or ***exploits*** that authority. [4 Modern Tort Law: Liability and Litigation §§ 31:3, 31:7 (2d ed.), Westlaw (database updated June 2021); *GTE Southwest, Inc. v. Bruce*, 998 S.W.2d 605 (Tex. 1999).]

Example:

A customer at a retail store accused one of the store's employees, a teenage girl, of stealing the customer's money. The employee had not, in fact, stolen anything from the customer, and this fact was obvious. Even so, the employee's male manager threatened to fire her if she did not submit to a strip search to satisfy the customer. Fearing to lose her job, the employee submitted, suffering great humiliation and distress during and after the search. On these facts, the manager's conduct is likely extreme and outrageous. The manager exploited his authority over the employee to goad her into submitting to a humiliating strip search without basis. [*See* 4 *Modern Tort Law: Liability and Litigation* § 31:7 (2d ed.), Westlaw (database updated June 2021) (discussing *Bodewig v. K-Mart, Inc.*, 635 P.2d 657 (Or. App. Ct. 1981).]

ii. Abuse of a Special Relationship of Trust and Confidence

Conduct is more likely to be extreme and outrageous if the actor ***abuses a special relationship*** of trust and confidence with the victim. Examples of special relationships of trust and confidence include doctor-patient, lawyer-client, therapist-patient, priest-penitent, teacher-student, and similar relationships. Often, but not always, these relationships impose fiduciary duties under the law. [*See* Restatement (Second) of Torts § 46, with comments and Reporter's Notes.]

iii. Repetition or Pattern of Conduct

An actor's prolonged ***pattern*** of offensive behavior toward a victim makes a finding of extreme and outrageous conduct more likely than if the conduct is an isolated incident. [*See* Restatement (Second) of Torts § 46, with comments and Reporter's Notes.]

iv. Vulnerable Classes

Conduct is more likely to be treated as extreme and outrageous if the victim belongs to a peculiarly ***vulnerable class*** of people, such as young children or the elderly. [*See* Restatement (Second) of Torts § 46, with comments and Reporter's Notes.]

v. Public Humiliation

Conduct that subjects the victim to ***public humiliation*** is generally more likely to be deemed extreme and outrageous than behavior that occurs in private. [Restatement (Second) of Torts § 46, with comments and Reporter's Notes.]

vi. Racial or Ethnic Bias

Conduct that demonstrates ***racial or ethnic bias*** is generally more likely to be considered extreme and outrageous than it would be without the bias. [Restatement (Second) of Torts § 46, with comments and Reporter's Notes.]

vii. Deliberately Exploiting Peculiar Sensitivity

If an actor ***deliberately exploits*** a victim's peculiar sensitivity, such as an unusual phobia or mental condition, this tends to weigh in favor of finding extreme and outrageous conduct. [Restatement (Second) of Torts § 46, with comments; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 46 cmt. d.]

Example:

A farmer's neighbor knew that the farmer was extremely superstitious and believed in the efficacy of voodoo and witchcraft. Armed with this knowledge, the neighbor placed eerie, occult-looking runes and hexes throughout the farmer's property. The neighbor knew that the farmer would interpret the runes and hexes as omens of disaster. The neighbor's goal in placing these signs on the farmer's property was to frighten the farmer into leaving the property and selling it at a low price. Upon seeing the runes and hexes, the farmer suffered severe emotional distress. The

neighbor's conduct was extreme and outrageous. The neighbor knew of the farmer's peculiar sensitivity, a belief in voodoo and witchcraft, and deliberately exploited it to instill severe fear and dread in the farmer. [*Adapted from* Restatement (Second) of Torts § 46 illus. 10.]

2. Severe Emotional Distress

Severe emotional distress is greater than what a reasonable person of ordinary firmness could be expected to endure under the circumstances. Thus, the mere fact that the victim suffered significant emotional distress is not enough if a reasonable person similarly situated could be expected to endure the distress. This is often a function of context—*e.g.*, a military boot camp, as opposed to a support group for depression. [*See* Restatement (Second) of Torts § 46 cmts. j, k.]

a. Indicia of Distress

Most jurisdictions do ***not*** require proof of overt physical symptoms to indicate severe emotional distress. However, courts do require ***some*** objective indication that the distress was severe. Signs of severe distress may include physical illness; behavior consistent with severe distress, such as weeping or wild gesticulation; mental and emotional problems; trouble sleeping; bad dreams; and similar manifestations. Expert testimony can help establish severe emotional distress. So can lay testimony about substantial changes in the victim's habits or behavior consistent with severe emotional distress. At times, though, the sheer outrageousness of the actor's conduct might suffice to prove the severity of the victim's emotional distress, even without further proof. [*See* Restatement (Second) of Torts § 46, with comments; *Santino v. Columbus Pub. Schs.*, 833 F. Supp. 2d 780 (S.D. Ohio 2011).]

Example:

A police officer arrested a woman on suspicion of a crime. At the station house, the policeman falsely told the woman that her only child was dying at a hospital. The police officer promised to release the woman to see the child one last time, but only if she confessed to the crime. The woman became hysterical, wept and gesticulated wildly, and hyperventilated in the course of a panic attack. She later falsely confessed to the crime so that she could see her child, only to learn that the officer had lied about the accident and the child's condition. Here, there are likely sufficient indicia of the woman's severe emotional distress. The sheer outrageousness of the officer's conduct, falsely telling the woman that the child was fatally injured, may evince emotional distress. Should that not suffice, the woman's hysterical and panic-stricken behavior should prove the severity of her distress. [*Adapted from* Restatement (Second) of Torts § 46 illus. 19.]

b. Exception for Certain Cases Clearly Indicating Distress

Indicia of distress may not be required in certain cases in which ***anybody*** would be severely distressed—for example, if a funeral home or hospital mishandles the corpse of the victim's close family member. [*See* 4 *Modern Tort Law: Liability and Litigation* § 31:8 (2d ed.), Westlaw (database updated June 2021).]

3. Bystander Recovery

Some jurisdictions allow a bystander victim to recover under IIED for an intentional tort that the actor commits against (*i.e.*, an intentional tort that is directed at) a third party. These claims require proof of all the normal elements of IIED plus several additional elements. [*See* Restatement (Second) of Torts § 46 cmt. l.]

a. Relationship or Physical Harm

According to the Restatement (Second) of Torts, the bystander must (1) be a ***close relative*** of the third-party victim ***or*** (2) suffer some ***physical harm*** due to severe emotional distress arising from the actor's conduct. [*See* Restatement (Second) of Torts § 46 cmt. l.]

b. Physical Presence and Perception

According to the Restatement (Second) of Torts, the bystander must generally be ***physically present*** when the actor commits the tort against the third party, and the bystander must ***perceive*** the tortious act when it occurs. Yet even the Restatement acknowledges that physical presence may not be required in all cases. Indeed, some court precedent has rejected the physical-presence and contemporaneous-perception requirements. [*Compare* Restatement (Second) of Torts § 46 cmt. l with *Doe v. Roman Catholic Diocese of Nashville*, 154 S.W.3d 22 (Tenn. 2005).]

c. Intent or Recklessness: Defendant's Knowledge

In bystander cases, the element of intent or recklessness generally requires that the actor ***knew*** of the bystander's (1) presence at the scene ***and*** (2) family relationship with the third-party victim, if any. [*See* Restatement (Second) of Torts § 36 cmt. l.]

Example:

A vagrant physically attacked a child in the immediate presence of the child's mother, which constituted extreme and outrageous conduct. The mother witnessed the attack. At the time, the vagrant knew the mother was present, and he had inferred the close family relationship between the mother and the child by their interactions with each other. As a bystander victim, the mother could recover against the vagrant for IIED.

III. Intentional Torts against Property

The law recognizes several intentional torts against property. Unlike assault, battery, false imprisonment, or IIED, these torts involve infringement upon property rights, rather than infringement upon the dignity or bodily integrity of a person. The major torts to property are ***trespass to land***, ***nuisance***, ***conversion***, and ***trespass to chattel***. The mental state of intent is the same for property torts as for torts against persons. [*See* Intent, *supra*.]

A. Trespass to Land

Trespass to land is the (1) ***intentional*** and (2) ***unlawful*** (3) ***physical entry*** onto ***real property*** (4) ***in possession of another***. [Restatement (Second) of Torts § 158, with comments.]

1. Intentional Entry

The intent required for trespass to land is not the intent to enter another's real property unlawfully. Rather, it is merely the intent to do some act that happens to produce unlawful physical entry onto someone else's real property, whether the actor is aware of the entry or not. Accordingly, an actor may commit trespass to land, even if the actor reasonably believes that his presence on another's land is lawful. Of course, if that reasonable belief arises from the possessor's own conduct, then the actor is not liable for trespass. [Restatement (Second) of Torts § 164.]

Example:

A hiker got lost in a public forest. While looking for a road or trail, the hiker unknowingly wandered onto a hunter's land. At all times, the hiker believed that he was on public land, and he never intended to enter private land. Even so, the hiker had the necessary intent for trespass, because his intentional act of walking through the woods caused him to enter someone else's property.

2. Unlawful Entry

An actor's physical entry onto someone else's real property is unlawful if the actor enters without either (1) ***consent*** from the property's lawful possessor or (2) some other ***legal privilege*** to enter the property. [*See* Restatement (Second) of Torts § 158, with comments; Defenses to Intentional Torts, *infra*.]

a. Initially Lawful Occupancy Becoming Unlawful

An actor's presence on another's property may initially be lawful but later become unlawful. This may occur if the actor ***remains*** on the property after the possessor's consent expires. An actor's presence on another's property may also become unlawful

if the actor ***moves*** from a part of the property where he is authorized to be to another part where he is not authorized to be. [Restatement (Second) of Torts § 158, with comments.]

Examples:

(1) A homeowner invited a neighbor to the homeowner's house for lunch. During the meal, the homeowner became angry at the neighbor and told her to leave. The neighbor refused to leave. At that point, the neighbor was present unlawfully. Indeed, the neighbor initially had permission to enter the homeowner's house. However, once the homeowner revoked that permission, the neighbor was no longer authorized to remain on the property.

(2) A shopper was browsing in a grocery store open to the public. Later, the shopper entered a door marked "Employees Only: Keep Out." The shopper was not a store employee. While the shopper kept to the areas of the store that were open to the public, he was present lawfully. However, upon passing through the marked door, the shopper entered unlawfully. The shopper moved from an area where he was authorized to be into an area where he was not authorized to be.

3. Physical Entry

Physical entry onto someone else's property must be by ***physical object***, and it can be either ***direct*** or ***indirect***.

a. Entry by Physical Object Required

Physical entry requires causing some ***physical object*** to enter the property. Trespass to land therefore does not arise if an actor causes bothersome light, sound, or smells to penetrate onto another's property. These matters fall under the separate tort of nuisance. [Restatement (Second) of Torts § 158, with comments; *see* Nuisance, *infra*.]

b. Direct Entry

Direct entry occurs if the actor causes a part of his own body or something intimately connected with it to enter the victim's property. [*See* Restatement (Second) of Torts § 158(a).]

c. Indirect Entry

Indirect entry occurs if the actor sets in motion a chain of events that causes some physical object apart from the actor's person to enter the victim's property. [*See* Restatement (Second) of Torts § 158(a).]

Example:

A homeowner intentionally threw garbage across his own property line onto a neighbor's property. The homeowner has caused an indirect entry onto the neighbor's property because the homeowner has caused a physical object, the garbage, to enter that property.

d. Entry above and below the Surface

Unlawful entry is not limited to entry upon the surface of the land. If the lawful possessor also possesses the airspace above the land, entry into this airspace at a low-enough elevation can constitute trespass, but only if (1) the aircraft enters the immediate reaches of airspace above the land, and (2) the entry substantially and unreasonably interferes with the possessor's use and enjoyment of the land. Likewise, entry beneath the surface can constitute trespass—for example, by a mine shaft, subterranean pipes, or the subsurface foundation of an adjacent house. [*See* Restatement (Second) of Torts § 159, with comments.]

4. Property in Possession of Another

Property is in the possession of someone other than the actor if that other person has a superior ***right of exclusive possession*** to the actor. [*See* Restatement (Second) of Torts §§ 157-8, with comments.]

a. Exclusive Possession Not Synonymous with Ownership or Title

Trespass is interference with ***possession***, not with ownership. The right of exclusive possession is not necessarily the same as ownership or title. Thus, for instance, a lessee or anyone else in exclusive possession of the property when the actor makes entry could maintain a trespass action. [*See* Restatement (Second) of Torts § 157; *e.g.*, *Houston Lighting & Power Co. v. Sue*, 644 S.W.2d 835 (Tex. Ct. App. 1982).]

Examples:

(1) A banker owned a large parcel of pastureland that he leased to a cattleman. The proprietor of a neighboring ranch drove some of her cattle onto the banker's pastureland while the cattleman was still validly leasing it. The cattleman had a cause of action for trespass against the rancher. Though the cattlemen did not own the land, per se, he did lease it from the banker. Therefore, the cattleman had a superior right of possession in the pastureland to the rancher, who had no interest in the pastureland.

(2) A banker was the record owner of some pastureland. In year one, the banker formally leased total and exclusive possession of the pastureland to a cattleman. The lease agreement afforded the banker no right to enter upon the pastureland until the lease expired. In year three, while the lease was still in force, the banker acquired some cattle of his own and drove them onto the leased pastureland to graze. The banker did so without the cattleman's express or implied consent. Here, the cattleman had a cause of action for trespass against the banker. Although the banker was the record owner of the pastureland, he leased total and exclusive possession of the pastureland to the cattleman and retained no right to use or occupy the land during the lease. Hence, during the lease, the cattleman's right of possession to the pastureland was superior to the banker's.

B. Nuisance

Nuisance is (1) ***unreasonable interference*** with (2) the possessor's ***use and enjoyment*** of property. A nuisance will often, but not always, arise from the actor's use of her own property. The two basic types of nuisance are ***public nuisance*** and ***private nuisance***. [Restatement (Second) of Torts §§ 821A, 821B, 821D, with comments.]

1. Unreasonable Interference

Interference is ***unreasonable*** if the resulting harm to the victim outweighs the utility of the activity alleged to be a nuisance. Relevant factors include (1) the social value the law attaches to both the conduct's primary purpose and the victim's particular use of the land; (2) the suitability to the character of the neighborhood of both the conduct and the victim's use and enjoyment of the land; (3) the impracticability of preventing or avoiding the alleged nuisance; (4) the extent and character of the harm; (5) social expectations; (6) whether the activity is of unusual magnitude, frequency, or duration; and (7) the burden on the actor of avoiding the harm. [*See* Restatement (Second) of Torts §§ 822, 826-31, with comments.]

a. Unreasonable Interference, General Character of Analysis

For instance, a chicken coop may be consistent with neighborhood character and social expectations in a rural area, but not on an urban residential street. Additionally, the occasional sound of a lawn mower or other power equipment might be considered normal in a residential neighborhood. But even in that case, a homeowner who operates this sort of equipment practically every waking hour likely presents a nuisance.

b. Evaluating Reasonableness

Reasonableness in a nuisance case differs from reasonableness in a negligence case. In negligence cases, the law asks whether the defendant has acted like a reasonable person. In nuisance cases, the law asks whether the defendant's conduct creates interference that ***no reasonable person in the victim's position*** should have to endure, considering the interests of the parties and the community at large. [*See* Restatement (Second) of Torts § 826 cmts. b, c; Negligence, *infra*.]

Example:

A landlord owned an apartment building immediately adjacent to a hospital. The landlord installed a swimming pool at the building. The pool's users made excessive noise, which proved highly annoying to the hospital's patients and interfered with their care. Even if there were generally nothing unreasonable about a swimming pool at an apartment building, a court could find that no reasonable plaintiff in the position of the hospital or its patients should have to endure the noise.

2. Public Nuisance

A public nuisance arises if an actor unreasonably interferes with a property right that the general public holds in common. [Restatement (Second) of Torts § 821B; Unreasonable Interference, *supra*.]

a. Right Common to the General Public

Rights common to the general public involve the public peace, safety, comfort, or convenience. Put another way, the nuisance should interfere with the rights of the public at large and not just a small subset of the general public. For instance, polluting a stream is not a public nuisance just because it deprives 50 or so riparian owners of the ability to use the stream for purposes connected to their land. But if the pollution kills all the fish in the stream and thus deprives the general public of the ability to fish the stream, it may be a public nuisance. [Restatement (Second) of Torts § 821B cmt. g.]

b. Common Examples of Public Nuisance

Common examples of public nuisances including polluting a public body of water and interfering with public transit.

i. Polluting a Public Body of Water

Polluting a river or other public body of water is generally a public nuisance, because it interferes with the general public's right to use and enjoy the water. [*See, e.g.*, *Commonwealth v. Barnes & Tucker Co.*, 319 A.2d 871 (Pa. 1974).]

ii. Interference with Public Transit

A public nuisance may exist if the actor interferes with the public's ability to navigate public waterways or to traverse upon public roads, streets, and highways. [*See* Restatement (Second) of Torts, § 821C cmt. b, illus. 1.]

c. Standing to Sue for Public Nuisance

Generally, only two types of plaintiffs have standing to sue for public nuisance: (1) a ***private individual*** who suffered a particularized injury or (2) someone suing as a ***representative of the general public***. [Restatement (Second) of Torts § 821C.]

i. Private Individual Who Suffered Particularized Injury

A private individual suing for public nuisance must have suffered a ***particularized injury*** from the nuisance. This injury must also be ***significant***.

1) Particularized Injury

A particularized injury must be different from the general harm to the public arising from interference with the public right. In other words, the plaintiff must show that, due to the public nuisance, she suffered harm unique to her own interests. Unique personal financial harm is usually sufficient. [Restatement (Second) of Torts § 821C cmt. j & Reporter's Notes.]

Example:

A chemical company illegally dumped pollutants from a factory into a public river. Members of the general public could lawfully fish in the river. An angler regularly fished the river for recreation. A fishboat captain fished the river to sell the fish commercially for his livelihood. The pollutants killed the fish in the river, making fishing impossible. As a result, the captain's business severely declined. The angler did not suffer particularized injury, but the captain did. The angler lost only the ability to fish the river, which was the precise harm affecting the rest of the general public. The captain, though, suffered a unique personal financial harm from the decline in his business, which was his livelihood. [*Adapted from* Restatement (Second) of Torts § 821C illus. 11.]

2) Significant Harm in General

Significant harm generally entails substantial, and not merely trivial, harm or inconvenience that a typical property owner in the community would suffer. In addition, a private individual suing for public nuisance must have suffered

harm that is different in kind, not merely degree, from that suffered by the general public. [Restatement (Second) of Torts § 821F; Significant Interference, *infra*.]

Example:

A developer built a causeway that unlawfully obstructed a navigable stream. An angler owned a motorboat and, for his own pleasure, used the stream about five times as much as anyone else in the community. The angler cannot maintain an action for public nuisance. The angler may have suffered harm of a different degree from other members of the community because he used the stream so much more than anyone else. Yet the angler's harm was no different in kind. The angler, just like everyone else, has lost the ability to navigate the stream. Matters would differ if, for instance, the angler depended on the stream for his livelihood. [*See* Restatement (Second) of Torts § 821C, illus. 1.]

ii. Representative of the Public

A plaintiff may sue as a representative of the public if the plaintiff is either (1) a ***public official or agency*** with authority to sue on the government's behalf or (2) a ***private person with standing conferred by law*** to sue on behalf of the public at large. Examples include a citizens' group with statutory standing or someone bringing a class-action lawsuit on behalf of the general public. [Restatement (Second) of Torts § 821C(2).]

iii. Property Rights Not Required

To have standing to sue, a ***public-nuisance*** plaintiff need not have rights in any particular piece of real property. [*See* Restatement (Second) of Torts § 821E cmt. a.]

3. Private Nuisance

Private nuisance generally arises if the actor significantly interferes with the victim's private use and enjoyment of land in the victim's possession. If the interference is intentional, then it must also be unreasonable. In most nuisance cases, the interference will be intentional. But if intent is lacking, then the actor's conduct must either (1) satisfy the elements of some negligent or reckless tort other than nuisance or (2) qualify for strict liability as an abnormally dangerous activity. [*See* Restatement (Second) of Torts §§ 822-3, with comments; Unreasonable Interference, *supra*.]

a. Property Rights Required for Standing

To have standing to sue for ***private*** nuisance, a plaintiff must usually have some ***possessory interest*** in real property, and the defendant must have unreasonably interfered with that interest. This includes not only ownership, but any other possessory interest, such as a lease. The holder of an easement or profit in the land may also have a claim for private nuisance. A member of the owner's household who occupies but does not herself own the land may also qualify, for instance, the spouse of the person in whose name the land is titled. Normally, the owner of a strictly nonpossessory interest in the land cannot maintain an action for nuisance, unless perhaps the nuisance permanently and detrimentally affects the land. [*See* Restatement (Second) of Torts § 821E, with comments.]

b. Significant Interference

Significant interference with the victim's use and enjoyment of property occurs if the activity has produced or more likely than not will produce ***substantial harm or inconvenience***. The harm must be a kind that a typical person in the community would suffer. Put differently, the harm must be a kind that would befall property in normal condition that the victim uses for a purpose not out of place in the community. [Restatement (Second) of Torts §§ 821F, 822, with comments.]

i. Substantial Harm or Inconvenience

Substantial harm or inconvenience means harm that is genuinely important, involving more than small inconvenience or trifling annoyance. Put another way, the actor must seriously and meaningfully infringe upon the victim's interest in using and enjoying the land. [Restatement (Second) of Torts § 821F cmt. c.]

1) Personal Injury or Property Damage

Property damage virtually always constitutes substantial harm or inconvenience. Bodily illness or injury may constitute substantial harm or inconvenience, but only if an average, reasonable member of the community would suffer this type of harm. If the illness or injury owes to the victim's peculiar idiosyncrasy or vulnerability, then there may not be substantial harm. [Restatement (Second) of Torts § 822 cmt. d; *see* Harm Suffered by a Normal Person or Normal Property in the Community, *infra*.]

ii. Harm Suffered by a Normal Person or Normal Property in the Community

Nuisance requires that average, reasonable people in the community would regard the actor's conduct as offensive and annoying to the point of being intolerable. If this requirement fails, then the harm or inconvenience will not be deemed

substantial, even if the particular victim cannot endure it due to her own idiosyncrasies or peculiar circumstances. [Restatement (Second) of Torts § 821F cmt. d.]

Example:

Local children played basketball in a homeowner's driveway twice per week. The resulting noise was audible to most of the homeowner's neighbors; it did not bother them. A patient moved next door to the homeowner. The patient was undergoing treatment for an unusual condition, which no one else in the neighborhood had. The condition made the patient extremely sensitive to noise; even the mild commotion from the basketball games caused him severe physical distress. The patient had no viable claim against the neighbor for private nuisance. The harm was traceable to a condition that average people in the community did not suffer. [*Adapted from* Restatement (Second) of Torts § 821F illus. 1.]

c. Intent, Negligence, and Strict Liability

Nuisance requires that the actor's conduct be (1) intentional, (2) negligent, (3) reckless, or (4) subject to strict liability for being abnormally dangerous. [*See* Restatement (Second) of Torts § 822; Strict Liability, *infra*.]

i. Intent

In a nuisance case, intent arises if the actor (1) ***deliberately seeks*** to interfere with the victim's use and enjoyment of the property; (2) ***knows***, *i.e.*, is ***substantially certain,*** that this interference will result from the conduct; or (3) fails to take ***reasonable steps*** to remedy the nuisance ***after learning of the harm*** that the nuisance is causing. [*See* Restatement (Second) of Torts § 825, with comments.]

Example:

In year one, a poultry farm operated next to a factory. The poultry farm got most of its water from a reservoir underneath the factory. That same year, the factory operator disposed of waste in a small depression on factory land. Initially, the factory operator did not realize that the waste was seeping into the ground and polluting the reservoir, fouling the water that the poultry farmer needed to operate. In year two, the poultry farmer discovered this pollution and informed the factory operator. Nonetheless, the factory operator continued dumping waste into the depression. In year one, the factory operator's nuisance to the poultry farmer was not intentional, because the factory operator was unaware of it. But in year two, the factory operator kept dumping the waste despite having been informed of

the pollution and its effect on the poultry farmer. At that point, the interference became intentional. [*Adapted from* Restatement (Second) of Torts § 825 illus. 3-4,]

4. Remedies

Remedies for a nuisance include ***damages***, ***injunctions***, and ***self-help***.

a. Damages

Compensatory damages are appropriate in a private-nuisance case. They are also appropriate in a public-nuisance case if the plaintiff has suffered a unique individual harm. Punitive damages may be available in extreme cases in which the defendant's conduct was particularly evil, indifferent, or outrageous. [Restatement (Second) of Torts § 822 cmt. d; *Karpiak v. Russo*, 676 A.2d 270 (Pa. Super. Ct. 1996).]

b. Injunctions

If money damages are inadequate to compensate the plaintiff, the court may enjoin the nuisance. The court may tailor the injunction as necessary to prevent harm to the plaintiff, while preserving any social utility that arises from the defendant's conduct. [*E.g.*, *Brenteson Wholesale, Inc. v. Ariz. Pub. Svc. Co.*, 803 P.2d 930 (Ariz. Ct. App. 1990); Restatement (Second) of Torts § 822 cmt. d.]

c. Self-Help

In cases of private nuisance (or public nuisance that causes unique individual harm), the victim may exercise self-help by entering the actor's land to abate the nuisance. The victim must first provide notice to the actor, unless the victim reasonably believes it would be impractical or pointless. The victim may use no more force than necessary to abate the nuisance, and this privilege does not, by itself, confer any right to use force directly against the actor. Also, the victim must (1) enter the land at a reasonable time and in a reasonable manner and (2) compensate the actor for any harm exceeding what is reasonably necessary to abate the nuisance. [*See* Restatement (Second) of Torts § 201, with comments; *but see* Public Necessity, Private Necessity, *infra*.]

5. Coming to the Nuisance Not a Defense

It is generally not a defense to show that the plaintiff came to the nuisance; that is, that the plaintiff purchased property with knowledge of the nuisance. [*Allison v. Smith*, 695 P.2d 791 (Colo. Ct. App. 1984).]

Example:

A scrapyard operated on property adjoining a private cabin. Much junk and debris was piled high on the scrapyard's property. The scrapyard often soaked the scrapyard's soil with oil, meaning to keep dust from kicking up in the wind. The oil seeped into the ground and polluted the reservoir from which the cabin got its water, making the water unusable and emitting obnoxious odors. The hunter who then owned the cabin sold the cabin to an angler. Before the sale, the hunter told the angler about the scrapyard and the oil, but the angler decided to buy the cabin anyway. If the angler sues the scrapyard owner for nuisance, it is no defense that the angler knew about the oil and the debris before purchasing the cabin. [*Adapted from Allison v. Smith*, 695 P.2d 791 (Colo. Ct. App. 1984).]

C. Conversion

Conversion arises if the actor (1) ***intentionally exercises control*** over (2) the ***personal property*** (chattel) of another and thus (3) ***seriously interferes*** with the other's possessory rights in the chattel. The interference must be so severe that it is justifiable to require the actor to pay the chattel's ***full value***. [Restatement (Second) of Torts § 222A.]

1. Intentional Exercise of Control

Conversion does not require that the actor intend to interfere with someone else's possessory rights in chattel. All it requires is the intent to do an act that happens to interfere with those rights. Thus, an actor may commit conversion even if he mistakenly but reasonably believes that the chattel belongs to him. [*See* Restatement (Second) of Torts § 222A cmt. d., illus. 1.]

Example:

A man and his friend attended a dinner party together, each wearing a hat. The two hats were practically identical in appearance, and they were left hanging next to each other during the party. The man inadvertently departed with the friend's hat, reasonably believing it to be his own. Although the man's mistake was reasonable, he had sufficient intent for conversion. When the man acted, he intended to take the hat, and the hat happened to belong to the friend. [*Adapted from* Restatement (Second) of Torts § 222A illus. 1-2.]

2. Personal Property of Another

The actor's conduct must interfere with the victim's ***superior right to control*** the chattel.

a. Source of the Victim's Superior Right of Control

The victim's superior right of control may stem from ***owning*** the chattel. It may also stem from ***some other interest*** in the chattel, such as a lease, entrustment, or bailment.

What matters is that the victim's rights in the chattel are ***superior*** to the actor's. [*See* Restatement (Second) of Torts §§ 222A, 223, 224A, 895, with comments.]

3. Ways to Interfere with the Victim's Superior Right of Control

An actor interferes with a victim's superior right of control by dealing with the chattel in a way that is ***inconsistent with the victim's right*** to dictate how the chattel is used. The Restatement (Second) of Torts offers several common examples of this interference.

a. Dispossession or Destruction of Chattel

The actor may interfere by dispossessing the victim of the chattel or destroying the chattel. [Restatement (Second) of Torts § 223(a), (b).]

b. Misdelivery of Chattel

The victim may entrust the actor with the chattel, under the premise that the actor will deliver the chattel to a certain person. If so, the actor may interfere simply by ***delivering the chattel to someone else*** or otherwise delivering the chattel contrary to the entruster's instructions—unless the actor delivers the chattel to one entitled to immediate possession of it. [Restatement (Second) of Torts §§ 223-25.]

Example:

A wholesaler committed goods to a shipper for delivery to a customer. While the goods were in transit, the wholesaler lawfully ordered the shipper to stop delivery of the goods. Despite this order, and despite having knowledge of it, the shipper delivered the goods to the customer, who was not entitled to their immediate possession. The shipper is liable for conversion, having misdelivered the chattel. [*Adapted from* Restatement (Second) of Torts § 234 illus. 1.]

c. Fundamental Alteration of Chattel

An actor may interfere with a victim's superior right of possession in the chattel by physically ***altering*** the chattel to fundamentally change its character or identity. [Restatement (Second) of Torts § 226.]

Example:

A socialite left a fur coat with a clothier for repairs. The clothier intentionally dyed the fur coat to be a much darker color than it was initially. The clothier is liable for conversion. The clothier did not destroy or steal the coat, but the change in color fundamentally altered the coat's character or identity. [*See* Restatement (Second) of Torts § 226 illus. 2.]

d. Use beyond Scope of Consent

A victim may, of course, give an actor legally effective consent to use chattel. Even in that case, the actor may interfere with the victim's rights by using the chattel in a manner ***outside the scope of the victim's consent***. [*See* Restatement (Second) of Torts § 228.]

e. Acceptance of Converted Chattel

An actor may interfere with a victim's rights in chattel by ***accepting*** chattel, knowingly or inadvertently, from someone who stole or otherwise converted it. [*See* Restatement (Second) of Torts § 229 cmt. d.]

f. Retention after Lawful Possession Expires

An actor may initially possess a victim's chattel rightfully. However, the actor may interfere with the victim's rights by ***retaining*** the chattel for an unreasonable length of time after becoming legally obligated to return it, for instance, after the victim has lawfully demanded the chattel's return. [*See* Restatement (Second) of Torts §§ 237-38, with comments.]

4. Serious Interference Justifying Payment of Chattel's Full Value

For conversion to occur, an actor's interference with another's superior right to control chattel must be serious enough to justify forcing the actor to pay the chattel's ***full value***. Interference of this magnitude can take various forms. [Restatement (Second) of Torts § 222A.]

a. Total Deprivation of the Value of the Chattel

Forcing the actor to pay the chattel's full value is justifiable if the actor's conduct ***deprives*** the victim of the full value. This may occur, for instance, if the actor steals, destroys, loses, or severely damages the chattel. [*See* Restatement (Second) of Torts § 222A, with comments and illustrations.]

b. Serious Usurpation of Plaintiff's Superior Right of Control

Sufficient interference may arise if the actor's conduct constitutes a ***serious usurpation*** or manifests a ***flagrant and extreme disregard*** of the victim's superior rights in the chattel. This is true even if the actor does not damage the chattel. This is because the purpose of conversion is not only to preserve the chattel's value to the victim, but also to vindicate the victim's intangible rights of possession in the chattel. [*See* Restatement (Second) of Torts § 228, with comments.]

Example:

A motorist allowed a neighbor to borrow the motorist's car for one day, to drive 20 miles to a job interview. However, immediately after the interview, the neighbor drove the car for 2,000 miles on a sightseeing trip. One month later, the neighbor returned the car to the motorist, with no noticeable damage. Even so, the neighbor's conduct was a serious enough usurpation of the motorist's superior rights in the car that the neighbor had to pay the car's full value. The neighbor vastly exceeded the scope of the motorist's consent to use the car, manifesting flagrant and extreme disregard for the motorist's rights.

c. Other Factors in Determining Seriousness of Interference

The seriousness of the actor's interference with the victim's rights in chattel is a function of all the relevant facts and circumstances. For guidance, the Restatement (Second) of Torts lists several important factors to consider.

i. Extent and Duration of Control

The greater the ***extent and duration*** of the actor's control over the chattel, the more likely the actor has committed conversion. [*See* Restatement (Second) of Torts § 222A(2)(a).]

ii. Intent to Interfere with Victim's Rights

Liability for conversion is more likely if the actor ***deliberately or knowingly interferes*** with the victim's superior rights in the chattel. [*See* Restatement (Second) of Torts § 222A(2)(b).]

iii. Extent of Interference with Victim's Rights

The greater the degree to which the actor ***displaces*** the victim's superior right of control, the more likely conversion has occurred. [*See* Restatement (Second) of Torts § 222A(2)(d).]

iv. Harm to Chattel

The more the chattel is ***damaged***, the more likely that conversion has occurred. [*See* Restatement (Second) of Torts § 222A(2)(e).]

v. Inconvenience and Expense to Victim

The more ***inconvenience and expense*** the victim incurs due to the interference, the more likely that conversion has occurred. [*See* Restatement (Second) of Torts § 222A(2)(f).]

D. Trespass to Chattel

An actor commits trespass to chattel if the actor (1) ***intentionally*** (2) ***interferes*** with (3) someone else's ***right of possession*** in chattel (4) in a manner ***not sufficiently serious*** to justify forcing the actor to ***pay the full value*** of the chattel. [*See* Restatement (Second) of Torts §§ 217-18.]

1. Intent Required for Trespass to Chattel

Intent, for trespass to chattel, is analyzed in the same way as it is for conversion. [*See* Restatement (Second) of Torts § 217 cmt. c; Conversion, *supra*.]

2. Interference

For trespass to chattel, an actor may interfere with a victim's superior right of control through ***dispossession*** or ***intermeddling***.

a. Dispossession

Dispossession means depriving the victim of the chattel's use for an appreciable length of time, even if brief. [*See* Restatement (Second) of Torts §§ 217-18.]

Example:

A retail store owner stored some of her inventory at a warehouse. She went to the warehouse during normal business hours and lawfully demanded the return of her goods. The warehouseman returned the goods, but he intentionally took an hour longer than was reasonably necessary. The warehouseman is likely liable to the store owner for trespass to chattel. Though the warehouseman did nothing to justify forcing him to pay the chattel's full value, he did deprive the store owner of her goods for a meaningful length of time. [*Adapted from* Restatement (Second) of Torts § 222A illus. 14.]

b. Intermeddling

Intermeddling means using the chattel or disturbing the chattel in a way that materially impairs its usefulness or value to the victim. This may include damaging the chattel. [*See* Restatement (Second) of Torts §§ 217-18.]

Example:

A farmer began feuding with a neighboring rancher. One day, after a heated argument with the rancher, the farmer took a rifle and, from a great distance, shot one of the rancher's horses. The horse suffered a flesh wound. Although the rancher incurred

some veterinary bills in treating the horse, the horse fully recovered. The farmer intermeddled with the horse by shooting it and, therefore, is liable to the rancher for trespass to chattel. Yet there is no conversion. The farmer did not deprive the rancher of the horse's full value, as he would have if the horse had died, and the degree of interference is not so egregious as to justify compelling the rancher to pay the horse's full value. [*See* Restatement (Second) of Torts § 222A illus. 17-18,]

3. Conversion Distinguished

Theoretically, trespass to chattel is interference with the victim's possessory rights in chattel, and conversion is a wrongful exercise of dominion or control over the victim's chattel. As a practical matter, the difference between the two is nearly always a question of the degree of interference with the victim's rights. [*See* Restatement (Second) of Torts § 222A cmt. d.]

IV. Defenses to Intentional Torts

Defenses to intentional torts include consent, self-defense, necessity, duress, defense and recapture of property, and the parental privilege to discipline and control children.

A. Consent

Legally effective consent is a defense to all intentional torts. [*See* Restatement (Second) of Torts § 892A(1).]

1. Requirements for Effective Consent

For consent to be legally effective, it must be ***informed***, ***voluntary***, and given by someone with the ***legal capacity*** to consent. [*See* Restatement (Second) of Torts §§ 59, 892B, with comments (defining consent as "willingness in fact for conduct to occur").]

a. Informed Consent and Mistake

Consent is ***informed*** if the consenting party knows all facts relevant to the decision whether to consent. This means that consent is not valid if (1) it is based on the victim's mistake; (2) the actor is aware of the mistake; and (3) the mistake relates to the nature of the experience, the risks involved, and the resulting harm that the victim can expect to suffer. The victim's mistake, of which the actor is unaware, will not normally render consent ineffective. [***See*** Restatement (Second) of Torts § 892B cmts. c, e-h, illus. 7, 11.]

Example:

A patient suffered from a medical condition, and a talented and properly credentialed surgeon invented an experimental surgery to treat the condition. The surgeon offered the patient stock in the surgeon's medical-device company if the patient would consent to the surgery. The surgeon truthfully and thoroughly explained the nature of the surgery, the risks involved, and the surgeon's own experience and qualifications. The patient consented to the surgery. However, unknown to the patient, the medical-device company's stock was worthless, as the company had just filed for bankruptcy. The patient's consent was informed. Though the surgeon knowingly misled the patient about the stock, the stock's value had no bearing on the experience to which the patient consented. The patient was not deceived as to the nature of the surgery, the risks involved, or the surgeon's qualifications.

Compare:

A con artist promised to give a patient stock in a medical-device company if the patient would consent for the con artist to perform surgery on her. The con artist claimed to be a licensed physician with many years of surgical experience, but in reality, the con artist never attended medical school. The patient consented, mistakenly believing the con man to be a licensed physician and experienced surgeon. The patient's consent was invalid because it was not informed. The con artist misled the patient concerning both the risks associated with the surgery and the con artist's qualifications. This deception implicated the nature of the surgical experience, the risks involved, and the harm that the patient could reasonably expect to suffer.

b. Voluntary Consent

Consent is voluntary if it is the product of a person's ***free choice***, without duress or coercion. [*See Wal-Mart Stores, Inc. v. Lee*, 74 S.W.3d 634 (Ark. 2002); Restatement (Second) of Torts § 892B(3).]

c. Capacity to Consent

Consent is not valid if the person giving it lacks the legal capacity to consent. Legal incapacity to consent may arise in two basic situations: (1) the ***underage plaintiff*** and (2) the ***mentally deficient plaintiff***. [*See* Restatement (Second) of Torts §§ 59, 892A(2).]

i. Underage Victim

In many jurisdictions, the law sets a minimum age below which a person lacks the legal capacity to consent to particular acts. [*See* Restatement (Second) of Torts § 8892A cmt. b.]

ii. Victim's Mental Deficiency

A victim may lack capacity to consent if she suffers from a mental deficiency, such as mental illness, intoxication, or some other impairment. The deficiency must either prevent the victim from forming the understanding necessary to give informed consent or make the victim so susceptible to suggestion that any consent could not be voluntary. [*See McCue v. Klein*, 60 Tex. 168 (1883); *In re Succession of Stamm*, 43 So. 3d 326 (La. App. 2010).]

2. Types of Consent

There are two types of consent: ***express*** consent and ***implied*** consent.

a. Express Consent

Express consent is explicit and unambiguous oral or written assent to the actor's conduct. [*See Express Consent*, *Black's Law Dictionary* (10th ed. 2014).]

b. Implied Consent

Consent may be implied from the victim's ***conduct*** in light of the surrounding ***circumstances***, or it may be implied ***by law***.

i. Consent Implied from Victim's Conduct

Consent may be implied if a ***reasonable person*** in the actor's position could ***infer*** that the victim consents to the actor's conduct. The inference must rest on a reasonable assessment of both the ***victim's conduct*** and the ***surrounding circumstances***. A person is generally deemed to implicitly consent to the reasonably foreseeable results of activities in which she voluntarily participates—though intentional, reckless, or negligent conduct beyond that reasonably incident to the activity is generally not foreseeable. [*See* Restatement (Second) of Torts § 892, with comments; *Turcotte v. Fell*, 502 N.E.2d 964 (N.Y. 1986).]

Examples:

(1) A wide receiver and a defensive linebacker were playing on opposing teams in a football game. During the game, the linebacker tackled and injured the receiver. The receiver impliedly consented to the linebacker's actions. By voluntarily participating in the game, the receiver gave implied consent to reasonably foreseeable contact arising in the game, and tackling is part and parcel to football.

(2) A passenger voluntarily rode a densely crowded subway train. Dozens of people jostled and bumped the passenger while boarding and exiting the train. This kind of minor physical contact is something that a reasonable person would expect

to occur on a crowded subway train. Thus, by riding the train, the passenger gave implied consent to the contact.

ii. Consent Implied by Law

The law implies a person's consent if an ***emergency*** makes it apparently necessary for the actor to make physical contact with the person, before she can consent, to ***prevent harm to the person***. The actor must have no reason to believe that the person would decline to consent if given the opportunity, or else the law will not imply consent. This rule protects so-called ***Good Samaritans*** who voluntarily assist incapacitated people. [Restatement (Second) of Torts § 892D cmt. a, illus. 4.]

Example:

A partygoer drank excessive quantities of whiskey and became severely intoxicated at a party held on the top floor of a skyscraper. Unaware of himself or his surroundings, the partygoer stumbled toward an open window. A bystander, without the partygoer's consent, grabbed the partygoer and pulled him back from the window. Here, the law would imply the partygoer's consent for the bystander to touch him. The bystander could not obtain the partygoer's effective consent, because the partygoer was too intoxicated. Had the bystander not immediately grabbed the partygoer, he might well have fallen out the window to his death. This emergency made it apparently necessary for the bystander to contact the partygoer without his consent. [*Adapted from* Restatement (Second) of Torts § 892D, illus. 1.]

3. Application of Consent to Conduct and Results

The law requires consent to the actor's conduct, not necessarily to the results that actually flow from it. If a victim's consent is legally effective to absolve the defendant of liability, then the actor is absolved even if the results of the actor's conduct wildly exceed what either party could reasonably have anticipated when consent was given. [Restatement (Second) of Torts § 892A cmt. e.]

Example:

A man expressly (and legally effectively) permitted a friend to punch the man in the chest. Unknown to either party, the man had a serious heart defect. Due to the heart defect, the man dropped dead when the friend punched him. The friend is not liable. The man's consent was legally effective as to the friend's conduct, punching the man. Hence, the friend is absolved even though the result of the conduct, the man's death, far exceeded what either party could have anticipated. [*See* Restatement (Second) of Torts § 892A illus.

4. Scope of Consent

Consent is not a defense to the extent the actor's conduct ***exceeds the reasonably understood scope*** of the plaintiff's consent. [Restatement (Second) of Torts § 892A (3), (4).]

Example:

A landowner consented to allow a lumberjack to enter the landowner's property to cut timber. While on the property, the lumberjack also removed coal. No reasonable person would conclude that consent to remove timber includes consent to remove coal. Thus, the lumberjack had no defense of consent to a lawsuit based on removing the coal.

B. Self-Defense and Defense of Others

An actor is privileged to use physical force against another person if the actor ***reasonably believes*** the force to be necessary to defend either himself or someone else against the ***actual or imminent use*** of ***unlawful*** physical force or confinement. [*See* Restatement (Second) of Torts §§ 63-65, with comments.]

1. Proportionality Requirement

Excessive force is forbidden. The actor must use no more force than is ***reasonably necessary*** to defend against the threatened unlawful force or confinement. [*See* Restatement (Second) of Torts § 70, with comments.]

a. Proportionality: Factors Considered

Factors relevant to determining whether force is excessive include (1) the degree of force implemented, (2) how and by what instrument the force is applied, (3) the overall context in which the force is used, and (4) any necessity for the actor to make a rapid decision. [Restatement (Second) of Torts § 70 cmts. a-b.]

2. Deadly Force

Deadly force is permitted only to prevent ***death***, ***serious bodily injury***, or specific ***felonies***.

a. Death or Serious Bodily Injury

An actor may use deadly force if he reasonably believes the force is necessary to prevent ***imminent*** death or serious bodily injury. [*See* Restatement (Second) of Torts §§ 65, 76.]

Example:

A man wielding a cane tried to strike a woman. The woman held a shotgun. The woman was likely privileged to knock the man down with the shotgun. The woman was not, however, privileged to shoot the man, as nothing indicates that she reasonably believed herself to be facing imminent death or serious bodily injury. [*See* Restatement (Second) of Torts § 70 illus. 1.]

b. Specific Enumerated Felonies

Deadly force may be used to guard against certain ***inherently dangerous forcible felonies***, such as armed robbery or rape. [*E.g.*, Model Penal Code § 3.04(2)(b).]

3. Honest and Reasonable Belief

The actor's belief that force is necessary must be ***honest*** and ***objectively reasonable*** under all the circumstances. An actor mistaken about the need for force may still rely on self-defense, so long as the mistake is both ***honest*** and ***reasonable***. [Restatement (Second) of Torts § 63, with comments.]

Example:

A man standing next to his friend drew back his hand, as though he meant to slap the friend. The man did not actually intend to slap the friend; rather, the man was merely playing a practical joke on the friend. Even so, the man's conduct made it reasonable for the friend to believe that the man was about to slap her. Hence, the friend would be privileged to use proportionate force to prevent the slap, although the slap was never going to occur. [*See* Restatement (Second) of Torts § 63 illus. 5.]

4. Retaliation and Preemptive Strikes Not Permitted

Under the ***imminence*** requirement, the actor must reasonably believe that the use of unlawful force is either happening or about to happen without delay. Thus, an actor may not use force to ***retaliate*** against another's prior use of force or to ***preempt*** another's use of force in the indefinite future. [*See* Restatement (Second) of Torts § 63, with comments.]

Examples:

(1) A mother started beating her adult son with a belt. The son was privileged to use proportionate force to disarm the mother. Having disarmed the mother and thus neutralized the threat of imminent unlawful force, the son could not then beat the mother with the belt in retaliation. [*Adapted from* Restatement (Second) of Torts § 63 illus. 3.]

(2) A stranger confronted a man on the sidewalk. The stranger pointed to his holstered pistol and said, "I won't shoot you now, but God help you in a few hours when the streets aren't as crowded." There being no indication that the stranger would imminently use force, deadly or otherwise, on the man, the man was not privileged to attack and disarm the stranger to prevent the threatened attack, to take place hours in the future.

5. Unlawful Physical Force

For an actor to have a valid privilege of self-defense or defense of others, the threat must be one involving ***unlawful*** force. There is generally no privilege to defend against another's ***lawful*** use of force. [*See* Restatement (Second) of Torts § 70, with comments.]

a. Privilege Arising from Reasonable Mistake That Is Not the Actor's Fault

If the victim is privileged to use force against the actor due to the victim's reasonable mistake of fact, and that mistake is not the actor's fault, then the actor may use proportionate force to defend against the victim's use of force—even though it is privileged. [Restatement (Second) of Torts § 72.]

b. The Initial Aggressor

The ***initial aggressor*** is the person who acts to confer on someone else the privilege of self-defense or defense of others. Any proportional use of force by the person who holds the privilege is lawful. Thus, the initial aggressor in any confrontation generally ***lacks the privilege*** to use force in defense against lawful force by the victim. This general rule is subject to two broad exceptions. [*See* Restatement (Second) of Torts § 72, with comments.]

i. Disproportionate Response by Person with Privilege

Someone privileged to use force in defense may ***violate the proportionality rule*** by using force that is excessive in relation to the initial aggressor's actions. At this point, the defender's use of force becomes unlawful. That, in turn, gives the initial aggressor the privilege to use force to defend against the disproportionate response. [Restatement (Second) of Torts § 71(c).]

Example:

A drunk man slapped a sober man across the face. In response, the sober man pulled a knife and attempted to stab the drunk man. Initially, the sober man was privileged to use proportionate force to prevent another slap by the drunk man, the initial aggressor. However, the use of a deadly weapon in response to a slap is disproportionate. Thus, the sober man was not privileged to use the knife, and the

drunk man was privileged to use proportionate force to defend against that response.

ii. Use of Force after Threat Has Passed

If the initial aggressor ***withdraws*** from the confrontation and ***clearly and reasonably communicates*** that he no longer intends to use unlawful force, then the privilege of defense terminates. Any subsequent use of force by the former victim against the initial aggressor would be unlawful, giving the initial aggressor the right to use force in defense. In evaluating these cases, one must make due allowance for the excitement of the encounter and the possible lack of time for the victim to reflect and assess the situation. [Restatement (Second) of Torts § 71 cmt. e.]

Example:

A woman slapped her sister across the face. The woman immediately backed up, apologized, and turned to walk away from the sister. The sister, however, then attacked the woman. The sister's use of force was unlawful. The sister's privilege to use force against the woman terminated, because the woman clearly withdrew from the conflict. Thus, the woman could lawfully use force in defense against the sister.

6. No Duty to Retreat before Using Nondeadly Force

An actor has no duty retreat before lawfully using nondeadly force in defense. [Restatement (Second) of Torts § 63.]

7. Deadly Force

Some jurisdictions, along with the Restatement (Second) of Torts, impose a limited ***duty to retreat*** before using ***deadly force***. Specifically, an actor must not use deadly force if he can, with ***reasonable safety***, avoid the threat by (1) physical escape; (2) surrendering real or personal property to an initial aggressor who claims a right to it; or (3) complying with the initial aggressor's command to take some action, so long as the action is not unlawful. An actor ***need not***, however, retreat from his own or another's ***dwelling place***. [*See* Restatement (Second) of Torts § 65.]

C. Necessity

The necessity defense generally privileges an actor to commit trespass to land, trespass to chattel, or conversion to avoid some imminent, greater harm. Necessity may be either ***public***

necessity or ***private necessity***. [Restatement (Second) of Torts §§ 196-97, 213, 262, with comments.]

1. Public Necessity

Public necessity is a defense if the actor reasonably believes her conduct necessary to avert ***serious, imminent public harm***. The conduct must be for the good of the public at large, as opposed to any particular person or group of persons. [*See* Restatement (Second) of Torts §§ 196, 262; *e.g.*, *Surocco v. Geary*, 58 Am. Dec. 385 (Cal. 1853).]

a. No Liability for Reasonably Necessary Damages

If the public-necessity defense applies, then the actor is ***not liable*** for any damage that was ***reasonably necessary*** to prevent the harm. The actor is, however, liable for damage ***greater*** than what was reasonably necessary. [*See* Restatement (Second) of Torts §§ 196, 262, with comments.]

Examples:

(1) An arborist destroyed a homeowner's house, unoccupied at the time, to halt the spread of a wildfire that would otherwise have burned down an entire neighborhood. The arborist was privileged to do this by public necessity. Thus, the arborist will not be held liable to the homeowner, because burning the house was reasonably necessary to avoid imminent, greater public harm to the whole neighborhood. [*Adapted from Surocco v. Geary*, 58 Am. Dec. 385 (Cal. 1853).]

(2) An experienced veterinarian saw a dog foaming at the mouth and knew immediately that the dog had rabies. To prevent the dog from spreading rabies to other animals or to people, the veterinarian killed the dog. The veterinarian is not liable to the dog's owner for conversion. The veterinarian reasonably believed that killing the dog was necessary to prevent the dog from inflicting the serious, imminent public harm of spreading rabies. [*Cf.* Restatement (Second) of Torts § 262 illus. 2.]

2. Private Necessity

Private necessity privileges an actor to commit what would otherwise be actionable trespass to land, trespass to chattel, or conversion if the actor ***reasonably believes*** that doing so is necessary to prevent ***serious harm*** to the person or property of ***the actor*** or ***someone else***. [*See* Restatement (Second) of Torts §§ 197, 213.]

a. Limited Liability in Private-Necessity Cases

Unlike public necessity, private necessity is a ***partial defense***. A defendant who makes out a private-necessity defense will not be deemed a tortfeasor and thus cannot be held liable for punitive damages. However, the defendant ***must still compensate the plaintiff*** for any damage or loss to the plaintiff's property. [*See Vincent v. Lake Erie Transp. Co.*, 124 N.W. 221 (Minn. 1910).]

Example:

A hiker was lost in the woods on a cold winter night. The hiker reasonably believed herself to be at serious risk of death from starvation or cold. To survive, the hiker broke into a hunter's cabin, where she ate the hunter's food and took shelter. The hiker acted with a privilege of private necessity, meaning she cannot be liable to the hunter in tort. However, the hiker must still compensate the hunter for the property damage caused by the break-in, and for the value of the food that she ate.

D. Defense and Recapture of Property

An actor may be privileged to use force or enter upon another person's land to defend or reclaim the actor's own property.

1. General Rule: No Force to Recapture Property

Generally, an actor may use force only to ***prevent*** a wrongful taking of property while that taking is ***in progress***. An actor typically may ***not*** use force to ***reclaim*** property that has already been taken. [*See Gortarez v. Smitty's Super Valu, Inc.*, 680 P.2d 807 (Ariz. 1984); Restatement (Second) of Torts § 103 (with comments).]

a. Exception for Hot Pursuit

Despite the general rule, someone with superior rights in chattel may use ***reasonable force*** to reclaim the chattel while in ***hot (or fresh) pursuit*** of another who has just wrongfully taken the chattel and is trying to flee. However, once the thief reaches a place of safety or otherwise gets away, the pursuer may no longer use force to reclaim the chattel. The Restatement (Second) of Torts purports to liberalize the common-law hot-pursuit principle by requiring that the actor use force promptly after the later of the unlawful taking of the chattel or the actor's timely discovery of the taking. [*See* Restatement (Second) of Torts § 103, with comments.]

b. Reasonable Mistake Not Permitted

Even while in hot pursuit, the pursuer may use force only if the person targeted ***in fact*** wrongfully took chattel belonging to the pursuer. If the pursuer is mistaken as to ***any facts*** that would justify the use of force in hot pursuit, then he will be liable for using

unlawful force, ***even if the mistake is reasonable***. [*See Gortarez v. Smitty's Super Valu, Inc.*, 680 P.2d 807 (Ariz. 1984).]

2. Force Must Be Reasonable under the Circumstances

Any force used to defend or recapture property must be no greater than what is reasonably necessary under the circumstances. [*Brown v. Martinez*, 361 P.2d 152 (N.M. 1961).]

a. Demand Required

The actor must usually ***demand*** that the wrongdoer ***cease and desist*** (or, if applicable, return the chattel) before using force, at least if doing so is reasonable under the circumstances. [*See Gortarez v. Smitty's Super Valu, Inc.*, 680 P.2d 807 (Ariz. 1984).]

b. No Deadly Force to Defend or Reclaim Property

Deadly force may ***never*** be used merely to defend or reclaim property. This rule precludes the defense of property with deadly mechanical devices or traps, such as spring guns. An actor may not do by a device what she may not do in person. [*Brown v. Martinez*, 361 P.2d 152 (N.M. 1961); *Katko v. Briney*, 183 N.W.2d 657 (Iowa 1971).]

3. Entering Property of Another to Recapture Converted Chattel

The owner of wrongfully taken chattel may enter upon someone else's land to reclaim the chattel. The owner must do so at a ***reasonable time*** and in a ***reasonable manner***. The chattel's owner ***must not use force*** against any person or cause a ***breach of the peace***. In addition, the chattel's owner must remain on the other person's land for ***no longer than is reasonably necessary*** to retake the chattel. [*State v. Logsdon*, 827 N.E.2d 869 (Ohio Ct. App. 2005).]

V. Negligence

Courts and commentators formulate the requirements for negligence in different ways with varying numbers of discrete elements. The substance across these formulations, though, is the same. For a valid negligence claim to arise, (1) the actor must owe the victim a ***duty*** to conform to (2) a particular ***standard of care***, (3) the actor must ***breach*** that duty, and the breach must (4) ***actually*** and (5) ***proximately*** cause (6) legally cognizable ***harm*** to the victim. [*See* David G. Owen, *The Five Elements of Negligence*, 35 Hofstra L. Rev. 1671 (Summer 2007).]

A. Duty and the Standard of Care

Negligence requires that the actor owe the victim a ***duty*** to follow a particular ***standard of care***. If a duty arises, the actor must behave according to the applicable standard of care or

risk negligence liability. The standard of care is ***not the same*** in every situation in which a duty exists. [*See* David G. Owen, *The Five Elements of Negligence*, 35 Hofstra L. Rev. 1671 (Summer 2007).]

1. Foreseeability

A duty generally arises if it is ***reasonably foreseeable*** that the actor's conduct will harm someone else.

a. General Duty to Foreseeable Victims

Most generally, a duty of care arises if a ***reasonable person*** in the actor's position should perceive that her conduct places someone at an ***unreasonable*** risk of harm. There are two major viewpoints concerning the scope of this duty: the ***Cardozo view*** and the ***Andrews view***.

i. The Cardozo View

Under the Cardozo view, a duty arises only if a ***reasonable person*** in the actor's position could foresee that someone in the ***victim's position*** might be hurt if the actor fails to exercise due care. Put differently, a duty exists only if the particular victim is in the ***zone of foreseeable danger*** that the actor's conduct has created. [*Palsgraf v. Long Island R.R. Co.*, 248 N.Y. 339 (1928).]

ii. The Andrews View

According to the Andrews view, if the actor's conduct puts ***anyone*** at a reasonably foreseeable risk of harm, then the actor owes a duty of care to ***everyone on earth***. This includes anyone whom the actor's carelessness may hurt, regardless of whether the particular victim happens to be within the zone of foreseeable danger. [*Palsgraf v. Long Island R.R. Co.*, 248 N.Y. 339 (1928).]

iii. The Prevailing View

The Cardozo view is predominant in American law. Thus, an actor generally owes a duty of care only to ***foreseeable victims*** to avoid ***foreseeable harms***. [*See* W. Jonathan Cardi, *The Hidden Legacy of Palsgraf: Modern Duty Law in Microcosm*, 91 B.U. L. Rev. 1873 (Dec. 2011).]

Example:

A passenger boarded a commuter train carrying a package that, to any reasonable observer, looked harmless. Yet as the passenger knew, the package in fact

contained volatile explosives. In boarding the train, the passenger negligently stumbled and fell backward. In response, a conductor negligently shoved the passenger forward, causing the passenger to drop the package, which exploded. The explosion caused a chain of events injuring a teacher standing very far away. Here, under the Cardozo view, the conductor owed a duty to the passenger, whom he could foreseeably harm by the negligent shove, but not the faraway teacher whom he could not foresee harming. The Andrews view would hold that the conductor owed a duty to both, because he could foresee his negligence harming someone (the passenger). The passenger owed a duty to both the conductor and the teacher under either view because he knew the package contained explosives. [*Palsgraf v. Long Is. R.R. Co.*, 162 N.E 99 (N.Y. 1928).]

b. Viable Fetus as Foreseeable Victim

If an actor owes a duty of care to a woman, the actor also owes a duty to any viable fetus the woman might be carrying. This is true regardless of whether the actor knows or has reason to know of the pregnancy. Thus, any duty of care to a pregnant woman is also a duty to her unborn child. [*See Remy v. MacDonald*, 801 N.E.2d 260 (Mass. 2004).]

c. The Rescue Doctrine

If an actor negligently puts herself or another in a dangerous situation, it is reasonably foreseeable that someone will be hurt trying to render assistance. Therefore, even under the Cardozo view, the actor generally owes a duty of care to would-be ***rescuers***. This principle is called the ***rescue doctrine***. [*Wagner v. Int'l Ry. Co.*, 232 N.Y. 176 (1921).]

i. Exception: The Firefighter's Rule

In some jurisdictions, the rescue doctrine does not create a duty to ***professional rescuers***, such as police officers or firefighters. [*See* The Firefighter's Rule, *infra*.]

ii. Exception: Reckless Rescuers

The rescue doctrine does not create a duty to would-be rescuers who are injured because of their own ***reckless*** behavior in attempting a rescue. [*Wagner v. Int'l Ry. Co.*, 232 N.Y. 176 (1921).]

d. The Firefighter's Rule

Many jurisdictions adopt some form of the so-called ***firefighter's rule***. This rule limits an actor's duty to firefighters and other public-safety officers in negligence cases.

i. Applicability of Firefighter's Rule

The firefighter's rule applies if an actor's negligence causes an emergency requiring the presence of a public-safety officer, especially a firefighter or police officer. [*Moody v. Delta W., Inc.*, 38 P.3d 1139 (Alaska 2002).]

ii. Effect of Firefighter's Rule

Under the firefighter's rule, a public-safety officer ***may not recover in negligence*** for injuries attributable to the specific negligence that required her presence at the scene. [*Moody v. Delta W., Inc.*, 38 P.3d 1139 (Alaska 2002).]

iii. Limitations on Scope of Firefighter's Rule

Many jurisdictions have limited the scope of the firefighter's rule in varying ways.

1) Intentional or Reckless Conduct Requiring Officer's Presence

In some jurisdictions, the firefighter's rule does not bar recovery if the actor's ***intentional or reckless*** conduct is what required the officer's presence at the scene. [*See Mahoney v. Carus Chem. Co.*, 510 A.2d 4 (N.J. 1986), *superseded by statute on other grounds*, N.J. Stat. Ann. § 2A:62A-21, *as recognized in Ruiz v. Mero*, 917 A.2d 239 (N.J. 2007).]

2) Negligence Not Requiring Officer's Presence

The firefighter's rule applies only to the specific act of negligence requiring the officer's presence at the scene. It does not apply to other acts of negligence, for instance, failing to warn the officer of known but hidden dangers once the officer arrives on the scene. [*Moody v. Delta W., Inc.*, 38 P.3d 1139 (Alaska 2002).]

Examples:

(1) A driver was speeding, which constituted negligence. A police officer stopped the driver. While the officer was standing beside the driver's car, a trucker negligently struck the officer. The firefighter's rule precludes the officer from recovering in negligence against the driver. The driver's negligent act of speeding was the conduct that required the officer's presence at the scene of the injury. However, the firefighter's rule does not preclude the officer from recovering against the trucker. The trucker's negligence in striking the officer was distinct from the driver's negligent speeding.

(2) A homeowner kept two vicious dogs, known to attack strangers. There were no signs on the homeowner's property warning about the dogs. One day, the homeowner negligently set fire to the property. When a firefighter arrived in response, the dogs attacked the firefighter. The firefighter's rule does not preclude the firefighter from recovering against the homeowner in negligence for the resulting injuries. The specific act of negligence that required the firefighter's presence was the act that started the fire. The homeowner's negligent failure to warn about the dogs was a distinct act of negligence, unrelated to the fire.

2. Duty to Exercise Reasonable Care in Assisting Another

A person generally has no duty to assist or rescue another. Even so, if an actor ***voluntarily*** undertakes to rescue or assist another, whether gratuitously or for compensation, the actor generally has a duty to exercise ***reasonable care under the circumstances*** to avoid injuring (or further injuring) the person assisted. This duty may arise if either (1) the actor's failure to exercise reasonable care increases the foreseeable risk of harm to the victim, or (2) the harm arises due to the victim's reliance on the actor's voluntary undertaking. The actor may breach the duty by (1) failing to use reasonable care to secure the victim's safety or (2) discontinuing aid or protection in a way that leaves the victim worse off. [*Miller v. Hecox*, 969 N.E.2d 914 (Ill. App. Ct. 2012).]

a. Deterring or Interfering with Rescue

An actor may breach the duty to use reasonable care in rescuing another if (1) the actor's attempt to rescue fails due to the actor's own negligence, and (2) that failure ***deters or impedes*** others' rescue efforts. [*E.g.*, *Zelenko v. Gimbel Bros., Inc.*, 287 N.Y.S. 134 (N.Y. Sup. Ct. 1935).]

b. Limited Circumstances in Which Duty to Rescue Arises

Despite the general rule, a duty to rescue can arise if (1) the actor creates the need for rescue, (2) a special relationship exists between the actor and the victim, or (3) the victim reasonably relies on the actor's promise to rescue. [*See* The Rescue Doctrine, *supra*; Misfeasance versus Nonfeasance, *infra*.]

3. Misfeasance versus Nonfeasance

Most torts arise because the actor's affirmative conduct harmed the victim. Affirmative harmful conduct is called ***misfeasance***. By contrast, failing to act at all is ***nonfeasance***. A person is generally not liable for nonfeasance, because there is typically no affirmative duty to act on another's behalf. However, there are several exceptions to this rule.

a. Duty if Actor Places Victim in Helpless Peril

An actor's conduct may bodily injure a victim and thus render the victim helpless to protect herself against a reasonably foreseeable risk of future harm. If the actor has reason to know of this peril, then the actor owes the victim a duty to use reasonable care to prevent the foreseeable harm. This is true even if the conduct that placed the victim in peril was not negligent or otherwise culpable. [*See* Restatement (Second) of Torts § 322.]

Example:

A motorist struck a pedestrian with a car, rendering the pedestrian helpless on the side of the road. The accident was unavoidable, so the motorist was not negligent. Even so, from the time of the accident, the motorist owed the pedestrian a duty to use reasonable care to make sure that the pedestrian suffered no further injury due to the accident—for instance, by calling for help and staying with the pedestrian until help arrived. [*See* Restatement (Second) of Torts § 322, illus. 1.]

b. Duty Arising from Special Relationships

Certain ***special relationships*** have been held to create duties to act for another's benefit. Examples of these relationships include parent-child, employer-employee, carrier-passenger, and school-student relationships. These are often relationships in which the victim depends on the actor, or the actor is in a position of authority over the victim. [*See, e.g.*, *Williams v. Mayor & City Council of Baltimore*, 753 A.2d 41 (Md. 2000); *Marquay v. Eno*, 662 A.2d 272 (N.H. 1995); *Young v. Salt Lake City Sch. Dist.*, 52 P.3d 1230 (Utah 2002); *Mirand v. City of New York*, 637 N.E.2d 263 (N.Y. 1994).]

c. Duty Arising from Reasonable Reliance

A duty to assist can arise if the victim ***reasonably relies*** on the actor's ***promise*** or ***representation*** to act a certain way. [*See Miller v. Hecox*, 969 N.E.2d 914 (Ill. App. Ct. 2012).]

Example:

A rancher lived near a railroad crossing. The railroad operator installed a device that routinely issued a loud signal to indicate when a train was approaching the crossing. The rancher reasonably relied on this signal to know when to drive cows across the tracks at that crossing. The railroad operator owed a duty of reasonable care to keep the signal device in working order, so that the rancher and his cows would not be injured by a passing train while crossing the tracks.

d. Duty Arising from Contract

Generally, breach of a contract is not a tort. However, a contract can create circumstances and relationships giving rise to a duty of care in tort. Additionally, in performing a contract, as with any other activity, an actor owes a duty of care to avoid unreasonable risk of harm to others. This duty arises independently of the contract itself. [*See Petrus Family Tr. Dated May 1, 1991 v. Kirk*, 415 P.3d 358 (2018).]

Examples:

(1) A private security guard contracted with a hardware store to provide security for the store and its patrons. Because the guard entered into an agreement to provide security, he owed a duty of care when performing his contractual duties. Put differently, this was a voluntary undertaking creating a duty of reasonable care in providing security services.

(2) A builder contracted to construct a home for a homeowner. Due to the builder's negligent construction of the home, part of the home collapsed upon the homeowner, injuring her. In building the home, the builder was under a duty, independent of the contract, to exercise reasonable care to avoid serious injuries. Hence, the builder may be liable to the homeowner in tort. [*See Petrus Family Tr. Dated May 1, 1991 v. Kirk*, 415 P.3d 358 (2018).]

4. Duty to Control Third Parties

In general, an actor has no duty to protect a victim by controlling a third party's actions. However, that duty may arise if there is a ***special relationship*** between (1) the actor and the victim or (2) the actor and the third person who harms the victim. [*Williams v. Mayor & City Council of Baltimore*, 753 A.2d 41 (Md. 2000); Restatement (Second) of Torts § 315.]

a. Special Relationship between Actor and Victim

A special relationship between the ***actor and the victim*** can arise in several ways.

i. Business Proprietor and Invitee

Most jurisdictions hold that the ***proprietor of a business*** owes a duty to protect customers and other business invitees (those on the premises for business purposes) from the wrongful acts of third parties on the premises. The courts have fashioned four basic approaches to determine the existence and scope of this duty: the ***specific-harm rule***, ***prior-similar-incidents test***, ***totality-of-the-circumstances test***, and ***balancing test***. [*See Posecai v. Wal-Mart Stores, Inc.*, 752 So. 2d 762 (La. 1999).]

1) Specific-Harm Rule

Under the ***specific-harm rule***, a business proprietor generally owes no duty to protect invitees from third persons' wrongful acts. However, a duty will arise if the proprietor is aware of specific harm about to befall a particular invitee. [*See Posecai v. Wal-Mart Stores, Inc.*, 752 So. 2d 762 (La. 1999).]

2) Prior-Similar-Incidents Test

Under the ***prior-similar-incidents*** test, a business proprietor must protect invitees from third persons' wrongful acts if there is sufficient evidence of past crimes, on or near the premises, that the proprietor could reasonably foresee ***similar*** crimes in the future. Relevant factors include (1) the nature, frequency, and extent of prior crimes; (2) how recently the prior crimes occurred; and (3) how similar those crimes were to the particular crime that harmed the victim. [*See Posecai v. Wal-Mart Stores, Inc.*, 752 So. 2d 762 (La. 1999).]

3) Totality-of-the-Circumstances Test

Under the ***totality-of-the-circumstances test***, a business proprietor must protect invitees from third persons' wrongful acts if, considering all the pertinent facts, the proprietor could reasonably foresee that invitees could fall victim to third parties' wrongful acts on the premises. This test considers (1) the same factors as the prior-similar-incidents test and (2) virtually ***any other factor*** that may affect the foreseeability of crimes on the premises, including the condition, nature, and location of the premises and any other crimes in the area, even if those crimes are not similar to the crime that causes the victim's harm. [*See Posecai v. Wal-Mart Stores, Inc.*, 752 So. 2d 762 (La. 1999).]

4) Balancing Test

The ***balancing test***, like the totality-of-the-circumstances test, considers all facts and circumstances germane to the foreseeability of crimes on the premises. However, the balancing test weighs (1) the foreseeability and gravity of harm that might befall invitees against (2) the burden and expense of protecting against that harm and the social utility of the business itself. The greater the foreseeability and gravity of harm weighted against burden, expense, and social utility, the greater the steps the proprietor must take to protect against the harm. [*See Posecai v. Wal-Mart Stores, Inc.*, 752 So. 2d 762 (La. 1999).]

5) Balancing Test, Duty to Hire Security Guards

Quite commonly, a plaintiff injured on business premises by third-party misconduct will assert that a proprietor has a duty to hire security guards, reasoning that the presence of security guards would have prevented the injury. Under the balancing test, a duty to hire security guards will be found only rarely, and that only if there were prior similar incidents on the property. The courts' reluctance to find this duty owes to the great cost and burden of hiring security, which justify a correspondingly demanding threshold of proof from the plaintiff, [*See Posecai v. Wal-Mart Stores, Inc.*, 752 So. 2d 762 (La. 1999).]

Example:

The defendant operated a store in a neighborhood with a low crime rate. As the plaintiff was leaving the store, a robber accosted her in the parking lot, stealing her purchases and other personal property. The relevant jurisdiction applied the balancing test. The plaintiff sued the defendant, asserting that he owed a duty to hire security guards to watch over the store. Under the balancing test, the defendant did not owe that duty. Hiring security guards is very expensive, so a court applying the balancing test would not likely require this unless the foreseeability and gravity of third-party misconduct on the premises were very high. Here, this seems doubtful. The store was located in a low-crime area, and nothing indicates that any significant crime had ever occurred on or near the premises.

Compare:

The defendant owned a shopping mall. The mall was the site of almost-daily violent crime, and it was located in a high-crime area. For these reasons, it was highly foreseeable that the mall's patrons would fall victim to violent crime on the premises. The plaintiff was robbed at the mall and later sued the defendant, alleging that the defendant had a duty to furnish security guards to watch over the mall. Because violent third-party misconduct at the mall was highly foreseeable, the company likely owed a duty to provide security under any of the four approaches, despite the expense and burden of doing so.

ii. People in Custody

A person in the ***lawful custody*** of another may be unable to protect herself from harm. In this case, the custodian owes the person a duty to employ reasonable care to protect the person against third parties' misconduct. Examples of these custodial settings include schools and prisons. [*Marquay v. Eno*, 662 A.2d 272 (N.H. 1995).]

1) Schools

Minor children in school are subject to the care, custody, and control of teachers and other school personnel. Accordingly, school personnel must use reasonable care to protect students from third parties' wrongful acts. This duty applies only to school personnel with actual supervisory authority over students. For instance, if a student's teacher or the school's principal learns of facts reasonably indicating that another student or school employee is abusing the student, then the teacher or principal must take reasonable steps to address the abuse, as by controlling the abuser or notifying the authorities. [*Marquay v. Eno*, 662 A.2d 272 (N.H. 1995); *Young v. Salt Lake City Sch. Dist.*, 52 P.3d 1230 (Utah 2002); *Mirand v. City of New York*, 637 N.E.2d 263 (N.Y. 1994).]

2) Prisons

A prison inmate is, to a substantial degree, unable to protect himself from others' wrongful acts. Thus, the officials in charge of the inmate generally must use reasonable care to protect him. [*See Parish v. Truman*, 603 P.2d 120 (Ariz. Ct. App. 1979); Restatement (Second) of Torts § 320 cmt. d.]

Example:

A local sheriff's department took control of an inmate awaiting trial. The crime of which the inmate was accused was sexually exploitative, violent, and directed at a minor child. The accusations thus greatly inflamed public opinion against the inmate, spawning many protests, most of which had turned violent. Here, the sheriff may owe the inmate a duty to use reasonable care to protect the inmate against foreseeable mob violence. [*See* Restatement (Second) of Torts § 320 cmt. d.]

iii. Unreasonable Risk of Harm from Third Parties

An actor owes a duty to use reasonable care to protect a victim if the actor knows or reasonably should know that the actor has exposed the victim to ***unreasonable risk of harm*** from third parties. [*See Richardson v. Ham*, 285 P.2d 269 (Cal. 1955).]

Example:

At the close of business, a mechanic's shop left a customer's car parked outside, with the keys in the ignition and the doors unlocked. That night, a thief stole the car and drove negligently, injuring several pedestrians. The shop probably had no duty to protect the pedestrians from the thief's wrongful conduct. The shop did

create a risk that someone would steal the car and drive it negligently. Even so, that risk was not unreasonable. A contrary rule would expose repair shops to unpredictable and potentially massive liability, as it was common practice for repair shops to leave vehicles unlocked with the keys inside for customers to retrieve.

Compare:

A landscaping firm was using a bulldozer to clear a tract of land near a college. Students often gathered to watch the bulldozer. At least two students had attempted to operate the bulldozer during working hours, before workers chased them off. One night, a worker left the bulldozer unattended, with the keys in the ignition. Two students then operated the bulldozer and damaged a neighboring homeowner's property. The landscaping firm owed a duty to use reasonable care to protect the homeowner from the students' misconduct. A bulldozer is inherently attractive to onlookers and trespassers, and it has great destructive potential. The firm had reason to know that students were attracted to the bulldozer, because workers had twice chased students away from it. Thus, the firm exposed the homeowner to a foreseeable and unreasonable risk of harm from the students' misconduct. [*Adapted from Richardson v. Ham*, 285 P.2d 269 (Cal. 1955).]

iv. Common Carriers, Innkeepers, and Guests

Common carriers and ***innkeepers*** generally owe a duty to use reasonable care to protect their passengers and guests from third parties' wrongful acts. [*See Parish v. Truman*, 603 P.2d 120 (Ariz. Ct. App. 1979).]

b. Special Relationship between Actor and Third-Party Wrongdoer

An actor may owe a duty to protect a victim from a third party if the actor has a ***special relationship*** with that third party.

i. Custody and Control of Third Party

Generally, if an actor takes legal custody of a third party, and the actor knows or should know that the third party is likely to harm others if not controlled, the actor must use reasonable care to control the third party and prevent the harm. [*Dudley v. Offender Aid and Restoration of Richmond, Inc.*, 401 S.E.2d 878, 881 (Va. 1991) (*quoting* Restatement (Second) of Torts § 319).]

Example:

A convicted felon with a history of violent crime was placed in a transition center one year before his sentence was set to expire. By law, the offender was subject

to the center's control, but the center failed to take measures to control the offender. One night, the offender escaped and assaulted a pedestrian on a nearby street. The center knew, or had reason to know, that the offender posed a risk of bodily harm to others, because it knew of his violent criminal background. It was therefore foreseeable that someone near the center might be injured if the center failed to control the offender. Thus, the center owed the pedestrian a duty to use reasonable care to control the offender. [*Adapted from Dudley v. Offender Aid and Restoration of Richmond, Inc.*, 401 S.E.2d 878 (Va. 1991).]

ii. Psychotherapist and Patient

A therapist may determine (or know of facts by which she reasonably should determine) that a patient poses a serious risk of violence to another. If so, in some jurisdictions, the therapist must take reasonable measures to protect the intended victim. This may require the therapist to warn the intended victim, have the patient involuntarily committed, notify the police, or take other protective measures. [*See Tarasoff v. Regents of Univ. of Calif.*, 551 P.2d 334 (Cal. 1976).]

Example:

A mental patient told his psychotherapist, in all seriousness, that the patient intended to kill a certain young girl. Despite this, the psychotherapist did not warn the young girl or her parents, attempt to confine the patient, or notify the police. The patient later killed the girl. Here, the psychotherapist may have owed the girl a duty to take reasonable measures to protect her from the patient. [*See Tarasoff v. Regents of Univ. of Calif.*, 551 P.2d 334 (Cal. 1976).]

iii. Doctor and Patient

A medical doctor may have reason to believe that a patient poses an unreasonable risk of harm to others due to some physical condition. If so, then the doctor owes a duty to warn the patient, so that the patient can take steps to minimize the risk. This duty does not apply, though, if the patient is as capable of appreciating the risk as the doctor is. [*See DiMarco v. Lynch Homes-Chester Cty., Inc.*, 583 A.2d 422 (Pa. 1990); *Witthoeft v. Kiskaddon*, 733 A.2d 623 (Pa. 1999). *But see Di'Amico v. Delliquadri*, 683 N.E.2d 814 (Ohio Ct. App. 1996).]

Example:

A medical doctor knew that a patient's condition subjected the patient to sudden and unpredictable seizures. The doctor was in a much better position than the patient to appreciate the risk, due to the doctor's medical expertise. Thus, the

doctor had a duty to warn the patient about the risks of driving or operating machinery with the condition.

iv. Tavern Keeper and Patron: Dram Shop Laws

In most jurisdictions, a ***commercial seller*** of alcohol has a duty to refuse to serve alcohol to minors or to visibly intoxicated patrons. The duty extends to those whom the drinker's behavior, particularly drunk driving, could reasonably foreseeably harm. A duty of this type is almost never applied to social hosts who serve alcohol to their guests. [*See Brigance v. Velvet Dove Rest., Inc.*, 725 P.2d 300 (Okla. 1986).]

1) Causation in Dram-Shop Cases

If a plaintiff sues a tavern keeper for providing alcohol to a visibly intoxicated patron, the plaintiff will generally have a difficult time proving causation. By definition, the patron was ***already drunk*** when the tavern keeper violated the duty not to serve the patron. To show causation, the plaintiff must prove that the resulting increase in the patron's intoxication contributed meaningfully to the injury.

v. Parents and Children

The parent-child relationship, standing alone, does not make parents liable for their children's torts. Even so, a parent may have a duty to protect against harm caused by his child if (1) the parent knows the child has a ***specific dangerous propensity***, as opposed to a general tendency toward violence; (2) the parent has reason to know of a need and opportunity to restrain the child to prevent some ***imminent***, ***foreseeable*** harm; and (3) the parent makes no ***reasonable efforts*** to control the child. [*See Dinsmore-Poff v. Alvord*, 972 P.2d 978 (Alaska 1999).]

5. The Public-Duty Doctrine

The ***public-duty doctrine*** holds that the police owe the public at large, not any one individual or group of people, a duty to protect. Therefore, absent a ***special duty*** to the ***specific victim***, the police are not liable for their failure to protect one person from another person's acts. A special duty may arise, however, if the police (1) ***voluntarily*** and ***affirmatively*** undertake to protect (2) a ***particular person*** or class of persons and, so doing, (3) create ***reasonable reliance*** on the protection. [*Williams v. Mayor & City Council of Baltimore*, 753 A.2d 41 (Md. 2000); *Florence v. Goldberg*, 375 N.E.2d 763 (N.Y. 1978).]

Example:

A town's police chief stationed a crossing guard at a dangerous intersection near an elementary school. For two weeks, a mother walked her child to school across the intersection and saw the guard there. Afterward, the mother allowed the child to walk to school alone, believing the guard would keep the intersection safe. One day, the child was struck by a car while crossing the intersection. No crossing guard was on duty. The police had a special relationship with the mother and child. The town provided a crossing guard to benefit the specific class of persons crossing the intersection. The mother relied on the guard's continued presence in permitting her child to walk to school alone. This was reasonable; the mother had seen the crossing guard at the intersection for two weeks. Thus, the town police owed a duty to the mother and child. [*Adapted from Florence v. Goldberg*, 375 N.E.2d 763 (N.Y. 1978).]

6. The Reasonable-Person Standard

If a duty exists, it necessarily requires the actor to conform to a particular standard of care. Thus, once a duty is found, the ***standard of care*** must be determined. The general standard of care is the ***reasonable-person standard***. Under this standard, if a reasonable person in the actor's position would recognize that her conduct creates an ***unreasonable risk of harm*** to others, then the actor must take the ***same precautions that a reasonable person would take*** to eliminate the risk. Generally, if the actor fails to conform to this standard, then the actor has breached the duty of care. [Restatement (Second) of Torts § 283.]

a. Mental Characteristics of the Reasonable Person

The reasonable person is ***always sane*** and of at least ***average intelligence***, possessing whatever ***knowledge and foresight*** an average member of the community would possess. An actor will be held to the standard of care that a person with these characteristics would have exercised, even if the particular actor was insane, unusually ignorant, or unintelligent. In other words, insanity, stupidity, inexperience, and ignorance are ***not*** defenses to negligence (or any other tort, for that matter). [*See* Restatement (Second) of Torts §§ 283B, 289, 290; *Creasy v. Rusk*, 730 N.E.2d 659 (Ind. 2000).]

i. Defendants with Special Knowledge or Abilities

If an actor has ***special knowledge, training, or abilities*** that the average person lacks, then the reasonable person will be deemed to possess whatever enhanced attributes the actor ***actually has***. Thus, an actor with enhanced attributes must utilize them at all times to avoid harming others. [*See Hill v. Sparks*, 546 S.W.2d 473 (Mo. App. 1976).]

b. Physical Characteristics of the Reasonable Person

The reasonable person will be deemed to possess and be aware of the physical characteristics (1) that the actor ***actually has*** and (2) of which the actor reasonably ***should be aware***. The reasonable person would therefore take reasonable precautions to avoid harming others in light of the actor's own physical characteristics. For instance, a blind actor must behave reasonably, in light of the blindness. It would thus be unreasonable for a blind person to drive a vehicle. On the other hand, a blind person would generally not be expected to have the same awareness of her surroundings as a person with sight. [*See* Restatement (Second) of Torts §§ 283B, 283C, 289.]

c. Standard of Care in Emergencies

Defendants are often sued for actions they took in emergencies allowing little time for deliberation. In emergencies, the standard of care is still ***reasonable care under the circumstances***. However, the emergency itself is one of the circumstances to consider in evaluating whether the defendant behaved reasonably. Thus, though the standard of care remains the same, the ***quantum of care*** required in an emergency is generally less than it is if the situation permits reflection and forethought. [*See* Restatement (Second) of Torts § 296, with comments.]

i. Emergency as a Product of Actor's Own Negligence

Courts generally ***will not*** take an emergency into account if the emergency was a reasonably foreseeable result of the actor's own negligence. Put another way, if an actor's negligence creates an emergency, and she behaves entirely reasonably in light of the emergency she has created, she may nonetheless be liable for the negligence that created the emergency in the first place. [*See* Restatement (Second) of Torts § 296, with comments.]

Example:

A woman was walking down a sidewalk when she saw a vicious, snarling dog rushing at her. To escape the dog, the woman dived out of the way and accidentally knocked a passerby out into the road, where an oncoming car struck and seriously injured him. In evaluating whether the woman was negligent, a court would likely consider the danger posed by the dog. The dog was apparently about to attack the woman, and this emergency was not at all of the woman's own making.

7. Standards of Care for Minors

A minor child is normally held to a special ***child standard of care***. In limited circumstances, a child will be held to the adult reasonable-person standard. [*See* Applying Adult Standard for Adult Activities, *infra*.]

a. The Child Standard of Care

Generally, a child is held to the standard of care of a ***child of the same age***, ***intelligence***, ***and experience under the circumstances***. This is different from the objective standard used for adults. Under the special child standard of care, a particular child's ***subjective*** experience and characteristics, including the child's particular mental deficiencies, are considered in determining whether the child's behavior is reasonable. [*See* Restatement (Second) of Torts §§ 283A, 283B, with comments.]

Example:

A six-year-old child had below-average intelligence, along with attention-deficit/hyperactivity disorder (ADHD). The child's parents kept him from attending school, so he received very little education. The child injured a woman. If the adult standard of care were to apply, the child's actions would be evaluated against those of a sane adult of at least average intelligence, knowledge, and education. However, here, the special standard for children would apply. To be liable under that standard, the child must have been less careful than a typical six-year-old child with below-average intelligence, ADHD, and little formal education.

b. Applying Adult Standard for Adult Activities

Courts apply the ***adult*** standard of care if a child injures someone while engaging in an ***adult activity***. An adult activity is one that carries an inherent risk of grave injury to the child or others, if the activity is not conducted with the care and skill typical of a prudent adult. Some courts may also require that, statistically speaking, only adults generally engage in the activity. The adult standard commonly applies if the child is ***driving a motor vehicle***, such as a car, snowmobile, tractor, minibike, and so on. [*See Robinson v. Lindsay*, 598 P.2d 392 (Wash. 1979).]

Example:

A child driving a car struck and injured a pedestrian. Driving a car is an adult activity. Only adults or older adolescents generally drive cars, and driving can cause grave injury if not done with the care and skill typical of a prudent adult. Thus, the adult standard of care would apply, even though the actor was a child.

8. Premises Liability

Someone who possesses land generally owes a duty of care to those who enter upon the land. Traditionally, the standard of care depends on how the entrant is classified. The law has historically recognized five kinds of entrants: ***invitees***, ***licensees***, ***undiscovered trespassers***, ***anticipated trespassers, known trespassers***, and ***child trespassers***.

a. Invitee Defined

An invitee is either a ***business invitee*** or a ***public invitee***.

i. Business Invitee

A business invitee is on the premises (1) with the possessor's express or implied ***permission*** and (2) in connection with ***business dealings*** for the possessor's benefit. [*See* Restatement (Second) of Torts § 332, with comments; *Gladon v. Greater Cleveland Reg'l Trans. Auth.*, 662 N.E.2d 287 (Ohio 1996).]

Example:

A homeowner called an exterminator to come treat a termite infestation in the home. The exterminator was a business invitee. The homeowner invited the exterminator to enter the premises for the beneficial business purpose of eliminating the termites.

ii. Public Invitee

Someone on premises open to the public is a public invitee, but only if the person is there for reasons directly or indirectly related to the purpose for which the premises are held open to the public. It is irrelevant whether the invitee pays for admission (or pays for anything at all). It is also irrelevant whether the purpose for which the premises are held publicly open is a business purpose or some other purpose. [*See* Restatement (Second) of Torts § 332 cmt. a, d.]

Examples:

(1) A patron went shopping in a grocery store held open to the public. The patron slipped and fell on a patch of water. The patron was an invitee because she entered the store to shop. The store was held open to the public for this very purpose.

(2) A city maintained a free public library for anyone in the community to use. A student entered the library to read a book. The student was a public invitee. The city held the library open so that members of the public could come to the library,

read, and engage in related activities. The student entered the library for that very purpose. [*See* Restatement (Second) of Torts § 332 illus. 2.]

iii. Scope of Invitation

An invitee retains that status while remaining within the scope of the invitation. However, the invitee may stray to a part of the property that is not reasonably related to the invitation. Alternatively, more than a reasonable time may pass after the invitation's purpose is fulfilled or terminated. In either case, the occupant is no longer an invitee. Instead, she becomes a licensee or a trespasser, depending on the circumstances. [*See* Restatement (Second) of Torts § 332 cmt. l; *Gladon v. Greater Cleveland Reg'l Trans. Auth.*, 662 N.E.2d 287 (Ohio 1996).]

Example:

A wholesaler ordered goods from a factory, but the goods never came. The wholesaler went to the factory to complain, Customarily, complaints of this sort were handled in the factory's front offices. Hence, while the wholesaler remained in the front offices, he was an invitee. He was there in connection with beneficial business dealings with the factory—sorting out nondelivery of goods he had ordered from the factory. Yet if the wholesaler were to wander into the factory's storerooms or workshops, he would likely become a licensee or trespasser. Those parts of the factory bear no reasonable connection to the wholesaler's complaint. [*See* Restatement (Second) of Torts § 332 cmt. l.]

b. Possessor's Duty to Invitees

A possessor's duty to an invitee is twofold: the possessor owes a ***duty of reasonable care*** concerning (1) the ***possessor's activities*** on the property and (2) any natural or artificial ***conditions*** on the property.

i. Duty to Conduct Activities with Reasonable Care

If an invitee is on the premises, the possessor must conduct all activities on the premises with ***reasonable care under the circumstances***. That is, the possessor must avoid creating an unreasonable risk of harm to the invitee, at least insofar as the possessor should expect that invitees will not realize the danger or will fail to guard against it. For example, if the possessor is mowing the lawn or mopping the floors while invitees are on the premises, then the possessor must perform these activities with reasonable care. [*See Brown v. Lincoln Heights*, 958 N.E.2d 1280 (Ohio. Ct. App. 2011); Restatement (Second) of Torts § 341A.]

ii. Duty Regarding Conditions on the Premises

A possessor owes a duty of reasonable care to all invitees regarding ***unreasonably hazardous*** natural or artificial ***conditions*** on the property. This may include a duty to ***inspect*** the premises, ***remedy*** the condition, or ***warn*** of the condition.

1) Duty to Inspect

The possessor has a duty to ***reasonably inspect*** the property to detect unreasonably hazardous natural or artificial conditions. [*See Harris v. Stop & Shop Supermarket Co.*, No. CV-99-0169824, 2002 WL 853591 (Conn. Super. Ct. April 9, 2002); *Kurti v. Becker*, 733 A.2d 916 (Conn. App. Ct. 1999).]

2) Duty to Remedy or to Warn

If the possessor ***knows*** of a hazardous condition or would know of the condition upon conducting a reasonable inspection, and the possessor knows or should know that the invitee has no reason to know of the condition and the risk it poses, then the possessor must take reasonable steps to ***remedy the condition*** or ***warn the invitee*** about the condition and the risk. [*See Harris v. Stop & Shop Supermarket Co.*, No. CV-99-0169824, 2002 WL 853591 (Conn. Super. Ct. April 9, 2002); *Kurti v. Becker*, 733 A.2d 916 (Conn. App. Ct. 1999).]

3) Obvious and Nonobvious Risks

A possessor has no duty to remedy or warn about ***open and obvious*** conditions, ***unless*** a reasonable person could foresee that the condition would injure an invitee despite the obviousness of the risk. This is most often the case if (1) the invitee deliberately encountered the condition, and to a reasonable person, the advantages of doing so would outweigh the risk (the deliberate-encounter exception), or (2) it is foreseeable that the invitee would be distracted, forget about the condition, and thus encounter it (the distraction exception). Normally, for the distraction exception to apply, the possessor must somehow create or contribute to the distraction. [*See Garcia v. Young*, 948 N.E.2d 1050 (Ill. App. Ct. 2011).]

Example:

A business owner sold barbecue grills at his store. The owner kept a grill burning in the store for demonstration purposes. There was no barrier around the grill. A shopper walked by the grill, tripped, fell on the grill, and suffered burns. Here, the risk posed by the hot grill was obvious. Even so, a court could find that the grill might foreseeably have hurt someone despite the open and

obvious hazard it presented, especially considering how easy it is for shoppers in a retail environment to get distracted. The business owner placed the grill where it was, so he obviously created the distraction.

c. Licensee Defined

Generally, a licensee's legal right to be on the premises stems from the possessor's (usually gratuitous) consent. Alternatively, if someone's legal right to be on the premises is traceable to some overriding legal privilege, that person is a licensee—for example, someone privileged to enter land to reclaim chattel or a public-safety officer (like a firefighter or police officer) entering to respond to an emergency. In the usual case, a licensee enters upon the premises for his own purposes, rather than for any business or public purpose of the possessor. ***Social guests*** are the archetypal licensees. [*See* Restatement (Second) of Torts § 330; *Gladon v. Greater Cleveland Reg'l Trans. Auth.*, 662 N.E.2d 287 (Ohio 1996); *Rossino v. Kovacs*, 718 A.2d 755 (1998).]

i. Scope of Consent or Privilege

A licensee may become a trespasser by ***exceeding the scope*** of the possessor's consent, as by entering a part of the property where she has no reason to believe she is permitted to be, even if she does so accidentally or inadvertently. A licensee may also become a trespasser by exceeding the scope of any overriding legal privilege to be on the property. [*Gladon v. Greater Cleveland Reg'l Trans. Auth.*, 662 N.E.2d 287 (Ohio 1996).]

Example:

A commuter waited for a train at a city subway-station platform. An assailant pushed the commuter off the platform and onto the tracks. While the commuter was on the platform, he was an invitee. He was on the premises to take a subway train, the city's business purpose for operating the subway station. But when he fell onto the tracks, he became a trespasser, even though he never intended to enter upon the tracks and his entry onto the tracks was not his fault. There was no reason to believe the city consented for the commuter to be on the tracks. [*See* Restatement (Second) of Torts § 329 illus. 1.]

ii. Subsequent Consent to Trespasser

A trespasser may become a licensee, if the possessor gives ***express consent*** for the trespasser to remain on the property. Consent will ***not*** usually be implied simply because the possessor passively tolerates the trespasser's presence. Rather, consent means the possessor's subjective willingness that the licensee occupy

some portion of the premises or, at least, the possessor's conduct giving the licensee reason to believe that the possessor is willing for the licensee to occupy the land. [*See* Restatement (Second) of Torts § 330 cmt. c.]

d. Possessor's Duties to Licensees

As with invitees, the possessor owes licensees a duty of care with respect to (1) the ***possessor's activities*** on the land and (2) ***hazardous conditions*** on the land.

i. Duty to Conduct Activities with Reasonable Care

The possessor must carry on all activities on the premises with ***reasonable care under the circumstances*** to avoid creating an unreasonable risk of harm to the licensee, at least insofar as (1) the possessor should expect that the licensee will not discover or realize the danger, and (2) the licensee does not know or have reason to know of the possessor's activities or the associated risk. Yet some authority holds that the possessor's duty to the licensee is simply to avoid willfully, wantonly, or recklessly injuring the licensee, essentially equating the possessor's duty to licensees with that owed to some trespassers. [*Compare Harris v. Univ. of S.C.*, 706 S.E.2d 45 (Ct. App. S.C. 2011) *with Gladon v. Greater Cleveland Reg'l Trans. Auth.*, 662 N.E.2d 287 (Ohio 1996); Restatement (Second) of Torts § 341.]

Example:

A homeowner invited several of her friends to a dinner party at her home. The property on which the home was situated featured a lengthy driveway leading from the main road to the home. On the day of the party, the homeowner ran late at work and thus rushed home to receive her guests on time for the party. On the driveway, the homeowner, driving at an excessive speed, collided with a car driven by one of the friends attending the party. The friend was a licensee, being on the property solely to attend the dinner party. The homeowner's driving at excessive speed on the driveway was a failure to exercise reasonable care. Hence, the homeowner is liable for the resulting damage to the friend's car. [*See* Restatement (Second) of Torts § 341 illus. 2.]

ii. Duty Regarding Conditions on the Premises

The possessor's duty of care toward a licensee regarding hazardous conditions is more limited than the duty owed to an invitee.

1) No Duty to Inspect

The possessor generally does ***not*** owe a licensee a proactive duty to reasonably inspect the premises for hazardous conditions. [*See Younce v. Ferguson*, 724 P.2d 991 (Wash. 1986); Restatement (Second) of Torts § 342 cmt. d.]

2) Duty to Remedy or Warn

If the possessor ***actually knows*** of a hazardous natural or artificial condition on the property, and the possessor knows or has reason to know that the licensee is unaware (or has no reason to be aware) of the condition and the risk it poses, then the possessor must take reasonable steps to either (1) ***warn*** the licensee about the condition and the risk it poses or (2) ***remedy the condition***. [*See Harris v. Univ. of S.C.*, 706 S.E.2d 45 (Ct. App. S.C. 2011).]

3) Open and Obvious Dangerous Conditions

A possessor generally has no duty to warn about or to remedy ***open and obvious*** conditions that a licensee could reasonably be expected to notice. This rule is subject to the deliberate-encounter exception and the distraction exception, discussed above. [*See Garcia v. Young*, 948 N.E.2d 1050 (Ill. App. Ct. 2011); Obvious and Non-Obvious Risks, *supra*.]

e. Trespasser Defined

A trespasser is someone who occupies land, but is not the possessor, an invitee, or a licensee. This includes someone present on land without either the rightful possessor's valid consent or some overriding legal privilege to be there. [*Gladon v. Greater Cleveland Reg'l Trans. Auth.*, 662 N.E.2d 287 (Ohio 1996).]

i. Unknown Trespasser Defined

If the rightful possessor neither knows nor has reason to know of a trespasser's presence on the land, then the trespasser is an ***unknown or undiscovered trespasser***. [*Gladon v. Greater Cleveland Reg'l Trans. Auth.*, 662 N.E.2d 287 (Ohio 1996) *Phillips v. Dayton Pwr. and Light Co.*, 637 N.E.2d 963 (Ohio Ct. App. 1994).]

ii. Limited Duty to Unknown Trespassers

The possessor's duty to unknown trespassers is generally very limited. In most cases, the possessor need only avoid ***intentionally or recklessly injuring*** the trespasser. The possessor might breach this duty, for instance, by laying man-made traps on the property, especially traps that could inflict death or serious bodily harm. The possessor might also violate this duty by recklessly failing to remedy a

known and seriously dangerous condition on the property. [*See Phillips v. Dayton Pwr. and Light Co.*, 637 N.E.2d 963 (Ohio Ct. App. 1994); *see also Katko v. Briney*, 183 N.W.2d 657 (Iowa 1971).]

Example:

A power company maintained an electrical tower in a neighborhood. The electrical current running through the tower was potentially fatal. Accordingly, the power company built a fence around the tower and posted signs warning of the danger. Vandals later stole the warning signs. The power company was aware of this but failed to replace the signs. One day, an adolescent climbed over the fence and contacted the tower; the current seriously injured him. The adolescent was an undiscovered trespasser. However, a reasonable jury could find that the power company breached its limited duty of care toward unknown trespassers by recklessly failing to replace the warning signs. [*Adapted from Phillips v. Dayton Pwr. and Light Co.*, 637 N.E.2d 963 (Ohio Ct. App. 1994).]

iii. Anticipated Trespasser Defined

The possessor may ***know*** or have ***reason to know*** that ***trespassers regularly intrude*** upon a specific part of the property. If so, then any trespasser falling within this classification is an anticipated trespasser. For example, that knowledge might arise from a well-worn path that is explainable only by recurrent trespassing. [See Restatement (Second) of Torts § 334 illus. 3.]

iv. Limited Duty to Anticipated Trespassers

A possessor may owe a duty of care to ***anticipated trespassers***. That duty arises only if specific conditions are met.

1) Dangerous Activity or Condition

The possessor must carry on an ***activity*** or create a ***condition*** involving significant risk of ***death or serious bodily injury*** to anticipated trespassers—for example, maintaining a high-voltage electrical tower or operating a train on railroad tracks. [*See* Restatement (Second) of Torts § 334 illus. 3; *Phillips v. Dayton Pwr. and Light Co.*, 637 N.E.2d 963 (Ohio Ct. App. 1994).]

2) Possessor's Knowledge of Trespassers' Ignorance

The possessor must ***know*** or have ***reason to know*** that anticipated trespassers ***will not appreciate the danger*** associated with the activity or condition—for instance, if there are no posted signs warning about the condition and the

danger it poses. [*See Hensley v. Salamone*, No. 84456, 2005 WL 110486 (Ohio Ct. App. Jan. 20, 2005); *Cain v. Johnson*, 755 A.2d 156 (R.I. 2000); *Phillips v. Dayton Pwr. and Light Co.*, 637 N.E.2d 963 (Ohio Ct. App. 1994).]

Note: According to the Restatement (Second) of Torts, a possessor generally has no liability to anticipated trespassers if she takes reasonable steps to exclude them from the property, such as posting no-trespassing signs, unless she has reason to know that these efforts will prove ineffective (*e.g.*, such notices are customarily disregarded). [*See* Restatement (Second) of Torts § 334 cmt. e.]

v. Known Trespasser Defined

A trespasser is a ***known trespasser*** if the possessor ***knows*** or has ***reason to know*** of the trespasser's presence on the property. [*See Fath v. Mut. Oil & Gas Co.*, Nos. 19851, 19856, 2000 WL 1257804 (Ohio Ct. App. Sept. 6, 2000).]

vi. Duty to Conduct Activities with Reasonable Care

The possessor must carry on all activities on the premises with ***reasonable care under the circumstances*** to avoid creating unreasonable risk of harm to the known trespasser. [*See Fath v. Mut. Oil & Gas Co.*, Nos. 19851, 19856, 2000 WL 1257804 (Ohio Ct. App. Sept. 6, 2000).]

vii. Duty to Warn about Highly Dangerous Artificial Conditions or Forces

If the possessor ***knows*** that (1) the trespasser is approaching (or is in dangerous proximity to) an ***artificial*** condition on the premises presenting a risk of ***serious injury or death***, and (2) the trespasser will not appreciate the risk, then the possessor must warn the trespasser about the condition and the risk it poses, or else take reasonable steps to make the condition safe. [*See Fath v. Mut. Oil & Gas Co.*, Nos. 19851, 19856, 2000 WL 1257804 (Ohio Ct. App. Sept. 6, 2000); Restatement (Second) of Torts § 337.]

Example:

A locomotive operator worked for a railroad company, the rightful possessor of all railroad tracks in the area. The operator saw a trespasser standing on the tracks directly ahead. As the possessor's agent, the operator owed the trespasser a duty to take reasonable steps to warn the trespasser of a mortally dangerous condition—the oncoming train—as by sounding the train's whistle. Further, the operator was conducting an activity on the property by operating the train. Thus,

the operator had a duty to take all reasonable steps to avoid harming the trespasser, such as by attempting to stop the train before it could hit the trespasser.

1) No Duty to Inspect to Assure Known Trespasser's Safety

A possessor owes no duty to inspect the property to assure a known trespasser's safety. [*See Fath v. Mut. Oil & Gas Co.*, Nos. 19851, 19856, 2000 WL 1257804 (Ohio Ct. App. Sept. 6, 2000).]

2) No Duty Regarding Open and Obvious Conditions

A possessor generally owes a trespasser ***no duty*** to warn about ***open and obvious*** conditions, whether natural or artificial. [*See Garcia v. Young,* 948 N.E.2d 1050 (Ill. App. Ct. 2011).]

f. Child Trespassers

Under the ***child-trespasser doctrine*** (sometimes called the ***attractive-nuisance doctrine***), a possessor of land may be liable for injuries to a child who trespasses on the land, provided several requirements are met.

i. Injury Caused by Artificial Condition on Premises

The child trespasser's injury must arise from an ***artificial condition*** on the premises. [*Bennett v. Stanley*, 748 N.E.2d 41 (Ohio 2001).]

ii. Possessor's Ability to Anticipate Child Trespassers

The possessor must know or have reason to know that ***children are likely to trespass*** upon the place where the condition is located. [*Bennett v. Stanley*, 748 N.E.2d 41 (Ohio 2001).]

iii. Possessor's Awareness of Condition

The possessor must know or have reason to know that ***the condition exists*** on the premises. [*Bennett v. Stanley*, 748 N.E.2d 41 (Ohio 2001).]

iv. Possessor's Awareness of Danger Posed by Condition

The possessor must know or have reason to know that the condition poses a ***risk of death or serious bodily harm*** to child trespassers. [*Bennett v. Stanley*, 748 N.E.2d 41 (Ohio 2001).]

v. Child Trespasser's Inability to Appreciate Danger

The injured child must have been ***unable to appreciate the danger*** associated with the condition due to the child's youth. For this reason, the likelihood that the attractive-nuisance doctrine will apply decreases as the child becomes older and, thus, better able to appreciate the danger. In that vein, some courts have outright refused to apply the attractive-nuisance doctrine to teenagers. One case declined to apply the doctrine to a child as young as 10. [*See Racine v. Moon's Towing*, 817 So. 2d 21 (La. 2002).]

vi. Danger to Children Outweighing Benefit to Possessor

The ***usefulness*** to the possessor of maintaining the condition, together with the ***burden of*** eliminating the condition, must be slight compared to the ***danger*** that the condition poses to child trespassers. [*Bennett v. Stanley*, 748 N.E.2d 41 (Ohio 2001).]

vii. Possessor's Failure to Use Reasonable Care to Protect Child Trespassers

To be liable, the possessor must fail to use ***reasonable care under the circumstances*** to eliminate the danger or otherwise protect the child trespasser. [*Bennett v. Stanley*, 748 N.E.2d 41 (Ohio 2001).]

Example:

A homeowner owned residential property with a backyard pool that the homeowner stopped maintaining. The pool thus filled with rainwater and became home to wildlife, like a natural pond. The homeowner knew that very young children lived next door, as he often saw them playing outdoors unsupervised. There was no barrier to keep anyone out of the pool. One of the children was injured playing in the pool. The homeowner was likely liable under the child-trespasser doctrine. The pool was a dangerous condition on the property, of which the homeowner was aware. The homeowner knew the children were young and frequently unsupervised, with nothing to keep them from the pool. The children, being very young, likely could not appreciate the pool's dangers. It was likely not overly burdensome for the homeowner to put a fence around the pool, drain the pool, or take similar measures. [*Adapted from Bennett v. Stanley*, 748 N.E.2d 41 (Ohio 2001).]

g. General Duty of Reasonable Care

Some jurisdictions have eliminated the common-law distinctions among invitees, licensees, and trespassers. These jurisdictions have opted instead to impose a ***general***

duty of reasonable care under the circumstances toward anyone on the property. What constitutes reasonable care may vary, depending on how and why the occupant is present on the property. [*See*, *e.g.*, *Moody v. Manny's Auto Repair*, 871 P.2d 935 (Nev. 1994), superseded by statute on other grounds as stated in *Nivens v. TA Operating Corp.*, 127 Nev. 1163 (2011) (citing *Wiley v. Redd*, 885 P.2d 592 (Nev. 1994)).]

h. Duty to Persons Not on Possessor's Land

In the right circumstances, a land possessor may owe a duty of care toward those who are not on the premises, with respect to activities or conditions on the premises.

i. Generally No Duty Regarding Natural Conditions

A possessor of land generally has ***no duty*** to persons not on the land regarding ***natural conditions*** on the land. In this context, natural means that the land is not changed by any human action, *e.g.*, indigenous animals, swamps, the natural growth of trees and other vegetation not planted on the land by human action, and so on. However, some jurisdictions do impose a duty of reasonable care regarding ***trees in urban areas***, because in these areas, the trees or their limbs may fall and injure passersby. This duty normally flows to those using an adjacent public highway. [*See* Restatement (Second) of Torts § 363 cmt. a.]

ii. Duty Regarding Artificial Conditions

A possessor has a duty of ***reasonable care*** regarding ***artificial conditions*** that exist on the land and pose an unreasonable risk of harm to persons off the land, provided the possessor (1) initially created or allowed the condition or (2) failed to use reasonable care to make the condition safe after learning of it. This may include a duty to travelers who might foreseeably leave a nearby highway and enter the land while exercising reasonable care. Here, a public highway might include a public walkway. [*See* Restatement (Second) of Torts §§ 364, 368; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 54(c) (referring to a "public walkway" instead of a "public highway" in setting forth a possessor's duties regarding conditions toward those not on the premises).]

iii. Broadened Duty Regarding Natural and Artificial Conditions in Third Restatement

The Restatement (Third) of Torts: Liability for Physical and Emotional Harm would broaden a possessor's duty regarding both natural and artificial conditions. Under this regime, a possessor owes a duty of reasonable care for any artificial conditions posing a risk of physical harm to people or property off the land. The possessor owes a like duty regarding natural conditions, but only if either (1) the land is

commercial or (2) the possessor is aware of the risk, or else the risk is obvious. Yet the possessor owes a duty of care as to any condition affecting the safety of a public walkway, be it natural or artificial, if the possessor actually created the risk and the land is adjacent to the walkway. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 54 cmts. a–c.]

i. Landlord's Liability for Defects in Premises

If a landlord leases property to a tenant, the tenant is generally deemed the possessor of the property for tort purposes. Thus, the traditional, common-law rule is that the landlord is not liable to the tenant or the tenant's guests for injuries caused by defects in the premises. There are, however, exceptions to this rule. [*Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

i. Landlord's Contract to Repair Defects

The landlord may ***contractually agree to repair*** defects. If so, then the landlord must use reasonable care to repair any defect and make it safe. The lease contract may, of course, limit this duty. [*Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

ii. Landlord's Voluntary Undertaking to Repair Defects

If the landlord ***voluntarily undertakes*** to repair a defect, then the landlord is liable for injuries resulting from failure to use reasonable care in making the repairs. [*Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

iii. Landlord's Retaining Control of Premises

The landlord remains liable as a possessor to the extent the premises are ***under the landlord's control***. This may apply, for example, to common areas in an apartment complex. [*See Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

iv. Landlord's Liability for Some Latent *Defects*

The landlord is liable for injuries arising from defects in the premises if: (1) the landlord was ***subjectively aware*** or, perhaps, should have been aware of the defects at the time of the lease; (2) the landlord ***concealed*** the defects; and (3) the landlord knew or should have known that the tenant could not reasonably have been expected to ***discover*** the defects. [*See Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

v. Premises Leased for Public Use

The general rule limiting landlord liability does not apply if the premises are leased for ***public use***. [*See Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

vi. Implied Warranty of Habitability

A residential landlord may owe a residential tenant a special duty to remedy certain defects under the so-called ***implied warranty of habitability***. [*See* Property Outline, Implied Warranty of Habitability.]

vii. Landlord's General Duty of Care in Some Jurisdictions

Some jurisdictions have, by statute, replaced these traditional rules with a rule that a landlord owes a ***general duty of reasonable care*** toward anyone on the premises. This is analogous to jurisdictions rejecting the common-law status distinctions regarding entrants upon land. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 53 cmt. I; *Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

Example:

A residential landlord owned a small apartment complex. The landlord began replacing the wooden railings on the apartment balconies with wrought-iron railings as the wooden railings began to deteriorate. In a second-floor apartment where the landlord had not yet replaced the wooden railings, the railing gave way when a guest of the tenant leaned on it. The guest fell to the ground below, sustaining severe injuries. In a jurisdiction imposing a general duty of care on landlords, the landlord may be liable in negligence to the guest, even if none of the enumerated exceptions to the common-law rule of nonliability apply. [*See Pagelsdorf v. SafeCo Ins. Co. of Am.*, 284 N.W.2d 55 (Wis. 1979).]

9. Heightened Standard of Care for Common Carriers

Many common carriers make it their business to provide public transportation—for instance, operators of passenger airplanes, trains, and buses. In some jurisdictions, these carriers owe their passengers an extraordinarily high degree of care, far beyond reasonable care. Some courts express this duty as liability for even ***slight negligence***, imposing an obligation to protect passengers ***as much as humanly possible***. [*See Doser v. Interstate Power Co.*, 173 N.W.2d 556 (Iowa 1970); *Tall v. Mass Transit Admin.*, 816 A.2d 930 (Md. 2003).]

10. Guest Statutes

A few jurisdictions have so-called ***guest statutes***. Under a guest statute, if a driver transports a passenger in a vehicle without receiving pecuniary benefit in exchange, then the driver is generally not liable to the passenger for any injuries owing to the driver's mere ***negligence*** in operating the vehicle. The driver may, however, remain liable for ***intentionally or recklessly*** causing the injury. Some statutes describe this conduct as willfully or wantonly causing injury. [*See*, *e.g.*, Ala. Code § 32-1-2 (1999).]

11. Standard of Care in Medical-Malpractice Claims

Medical-malpractice claims are specialized negligence claims. The standard of care is not the usual reasonable-person standard. The precise standard may vary, depending on the jurisdiction. [*See Vergara v. Doan*, 593 N.E.2d 185 (Ind. 1992).]

a. Standard of Care for General Practitioners: The Locality Rule

In jurisdictions adopting the ***locality rule***, the standard of care for general practitioners is the level of care and proficiency of a typically careful, skilled, and prudent doctor in the ***same locality*** at the time the care was rendered. This rule is now a minority view. [*See Vergara v. Doan*, 593 N.E.2d 185 (Ind. 1992).]

b. Standard of Care for General Practitioners: Modified Locality Rule

Some jurisdictions apply the ***modified locality rule***. Under this rule, the standard of care for general practitioners is the level of care and proficiency of a typically careful, skilled, and prudent doctor in the ***same locality or similar localities*** at the time the care was rendered. [*See Vergara v. Doan*, 593 N.E.2d 185 (Ind. 1992).]

c. Standard of Care for General Practitioners: Same-or-Similar-Circumstances Rule

In jurisdictions adopting the ***same-or-similar-circumstances*** rule, the standard of care for general practitioners is that of a typically careful, skilled, and prudent doctor (1) in the class to which the doctor belongs (2) acting in the same or a similar factual context. The locality in which the alleged malpractice occurs is but one factor among many others to consider. [*Vergara v. Doan*, 593 N.E.2d 185 (Ind. 1992).]

d. Standard of Care for Specialists

If a medical ***specialist*** practices within his specialty, he is held to a higher standard of care than what applies to ordinary general practitioners. The applicable standard is a ***national standard***. This standard asks what a reasonably careful, skillful, knowledgeable, and prudent doctor in the specialist's discipline would have done under the circumstances. [*Compare Wall v. Stout*, 311 S.E.2d 571 (N.C. 1984) *with Kordas v. Sugarbaker*, 990 A.2d 496 (D.C. Ct. App. 2010).]

Example:

A surgical oncologist (a surgeon specializing in cancer-related operations) found a patient's colon riddled with millions of nodules that the oncologist initially believed to be cancerous. Acting on this belief, the oncologist removed the patient's colon. Later, it was discovered that the nodules were a fungus, not cancer. In the patient's malpractice suit against the oncologist, the oncologist will be held to a national standard of care applicable to surgical oncologists, not any of the less stringent standards applicable to general practitioners. [*See Kordas v. Sugarbaker*, 990 A.2d 496 (D.C. Ct. App. 2010).]

e. Informed Consent in Medical Malpractice

A medical professional has a duty to disclose the material risks of a treatment or procedure and to obtain the patient's ***informed consent*** before performing the procedure. A medical professional is liable for failing to obtain informed consent if three requirements are met: (1) nondisclosure, (2) causation, and (3) harm. [*See Hondroulis v. Schuhmacher*, 553 So.2d 398 (La. 1988).]

i. Failure to Disclose Material Risk

To be liable for lack of informed consent, the medical professional must fail to disclose a material risk of the treatment or procedure. A material risk, in turn, is a risk that a reasonable patient would consider, or deem relevant, in deciding whether to undergo the treatment or procedure. Some courts, though, hold that the question is whether a reasonable medical professional under the circumstances would have disclosed the risk. The professional need not disclose the risk, though, if (1) the risk should already be known or obvious to the patient or (2) disclosure would hinder treatment or cause the patient to become too distraught to make a rational decision. [*See Hondroulis v. Schuhmacher*, 553 So. 2d 398 (La. 1988); William G. Cobb, *Defending the Informed Consent Case*, 72 Def. Couns. J. 330 (Oct. 2005).]

Example:

A physician recommended that a patient undergo spinal surgery to relieve pressure on a nerve, which pressure the physician believed was causing the patient to suffer back and leg pain. The patient signed a consent form generally outlining the risk of numbness and paralysis. Yet the physician never discussed the potential risks of the surgery in any substantial depth with the patient, nor did he give the patient the chance to ask questions. After the surgery, the patient suffered incontinence, increased pain, and paralysis in her left leg. Here, despite the consent form, the

physician may be liable to the woman for injuries arising from her lack of informed consent to the surgery. Incontinence and paralysis seem like material risks in any context, and the consent form, by itself, may well not have conveyed the full nature and scope of material risks to the patient. [*See Hondroulis v. Schuhmacher*, 553 So. 2d 398 (La. 1988).]

1) Determining Materiality of Risk Generally

In determining the materiality of a given risk, courts generally balance (1) the likelihood that the danger will materialize against (2) the degree of harm that might befall the patient if the risk indeed materializes. If the potential degree of harm is great, particularly if it involves serious injury or death, then disclosure may be necessary even if the statistical probability that the danger will manifest is small. Yet if that probability is exceedingly slight, perhaps bordering on statistical insignificance, disclosure may not be necessary even if the potential degree of harm is substantial. When it comes to risk of death or serious bodily injury, physicians should perhaps err on the side of disclosure. [*See Hondroulis v. Schuhmacher*, 553 So. 2d 398 (La. 1988); William G. Cobb, *Defending the Informed Consent Case*, 72 Def. Couns. J. 330 (Oct. 2005).]

2) Information That Physician Should Disclose Generally

Broadly speaking, a physician should normally disclose (1) the nature of the infirmity, (2) the proposed treatment's general nature, (3) the risks involved, (4) the likelihood that the proposed treatment will succeed, (5) the danger of totally foregoing treatment, and (5) the danger associated with any alternative treatments. [*See Hondroulis v. Schuhmacher*, 553 So. 2d 398 (La. 1988).]

ii. Causation in Informed-Consent Cases

In many jurisdictions, causation, in an informed-consent case, requires that the patient would have rejected the treatment or procedure, had she been properly informed of the undisclosed material risk. On the other hand, some courts require that a ***reasonable person*** in the patient's position would have rejected the treatment or procedure. The former standard is subjective, the latter objective. Still other courts require that both the subjective and objective standards be satisfied. [*See Hondroulis v. Schuhmacher,* 553 So. 2d 398 (La. 1988); William G. Cobb, *Defending the Informed Consent Case*, 72 Def. Couns. J. 330 (Oct. 2005).]

iii. Harm in Informed-Consent Cases

The patient must have suffered injury because the professional failed to disclose the material risk. [*See Hondroulis v. Schuhmacher*, 553 So. 2d 398 (La. 1988); William G. Cobb, *Defending the Informed Consent Case*, 72 Def. Couns. J. 330 (Oct. 2005).]

f. Expert Testimony in Medical-Malpractice Cases

In most medical-malpractice cases, ***expert medical testimony*** will be needed to establish the applicable standard of care. This is because lawyers, judges, and jurors are almost always laypeople when it comes to the medical profession. The defendant, as a physician, may supply the needed testimony. Even so, the plaintiff bears the burden to establish the standard of care in each case. If the plaintiff fails to do so, then the defendant will win. [*See Walski v. Tiesenga*, 381 N.E.2d 279 (Ill. 1978).]

Note: In rare cases, the doctor's negligence may be so obvious that even a layperson could adequately judge it. In these exceptional cases, expert testimony may not be necessary. For purposes of the bar exam or a law-school exam, though, one should always assume that expert testimony is necessary in a medical-malpractice case. [*See Walski v. Tiesenga*, 381 N.E.2d 279 (Ill. 1978).]

g. Good Samaritan Statutes

Many states have, by statute, adopted some form of the so-called ***Good Samaritan rule***. In general, a Good Samaritan statute immunizes a physician or other rescuer from liability for negligence while rendering assistance at the scene of a ***medical emergency***. This rule has several important limitations. [*See, e.g.*, Utah Code Ann. § 78B-4-501.]

i. No Preexisting Duty to Render Aid

Generally, for a Good Samaritan statute to apply, the actor must have been under ***no preexisting duty*** to medically assist the victim when the negligence occurred. A preexisting duty generally means that the actor renders treatment as part of a ***previously established doctor-patient relationship*** with the victim. [*See, e.g.*, *Hirpa v. IHC Hosps., Inc.*, 948 P.2d 785 (Utah 1997).]

ii. Rationale for Good Samaritan Statutes

As discussed above, the common-law rule is that an actor who undertakes to render aid to a victim in peril must do so with reasonable care to avoid further injuring the victim, lest the actor be liable in damages. An unfortunate result of this rule is that, for fear of liability, qualified doctors and well-meaning laypersons might be discouraged from aiding those in need. Perhaps the archetypal scenario arises when a passerby happens upon a victim injured and left helpless by the

roadside. With the protection of a Good Samaritan statute, the passerby can help the victim without worrying about negligence liability. [*See Hirpa v. IHC Hosps., Inc.*, 948 P.2d 785 (Utah 1997).]

iii. Good Samaritan Statutes in Hospitals and Other Medical Centers

Some jurisdictions hold that the ***location*** where the actor renders assistance is irrelevant for purposes of their Good Samaritan statutes. Other jurisdictions, however, hold that Good Samaritan statutes do not apply in ***hospitals***, ***medical centers***, and ***other locations*** that have adequate medical equipment and facilities. [*Compare Hirpa v. IHC Hosps., Inc.*, 948 P.2d 785 (Utah 1997) *with Velazquez v. Jiminez*, 798 A.2d 51 (N.J. 2002).]

iv. Good Samaritan Statutes and Reckless or Intentional Conduct

Some Good Samaritan statutes explicitly allow liability for the actor's ***gross negligence***, ***recklessness***, or ***intentional wrongdoing*** while rendering aid. [*See, e.g.*, Utah Code Ann. § 78B-4-501; N.C. Gen. Stat. Ann. § 20-166(d).]

v. Applicability Only to Claims by Person Rescued

Some states' Good Samaritan statutes apply only to claims ***by the person assisted*** in the emergency and not to claims by any third party injured due to the rescuer's negligence. [*See, e.g., Hutton v. Logan*, 566 S.E.2d 782 (N.C. Ct. App. 2002).]

vi. Applicability to Physicians and Other Rescuers

Many Good Samaritan statutes protect not only physicians, but also ***other medical professionals***, like emergency medical technicians and nurses and even ***laypeople*** who stop at the scenes of emergencies to render aid. [*See, e.g.*, N.C. Gen. Stat. Ann. § 20-166(d).]

12. Negligence per Se

In some situations, the specific requirements of a ***law***, including a statute, regulation, or ordinance, may replace the general standard of reasonable care as the governing standard of care in a negligence case. This principle is bound up in the doctrine of ***negligence per se***.

a. Procedural Effect of Negligence per Se

If the plaintiff can show that negligence per se applies, and the defendant has violated the law, then the plaintiff will have established the elements of ***duty***, ***the standard of***

care, and breach. However, a finding of negligence per se does not require a finding of liability. To recover, the plaintiff must still prove ***causation and harm***. Although, some statutes impose a rebuttable presumption that all elements of negligence are satisfied in at least some cases in which negligence per se applies. [*Chambers v. St. Mary's Sch.*, 697 N.E.2d 198 (Ohio 1998); *Scott v. Silver Creek Ski Corp.*, 767 P.2d 806 (Co. Ct. App. 1988).]

b. Requirements for Negligence per Se

Several requirements must be met for the general standard of reasonable care to yield to a more specific legal duty in a statute or other law.

i. Mandatory, Specific Command

The law must set forth a ***mandatory*** and ***specific*** command. In other words, the law must dictate that some particular thing must or must not be done in a particular situation. Thus, negligence per se will not apply if the law merely sets forth ***general or abstract rules*** that a person could satisfy in various ways. [*Daniels v. Thistledown Racing Club, Inc.*, 659 N.E.2d 346 (Ohio Ct. App. 1995).]

Example:

A driver crossed over the center lane and hit an oncoming car, causing significant property damage. The operator of the oncoming car sued. A state statute forbade any motor-vehicle operator from crossing over a solid yellow line into the opposing lane of traffic. The court determined that the doctrine of negligence per se applied. The statute laid down a specific command that some particular thing must not be done in a particular situation. Namely, one operating a motor vehicle must not cross the yellow line into the opposing traffic lane. Thus, the requirements of the statute replaced the general standard of reasonable care in the case.

Compare:

A resident was injured when a faulty wooden step leading to her door gave way beneath her. The resident sued her landlord in negligence, seeking to recover for her injuries. A state statute required all landlords to provide safe and sanitary living quarters for their residential tenants but elaborated no further. The resident argued that the doctrine of negligence per se applied, and the statute's requirements set the standard of care. The court concluded that this statute was not a good candidate for negligence per se. The statute did not decree that some particular thing must or must not be done in a particular situation. Instead, the statute set forth a generalized, abstract duty for residential landlords to provide

safe and sanitary living quarters. Thus, the statute did not specify the standards to determine whether a particular landlord fulfilled this duty in a given case.

ii. Law as Penal in Nature

Many courts apply negligence *per se* only if the law is ***penal*** in nature. This means that the statute imposes some ***criminal*** penalty for a violation. A criminal fine will usually suffice. However, a rule imposing a mere ***civil penalty***, such as revocation of a license or a civil fine, will not suffice. [*See Ridgecrest Ret. and Healthcare v. Urban*, 135 S.W.3d 757 (Tex. Ct. Civ. App. 2004).]

iii. Victim as within Protected Class

The victim must be within the ***class of persons*** the statute was designed to protect. [*Wright v. Brown*, 356 A.2d 176 (Conn. 1975).]

iv. Accident as One the Law Was Meant to Prevent

The law must have been designed to prevent the ***type of accident*** that caused the victim's injury. [*Wright v. Brown*, 356 A.2d 176 (Conn. 1975).]

Example:

A motorist was driving a car on a public street with expired license plates. This was a misdemeanor under applicable law. The motorist struck and injured a pedestrian. Negligence per se would not apply here. The law requiring current license plates was designed to raise licensing revenue and help identify cars by their license numbers. The law was not designed to ensure that motorists operate their vehicles so as not to strike and injure other people. Thus, the applicable standard of care would be the general standard of reasonable care under the circumstances, not the specific law requiring current license plates. [*Adapted from Haver v. Hinson,* 385 So.2d 605 (Miss. 1980).]

c. Exceptions to Negligence per Se

Negligence per se will ***not apply*** in some situations, even if its requirements are otherwise satisfied. In these cases, the violation of the statute will be excused, meaning violating the law will not be deemed negligence. [*Impson v. Structural Metals, Inc.*, 487 S.W.2d 694 (Tex. 1972).]

i. Excessive Danger in Complying with the Law

Courts generally will not apply negligence per se if complying with the law would have been ***more dangerous***, ***to the actor or others***, than disobeying the law under the circumstances. [*Impson v. Structural Metals, Inc.*, 487 S.W.2d 694 (Tex. 1972) (citing Restatement (Second) of Torts § 288A.)]

Example:

A law required pedestrians to walk facing oncoming traffic or incur a fine. A pedestrian was walking facing oncoming traffic when he saw a large dog rushing to attack him. To avoid the dog, the pedestrian crossed the road and walked facing away from traffic. The dog did not follow. In this situation, the dangers of walking facing traffic (and toward the menacing dog) exceeded the dangers of walking facing away from traffic. Thus, negligence per se likely does not apply here.

ii. Actor's Incapacity

Courts generally will not apply negligence per se if the actor could not reasonably have been expected to comply with the law because of some ***incapacity***—*e.g.*, a sudden and unforeseeable heart attack or seizure. [*Impson v. Structural Metals, Inc.*, 487 S.W.2d 694 (Tex. 1972) (citing Restatement (Second) of Torts § 288A).]

iii. Actor's Reasonable Ignorance of the Law

Courts generally will not apply negligence per se if the actor ***neither knew nor reasonably should have known*** that compliance with the law was required on the relevant occasion. [*Impson v. Structural Metals, Inc.*, 487 S.W.2d 694 (Tex. 1972) (citing Restatement (Second) of Torts § 288A).]

Example:

The state's motor-vehicle code required a vehicle's brake lights to be kept functional at all times. A motorist's brake lights went out while the motorist was driving his car. The motorist had no reason to know that the brake lights were out until someone notified him. For that reason, negligence per se likely does not apply, unless someone had already notified the motorist that the lights were out. [*See* Restatement (Second) of Torts § 288A illus. 3.]

iv. Actor's Inability to Comply

Negligence per se will not apply if the actor ***could not comply*** with the law, despite all reasonable efforts to do so. This exception is closely related to some of the others. [*See Impson v. Structural Metals, Inc.*, 487 S.W.2d 694 (Tex. 1972) (citing Restatement (Second) of Torts § 288A).]

Example:

A statute required railroad companies to ensure that their fences stayed free of ice and snow. One day, a major blizzard covered all of a particular railroad company's fences with snow. The railroad company used reasonable care and responded as quickly as it could. Even so, despite all reasonable effort, it took the railroad company three days to clear the snow, so heavy was the downpour. On the second day, a farmer's cow ascended a mound of snow adjacent to one of the fences, crossed the fence, walked onto the tracks, and was struck by a train. Despite the railroad company's violation of the statute, negligence per se will not apply. The railroad company simply could not comply, despite all reasonable efforts to do so. [*See* Restatement (Second) of Torts § 288A illus. 4.]

v. Emergency Not of Actor's Own Making

Negligence per se will not apply if the actor faces an emergency not due to the actor's own negligence or other misconduct. For example, a motorist may be driving a vehicle that suffers sudden, unforeseeable mechanical failure, or a motorist may swerve to avoid a child who has suddenly darted out into the road. [*See* Restatement (Second) of Torts § 288A(d).]

B. Breach of Duty

In general, breach of duty arises if the actor fails to conform to the applicable standard of care. In the typical negligence case, in which the reasonable-person standard applies, breach requires that the actor's conduct have been ***unreasonable*** under all the circumstances. Thus, proving breach generally requires a showing that (1) the actor could have pursued an ***alternative***, ***reasonable course of conduct*** that (2) ***more likely than not*** would have prevented or mitigated the injury. [*See United States v. Carroll Towing Co.*, 159 F.2d 169 (2d Cir. 1947); *Burroughs v. Magee*, 118 S.W.3d 323 (Tenn. 2003); *see also* Restatement (Second) of Torts §§ 291, 298, with comments.]

1. Evaluating Alternative Conduct

The heart of the reasonableness test is a cost-benefit analysis. Courts will generally balance (1) the likelihood and severity of the harm against (2) the utility of the actor's conduct and the burden to the actor of avoiding the harm or minimizing the risk via the proposed alternative course of conduct. [*See United States v. Carroll Towing Co.*, 159 F.2d 169 (2d Cir. 1947); *Burroughs v. Magee*, 118 S.W.3d 323 (Tenn. 2003); Restatement (Second) of Torts §§ 291, 298, with comments; *Styles v. Eblen*, 436 S.W.2d 504 (Ky. Ct. App. 1969).]

Example:

An oil company owned several oil wells near a pig farm. The wells produced tens of millions of dollars' worth of oil annually and employed hundreds of people. The pig farm grossed roughly $500,000 annually and employed three people. The electrical lines powering the wells ran across the farm. One day, a storm caused the power lines to fall onto the farm's barn, starting a fire that destroyed the barn and killed the pigs. The pig farmer's ensuing losses totaled $150,000. If the farmer were to propose shutting down the oil wells, this would likely be unreasonable. The incident was a freak accident, and the farmer's losses were small next to the oil wells' utility in terms of creating jobs, generating tax and other revenue, and producing a valuable energy source. However, a less drastic alternative might be reasonable, such as relocating the power lines. [*Adapted from Styles v. Eblen*, 436 S.W.2d 504 (Ky. Ct. App. 1969).]

Note: In the previous example, the case would turn out much differently if, for instance, the oil wells had long lain dormant and unused at the time the power line fell and set the farmer's barn ablaze. At that point, the utility of maintaining power to the oil wells would be virtually nil. In that case, shutting down the power might be quite reasonable alternative conduct. [*See Styles v. Eblen*, 436 S.W.2d 504 (Ky. Ct. App. 1969).]

2. Reasonable Care, Not Heroic Care or Abundant Caution

The law normally requires only ***reasonable*** care, not excessive caution or heroism. Thus, an actor normally does not need to exercise the care of an exceedingly cautious person. Also, an actor will virtually never be expected to risk life and limb for another's benefit, unless perhaps the actor is a professional risk-taker, such as a police officer or firefighter. Of course, the actor need not take every measure possible to avoid every conceivable risk. [*See Stewart v. Motts*, 654 A.2d 535 (Pa. 1995).]

3. Effect of Customs and Industry Standards

A business, trade, or industry may develop a custom, policy, practice, or procedure (custom, for short) for a particular situation. This, in turn, may indicate that a particular type of harm was foreseeable to an actor. Similarly, the fact that a particular industry customarily implements certain precautions may show that those precautions are not unreasonably burdensome. Therefore, an actor's compliance or noncompliance with a custom may be relevant to the question of breach or whether the actor has behaved like a reasonably prudent person under the circumstances. Consideration of a custom can have one of three effects in a case, depending on the quantum of care that it calls for relative to what is reasonable. [*See* Restatement (Second) of Torts § 295A, with comments and illustrations.]

Example:

Automobile mechanics generally followed a custom of setting a car's emergency brake when raising the car on a lift. This was to keep the car from rolling off the lift. A mechanic raised a car on a lift but failed to set the emergency brake. The car rolled off the lift and injured a shop patron. The custom indicated that the accident was reasonably foreseeable, and that the precaution of setting the emergency brake was feasible. A jury could consider these facts in determining whether the mechanic acted as a reasonable person would have under the circumstances.

a. Reasonable Quantum of Care

If the custom calls for a reasonable quantum of care, then the actor's failure to follow it will be deemed unreasonable. [*See* Restatement (Second) of Torts § 295A, with comments and illustrations.]

b. Less Than a Reasonable Quantum of Care

If the custom calls for a lower level of care than what is reasonable, then the defendant may be liable despite following the custom, if the defendant's conduct was nonetheless unreasonable. [*See* Restatement (Second) of Torts § 295A, with comments and illustrations.]

Example:

In the early 1930s, a shipping company towed barges between cities on the open ocean. At the time, prevailing industry custom was for ships not to carry radios that could receive storm warnings, even though these radios were readily available and could be installed with little trouble or expense. A storm came and destroyed one of the shipping company's tugboats, demolishing a barge owned by one of the company's customers. Had the shipping company received warning of the storm over the radios, it could have taken precautions to mitigate or even altogether prevent this loss. Despite the industry custom of not keeping radios on ships, the shipping company may be liable to the customer. Considering the magnitude of loss that the radios could save, together with the slight trouble and expense of installing them, failure to install them could very well be unreasonable despite the custom. [*See* Restatement (Second) of Torts § 295A illus. 2 (citing *The T.J. Hooper*, 60 F.2d 737 (2d Cir. 1932)).]

c. Greater Than a Reasonable Quantum of Care

If the custom calls for a greater quantum of care than what is reasonable, then an actor's failure to follow the custom will not necessarily be deemed unreasonable. [*See* Restatement (Second) of Torts § 295A, with comments and illustrations.]

d. Negligence per Se Distinguished

If negligence per se applies, a ***law*** is used to establish the duty and the standard of care; failure to follow the law establishes breach. By contrast, customs ***do not*** have the force of law. A custom or practice may help to establish a duty or a quantum of care, but in this way, an actor's failure to follow a custom is more often used to prove breach of the general standard of reasonable care. [*See* Restatement (Second) of Torts § 295A, with comments and illustrations; Negligence per Se, *supra*.]

C. Establishing Breach without Proof of Specific Fault: Res Ipsa Loquitur

Res ipsa loquitur (res ipsa) means, "The thing speaks for itself." In negligence, res ipsa refers to situations in which the mere occurrence of the accident is sufficient evidence to permit a jury to infer that the defendant breached a duty. Plaintiffs often invoke res ipsa if their only proof of negligence is the fact that the accident took place. [*See Eaton v. Eaton*, 575 A.2d 858 (N.J. 1990).]

1. Procedural Effect of Res Ipsa

Most jurisdictions hold that if res ipsa applies, it gives rise to a ***permissive inference*** of negligence. This means the factfinder ***may*** find that the defendant's negligence caused the accident, but the factfinder is not ***required*** to do so. Put another way, res ipsa satisfies the plaintiff's initial burden to produce evidence raising an inference of negligence. It does not necessarily satisfy the plaintiff's ultimate burden of persuading the factfinder. Thus, res ipsa generally lets a plaintiff survive a motion to dismiss, a motion for summary judgment, a motion for a directed verdict, or similar dispositive motion by a defendant. [*See Eaton v. Eaton*, 575 A.2d 858 (N.J. 1990).]

Example:

A pedestrian walked past a warehouse where barrels of whiskey were stored. A barrel fell from a window in the warehouse and injured the pedestrian. The pedestrian had no evidence to demonstrate the precise chain of events that caused the barrel to fall. Even so, res ipsa loquitur would likely apply in this case, satisfying the pedestrian's initial burden of production at trial. That is because barrels normally do not fall from windows without someone's negligence. Thus, a trier of fact could rely on the mere occurrence of the accident to infer that an owner or agent of the warehouse was negligent. [*Adapted from Byrne v. Boadle*, 159 Eng. Rep. 299 (Exch. 1863).]

2. Requirements for Res Ipsa to Apply

Several requirements must be met for res ipsa to apply.

a. Accident That Usually Results from Negligence

The accident must be one that ordinarily would occur ***only*** if someone were negligent. [*Eaton v. Eaton*, 575 A.2d 858 (N.J. 1990).]

b. Actor's Control over Harmful Instrumentality

The instrumentality that injured the victim must have been ***under the actor's control*** when the accident occurred. [*Giles v. City of New Haven*, 636 A.2d 1335 (Conn. 1994).]

i. Exclusive Control

Historically, courts required proof that the harmful instrumentality was under the actor's ***exclusive*** control. This rule limited res ipsa's application. The modern trend, though, is to require that the actor have enough control to make her negligence the ***most plausible explanation*** for the accident, even if there are other possible explanations. Thus, that the actor shared control with other parties will not necessarily defeat res ipsa. [*See Giles v. City of New Haven*, 636 A.2d 1335 (Conn. 1994).]

Example:

A passenger flew aboard a plane operated by a commercial airline. In ideal flying weather, the plane somehow disappeared without a trace and without apparent explanation. Various explanations were plausible, including unavoidable mechanical failure or sabotage. Even so, res ipsa may well apply if the passenger's estate sues the airline in negligence. Though various plausible explanations for the plane's disappearance existed, a jury could infer that the most plausible explanation was negligence by the airline or its pilot. The utter disappearance of a plane in perfect flying weather would, it seems, not normally happen without the airline's negligence. [*See* Restatement (Second) of Torts § 328D illus. 3.]

ii. Inference against Multiple Actors in a Hierarchy

If multiple actors in a hierarchical relationship had control over a harmful instrumentality, some courts allow res ipsa to apply against all actors in the hierarchy. In the archetypal case, res ipsa may apply against both (1) a surgeon supervising an operation and (2) any subordinate medical personnel who controlled the injurious instrument. In this case, each person in the hierarchy must prove that she was not negligent or risk liability. [*See Giles v. City of New Haven*, 636 A.2d 1335 (Conn. 1994); Restatement (Second) of Torts § 328D, with comments; *Ybarra v. Spangard*, 154 P.2d 687 (Cal. 1944).]

Example:

A patient was unconscious during surgery and woke up with a surgical instrument left inside her body. Here, the patient could invoke res ipsa against everyone involved with the surgery who controlled, or could have controlled, the instrument. That is because a surgical instrument would almost never be left inside a patient's body, unless someone on the surgical team was negligent. The burden would thus fall upon each potentially liable actor to prove that he was ***not*** negligent, or risk being held liable. [*Adapted from Ybarra v. Spangard*, 154 P.2d 687 (Cal. 1944).]

c. Victim's Lack of Fault

Some courts apply res ipsa only if ***the victim's own negligence did not contribute at all*** to the accident. This is especially true of courts that still adhere to the doctrine of contributory negligence. However, comparative-negligence jurisdictions may simply reduce any recovery in proportion to the victim's percentage of fault for the accident rather than barring res ipsa altogether. [*Giles v. City of New Haven*, 636 A.2d 1335 (Conn. 1994); *see* Contributory Negligence: A Complete Defense, Comparative Fault, *infra*.]

D. Actual Causation

Negligence liability requires that the actor's breach of duty be the ***cause in fact***, or ***actual cause***, of the injury. Actual causation may be proven under one of four basic theories: the ***but-for*** test, the ***concurrent-causes*** doctrine, the ***substantial-factor*** test, and the ***alternative-causes*** doctrine. In addition, courts sometimes allow proof of causation based on ***market share*** in product-liability cases.

1. The But-For Test

The ***but-for test*** is the predominant test for actual causation. The but-for test is satisfied if the victim's injury ***would not have occurred*** without the actor's breach of duty. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 26.]

a. Concurrent Causes

A special case of but-for causation involves ***concurrent causes***. Causes are concurrent if (1) ***multiple forces*** combine to cause the harm, and (2) ***no single force*** by itself would suffice to cause the harm. If each force results from a different actor's negligence, then each negligent actor may be held liable for the entirety of the ensuing harm. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 26 cmts. c, i, illus. 4.]

Example:

A car and a truck approached each other on opposite sides of a highway. At the same time, the drivers of the car and the truck allowed their respective vehicles to cross the center line into the opposing lane of traffic. The vehicles collided, and a passenger in the car was injured. Neither driver's negligence, standing alone, could have caused the passenger's injury. However, the passenger would not have been injured but for the negligence of either driver. For that reason, each driver would be liable for all of the passenger's injuries.

2. The Substantial-Factor Test

The ***substantial-factor test*** applies if (1) ***multiple forces*** combined simultaneously to cause the victim's harm, (2) ***any one*** of these forces would have been sufficient by itself to cause the harm, and (3) it is impossible to tell ***which force*** caused ***what portion*** of the harm. If the actor's negligence was a ***substantial factor*** in causing the harm, then that negligence will be treated as the ***actual cause*** of the injury, notwithstanding any other independent forces. [*See Anderson v. Minn. St. Paul & Sault Ste. Marie Rwy.*, 179 N.W. 45 (Minn. 1920), *overruled on other grounds by Borshiem v. Great N. Ry. Co.*, 183 N.W. 519 (Minn. 1921); Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 26-27.]

Example:

A youth negligently started a fire near a barn. A lightning strike started another fire in the same area. The wind drove both fires, which simultaneously converged upon and destroyed the barn. Here, the usual but-for test was not satisfied; the lightning fire would have burned the barn even if the youth had not started the other fire. Even so, the youth's conduct was an actual cause of the damage under the substantial-factor test. Either the youth's fire or the natural fire, standing alone, would have been sufficient to destroy the barn. Because the fires converged simultaneously, it is impossible to tell which fire caused what portion of the damage. Thus, the youth's fire was a substantial factor in destroying the barn, making the youth responsible for 100 percent of the damage to the barn. [*Adapted from Anderson v. Minn. St. Paul & Sault Ste. Marie Rwy.*, 179 N.W. 45 (Minn. 1920).]

3. Alternative-Causes Doctrine

The alternative-causes doctrine applies if (1) multiple actors were negligent, (2) at least one of the actors caused the victim's harm, and (3) it is impossible to tell which actor's negligence caused the harm. [*Summers v. Tice*, 199 P.2d 1 (Cal. 1948).]

a. Burden Shifts to Defendants

If the alternative-causes doctrine applies, the burden at trial will shift to ***each negligent defendant*** to show that his negligence ***did not cause*** the injury. Each defendant who fails to make that showing will be held liable. [*Summers v. Tice*, 199 P.2d 1 (Cal. 1948).]

Example:

Two hunters simultaneously fired their guns at a deer. The hunters negligently failed to see a man sitting against a tree in the line of fire. One of the bullets struck and injured the man. Both hunters demonstrated negligence by firing in the man's direction, but the man could not prove which hunter's bullet caused the harm. Under the alternative-causes doctrine, both hunters will be held liable for the man's injuries, unless either hunter can show that his bullet was not the one that struck the man. [*Adapted from Summers v. Tice*, 199 P.2d 1 (Cal. 1948).]

4. Market Share in Product-Liability Cases

In some product-liability lawsuits, the plaintiff can prove that a product injured her, but she cannot prove which of several defendants manufactured the product. Here, some courts will shift the burden to each defendant to prove that its product did not cause the harm. The plaintiff can then recover against each defendant failing to do so, in proportion to that defendant's share of the market for the defective product. This theory often limits the victim's recovery to less than 100 percent of damages, because as a practical matter, the victim cannot join the entire market to the action. Even so, the theory sometimes affords some recovery where there would otherwise be none. Market-share liability most often applies in cases involving dangerous drugs and other medical products, such as breast implants. Not all states espouse the theory of market-share liability. [*See* Frank J. Giliberti, *Emerging Trends for Products Liability: Market Share Liability, Its History and Future*, 15 Touro L. Rev. 719 (Winter, 1999).]

Example:

A plaintiff suffered injuries after ingesting a drug that was unsafe for its intended purpose. Three manufacturers produced the drug, but the plaintiff could not prove which manufacturer produced the specific drugs she ingested. The plaintiff sued all three manufacturers in one suit. At trial, the plaintiff proved that the drug (1) was unsafe and (2) injured her. Thus, the burden shifted to each defendant to disprove that it manufactured the specific drugs the plaintiff ingested. The plaintiff could then recover against each manufacturer that failed to meet this burden, in proportion to its share of the market for the dangerous drug.

E. Proximate Causation Generally

Negligence liability requires that the actor's breach was the ***proximate*** cause of the harm. The proximate-cause requirement ensures that the actor's conduct is sufficiently related to the harm to justify imposing liability.

1. Foreseeability and Proximate Causation

The most common way to analyze proximate cause is in terms of ***foreseeability***. An actor will be held liable only for harm that is a ***reasonably foreseeable result*** of the actor's negligence. [*Medcalf v. Wash. Heights Condo. Ass'n, Inc.*, 747 A.2d 532 (Conn. Ct. App. 2000).]

Example:

A cyclist rode a bicycle down a sidewalk and negligently struck a pedestrian, breaking the pedestrian's ankle and causing the pedestrian to fall to the pavement. The cyclist did not know that the pedestrian's backpack was filled with fireworks. When the pedestrian fell, the impact set off the fireworks, injuring several bystanders. The pedestrian was negligent for carrying fireworks in the backpack. The cyclist's negligence was a proximate cause of the pedestrian's broken ankle. It was reasonably foreseeable that a cyclist on a sidewalk could strike and injure a pedestrian. However, the cyclist did not proximately cause the injuries from the fireworks. It was not reasonably foreseeable that a cyclist's collision with a pedestrian would set off fireworks. The pedestrian, though, would be responsible for injuries from the fireworks. Society would impose negligence liability for carrying fireworks precisely because of the risk that the fireworks could explode and hurt someone.

2. Type of Harm versus Nature and Extent of Harm

Under proximate-cause principles, it is only the general ***type*** of harm that must be reasonably foreseeable, not the precise nature or extent of harm. This incorporates the well-known ***eggshell-skull-plaintiff*** rule. This rule posits that in a negligence lawsuit, the defendant takes the plaintiff as she finds him, with all the plaintiff's particular vulnerabilities. In this vein, the precise ***chain of events*** giving rise to the harm need not be foreseeable. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 29-31, with comments.]

Examples:

(1) A man negligently bumped a woman on a sidewalk, knocking her down. The two were total strangers to one another. Thus, the man had no reason to know that the woman had a brittle-bone disorder that caused her to incur severe injuries when she hit the ground,

far beyond what someone with typical bones would suffer. Under proximate-cause principles, the man would be liable for the full extent of the woman's injuries. It was reasonably foreseeable that someone might get hurt falling to the ground after being bumped. That happened here. True, the man could not possibly have foreseen the extent of the woman's injuries, because he did not know about the bone disorder. Even so, because the general ***type*** of injury was foreseeable, it does not matter that the ***extent*** of injury was unforeseeable.

(2) A utility company installed underground utility lines. The worksite was accessible through a large manhole leading to a ladder. The company's employees used kerosene-flame lanterns for light while working underground. One day, the employees negligently left the manhole open, and the lanterns strewn around the hole. That night, a child arrived at the site, lit a lantern, and began descending the ladder. The workers did not know and had no reason to know that the ladder was coated with a flammable substance. The child dropped the lantern, igniting the substance. The child was severely burned. The employees' conduct was the proximate cause of the child's injuries. The precise chain of events leading to the burns—igniting the flammable substance—was unforeseeable. Even so, one reasonably foreseeable risk of leaving lanterns strewn about was that someone could pick up a lantern and get burned. That is exactly what happened here. [*Adapted from Hughes v. Lord Advocate*, [1963] A.D. 837 (H.L.).]

F. Proximate Causation: Intervening and Superseding Forces

An intervening force is an additional act or force, other than the actor's breach of duty, that contributes to the victim's harm along with the breach. If an intervening force is involved, the question becomes whether the intervening force ***breaks the causal chain***, thereby defeating proximate cause and relieving the actor of liability. An intervening force with this effect is called a ***superseding force***. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 19, 32-35; Restatement (Second) of Torts § 442B.]

1. Foreseeable Intervening Forces

An intervening force will ***not*** break the causal chain and become a superseding force if it is ***reasonably foreseeable***. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 19, 32-35; Restatement (Second) of Torts § 442B.]

Example:

A survival instructor negligently stranded a student in a forest area known for its large bear population. A bear injured the student. The instructor's negligence was a proximate cause of the injury. The bear attack was an intervening force. However, a bear attack in a

known bear habitat was reasonably foreseeable, so the attack here would not break the causal chain linking the instructor to the harm.

2. Unforeseeable Intervening Forces

Intervening forces that are ***not reasonably foreseeable*** become ***superseding forces*** that break the causal chain between the actor's breach of duty and the injury, thus absolving the actor of liability. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 19, 32-35; Restatement (Second) of Torts § 442B.]

Example:

A survival instructor negligently stranded a student in a desert area with a high population of venomous snakes. No snake bit the student, but a meteor did strike and injure the student in the desert. A meteor strike is so rare that it was likely not reasonably foreseeable. Thus, the meteor was a superseding force, meaning the instructor will not be liable for the student's injuries.

a. Exception: Foreseeable Harms Triggered by Unforeseeable Intervening Forces

Sometimes, a particular ***type of harm*** is foreseeable, but the catalyst for the harm is an unforeseeable intervening force, especially a natural force. In these cases, courts generally deem the actor's negligence a proximate cause of the victim's injuries. That is because the type of harm is reasonably foreseeable, even if the chain of events leading to it is not. Thus, the courts weight the foreseeable ***result*** more heavily than the unforeseeable ***catalyst*** in assessing liability. [Restatement (Second) of Torts § 444 cmt. a.]

Example:

A cleaner was hired to clean a highly flammable residue from the hold of a ship. The cleaner knew the residue was flammable, yet he performed the work negligently, leaving much residue behind. One night, a bolt of lightning struck the ship and ignited the residue. The resulting fire injured members of the ship's crew. The cleaner's negligence was a proximate cause of the crew members' injuries. The cleaner knew that the residue was highly flammable. Thus, it was reasonably foreseeable that if he did not remove all the residue, the ship could catch fire. Even if the lightning strike was unforeseeable, a fire was nonetheless a foreseeable result of the cleaner's negligence. [*See* Restatement (Second) of Torts § 442B illus. 1.]

3. The Negligence of Others

Most of the time, the negligence of others is considered to be foreseeable. Thus, a negligent actor generally will not be absolved merely because someone else's negligence contributed to or exacerbated the harm. [*See* Restatement (Second) of Torts § 442B; Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 19, 32-35.]

a. Helpless Peril

Generally, an actor is liable for injuries caused by a third party's negligence, if the actor's negligence has unreasonably and foreseeably put the victim in a position of ***helpless peril*** regarding future third-party negligence. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 19, 32-35; Restatement (Second) of Torts §§ 442B, 447.]

Example:

A truck driver negligently struck a pedestrian with his truck. The impact broke the pedestrian's leg and left the pedestrian helpless by the roadside. The truck driver departed the scene without doing anything to help the pedestrian. A moment later, a bus driver negligently struck the pedestrian, causing severe brain injuries. Here, both the truck driver and the bus driver would be liable for the pedestrian's brain injuries. The truck driver's negligence left the pedestrian helpless by the side of the road. The truck driver could reasonably have foreseen that someone else might come along and exacerbate the pedestrian's injuries through a second act of negligence. However, only the truck driver would be responsible for the pedestrian's broken leg because the truck driver's negligence alone caused that specific injury.

b. Negligence of Rescuers

If the actor's negligence puts the victim in a position of helpless peril, it is generally foreseeable that a ***rescuer's*** intervening negligence will exacerbate the victim's injuries. Yet even here, the actor is not responsible for additional harm attributable to extraordinary or unusual actions creating risks different from those generally associated with efforts to render assistance. [*See* Restatement (Second) of Torts § 442B; Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 19, 32-35.]

Example:

A truck driver struck a pedestrian, leaving the pedestrian helpless on the roadside with a broken leg. Shortly afterward, a motorist stopped and attempted to move the pedestrian away from the road, to decrease the risk of further harm to the pedestrian. However, the motorist's negligence in moving the pedestrian worsened the pedestrian's leg fracture. The truck driver is responsible for both the injury to the

pedestrian's leg and the additional harm that the motorist caused while negligently rendering assistance. The law deems it reasonably foreseeable that a rescuer will be negligent trying to assist a helpless victim. The motorist, by contrast, is responsible only insofar as her negligence worsened the break in the pedestrian's leg. But the jurisdiction's Good Samaritan statute may insulate the second driver from liability. [*See* Good Samaritan Statutes, *supra*.]

Compare:

A pedestrian on a highly trafficked promenade negligently failed to pay attention while she was walking. The pedestrian bumped into a student and knocked the student down. The fall inflicted cuts and bruises on the student and rendered her unconscious. Adequately treating the student's injuries would have required nothing more than ordinary first aid, yet the pedestrian left the student unconscious and helpless. A passerby found the student and tried to render aid, though the passerby lacked any healthcare training. The passerby believed that bloodletting was necessary to reduce the risk of infection to the student, so he enlarged one of the student's cuts with his penknife. This bloodletting cost the student the tip of her finger. Here, the pedestrian is not responsible for the student's lost fingertip. The passerby's efforts to render aid were highly unusual and extraordinary and, hence, were not a foreseeable intervening cause. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 35 illus. 2.]

c. Negligence of Medical Professionals

It is generally foreseeable that ***medical professionals*** will negligently treat injuries caused by the actor's negligence. Thus, if the actor's negligence forces the victim to seek medical treatment, the actor will normally be liable for subsequent harm that the victim suffers due to medical negligence in treating the initial injury—unless perhaps the particular medical negligence is extraordinary and unforeseeable. [*See* Restatement (Second) of Torts § 442B; Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§ 19, 32-35.]

Example:

A diabetic needed orthopedic shoes for her feet. On one occasion, the diabetic's podiatrist negligently fitted her shoes, causing blistering on the diabetic's feet. Even so, the diabetic's primary physician opined that nothing needed to be done about the shoes. As a result, the diabetic developed gangrene in her foot, resulting in permanent injury to the foot. Although the physician was perhaps negligent in opining that nothing needed to be done about the diabetic's shoes, the podiatrist is still liable for the permanent injury to her foot. Harm to a diabetic's foot seems well within the

ambit of foreseeable harms created by the podiatrist's negligence. That a physician's negligent misdiagnosis might exacerbate this condition seems equally foreseeable. [*Adapted from* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 35 illus. 1.]

d. Foreseeable Reactions of Others

An actor is generally liable for harm resulting from third parties' ***natural and foreseeable responses*** to the actor's negligence. For instance, if the actor's negligence would foreseeably cause people to panic, the actor will be liable for harm resulting from the panic. [Restatement (Second) of Torts § 444.]

Example:

A negligent driver was on a trajectory to strike a pedestrian crossing the street. The pedestrian saw the car coming and dived out of the way. In doing so, the pedestrian collided with a mother holding her six-month-old infant. The pedestrian, the mother, and the infant were all injured. Here, the driver is liable for the injuries to the pedestrian, the mother, and the infant. The driver negligently created a risk of harm to the pedestrian. It was reasonably foreseeable that the pedestrian would take action to avoid this harm, such as diving to evade the oncoming car. The pedestrian's ensuing collision with the mother and the infant was a natural and foreseeable consequence of that act.

4. Natural Forces

Natural forces are generally treated no differently from any other intervening forces. Thus, a truly ***unforeseeable*** natural force may be a superseding cause absolving the negligent actor of liability. On the other hand, ***foreseeable*** natural forces are treated like any other foreseeable intervening force and will not absolve the actor. Generally, if a force of nature merely increases or accelerates the harm that would have resulted from the actor's negligence in any case, then the force of nature is treated as a foreseeable intervening force, not a superseding one. [*See* Restatement (Second) of Torts § 450 cmt. a.]

Example:

A coal company piled mine refuse on the bank of a stream flowing down a mountain. The refuse's proximity to the water made it foreseeable, even likely, that the refuse would eventually float downstream and find its way to lower riparian real estate. An unforeseeable cloudburst caused an extraordinarily severe flood. The flood carried the refuse downstream in astonishing speed and quantities down the stream, depositing it on

lower riparian land owned by a developer. The refuse did great harm to the developer's land. Although the cloudburst was unforeseeable, in a technical sense, it merely accelerated and increased the harm that would likely have resulted in any case from the coal company's piling refuse near the stream. Hence, the coal company is liable for the harm to the developer's land. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 45 illus. 1.]

5. Special Examples of Superseding Forces

Two situations are often treated as superseding forces: (1) the ***crimes and intentional torts*** of third parties and (2) situations in which the intervening force arises only after the foreseeable risk of harm from the actor's breach of duty has ***abated***.

a. Crimes and Intentional Torts of Third Parties

The ***crimes or intentional torts*** of third parties are almost always deemed superseding forces, ***unless*** either (1) the actor is under a duty to protect the victim from third parties by virtue of a special relationship or some other circumstance or (2) the third party's criminal or intentional misconduct is among the scope of foreseeable risks to which the actor's negligence subjected the victim. [*See* Duty Arising from Special Relationships, *supra*; Restatement (Second) of Torts §§ 448-49, with comments and illustrations; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 34, with comments; *Medcalf v. Wash. Heights Condo. Ass'n, Inc.*, 747 A.2d 532 (Conn. Ct. App. 2000).]

Example:

A guest stayed overnight at a motel located in a neighborhood notorious for frequent violent crime. The lock on the door to the guest's room was a simple household-type lock that could easily be overcome with a credit card. That night, a man broke into the guest's room and sexually assaulted her. The guest sued the inn for negligence. Though the man's sexual assault was an intervening cause, here, it was not a superseding cause. If the inn's failure to use more robust locks was tortious, it was precisely because of the foreseeable, increased risk that a criminal might break into a guest's room and cause harm. Hence, especially considering the high rate of violent crime in the area, the man's criminal sexual assault here was a foreseeable intervening cause. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 34 illus. 1.]

b. Abatement of Foreseeable Risk of Harm from Breach

Generally, an intervening force is a superseding cause if it arises after the reasonably foreseeable risk of harm from the actor's negligence has ***abated***. The risk typically

abates, in turn, once the victim reaches a position of apparent safety from the foreseeable dangers associated with the breach of duty, or the dangerous force set in motion by the breach has itself become apparently safe or, as some authority puts it, the dangerous force has "come to rest." [*Henningsen v. Markowitz*, 230 N.Y.S. 313 (N.Y. Sup. Ct. 1928); *Pittsburgh Reduction Co. v. Horton*, 113 S.W. 647 (Ark. 1908); *Hill v. Wilson*, 224 S.W.2d 797 (Ark. 1949).]

Examples:

(1) A survivalist dug a hole along a hiking trail, negligently failing to put up any warning or barrier to keep others away from the hole. A hiker came along and fell into the hole, spraining his ankle, due to which he could not climb out of the hole. Shortly after, a camper arrived, pulled the hiker up from the hole, and invited the hiker to stay overnight in the camper's cabin. That night, a bear broke into the cabin and injured the hiker. Here, the survivalist's negligence put the hiker in a position of helpless peril, in which the hiker was foreseeably made vulnerable to a bear attack while confined to the hole. But the camper rescued the hiker and gave him sanctuary in the cabin, a position of apparent safety from the initial danger. Thus, the bear attack was likely a superseding cause of the hiker's injuries.

(2) A construction worker negligently left dynamite unsecured at a job site. A child foreseeably stole some of the dynamite and took it home. The child's parents found the dynamite in the child's book bag. The parents recognized what the dynamite was but negligently left it in the bag, taking no further action. The next day, the child traded the dynamite to another student for some candy. The student later negligently set off the dynamite, injuring several people. The construction worker is probably not liable for these injuries. The first child took the dynamite home. At that point, the danger arising from the employee's negligence, the child's possessing the dynamite, had been apparently made safe. This is because two adults were positioned to eliminate further danger. Their failure to do so was an unforeseeable superseding cause absolving the construction employee. [*Adapted from Pittsburgh Reduction Co. v. Horton*, 113 S.W. 647 (Ark. 1908).]

G. Harm

The negligence plaintiff must show that the defendant's breach of duty actually and proximately caused legally cognizable ***harm*** to the plaintiff. The particular types of harm for which the plaintiff can recover may be limited, depending on the circumstances.

1. Harm Defined

Harm means loss, detriment, or injury to persons or property. In other words, harm arises only if the victim is worse off in some way because of the breach of duty. [Restatement (Second) of Torts § 7 cmt. b.]

2. Types of Harm

There are three basic types of harm in tort law: ***physical*** harm, ***emotional or mental*** harm, and ***economic*** harm.

a. Physical Harm

Physical harm involves any impairment to the physical condition of a person's ***body*** or to real or tangible personal ***property***. [Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 4.]

i. Exacerbation of Prior Injury or Condition

Physical harm includes the exacerbation of a prior injury or condition. [*See Offensend v. Atl. Ref. Co.*, 185 A. 745 (Pa. 1936); Restatement (Second) of Torts § 461.]

Example:

A motorist negligently struck an oncoming vehicle driven by a cattle dealer, head-on. Due to the accident, the cattle dealer suffered various injuries, including a cracked rib. The cracked rib aggravated the cattle dealer's preexisting lung disease, causing the cattle dealer intense pain and forcing him to miss work for several months. The motorist is liable for the harm resulting from the aggravation of the cattle dealer's prior lung disease because that harm resulted directly from the motorist's negligence. [*See Offensend v. Atl. Ref. Co.*, 185 A. 745 (Pa. 1936).]

ii. General Recovery for Physical Harm

A negligence plaintiff may ***always*** recover to the ***full extent*** of physical harm suffered due to the defendant's negligence. This may include such harms as impaired earning capacity, medical bills, pain and suffering, and emotional distress stemming from bodily injury. [Restatement (Second) of Torts §§ 436, 436A; Restatement (Third) of Torts: Liability for Physical and Emotional Harm §§6 cmt. f, 45 cmt. b.]

iii. General Measure of Recovery for Property Damage

If property is ***damaged***, the plaintiff can generally recover the reasonable cost of repair or the difference in the property's value before the harm and the value after the harm. If property is ***destroyed***, the plaintiff can generally recover the fair market value of the property at the time of its destruction. The plaintiff may also be able to recover for lost use of chattel or realty, diminished value of chattel or realty, or diminished enjoyment of realty. [*See* Restatement (Second) of Torts §§ 928-29, with comments.]

b. Emotional Harm

Emotional harm involves any impediment, injury, or disturbance to someone's tranquility of emotion or peace of mind. This can cover any negative emotion, such as fear, sorrow, despondency, anxiety, depression, or mental illness. A plaintiff's ability to recover for emotional harm is generally more limited than the ability to recover for physical harm. [Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 45 cmt. a.]

i. Emotional Harm Traceable to Physical Harm: Recovery Allowed

If the emotional harm is ***traceable to physical harm***, the plaintiff can recover for both the physical harm and any resulting emotional harm. [*See* Restatement (Second) of Torts § 7 cmt. b; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 45 cmt. b.]

ii. Emotional Harm Standing Alone: Usually No Recovery Allowed

If emotional harm is the ***only*** harm arising from the defendant's negligence, the plaintiff generally ***cannot*** recover for it, ***unless*** the plaintiff establishes the specific elements of negligent infliction of emotional distress (NIED) or IIED. [*See* NIED, *infra*.]

c. Economic Harm

Economic harm is purely monetary in nature, such as lost wages or profits not traceable to physical harm. Purely ***economic harm*** is generally not recoverable in negligence. More often, the appropriate remedy lies in contract. However, there are several exceptions to this rule. [*See Economic Loss*, *Black's Law Dictionary* (9th ed. 2009); Restatement (Third) of Torts: Liability for Economic Harm § 1-2, with comments.]

i. Economic Harm Traceable to Physical Harm

As with emotional harm, a plaintiff can recover for economic harm that is ***traceable to physical harm***. For example, the plaintiff may lose wages due to a bodily injury that has made the plaintiff physically unable to work, or the plaintiff may incur medical expenses to treat an injury or illness caused by the defendant's negligence. [*See* Restatement (Third) of Torts: Liability for Economic Harm § 2 cmt. a.]

ii. Professional Malpractice

Negligence by a ***retained professional***, such as an accountant or attorney, may give rise to purely economic harm recoverable in a malpractice lawsuit. [*See* Restatement (Third) of Torts: Liability for Economic Harm § 4 cmt. a.]

iii. Other Specific Causes of Action

In addition to professional malpractice, tort law provides several distinct causes of action to address purely economic harm, including tortious interference with business relations, fraudulent misrepresentation, and negligent misrepresentation. [*See* Tortious Interference with Business Relations, Misrepresentation, *infra*.]

3. The Collateral-Source Rule

Under the common-law collateral-source rule, the plaintiff's recovery is ***not diminished*** by any compensation the plaintiff receives from sources ***other than the defendant***, such as insurance payments. Many jurisdictions have altered this rule by statute, especially in personal-injury and medical-malpractice cases. In addition, insurance contracts often contain subrogation clauses that transfer the plaintiff's right of recovery to the insurer, up to the policy limits. [*See* Lori A. Roberts, *Rhetoric, Reality, and the Wrongful Abrogation of the Collateral Source Rule in Personal Injury Cases*, 31 Rev. Litig. 99 (Winter 2012); Nora J. Pasman-Green & Ronald D. Richards, Jr., *Who is Winning the Collateral Source Rule War? The Battleground in the Sixth Circuit States*, 31 U. Tol. L. Rev. 425 n. 10 (Spring 2000); Restatement (Second) of Torts § 920A cmt. b.]

VI. Special Rules of Liability: NIED and Loss of Consortium

Special rules concerning NIED and loss of consortium may allow a negligence plaintiff to recover for purely emotional or intangible harm.

A. NIED

Claims for NIED typically arise in one of three situations: (1) a ***direct action***, (2) a ***bystander*** claim, or (3) ***special circumstances***. The legal rules differ significantly in each situation. In any case, NIED is available only if the plaintiff seeks recovery for ***emotional harm standing alone***,

unrelated to any physical injury. If the plaintiff has also suffered physical harm, the plaintiff need only establish the general elements of negligence. General negligence permits recovery for emotional harm arising from the physical injuries, without the need to satisfy the peculiar elements of NIED. [Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 47, with comments.]

1. Direct Actions

A ***direct action*** for NIED arises if an actor's negligence foreseeably puts ***the particular plaintiff*** (not a third party) at a significant and unreasonable risk of imminent physical injury that never materializes, causing emotional distress without physical harm. The jurisdictions have developed diverging rules for deciding whether a plaintiff may recover for NIED in a direct action. [Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 47 cmt. a.]

a. The Impact Rule

A few jurisdictions follow the common-law ***impact rule***, which allows direct actions for NIED only if the plaintiff experiences some physical impact, however slight, at the time of the tortious act. The impact need not cause physical injury, but it must consist of some form of physical contact. If the impact causes the emotional harm, then the plaintiff may recover. The impact rule is ***not*** satisfied, though, just because the plaintiff later develops physical symptoms because of standalone emotional distress. The tortious act must cause contemporaneous physical impact. [*See Mitchell v. Rochester Ry. Co.*, 45 N.E. 354 (N.Y. 1896) (adopting impact rule), *overruled by Battalla v. State of N.Y.*, 176 N.E.2d 729 (N.Y. 1961) (appearing to adopt the zone-of-danger test in place of the impact rule); *Camper v. Minor*, 915 S.W.2d 437 (Tenn. 1996) (analyzing NIED claims under general negligence framework).]

Example:

A horse-drawn carriage driven negligently on a public street nearly ran down a pregnant woman. The woman fainted from fright, but neither the horses nor the carriage ever touched her. The woman later suffered a miscarriage because of the fright. Under the impact rule, the woman cannot recover for NIED against the carriage driver, despite the miscarriage being attributable to the negligence. This is because she suffered no physical impact from the horses or the carriage. [*Adapted from Mitchell v. Rochester Ry. Co.*, 45 N.E. 354 (N.Y. 1896), *overruled by Battalla v. State of N.Y.*, 176 N.E.2d 729 (N.Y. 1961).]

b. The Zone-of-Danger Rule

The ***zone-of-danger rule*** is more widely accepted than the impact rule, and it permits recovery for NIED under either of two circumstances: ***physical impact*** or a ***near miss***.

i. Zone-of-Danger Rule and Physical Impact

The plaintiff may recover for NIED under circumstances that would satisfy the impact rule. [*See Camper v. Minor*, 915 S.W.2d 437 (Tenn. 1996), *Consolidated Rail Corp. v. Gottshall*, 512 U.S. 532 (1994); The Impact Rule, *supra*.]

ii. Genuine Fright Resulting from Near Miss

Without physical impact, the zone-of-danger rule requires: (1) immediate risk of physical injury, (2) the victim's contemporaneous fear for her own safety, and (3) physical symptoms or objective manifestations (or, as some authority puts it, credible evidence) of genuine and severe emotional distress. [*See Camper v. Minor*, 915 S.W.2d 437 (Tenn. 1996); Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 47 cmt. j.]

1) Immediate Risk of Physical Injury

The actor's negligence must place the victim at a reasonably foreseeable risk of ***imminent physical injury***. A near miss usually satisfies this requirement, as may other forms of danger. [*Brueckner v. Norwich Univ.*, 730 A.2d 1086 (Vt. 1999).]

2) Contemporaneous Fear for Victim's Own Safety

The victim must ***actually*** and ***reasonably fear*** for her own physical safety as an actual and proximate result of the actor's negligence. Further, this fear must occur and be expressed at or near the time of the negligence. If the victim fears for a third party's safety, then she may have a bystander claim, but not a claim under the zone-of-danger test. [*Cons. Rail Corp. v. Gottshall*, 512 U.S. 532 (1994); *Grube v. Union Pac. RR. Co.*, 886 P.2d 845 (Kan. 1994); *Brueckner v. Norwich Univ.*, 730 A.2d 1086 (Vt. 1999); Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 47 cmt. a; *see* Bystander Action, *infra*.]

3) Physical Symptoms

In some jurisdictions applying the zone-of-danger test, the plaintiff must suffer genuine and severe emotional distress that ***objectively manifests*** itself through some ***physical or other symptom***. Severe emotional distress is distress with which a reasonable person of ordinary firmness would be unable to cope

adequately under the circumstances. Symptoms that have passed judicial muster include relatively intangible ones such as severe headaches, sleep disorders, reduced libido, fatigue, stomach pains, and loss of appetite. Some authority, though, perhaps most notably the Restatement (Third) of Torts: Liability for Physical and Emotional Harm, would permit recovery without physical symptoms, so long as there is other credible evidence that the emotional distress is indeed severe. In many cases, expert medical testimony may be necessary to corroborate the severity of the distress. [*See Brueckner v. Norwich Univ.*, 730 A.2d 1086 (Vt. 1999); *Camper v. Minor*, 915 S.W.2d 437 (Tenn. 1996); *Sullivan v. Boston Gas Co.*, 605 N.E.2d 805 (Mass. 1993).]

Example:

A teacher flew aboard a plane operated by a commercial airline. Owing to the airline's negligent maintenance of the plane, the plane suddenly lost altitude and began spiraling toward the ground. The plane's oxygen masks dropped, and airline personnel alerted passengers to ready themselves for a crash landing. Just before the plane would have crashed, the pilot regained control and landed the plane safely. No one was physically injured. Yet the teacher, and others, suffered severe emotional distress, having reasonably feared that they were about to die in a plane crash. For the teacher, this distress manifested by way of nausea, vomiting, and sleep disorders. Further, a licensed therapist diagnosed the teacher with post-traumatic stress disorder. On these facts, the teacher likely has a claim for NIED under the zone-of-danger test. [*Adapted from* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 47 illus. 1.]

2. Recovery for NIED Using General Rules of Negligence

A few courts have allowed a cause of action for NIED relying on ***general principles of negligence*** instead of the more specialized impact or zone-of-danger rules. [*Johnson v. Ruark Obstetrics and Gynecology Assocs., P.A.*, 395 S.E.2d 85 (N.C. 1990); *Molein v. Kaiser*, 616 P.2d 813 (Cal. 1980); *Camper v. Minor*, 915 S.W.2d 437 (Tenn. 1996).]

a. Breach of Duty, NIED

As in any negligence case, the actor must ***breach*** a ***duty of care*** owed to the victim. [*Johnson v. Ruark Obstetrics and Gynecology Assocs., P.A.*, 395 S.E.2d 85 (N.C. 1990); *Molein v. Kaiser*, 616 P.2d 813 (Cal. 1980).]

b. Foreseeability, NIED

It must be reasonably ***foreseeable*** that someone in the victim's position would suffer ***severe emotional distress*** as a result of the breach. [*Johnson v. Ruark Obstetrics and Gynecology Assocs., P.A.*, 395 S.E.2d 85 (N.C. 1990); *Molein v. Kaiser*, 616 P.2d 813 (Cal. 1980).]

c. Causation and Harm, Severity of Distress, NIED

The breach of duty must ***actually*** and ***proximately*** cause the victim to suffer ***severe*** emotional distress. In some jurisdictions, this can take the form of a diagnosable mental or emotional disorder. In other jurisdictions, courts will allow recovery if the totality of the circumstances creates a reasonable inference that the victim's emotional distress is both genuine and severe. [*Johnson v. Ruark Obstetrics and Gynecology Assocs., P.A.*, 395 S.E.2d 85 (N.C. 1990); *Molein v. Kaiser*, 616 P.2d 813 (Cal. 1980).]

Example:

A motorist negligently sped around a curve and collided with a truck driven by a professional trucker. The motorist died in the accident, but the trucker suffered no physical injuries. Yet the trucker suffered severe emotional distress upon seeing the motorist's mangled corpse. The trucker then sued the motorist's estate for NIED. The trucker was prepared to offer expert medical testimony from his psychiatrist that he suffered depression and post-traumatic stress disorder due to the shock of seeing the motorist's dead body. On these facts, the trucker may well have a claim for NIED. Due to the motorist's breach of duty (her negligent driving) she caused the trucker severe emotional distress. [*Adapted from Camper v. Minor*, 915 S.W.2d 437 (Tenn. 1996).]

3. Bystander Action for NIED

A ***bystander action*** for NIED arises if the victim is a bystander outside the zone of foreseeable danger created by the actor's negligence, and the bystander reasonably foreseeably suffers severe emotional distress as a result of watching the actor negligently injure ***a third party***. Most states permit the bystander to recover in this situation, but only under fairly limited circumstances. [*Dillon v. Legg*, 441 P.2d 912 (Cal. 1968).]

a. Derivative Nature of Claim

In some jurisdictions, for the bystander to recover, the actor must first be found liable to the third party whom the actor's negligence directly injured—that is, to the ***primary victim.*** Thus, if the actor is not liable to the primary victim for any reason, then the actor will not be liable to the bystander, either. For instance, if the actor has a defense of contributory negligence against the primary victim, then the bystander cannot recover for NIED. [*Dillon v. Legg*, 441 P.2d 912 (Cal. 1968).]

b. Elements of Recovery for Bystander NIED

A bystander can recover for NIED if the bystander (1) is a ***close relative*** of the primary victim, (2) is ***present at the scene*** of the harm to the primary victim, (3) witnesses the injury to the primary victim ***as it occurs***, and (4) suffers ***severe emotional distress*** as a result. [*Thing v. LaChusa*, 771 P.2d 814 (Cal. 1989); *see also Grotts v. Zahner*, 989 P.2d 415 (Nev. 1999); Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 48.]

c. Close Family Relationship with Primary Victim

Recovery is generally limited to bystanders ***closely related*** to the primary victim ***by blood or marriage***. A few jurisdictions extend recovery to in-laws. A minority of jurisdictions also extends recovery to fiancées and unmarried partners, especially if the relationship is one of long-time mutual dependence and cohabitation. [*See Graves v. Estabrook*, 818 A.2d 1255 (N.H. 2003).]

d. Presence and Contemporaneous Observation

Most jurisdictions require that the bystander be ***present*** at the scene of the harm and ***witness*** the harm as it occurs. [*Thing v. LaChusa*, 771 P.2d 814 (Cal. 1989).]

i. Presence

Generally, the bystander must be present ***at the scene*** of the injury to the primary victim when the injury occurs. [*Thing v. LaChusa*, 771 P.2d 814 (Cal. 1989).]

ii. Contemporaneous Observation of Injury

The bystander must ***perceive*** the injury to the primary victim ***as it occurs***. Further, in some jurisdictions, the bystander must be aware, at that time, that the negligence is causing injury. For instance, a layperson observing a negligently conducted medical procedure on a relative may not be aware, at the time, that the procedure is causing injury. Hence, the layperson/bystander may not have a claim. [*Thing v. LaChusa*, 771 P.2d 814 (Cal. 1989); *Bird v. Saenz*, 51 P.3d 324 (Cal. 2002).]

iii. Different Approaches to Presence and Contemporaneous-Observation Requirements

Some courts adopt a ***strict*** approach to evaluating the presence and contemporaneous-observation requirements. Others adopt a ***flexible*** approach.

1) Strict Approach

Some courts bar recovery if the bystander arrives on the scene ***after*** the injury occurs, even if only minimal time has passed. [*Thing v. LaChusa*, 771 P.2d 814 (Cal. 1989); *Bird v. Saenz*, 51 P.3d 324 (Cal. 2002).]

2) Flexible Approach

Other courts permit recovery if the bystander arrives on the scene ***after*** the injury but ***before*** any substantial change in the primary victim's condition or location. [*E.g.*, *Colbert v. Moomba Sports, Inc.*, 176 P.3d 497 (Wash. 2008).]

3) No Recovery for Hearsay Accounts, Latecomers

Regardless of whether the particular jurisdiction adopts a strict or flexible approach, a bystander may not recover in NIED if the bystander (1) merely hears about the injurious event secondhand or (2) arrives on the scene after the primary victim's location or condition has changed significantly. [*Thing v. LaChusa*, 771 P.2d 814 (Cal. 1989); *Bird v. Saenz*, 51 P.3d 324 (Cal. 2002); *Colbert v. Moomba Sports, Inc.*, 176 P.3d 497 (Wash. 2008); *Roitz v. Kidman*, 913 P.2d 431 (Wyo. 1996).]

Examples:

(1) A motorist negligently ran a red light and fatally struck a small child. The child's father witnessed the accident firsthand, causing him to suffer severe emotional distress. On these facts, the father likely has a bystander claim for NIED. The father was present at the scene and suffered severe emotional distress when the motorist negligently struck and killed his child. But if the father had not been present and had learned of the child's death by means of a phone call from the hospital, he would likely have no bystander claim. In any jurisdiction, the father would fail the presence and contemporaneous-observation requirements. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 48 illus. 1-2.]

(2) A motorist negligently struck a pedestrian and left him bleeding and seriously injured in a ditch by the roadside. Mere minutes later, the pedestrian's wife happened to drive by and see the pedestrian in that condition. The wife suffered severe emotional distress at seeing the pedestrian's injuries. Here, the wife did not observe the accident as it occurred. Yet she did arrive on the scene mere moments later, when the pedestrian's location and condition did not meaningfully differ from just after the accident. Hence, in some jurisdictions, the wife could have a bystander

claim for NIED. [*Adapted from Colbert v. Moomba Sports, Inc.*, 176 P.3d 497 (Wash. 2008) (citing *Hegel v. McMahon*, 960 P.2d 424 (Wash. 1998)).]

e. Type of Injury Suffered by Primary Victim

Some jurisdictions limit bystander NIED recovery to instances in which the primary victim suffers ***serious bodily injury or death*** as a result of the actor's negligence. [*See, e.g.*, *Roitz v. Kidman*, 913 P.2d 431 (Wyo. 1996).]

f. Severe Emotional Distress, Bystander NIED

To recover in NIED, the bystander victim must suffer ***severe*** emotional distress. Severe emotional distress is a magnitude of distress with which a reasonable person of ordinary fortitude could not cope under the circumstances. [*Thing v. LaChusa*, 771 P.2d 814 (Cal. 1989).]

4. Special Circumstances, NIED

Courts generally permit recovery in NIED ***without*** proof of physical impact or physical manifestation in certain very specific circumstances in which people are ***especially likely to be distressed***. These situations may involve, for instance, mishandling the corpse of a loved one or negligent misdiagnosis by a medical professional, or perhaps victims who see their homes destroyed firsthand by negligence. [*See Camper v. Minor*, 915 S.W.2d 437 (Tenn. 1996) (discussing cases); *Guth v. Freeland*, 28 P.3d 982 (Haw. 2001). *Cf. Sullivan v. Boston Gas Co.*, 605 N.E.2d 805 (Mass. 1993).]

B. Loss of Consortium

If an actor negligently injures, for example, one spouse in a relationship, the injury may reduce the primary victim's ability to participate meaningfully and intimately in the relationship with the other spouse. This, in turn, may cause the non-injured spouse to suffer distress and deprivation. Someone sharing a close relationship with a primary victim may be able to recover for ***loss of consortium*** to compensate for these kinds of relational harms. [*Millington v. Se. Elec. Co.*, 239 N.E.2d 897 (N.Y. 1968).]

1. Consortium Defined

Consortium includes the intangible benefits of a close relationship, such as affection, companionship, consolation, emotional support, and sexual intimacy. [*Millington v. Se. Elec. Co.*, 239 N.E.2d 897 (N.Y. 1968).]

2. General Basis for Claim

The cause of action for loss of consortium is meant to protect the ***personal interest*** in the relationship with the primary victim. [*Millington v. Se. Elec. Co.*, 239 N.E.2d 897 (N.Y. 1968).]

3. Derivative Nature of Loss-of-Consortium Claim

The majority view is that a claim for loss of consortium is ***derivative***. That is, the claim depends entirely on the ***primary victim's*** claim against the actor. Thus, if the actor for any reason is not liable to the primary victim, then the loss-of-consortium claim will fail. For instance, if the actor has a good defense of contributory negligence against the primary victim, then the victim's spouse or other close relative cannot recover for loss of consortium. [*See, e.g.*, *Wine-Settergren v. Lamey*, 716 N.E.2d 381 (Ind. 1999).]

4. Proof of Harm to Relationship

The loss-of-consortium plaintiff must show that the relationship has suffered harm as a result of the injury to the primary victim. [*See Wal-Mart Stores, Inc. v. Alexander*, 868 S.W.2d 322 (Tex. 1993).]

Example:

A retail store negligently constructed and maintained an entrance ramp, due to which a woman fell and broke her hip. The injury inflicted permanent disabilities on the woman. Before the accident, the woman and her husband had spent most of their free time together traveling and engaging outdoor activities such as walking, hiking, and fishing. After the accident, the woman had great difficulty walking and traveling. This impairment substantially curtailed the couple's travel and outdoor activities and relegated them to spending most of their time watching television. Here, assuming the retail store is liable to the woman as the primary victim, the husband may well have a claim for loss of consortium. The accident and resulting disability to the wife prevented the couple from enjoying many wholesome activities in which they regularly participated together before the accident, signifying a material impairment to their relationship. [*See Wal-Mart Stores, Inc. v. Alexander*, 868 S.W.2d 322 (Tex. 1993).]

5. Relationships Giving Rise to Loss-of-Consortium Claim

Only a few specific types of relationships can give rise to a loss-of-consortium claim.

a. Spouse of Primary Victim

A ***legal spouse*** of the primary victim should be able to sustain a loss-of-consortium claim in any jurisdiction recognizing these claims. [*See Boucher v. Dixie Med. Ctr.*, 850 P.2d 1179 (Utah 1992); *Lozoya v. Sanchez*, 66 P.3d 948 (N.M. 2003).]

b. Unmarried Cohabitant of Primary Victim

Some jurisdictions allow recovery by an ***unmarried cohabitant*** of the primary victim, depending on the nature and closeness of the relationship. [*See, e.g.*, *Lozoya v. Sanchez*, 66 P.3d 948 (N.M. 2003) (requiring proof of "a close familial relationship with the victim"), *abrogated on other grounds by Heath v. La Mariana Apartments*, 180 P.3d 644 (N.M. 2008).]

c. Parent of Minor-Child Primary Victim

Historically, most jurisdictions do not allow the ***parent of a minor child*** to recover for loss of consortium arising from injury to the child. Yet some scholarship hints at a strong trend in the direction of recognizing these claims. At common law, a father could recover damages for loss of the child's services around the house or the cost of treating the child's injuries. [*See Boucher v. Dixie Med. Ctr.*, 850 P.2d 1179 (Utah 1992); Robert Michael Ey, Cause of Action by Parent for Loss of Child's Consortium, 7 COA2d 319, Westlaw (database updated May 2022).]

d. Parent of Adult Primary Victim

Historically, most jurisdictions have not allowed the ***parent of an adult child*** to recover for loss of consortium. At least one jurisdiction has recognized such a claim, provided there is "significant evidence of an extraordinarily close and interdependent relationship between the parents and the adult child." [*Adams v. U.S.*, 669 F. Supp. 2d 1203 (D. Mont. 2009 (internal quotes omitted). *See Boucher v. Dixie Med. Ctr.*, 850 P.2d 1179 (Utah 1992).]

e. Exception for Child's Permanent and Total Disability

A few jurisdictions allow the parent of a minor child, and perhaps an adult child, to recover for loss of consortium if the child is ***permanently and totally disabled*** because of the defendant's negligence. [*See, e.g.*, *U.S. v. Dempsey*, 635 So. 2d 961 (Fla. 1994).]

f. Child of Primary Victim

Some jurisdictions allow a child to recover for loss of consortium arising out of injuries to a parent, provided the parent is ***permanently and totally disabled*** because of the actor's negligence. This is true whether the child is a minor or an adult when the parent is injured. [*See, e.g.*, *Rolf v. Tri-State Motor Transit Co.*, 745 N.E.2d 424 (Ohio 2001).]

VII. Apportionment of Responsibility among Multiple Culpable Parties

In many tort cases, multiple culpable parties (including the plaintiff) bear some responsibility for the plaintiff's harm. In these cases, courts must apportion responsibility among the culpable

parties. The manner in which courts do this generally depends on whether the respective tortfeasors acted ***independently*** or ***in concert***.

A. Tortfeasors Acting Independently

Sometimes, the plaintiff's injury is caused by separate tortfeasors acting ***independently*** of one another—that is, not acting in concert. In these situations, the court will apportion responsibility using (1) ***causal apportionment*** if the injury is ***divisible*** or (2) ***fault allocation*** if the injury is ***indivisible***.

1. Divisible Injury: Causal Apportionment

A ***divisible injury*** occurs if (1) multiple tortfeasors contribute to the plaintiff's harm, and (2) it is possible to discern which tortfeasor caused what portion of the harm. In this case, each tortfeasor will be responsible for the particular segment of the injury that his specific negligence caused. This is known as ***causal apportionment***. [*See Gustafson v. Benda*, 661 S.W.2d 11 (Mo. 1983) (appending Unif. Comparative Fault Act); *Owens Corning Fiberglas Corp. v. Parrish*, 58 S.W.3d 467 (Ky. 2001).]

2. Indivisible Injury: Fault Allocation

An ***indivisible injury*** occurs if multiple tortfeasors contribute to the plaintiff's harm, and the factfinder cannot discern which tortfeasor's actions caused what portion of the harm. In these cases, responsibility is apportioned based on the factfinder's ***percentage allocation of fault*** to each party, not on causation. [*See Owens Corning Fiberglas Corp. v. Parrish*, 58 S.W.3d 467 (Ky. 2001).]

Example:

A motorist negligently struck a pedestrian, breaking the pedestrian's leg and leaving the pedestrian helpless by the roadside, and then drove off without rendering aid. Shortly afterward, a trucker negligently struck the pedestrian, breaking the pedestrian's arm. The motorist and the trucker were not acting in concert, and the pedestrian was not negligent. In assigning responsibility for the broken leg, a court will use causal apportionment, because it is clear that only the motorist caused that injury. For that reason, 100 percent responsibility for the broken leg will be allocated to the motorist. Responsibility for the broken arm will be apportioned between the motorist and the trucker based on fault. The broken arm was an indivisible injury because its occurrence required the combined negligence of both defendants in sequence. The finder of fact will determine the percentage of fault attributable to each defendant and hold each defendant proportionately responsible.

B. Tortfeasors Acting in Concert

Tortfeasors act ***in concert*** if they knowingly act together and substantially assist one another in causing the plaintiff's harm, whether through material assistance or mutual encouragement. Tortfeasors who act in concert are each ***jointly and severally liable*** for 100 percent of the responsibility allocated to their combined misconduct. [*Reilly v. Anderson*, 727 N.W.2d 102 (Iowa 2006); Restatement (Third) of Torts: Apportionment of Liability § 15; *see* Joint and Several Liability, *infra*.]

C. Plaintiff's Ultimate Recovery in Fault-Based Apportionment

If responsibility is apportioned based on fault, the court must decide how much money the plaintiff can recover from each defendant. The two basic systems for dealing with this issue are ***several liability*** and ***joint and several liability***.

1. One-Satisfaction Rule

The rule everywhere is that a plaintiff is entitled to only one satisfaction. This means that the plaintiff can recover only the sum of damages awarded and no more. For example, if a plaintiff is awarded total damages of $100,000 against three separate defendants, the plaintiff is limited to a combined recovery of $100,000 from all three. [*Crown Life Ins. Co. v. Casteel*, 22 S.W.3d 378 (Tex. 2000).]

2. Several Liability

Under ***several liability***, if multiple defendants are found liable for an indivisible injury, and each defendant is assigned a distinct percentage of the fault, the plaintiff may recover from a given defendant only that particular defendant's proportional share of the damages. [*See* Restatement (Third) of Torts: Apportionment of Liability § 11.]

Example:

A plaintiff sued three defendants for damages stemming from an indivisible injury. The jury found that the first defendant was 50 percent at fault, and the second and third defendants were each 25 percent at fault. The total damage award was $100,000. In a several-liability system, the plaintiff can recover no more than $50,000 from the first defendant (corresponding to the first defendant's 50 percent fault allocation), $25,000 from the second defendant (corresponding to the second defendant's 25 percent fault allocation), and $25,000 from the third defendant (corresponding to the third defendant's 25 percent allocation of fault).

3. Joint and Several Liability

Under ***joint and several liability***, if multiple defendants are found to be at fault for an indivisible injury, and each defendant is assigned a distinct percentage of the fault, the plaintiff may recover 100 percent of the ***total award*** from (1) any one defendant, (2) fewer than all defendants, or (3) all defendants in any combination. Of course, the plaintiff may not recover more than 100 percent of the total award. [*See* Restatement (Third) of Torts: Apportionment of Liability § 10.]

Example:

A plaintiff sued three defendants for damages stemming from an indivisible injury. The jury found that the first defendant was 50 percent at fault, and the second and third were each 25 percent at fault. The total damage award was $100,000. In a joint-and-several-liability system, the plaintiff may recover up to the full $100,000 award from the first defendant alone, the second defendant alone, the third defendant alone, or any combination of the defendants.

4. Joint and Several Liability with Contribution

Most jurisdictions that have adopted joint and several liability have also adopted a system of ***contribution*** for tortfeasors who are found jointly and severally liable. Under a joint-and-several-liability system, one jointly and severally liable defendant may pay a ***greater*** percentage of the judgment than his allocated percentage of fault. In that event, he may recover against each of the other jointly and severally liable defendants in proportion to their respective allocated shares of the fault, ***up to the amount of the overpayment***. The overpaying defendant may not recover sums representing that defendant's own allocated share of the fault. [Restatement (Third) of Torts: Apportionment of Liability § 23(b); *Gustafson v. Benda*, 661 S.W.2d 11 (Mo. 1983) (appending Unif. Comparative Fault Act); Unif. Contribution Among Tortfeasors Act § 1 (1977).]

Example:

A plaintiff sued three defendants for damages stemming from an indivisible injury. The jury found that the first defendant was 50 percent at fault, and the second and third defendants were each 25 percent at fault. The total damage award was $100,000. In a joint-and-several-liability jurisdiction with contribution, the first defendant paid the entire $100,000 judgment. Under contribution principles, the first defendant may recover up to $25,000 from the second defendant and up to another $25,000 from the third defendant, for a maximum recovery of $50,000—the amount that the first defendant paid ***in excess*** of her own 50 percent allocation of fault.

5. Joint and Several Liability with Reallocation

In some jurisdictions, if a jointly and severally liable (or even severally liable) tortfeasor's share of the judgment proves uncollectible, the court may order the remaining tortfeasors to pay the defaulting tortfeasor's share in proportion to their own respective shares of the fault. Some jurisdictions include the plaintiff's share of negligence, if any, in this calculation, subtracting it from what the remaining tortfeasors must pay. [*See O'Brien v. Dombeck*, 823 N.W.2d 895 (Minn. 2012); *e.g.*, Minn. Stat. Ann. § 604.02.]

Example:

In a jurisdiction providing for reallocation among joint tortfeasors and accounting for the plaintiff's share of fault in the calculation, a plaintiff won a judgment against three jointly and severally liable defendants. The three defendants were each 30 percent at fault, and the plaintiff herself was 10 percent at fault. The first defendant defaulted on her portion of the judgment, which proved uncollectible. To reallocate the first defendant's share, the court will subtract the plaintiff's 10 percent fault from the first defendant's uncollectible share and then allocate the remaining 20 percent between the second and third defendants, in proportion to their respective shares of fault. As the second and third defendant were equally at fault (30 percent each), each must pay an extra 10 percent of the judgment.

6. Satisfaction and Release

The concepts of satisfaction and release generally discharge a tortfeasor's judgment liability to a plaintiff to one extent or another.

a. Satisfaction and Release Distinguished

Satisfaction means that the plaintiff has received payment against the judgment. If tortfeasors are jointly liable for the same injury, any payment against the judgment reduces total liability on the judgment and, hence, discharges all the tortfeasors' liability to the extent of the payment. ***Release*** means that the plaintiff has agreed to discharge one or more tortfeasors' judgment, usually under the terms of a settlement agreement. [*See* Restatement (Second) of Torts § 885 with comments.]

b. Effect of Release on Liability of Remaining Jointly Liable Tortfeasors

In most jurisdictions, a release of one tortfeasor liable with others for the entire harm generally has no effect on the others' liability, except insofar as the release provides otherwise. Many jurisdictions will reduce the liability of the remaining tortfeasors, however, by either (1) any dollar amount paid by the released tortfeasor against the judgment or (2) the percentage of the released tortfeasor's liability, as determined at trial. [*See* Restatement (Second) of Torts § 885 with comments and Reporter's Notes; Unif. Comparative Fault Act § 6 (1977).]

VIII. Defenses to Negligence

Defenses to negligence include ***contributory negligence***, ***comparative fault***, ***assumption of the risk***, and the effect of the victim's ***criminal conduct***. These defenses can either reduce or eliminate an actor's liability.

A. Contributory Negligence: A Complete Defense

In the few jurisdictions that still apply contributory negligence, proof of the plaintiff's contributory negligence will ***completely absolve*** a defendant of negligence liability, unless some exception applies. [*See* Restatement (Second) of Torts § 467.]

1. Contributory Negligence Explained

In general, ***contributory negligence*** means that the plaintiff's own negligence combined with the defendant's negligence and helped cause the injury. To establish a defense of contributory negligence, the defendant must prove that (1) the plaintiff was ***negligent*** by failing to use reasonable care to prevent her own injury, and (2) the plaintiff's negligence, in conjunction with the defendant's negligence, actually and proximately ***caused*** the plaintiff's injury. [*See* Restatement (Second) of Torts § 467.]

2. General Effect of Proving Contributory Negligence

If the defendant establishes a defense of contributory negligence, then the plaintiff will recover ***nothing***. This is true regardless of the apportionment of fault between the plaintiff and the defendant. Indeed, even the plaintiff's 1 percent fault is a complete bar to recovery. [*See* Restatement (Second) of Torts § 467.]

a. Negligence per Se and Contributory Negligence

A defendant can establish the plaintiff's negligence through the usual methods of proof, such as by invoking negligence per se if the plaintiff's violating a law contributed to the injury. [*See Barker v. Kallash*, 468 N.E.2d 39 (N.Y. 1984); Negligence per Se, *supra*.]

3. Exceptions to Contributory Negligence

There are a few exceptions to contributory negligence that allow a negligent plaintiff to recover 100 percent of her damages, despite her negligence. These exceptions include (1) the defendant's ***recklessness***, (2) the defendant's ***intentional tort***, (3) ***the last-clear-chance doctrine***, and (4) the ***rescue doctrine***.

a. Defendant's Recklessness

Contributory negligence is not a defense to liability for injuries caused by the defendant's ***reckless conduct***, sometimes termed ***wanton conduct***. Recklessness is a more egregious form of culpability than negligence. It is defined as the ***conscious disregard*** of a ***serious***, ***unreasonable risk*** of harm. However, a plaintiff usually cannot recover against a reckless defendant if the plaintiff's own recklessness contributed to the injury. Thus, though contributory negligence is not a defense to recklessness, contributory recklessness is. [*Cooper v. County of Florence*, 412 S.E.2d 417 (S.C. 1991).]

b. Intentional Torts and Contributory Negligence

Contributory negligence is ***not*** a defense to ***intentional torts***. [*Turcios v. DeBruler Co.*, 12 N.E.3d 167 (Ill. App. Ct. 2014); *reversed on other grounds by* 32 N.E.3d 1117 (Ill. 2015).]

c. Last Clear Chance

Under the doctrine of ***last clear chance***, contributory negligence is not a defense if the actor had the last clear chance to avoid causing harm by exercising ***reasonable care***. Last clear chance applies only if the actor's negligence occurred *after* the victim's negligence. [*See* Restatement (Second) of Torts §§ 479-80.]

Example:

A farmer negligently tied a donkey to a stake by the road; the donkey had no way to escape. A driver struck the donkey, though the driver could have avoided the donkey by exercising reasonable care. The farmer was contributorily negligent by leaving the donkey in the road and thus exposing it to risk of injury. Even so, the driver will be held 100 percent liable for the harm to the donkey, because the driver had the last clear chance to avoid colliding with the donkey by employing reasonable care. [*Adapted from Davies v. Mann*, 152 Eng. Rep. 588 (Exch. 1842).]

i. Discovered Peril

Under the ***discovered-peril rule***, judicial treatment of last-clear-chance cases varies, depending on (1) whether the victim was in helpless peril or could reasonably have escaped the peril and (2) whether the actor knew or reasonably should have known of the peril.

1) Helpless Peril

If the victim's initial negligence put the victim in ***helpless peril***—that is, peril from which the victim could not reasonably escape—then some jurisdictions

apply last clear chance only if the actor knew or reasonably should have known of the peril at the time of the actor's negligence. Other jurisdictions take a narrower view and apply last clear chance only if the actor ***actually knew*** of the peril. [*See* Dan B. Dobbs & Paul T. Hayden, *Torts and Compensation: Personal Accountability and Social Responsibility for Injury* 286 (5th ed. 2005) (discussing and summarizing cases); Restatement (Second) of Torts § 479.]

2) Reasonable Escape Possible

If the victim's initial negligence put the victim in a position of peril, but the victim had a reasonable means of escape (even if he did not realize it), then some jurisdictions apply last clear chance only if the actor (1) ***actually knew*** of the peril at the time of the actor's negligence, (2) knew or had reason to know that the plaintiff was inattentive and thus unlikely to discover her peril in time to avoid the harm, and (3) is thereafter negligent in failing to utilize the existing opportunity to avoid the harm. [*See* Restatement (Second) of Torts § 480.]

Example:

In a jurisdiction applying contributory negligence and the discovered-peril rule, a climber descended the face of a cliff. Partway down, the climber negligently got himself stranded on a small ledge he could not escape from. A hiker atop the cliff negligently threw a rock over the edge. The rock struck and injured the hiker. The climber was in helpless peril; he had no way to escape the ledge. The hiker neither knew nor reasonably should have known of this peril. At first blush, last clear chance would seem to defeat a defense of contributory negligence, because the hiker could have avoided injuring the climber by using ordinary care—not throwing the rock. But because the jurisdiction applies the discovered-peril rule, and the hiker was unaware and had no reason to be aware of the climber's helpless peril, last clear chance is inapplicable. Thus, contributory negligence will afford the hiker a complete defense.

3) No Duty to Rescue under Last Clear Chance

Last clear chance does ***not*** require the actor to rescue the victim. Rather, last clear chance requires only that the actor use reasonable care to avoid harming (or further harming) a victim already in peril. [*See* Peter F. Lake, *Bad Boys, Bad Men, and Bad Case Law: Re-examining the Historical Foundations of No-Duty-to-Rescue Rules*, 43 N.Y.L. Sch. L. Rev. 385 nn. 121-22 (1999).]

d. Last Clear Chance and Comparative Fault

Last clear chance generally does not apply in ***pure comparative-fault*** jurisdictions or in modified comparative-fault jurisdictions, at least provided the plaintiff's allocated fault does not exceed the applicable threshold to bar recovery entirely. [*See* Restatement (Third) of Torts: Apportionment of Liability § 3 cmts. a, b; Comparative Fault, *infra*.]

4. Injured Rescuers and Contributory Negligence

Contributory negligence is generally not a defense if the plaintiff negligently injures herself while trying to rescue the defendant from a danger created by the defendant's own negligence. However, a plaintiff's recovery may be barred if the plaintiff ***recklessly*** injures herself in this situation. [*See Wagner v. Int'l Ry. Co.*, 133 N.E. 437 (N.Y. 1921); The Rescue Doctrine, *supra*.]

B. Comparative Fault

Most jurisdictions have abandoned contributory negligence for one of the two prevailing comparative-fault regimes: ***pure comparative fault*** and ***modified comparative fault***. [*See* Restatement (Third) of Torts: Apportionment of Liability § 3, with comments.]

1. Pure Comparative Fault

Under ***pure comparative fault***, the factfinder allocates a percentage of fault for the injury among all parties, including the plaintiff. The plaintiff's recovery is then ***reduced***, not eliminated, according to the ***plaintiff's percentage of fault***. This is true regardless of the specific percentage of fault allocated to the plaintiff, whether 1 percent or 99 percent. If there are multiple responsible defendants, fault is further allocated among them. [*Gufstafson v. Benda*, 661 S.W.2d 11 (Mo. 1983) (appending Unif. Comparative Fault Act).]

2. Modified Comparative Fault

Modified comparative fault operates like pure comparative fault, with one important difference: the plaintiff's own negligence will bar recovery, much like contributory negligence, if the plaintiff's fault exceeds a specified percentage. Some jurisdictions bar recovery if the plaintiff is at least 50 percent negligent. Other jurisdictions bar recovery if the plaintiff is more than 50 percent negligent (or at least 51 percent negligent). Modified-comparative-fault jurisdictions may, by statute, retain last clear chance for situations in which the plaintiff's allocated percentage of fault is so high that it would otherwise bar recovery. [*Gufstafson v. Benda*, 661 S.W.2d 11 (Mo. 1983) (appending Unif. Comparative Fault Act).]

Examples:

(1) A plaintiff sued two defendants for negligence. The jury apportioned 50 percent of the fault to the plaintiff, 30 percent to the first defendant, and 20 percent to the second defendant. Total damages were $100,000. In a jurisdiction applying pure comparative fault, the plaintiff's damage award will be reduced by the plaintiff's share of fault. Thus, the plaintiff will recover 50 percent of $100,000, or $50,000.

(2) A plaintiff sued two defendants for negligence. The jury apportioned 50 percent of the fault to the plaintiff, 30 percent to the first defendant, and 20 percent to the second defendant. Total damages were $100,000. In a jurisdiction applying modified comparative fault with a 51 percent bar, the plaintiff's recovery would not be eliminated, but it would merely be reduced by 50 percent, the plaintiff's allocated share of fault. The plaintiff's 50 percent negligence was just under the 51 percent threshold to bar recovery under this modified-comparative-fault system. Accordingly, the plaintiff will recover $50,000.

Compare:

A plaintiff sued two defendants for negligence. The jury apportioned 50 percent of the fault to the plaintiff, 30 percent to the first defendant, and 20 percent to the second defendant. Total damages were $100,000. The court finally and unappealably found that last clear chance did not apply. In a jurisdiction applying modified comparative fault with a 50 percent bar, the plaintiff would recover nothing, because the plaintiff was exactly 50 percent negligent.

C. Special Situations Involving Plaintiff's Fault

In two special situations, the plaintiff's own negligence has no effect on her ultimate recovery for negligence.

1. Duty to Protect from Victim's Own Negligence

Contributory negligence will not provide a defense, nor will comparative fault reduce or eliminate recovery if the defendant is under a duty to protect the plaintiff from the plaintiff's own negligence. These issues often arise in ***products-liability*** cases, in which product manufacturers and distributors have a duty to design products to guard against foreseeable misuse. These issues also arise if the defendant has ***lawful physical custody*** over the plaintiff, thereby assuming a duty to protect the plaintiff from the plaintiff's own negligent or intentional self-harm. [*See Bexiga v. Havir Mfg. Corp.*, 290 A.2d 281 (N.J. 1972); *McNamara v. Honeyman*, 546 N.E.2d 139 (Mass. 1989); Products Liability, *infra*.]

2. Plaintiff's Prior Negligence in Medical-Malpractice Cases

If the plaintiff requires medical care for negligently self-inflicted injuries, contributory negligence and comparative fault (and probably assumption of the risk) will not eliminate or reduce recovery as to liability for ***further*** injuries caused by ensuing medical malpractice. A medical professional has a duty to render competent care to any patient, regardless of why a given patient needs treatment. [*Mercer v. Vanderbilt Univ., Inc.*, 134 S.W.3d 121 (Tenn. 2004).]

Example:

A motorist, driving drunk, was injured when he crashed his car into an embankment. Driving while drunk was, of course, a statutory violation and negligence per se under applicable law. After the motorist was taken to the hospital, negligence by medical personnel greatly exacerbated the motorist's injuries and left him in a persistent vegetative state. The motorist's personal representative sued the hospital for negligence. The hospital invoked contributory negligence (which the jurisdiction still followed) as a defense, citing the motorist's drunken driving. On these facts, contributory negligence is not a defense, even though the motorist's drunken driving was negligence per se. The hospital and its medical personnel owed the motorist a duty to render competent medical care regardless of the reason why he needed treatment. [*See Mercer v. Vanderbilt Univ., Inc.*, 134 S.W.3d 121 (Tenn. 2004).]

D. Assumption of the Risk: A Complete Defense

Assumption of the risk is a ***complete defense*** to negligence liability. With some exceptions, assumption of the risk is also a defense to liability for ***reckless*** conduct. Assumption of the risk is ***not*** a defense to intentional torts ***unless*** the plaintiff's conduct amounts to valid ***consent***. [*See* Restatement (Second) of Torts §§ 10A, 496A, 892A; Consent, *supra*.]

1. Assumption of the Risk Generally

In general, assumption of the risk arises if the victim (1) ***actually knows*** of the existence and the nature of the risk yet (2) ***voluntarily*** chooses to proceed in the face of that risk. Some authority posits that the victim must also know of the risk's unreasonable character, though as discussed below, some caselaw appears to state the contrary. [*See* Restatement (Second) of Torts §§ 496D, 496E; *Crews v. Hollenbach*, 751 A.2d 481 (Md. 2000).]

2. Actual Knowledge, the Difference between Assumption of the Risk and Contributory Negligence

The requirement of ***actual***, ***subjective knowledge*** of the risk distinguishes assumption of the risk from contributory negligence. If the victim did not actually know but merely should have known about the risk by exercising reasonable care, then contributory

negligence or comparative fault will apply, not assumption of the risk. [*See* Restatement (Second) of Torts §§ 467, 496A, 496D.]

3. Assumption of the Risk and Plaintiff's Unreasonable Behavior

To invoke contributory negligence or comparative fault, the defendant must show that the plaintiff unreasonably failed to protect herself. However, there is ***no*** such requirement for assumption of the risk. The plaintiff may be barred from recovery under assumption of the risk ***even if the plaintiff's conduct was reasonable***. [*See* Restatement (Second) of Torts § 496C cmt. g.]

4. Types of Assumption of the Risk

There are two basic types of assumption of the risk: ***express*** and ***implied***.

a. Express Assumption of the Risk

Express assumption of the risk arises if the victim ***expressly agrees***, whether orally or in writing, to proceed in the face of the risk. [*See Boyle v. Revici*, 961 F.2d 1060 (2d Cir. 1992).]

i. Contractual Assumption of the Risk

A person may contractually agree to assume certain risks. However, courts construe these agreements very strictly. A person will be held to have assumed only those risks that are unambiguously within the scope of the contract. [*See Moore v. Hartley Motors, Inc.*, 36 P.3d 628 (Alaska 2001); *Tunkl v. Regents of Univ. of Calif.*, 383 P.2d 441 (Cal. 1963).]

ii. Some Risks Not Assumable on Public-Policy Grounds

Courts sometimes decline to enforce contractual assumptions of risk on public-policy grounds. These situations often arise if (1) the contract concerns an ***essential service*** such as medical care, and (2) due to the ***necessity*** of the service, the plaintiff's ***urgent need*** for it, and the ***disparity in bargaining power*** between the parties, the victim has no choice but to agree to the contractual risk assumption. These agreements often (but do not necessarily) involve contracts of adhesion in industries suitable for public regulation, such as the healthcare industry. [*See Tunkl v. Regents of Univ. of Calif.*, 383 P.2d 441 (Cal. 1963); Restatement (Second) of Torts § 496B cmt. j.]

Example:

A woman purchased an all-terrain vehicle (ATV) and enrolled in ATV classes at the dealership. Before class started, the woman signed a waiver stating that she released the dealership from any liability for personal injury or property damage arising from her participation in the class. The waiver did not mention general negligence, but it did refer to the inherent risks of operating an ATV. As the woman navigated the dealership's off-road course on her ATV, her front wheels struck an obscure rock in the grass, hurling her forward off the ATV and causing her serious injury. On similar facts, Alaska's highest court construed the release to refer only to harm arising from the inherent risk of riding an ATV on an off-road course, not to risks that could be eliminated with reasonable care. [*See Moore v. Hartley Motors, Inc.*, 36 P.3d 628 (Alaska 2001).]

b. Implied Assumption of the Risk

Implied assumption of the risk arises if the victim chooses to proceed in the face of the risk, under circumstances manifesting willingness to accept the risk. Implied assumption of the risk is often ***inferred*** from the victim's conduct. There are two types of implied assumption of the risk: ***primary*** assumption of the risk and ***secondary*** assumption of the risk. Most jurisdictions treat the two types differently. [*See Knight v. Jewett*, 834 P.2d 696 (Cal. 1992).]

i. Primary Assumption of the Risk

Primary assumption of the risk arises if the victim knowingly and voluntarily participates in activities that carry inherent risks. In that event, a court will deem the victim to have agreed to assume any risks reasonably understood to be inherent aspects of the activity. Primary assumption of the risk usually involves situations in which the victim either (1) undertakes a dangerous line of work or (2) participates in a risky sport or recreational activity. [*See Turcotte v. Fell*, 502 N.E.2d 964 (N.Y. 1986).]

Example:

A man enrolled in a judo class. Judo inherently involves being thrown to the floor by an opponent. During class, another student threw the man to the floor, injuring the man's back. By enrolling in the judo class, the man exhibited primary assumption of the risk, because he could reasonably have understood that judo carried an inherent risk of this type of harm.

Compare:

A woman enrolled in a judo class. One wall of the training area at the dojo was lined with mirrors. During class, one of the mirrors fell from the wall and injured the woman. Concerning the injury by the mirror, the woman did not exhibit primary assumption of the risk. That is because the woman could not reasonably understand judo to involve an inherent risk of being struck by falling mirrors.

1) Primary Assumption of the Risk in Comparative-Fault Jurisdictions

In most comparative-fault jurisdictions, primary assumption of the risk is no longer recognized as a defense. However, these jurisdictions sometimes reach similar results by finding that the actor owes ***no duty of care*** toward the victim under the circumstances (while candidly acknowledging that they are, in effect, preserving primary assumption of the risk despite enactment of the jurisdiction's comparative fault statute). Thus, if the victim knowingly and voluntarily participates in an inherently risky activity, the actor often owes no duty of care to protect the victim from those risks. This is true even if those risks include a certain degree of negligence by other participants in the activity. Of course, the actor remains liable for any reckless or intentional harm. [*See Turcotte v. Fell*, 502 N.E.2d 964 (N.Y. 1986).]

2) Duty Not to Increase Risk

Even in situations involving inherent risk, the actor has a duty to avoid negligently ***increasing*** the inherent danger of the activity. Thus, if the actor's negligence makes the activity more dangerous than the victim could reasonably anticipate, then the actor is liable for any resulting injury. Once again, though, the negligence of others is, to a degree, one of the inherent risks of some activities, especially sports. [*See Knight v. Jewett*, 834 P.2d 696 (Cal. 1992).]

Example:

A ski resort maintained moguls on its ski course. The moguls obviously made skiing more dangerous than it would have been without them. Yet moguls (together with the challenge and risk they presented) were inherent to the sport of skiing. Hence, any skier using the course would exhibit primary assumption of the risk to the presence of the moguls (or, in some jurisdictions, the ski resort would owe no duty of care to remove the moguls). Yet if a skier were injured because the resort failed to use reasonable care to maintain the course in a safe condition, then the resort would breach its duty of care to avoid increasing the danger of skiing beyond what inheres to the activity. [*See Knight v. Jewett*, 834 P.2d 696 (Cal. 1992).]

ii. Secondary Assumption of the Risk

Secondary assumption of the risk usually arises if (1) the actor's negligence has created a risk, and (2) the victim appreciates the existence and nature of the risk but consciously chooses to proceed in the face of it. [*See Knight v. Jewett*, 834 P.2d 696 (Cal. 1992).]

Example:

A hobbyist woodworker built a chair and invited his neighbor to sit in the chair. The chair was negligently constructed. The neighbor, a professional carpenter, realized that the chair was flimsy and unstable, but she sat in the chair anyway. When she did, the chair collapsed, injuring her. Even though the woodworker was negligent to invite the neighbor to sit in a poorly built chair, the neighbor's actions constituted secondary assumption of the risk. She chose to sit in the chair despite appreciating the risk posed by its poor construction. This was not primary assumption of the risk, because sitting in a chair is not inherently risky. Rather, the woodworker's specific negligence created a risk, and the neighbor chose to proceed in the face of it.

1) Secondary Assumption of the Risk in Comparative-Fault Jurisdictions

In most comparative-fault jurisdictions, secondary assumption of the risk is no longer recognized as a defense. Instead, the victim's choice to proceed in the face of a known risk and the reasonableness of that choice are ***factors*** to consider in ***apportioning fault***. If the victim's choice was unforeseeable, that choice may also be deemed a ***superseding force*** that defeats proximate cause. [*See Knight v. Jewett*, 834 P.2d 696 (Cal. 1992); *see also* Proximate Causation: Intervening and Superseding Forces, *supra*.]

E. Victim's Criminal Conduct

A victim generally may ***not*** recover for injuries resulting from the victim's knowing, intentional ***commission of a crime***, insofar as (1) the victim seeks to impose a duty of care arising out of the crime itself, or (2) the victim and actor both participated in the crime. Courts usually reach this result by addressing either the duty of care or the allocation of fault. [*Barker v. Kallash*, 468 N.E.2d 39 (N.Y. 1984); *Alami v. Volkswagen of Am., Inc.*, 766 N.E.2d 574 (N.Y. 2002).]

1. No Duty of Care Arising from Criminal Activity

Courts will refuse to find that the victim's criminal activity gives rise to an actor's duty of care. However, someone injured while committing a crime can sometimes recover if

another's negligence violates a legal duty independent of the crime itself. [*Barker v. Kallash*, 468 N.E.2d 39 (N.Y. 1984); *Alami v. Volkswagen of Am., Inc.*, 766 N.E.2d 574 (N.Y. 2002).]

Examples:

(1) A burglar trespassed on a landowner's property, intending to steal the landowner's television. Previously, the landowner installed a spring-loaded gun, which fired and seriously injured the burglar. Although the burglar was injured while committing a crime, the landowner's conduct independently violated the rule against intentionally harming any trespasser. Thus, the landowner will be liable to the burglar.

(2) A drunk driver was injured due to a defect in the car. The driver sued the manufacturer in products liability. The manufacturer contended that it owed the driver no duty of care, as his injuries arose from his illegal drunk driving. Even so, the driver may recover. The manufacturer's duty to produce safe vehicles was independent of the driver's legal obligation to drive sober. [*Adapted from Alami v. Volkswagen of Am., Inc.*, 766 N.E.2d 574 (N.Y. 2002).]

2. Illegal Conduct as Fault

Principles of ***contributory negligence or comparative fault*** may bar or diminish recovery if a plaintiff was injured while committing a crime. Namely, a court may find that the plaintiff's criminal conduct makes the plaintiff primarily at fault for the injury, thus reducing or eliminating recovery. [*Alami v. Volkswagen of Am., Inc.*, 766 N.E.2d 574 (N.Y. 2002).]

IX. Vicarious Liability

Vicarious liability occurs if one party is held liable for another party's tortious conduct. Vicarious liability is imposed not because the vicariously liable party has done anything wrong, but because of a ***special relationship*** between that party and the primary tortfeasor. A common example is respondeat superior, which holds employers liable for many torts committed by their employees within the scope of employment. [*See* Restatement (Second) of Agency § 216; *Liability*, *Black's Law Dictionary* (9th ed. 2009); Employer and Employee: Respondeat Superior, *infra*.]

A. Derivative Nature of Vicarious Liability

Vicarious liability is derivative liability. This means that the vicariously liable party can be held liable only to the ***same extent*** and on the ***same terms*** as the primary tortfeasor. For example, if the primary tortfeasor's liability is reduced based on comparative fault, then the vicariously

liable party's liability is reduced to the same extent. [*See Kyser v. Metro Ambulance, Inc.*, 764 So. 2d 215 (La. Ct. App. 2000).]

B. Shared Liability, Contribution, and Indemnification

The concepts of ***shared liability***, ***contribution***, and ***indemnification*** implicate the effect of vicarious liability on that of the primary tortfeasor.

1. Shared Liability

Vicarious liability does not absolve the primary tortfeasor of liability. Instead, both the vicariously liable party ***and*** the primary tortfeasor are jointly and severally liable for the ***full share*** of responsibility assigned to the primary tortfeasor. [Restatement (Third) of Agency § 7.01; Restatement (Third) of Torts: Apportionment of Liability §§ 10 cmt. b, 13 cmts. b-d, 7 cmt. j, illus. 7; *Knutson v. Morton Foods, Inc.*, 603 S.W.2d 805 (Tex. 1980).]

Example:

A company's employee drove a company vehicle on company business. His negligence combined with a motorist's to cause a pedestrian indivisible injury. The pedestrian sued the employee, company, and motorist, seeking to hold the employee and motorist directly liable as primary tortfeasors and the company vicariously liable for the employee's negligence. In a jurisdiction using pure comparative fault and joint and several liability with contribution, the jury found that the employee and motorist were each 50 percent responsible, and the company was vicariously liable. Total damages were $100,000. Under joint and several liability, the employee and the motorist are both responsible for 100 percent of the damages, despite their respective 50 percent fault allocations. The company is liable to the same extent as the employee and, thus, also responsible for 100 percent of the damages. The pedestrian may thus recover up to $100,000 from the employee, the company, the motorist, or some combination of the three.

2. No Contribution

The vicariously liable party and primary tortfeasor have ***no right of contribution against each other***, because each of these parties is responsible for 100 percent of the damages allocated to the primary tortfeasor. [Restatement (Third) of Torts: Apportionment of Liability §§ 22(a)(2), 23(c).]

3. Vicariously Liable Party's Right of Indemnification

The vicariously liable party does have a ***right of indemnification*** against the primary tortfeasor. This means that the primary tortfeasor must reimburse the vicariously liable

party for 100 percent of any damages that the vicariously liable party pays to the plaintiff solely because of a relationship to the primary tortfeasor. The primary tortfeasor, though, has no corresponding right of indemnity against the vicariously liable party. [Restatement (Third) of Torts: Apportionment of Liability §§ 22(a)(2), 23(c).]

Examples:

(1) In a jurisdiction applying joint and several liability with contribution, a jury awarded a plaintiff $100,000 in total damages against an employee, an employer, and a third party arising from one indivisible injury. The jury apportioned 50 percent of the fault each to the employee and the third party, respectively, holding the employer vicariously liable for the employee's tort. The third party paid the full $100,000 in damages. This entitled the third party to contribution from the employer, the employee, or both for $50,000, which was the amount the third party paid in excess of her 50 percent share. The employer paid the full $50,000 contribution. This, in turn, entitled the employer to indemnity from the employee in the amount of $50,000—the amount the employer actually paid.

(2) In a jurisdiction applying joint and several liability with contribution, a jury awarded a plaintiff $100,000 in total damages against an employee, an employer, and a third party arising from one indivisible injury. The jury apportioned 50 percent of the fault to the employee and the third party, respectively, holding the employer vicariously liable for the employee's tort. The employer paid the full $100,000. Subject to a maximum total recovery of $100,000 (the amount the employer paid), this entitles the employer to seek (1) up to $50,000 in contribution from the third party, representing the amount the employer paid in excess of the employee's 50 percent share of the fault, and (2) up to $100,000 in indemnity from the employee.

Compare:

In a jurisdiction applying joint and several liability with contribution, a jury awarded a plaintiff $100,000 in total damages against an employee, an employer, and a third party arising from one indivisible injury. The jury apportioned 50 percent of the fault to the employee and the third party, respectively, holding the employer vicariously liable for the employee's tort. The employee paid the full $100,000 in damages. This entitled the employee to $50,000 in contribution from the third party—the amount the employee paid in excess of her 50 percent share of the fault. This did not entitle the employee to contribution or indemnity from the employer.

C. Vicarious Liability Distinguished from Negligent Hiring, Supervision, and Entrustment

Vicarious liability is limited to situations in which a party is held vicariously liable ***solely*** because of a special relationship with the primary tortfeasor. Sometimes, though, a party is held liable alongside the primary tortfeasor because the party somehow ***contributed*** to the harm. In these cases, the party is held liable for his own wrongdoing. This is primary liability, not vicarious liability. Examples include claims for ***negligent hiring or retention***, ***negligent supervision***, and ***negligent entrustment***.

1. Negligent Hiring or Retention

Negligent hiring or retention occurs if: (1) the employer knows or reasonably should know that the employee is incompetent, negligent, or violent in a way that creates an unreasonable risk of harm; (2) the employee injures the victim because of these characteristics; and (3) the employer could have prevented the injury by using reasonable care in the hiring process or by terminating the employee. [*See Staten v. Ohio Exterminating Co.*, 704 N.E.2d 621 (Ohio Ct. App.1997).]

2. Negligent Supervision

Negligent supervision occurs if (1) the actor owes a duty to protect the victim from a third party's tortious conduct, (2) the actor fails to use reasonable care in supervising the third party, and (3) the third party harms the victim as a result. [*Smith v. Gregg*, 946 S.W.2d 807 (Mo. Ct. App. 1997).]

3. Negligent Entrustment

Negligent entrustment occurs if (1) the actor entrusts a third party to participate in an activity or operate a potentially dangerous instrumentality, even though (2) the actor knows or reasonably should know that the third party is likely to act in a way that creates an unreasonable risk of harm to the third party or others. Some jurisdictions seem to limit negligent-entrustment actions to cases in which the actor entrusts an automobile to one whom the actor knows or reasonably should know is likely to drive while intoxicated. [*Gadson v. ECO Servs. of S.C., Inc.*, 648 S.E.2d 585 (S.C. 2007); Restatement (Second) of Torts §§ 308, 390.]

Example:

A man entrusted a loaded gun to a 10-year-old girl whom the man knew to have attention-deficit disorder and severe cognitive impairments. While the girl tampered with the gun, the gun went off and injured a passerby. The passerby likely has a claim for negligent entrustment against the man. The man knew of the girl's youth, attention-deficit disorder, and cognitive impairment. Hence, he should have known that handing the

girl a loaded firearm would pose a danger to others, but he did so anyway. [*See* Restatement (Second) of Torts § 390 illus. 1.]

D. Employer and Employee: Respondeat Superior

Under respondeat superior (Latin for "let the boss answer"), an employer is vicariously liable for torts committed by its employees, but only if: (1) there was a ***master-servant relationship*** between the employer and the employee at the time of the injury and (2) the employee committed the tort ***within the scope of employment***. [Restatement (Second) of Agency § 219.]

1. Master-Servant Relationship

Respondeat superior is not triggered merely because the employee works for the employer. Instead, the relationship between the employer and the employee must qualify as a ***master-servant relationship*** under the law of agency. [*See* Restatement (Second) of Agency § 219.]

a. Compensation Not Required

A master-servant relationship can exist even if the employee receives ***no compensation*** from the employer. For example, a nonprofit can be held vicariously liable for the negligence of its volunteers. [*Trinity Lutheran Church, Inc. of Evansville v. Miller*, 451 N.E.2d 1099 (Ind. Ct. App. 1983).]

Example:

A member of a church volunteered to drive the church's van to deliver Christmas cookies to congregants who were homebound or hospitalized, all without compensation. While driving the church van to the local hospital, the volunteer negligently struck a motorcyclist, injuring him. Even though the volunteer was not compensated for her work, she could be found to have shared a master-servant relationship with the church. The church, then, could be vicariously liable for the volunteer's negligence. [*Trinity Lutheran Church, Inc. of Evansville v. Miller*, 451 N.E.2d 1099 (Ind. Ct. App. 1983).]

b. Independent Contractors Distinguished

If the employer and the employee do not have a master-servant relationship, then the employee will probably be treated as an ***independent contractor***. In general, the employer exerts much less control over an independent contractor's actions than over a servant's. [*See* Factors in Identifying Master-Servant Relationship, Independent Contractors, *infra*.]

c. Factors in Identifying Master-Servant Relationship

The courts use multiple factors to determine whether the relationship between the employer and the employee is a master-servant relationship. These determinations are usually very fact-intensive.

i. Terms of Agreement Not Dispositive

The employer and employee may agree between themselves to characterize their relationship as something other than a master-servant relationship. This has some weight, but it is ***not dispositive***. Despite the terms of any agreement, a court may find a master-servant relationship based on other factors. [*Zirkle v. Winkler*, 585 S.E.2d 19 (W. Va. 2003).]

ii. Degree of Control as Paramount Factor

The most important factor in identifying a master-servant relationship is ***control***. The required degree of control exists if the employer has the right to dictate not only the end result of the employee's work, but also the manner in which the employee is to achieve that result. In other words, the employer must be able to control not only what is done, but how it is done. The employer need not actually exercise this degree of control, so long as the employer has the right to exercise it—for instance, by contract. Yet the extent of control the employer actually exercises may prove relevant in some discrete cases. [Restatement (Third) of Agency § 7.07(3)(a) cmt. f; *see also* Restatement (Second) of Agency § 220 cmt. e.]

iii. Other Factors

Courts consider an assortment of factors other than control in deciding whether a master-servant relationship exists. Some of these factors are used to assess the employer's degree of control. Other factors address the related question of how much the employee depends on the employer in performing the employee's duties. The greater the employee's dependency, the more likely it is that a master-servant relationship exists. Relevant factors include:

- whether the employer provides the ***training and tools*** for the job,
- whether the parties' relationship is ***temporary or indefinite***,
- whether the parties' arrangement covers a ***discrete job*** or constitutes an ***ongoing relationship***,
- whether the agent has its own ***independent business***,
- whether the type of work is customarily done ***independently*** or under ***supervision***,

- the degree of ***specialized skill*** required in the agent's occupation,
- whether the agent is paid ***by the job*** or ***by the time worked***, and
- whether the agent's work is part of the principal's regular business.

[Restatement (Third) of Agency § 7.07 cmt. f.]

Example:

A fast-food company hired hourly employees to prepare food and interact with customers. The employees followed detailed procedures set out in the company handbook. The handbook governed virtually every aspect of the employees' duties, including timekeeping, handling cash receipts, washing dishes, hygiene, preparing food, cleaning the restaurants, and speaking with customers. The company provided workspaces, uniforms, training, and all the tools and inventory the employees needed to do their jobs effectively. Under these circumstances, a master-servant relationship existed between the company and its employees. The company controlled virtually every aspect of the employees' duties, and the employees were highly dependent on the company for the facilities, training, inventory, and equipment needed to do their work.

Compare:

A law firm hired a caterer to provide food for a holiday party. The caterer supplied its own tools, employees, training, uniforms, inventory, utensils, and vehicles, and it had its own business. The firm supplied general guidelines about the menu and times for the party. Otherwise, the caterer was to determine the processes and procedures to service the party. The caterer was likely an independent contractor, not a servant. The critical control element was missing. The law firm could not control the manner and means of the caterer's work, aside from the guidelines regarding menu and times. The law firm controlled the result—a catered party—but not the specific means to achieve it. Additionally, the caterer had its own business and provided its own implements and employees, and the firm apparently hired the caterer for one job, not an indefinite or ongoing relationship.

d. The Borrowed-Servant Doctrine

The ***borrowed-servant doctrine*** addresses employer liability in cases in which one employer directs its employee to work for another employer. Common examples include loaned or leased employees.

i. The General Rule: Borrowing Employer Liable

In general, under the borrowed-servant doctrine, only the ***borrowing employer*** is subject to vicarious liability for the employee's acts. The lending employer is not, even though the lending employer directed the employee to work for the borrowing employer in the first place. [*Kastner v. Toombs*, 611 P.2d 62 (Alaska 1980).]

Example:

A drilling company leased a backhoe from an excavation firm, meaning to dig a ditch. Pursuant to its standard contract, the excavation firm provided a properly credentialed backhoe operator to do the digging. While digging the ditch for the drilling company, the backhoe operator negligently caused the ground to cave in, injuring a bystander. Under the borrowed-servant doctrine, the drilling company (the borrowing employer) may be vicariously liable to the bystander, not the excavation firm (the lending employer). [*Adapted from Kastner v. Toombs*, 611 P.2d 62 (Alaska 1980).]

ii. Variation: Both Employers Liable

Some courts disregard the borrowed-servant doctrine and hold ***both employers*** liable under respondeat superior. Liability between them is decided under general principles of contribution and indemnity. [*Kastner v. Toombs*, 611 P.2d 62 (Alaska 1980).]

iii. Variation: The Control Test

Some courts decide liability by determining which employer had ***actual control*** over the employee concerning the specific tortious act that gave rise to the injury. The control test seems to operate similarly to the test for determining whether an employer exercises sufficient control for a master-servant relationship to arise, discussed above. This approach can result in one or both employers being held liable, depending on the facts. [*Nepstad v. Lambert*, 50 N.W.2d 614 (Minn. 1951).]

2. Scope of Employment

Once a master-servant relationship is established, vicarious liability under respondeat superior requires that the employee commit the tort within ***the scope of employment***. [Restatement (Second) of Agency § 219.]

a. General Factors in Determining Scope of Employment

Courts determine scope of employment by considering a list of factors. The presence of some or all of these factors can lead to a finding that an employee acted within the scope of employment.

i. Working within Employer's Authorized Time and Space Limitations

If the employee acted within the employer's authorized time and space limitations, this weighs in favor of finding the employee's conduct to be within the scope of employment. The Restatement (Second) of Agency requires this factor to be present. [*See* Restatement (Second) of Agency § 228.]

ii. Desire to Serve Employer

If the employee was motivated, at least in part, by a desire to serve the employer, this weighs in favor of finding the employee's conduct to be within the scope of employment. The Restatement (Second) of Agency requires that the work be of the kind that the employee is hired to perform. [*See* Restatement (Second) of Agency § 228.]

iii. Performing Work Assigned by Employer or Acting Subject to Employer's Control

If the employee was doing work that the employer assigned or acting subject to the employer's control, this fact favors finding the employee's actions to be within the scope of employment. The Restatement (Second) of Agency requires this factor to be present. [*See* Restatement (Third) of Agency § 7.07.]

iv. Employment Relationship Aiding the Tort

Finding the employee's actions to be within the scope of employment is more likely if the employment relationship aided the employee in committing the tort. [*See* Restatement (Third) of Agency § 7.07 cmt. b.]

v. Foreseeable Risks of Employer's Enterprise

That the injury arose out of the foreseeable risks of harm associated with the employer's enterprise often supports finding the employee's actions to be within the scope of employment. [*See* Restatement (Third) of Agency § 7.07 cmt. b.]

Example:

A landlord hired a landscaping company to maintain and inspect trees in the landlord's apartment complex. While inspecting the trees, one of the company's employees negligently failed to recognize signs of weakness in one of the trees.

Later, some of the tree's branches fell, injuring one of the landlord's tenants. In negligently failing to diagnose the weakness in the tree, the employee was acting within the scope of his employment. The landscaping company employed the employee to maintain and inspect trees, and the employee did so here at his employer's instruction and so that his employer could fulfill its contract with the landlord. [*See* Restatement (Third) of Agency § 7.07 illus. 3.]

b. Conduct Prohibited by Employer

The fact that the employee's tortious act was prohibited by the employer's own rules ***does not*** mean that the act was outside the scope of employment. [*See* Restatement (Third) of Agency § 7.07 cmt. c.]

c. Going-and-Coming Rule

Under the ***going-and-coming rule***, the scope of employment usually does not extend to an employee's ***commute*** to and from work. This rule has several exceptions. [*See Hinman v. Westinghouse Elec. Co.*, 471 P.2d 988 (Cal. 1970).]

i. The Dual-Purpose Exception

Under the ***dual-purpose exception***, an employee's commute falls within the scope of employment if the employee is engaged in a ***special mission or errand*** for the employer during the commute, normally of a type for which another employee would have to make a special trip, if the commuting employee could not do it during the commute. [*See Faul v. Jelco, Inc.*, 595 P.2d 1035 (Ariz. App. 1979).]

Example:

An oil-company employee's job was to travel among the company's oil wells to maintain equipment. Rarely reporting to the company's home office, the employee nightly received an email from his supervisor, listing five or six jobsites that the employee was to visit the next day. The employee normally left home, traveled from one jobsite to the next, and returned directly home at day's end. The oil company provided the vehicle for this purpose. For convenience, the employee parked the vehicle overnight at his home. The employee was paid from the moment he left home until he returned at night. One morning, the employee negligently struck a pedestrian while traveling to the day's first jobsite. This tort was within the scope of employment, despite the going-and-coming rule. From the moment the employee left home, he was engaged in company business in a company vehicle while being paid for his time.

ii. Travel between Jobsites

An employee's ***travel between jobsites*** is generally within the scope of employment. However, even in this case, the employee's actions during a frolic are not within the scope of employment. [*See* Restatement (Third) of Agency § 7.07 cmt. e; Frolic versus Mere Detour, *infra*.]

iii. Other Exceptions

Other exceptions to the going-and-coming rule include (1) job-related ***travel outside the local area***, especially if the employee is paid for travel time and (2) situations in which the commute involves ***special hazards*** distinct from those typically encountered by the commuting public. [*See Kerr v. Indus. Comm'n*, 530 P.2d 1139 (Ariz. Ct. App. 1975); Restatement (Third) of Torts § 7.07 cmt. e.]

d. Frolic versus Mere Detour

An employer is not vicariously liable for every negligent act her employees commit on the job. Employees often temporarily deviate from the employer's business to do things unrelated to that business. If an employee negligently injures someone during a deviation, vicarious liability depends on whether the deviation is a ***frolic*** (which falls outside the scope of employment) or a ***mere detour*** (which remains within the scope of employment).

i. Frolic Defined

A ***frolic*** occurs if the employee's actions are a ***substantial departure*** from the employer's business. An employee on a frolic is no longer acting with any significant motive to serve the employer, but instead is ***acting to serve other interests***. A frolic generally exists if the employee substantially departs from the employer's authorized time and space constraints—that is, if the employee is not where he is supposed to be when he is supposed to be there. But this is not a requirement. For example, an employee might be on a frolic while sitting at his desk surfing the Internet and pretending to work. [*See* Restatement (Third) of Agency § 7.07(2) cmt. e; Restatement (Second) of Agency §§ 228-29, 233-35.]

1) Frolics and Scope of Employment

Frolics are ***not*** within the scope of employment. Thus, an employer will not be vicariously liable for any tort committed by an employee during a frolic. [*See* Restatement (Third) of Agency § 7.07(2) cmt. e; Restatement (Second) of Agency §§ 228-29, 233-34.]

2) Scope of Employment Resumed

If the frolic ends and the employee ***resumes*** acting within the scope of employment, the employer will be vicariously liable for the employee's torts. One indication that a frolic has ended is if the employee's actions once again bear a connection ***in space or time*** to the employer's business, especially if the employee resumes acting with desire to serve the employer. [*See Prince v. Atchison, Topeka, & Santa Fe Ry.*, 395 N.E.2d 592 (Ill. App. 1979).]

ii. Mere Detour Defined

A ***mere detour*** is a minor deviation from the employer's business, including the time and place designated for work, during a course of conduct that is otherwise substantially devoted to serving the employer's purposes. [*See* Restatement (Third) of Agency § 7.07(2) cmt. e.]

1) Detours within Scope of Employment

Mere detours are within the scope of employment. Therefore, an employer will be vicariously liable for torts that an employee commits in the course of a mere detour. [Restatement (Third) of Agency § 7.07(2) cmt. e.]

Examples:

(1) An oil-company employee's job was to travel among the company's oil wells to maintain equipment. As the employee was driving from one jobsite to the next, he pulled just off the road into a fast-food restaurant's drive-through lane. Doing so, he negligently damaged one of the restaurant's signs. The employee bought lunch, ate quickly, and resumed driving to the next jobsite. The stop at the restaurant was a mere detour, not a frolic, so the negligent damage to the sign was within the scope of employment. The employee went only a short distance out of the way to buy lunch, ate very quickly, and then immediately resumed traveling to the next jobsite. The deviation from the oil company's business was exceedingly minor.

(2) An oil-company employee's job was to travel among the company's oil wells to maintain equipment. As the employee was on route from one jobsite to the next, he saw a sign advertising a new bookstore. The employee then drove five miles out of the way to the new store. As the employee pulled into the parking lot, he negligently damaged someone's car. The damage occurred while the employee was on a frolic, putting the damage outside the scope of employment. When the employee diverted to the bookstore, he was no longer acting to serve his employer's interests, but to fulfill his own desire to shop for

books. Also, the employee departed substantially from the oil company's time and space parameters by driving five miles out of the way.

Compare:

An oil-company employee's job was to travel among the company's oil wells to maintain equipment. Driving between jobsites, the employee saw a sign advertising a new bookstore and drove five miles out of the way to the store, where he spent about an hour shopping. The employee then left the store and began driving back to the highway, meaning to resume traveling to the next jobsite. Just before reaching the highway, the employee negligently struck and injured a cyclist. The injury was within the scope of employment. True, the diversion to the bookstore was a frolic. Even so, when the accident occurred, the employee had resumed acting with intent to serve his employer by setting out for the next jobsite. Thus, the employee's negligence had a reasonable connection in time and space to his assigned work.

e. Employee's Intentional Torts

Theoretically, an employer is liable for an employee's intentional torts on the same basis as the employee's negligence. In practice, though, an employee's ***intentional torts*** are usually outside the scope of employment. To find an employee's tort within the scope of employment, most courts require a significantly closer connection between the tort and the employer's business than what is required in a negligence case. Two primary factors usually must be present for an employer to be vicariously liable for an employee's intentional tort: (1) a ***causal connection*** and (2) ***foreseeability***, considering the nature of the employer's business. Additionally, some courts require that the employee act with a motive, however misguided, to serve the employer. Other courts refuse to impose this requirement. [*See* Restatement (Third) of Agency § 7.07 cmt. e; *Lisa M. v. Henry Mayo Newhall Mem'l. Hosp.*, 907 P.2d 358 (Cal. 1995).]

i. Causal Connection

There must be a ***causal connection*** between the employee's work and the intentional tort. Courts formulate this requirement in different ways, some stating that the tort must arise from ***conditions attributable to the employee's job***. Examples include the employee's abuse of authority, trust, or confidence conferred by the employee's position; an intentional tort arising from a job-related dispute; or a situation in which the job provides an opportunity to commit the tort, and the opportunity would not exist otherwise. [*See Lisa M. v. Henry Mayo Newhall Mem'l. Hosp.*, 907 P.2d 358 (Cal. 1995).]

ii. Foreseeability: Nature of the Job

The ***nature of the employee's job*** must make it reasonably foreseeable that intentional torts will arise in the course of employment. Examples of these kinds of jobs include those inviting physical confrontation, such as police officer, bouncer, and security guard. Other examples include positions of special trust that present unique opportunities for abuse, such as physician, therapist, clergy member, or schoolteacher. [*See Lisa M. v. Henry Mayo Newhall Mem'l Hosp.*, 907 P.2d 358 (Cal. 1995).]

Example:

A uniformed police officer driving a marked car pulled a woman over after the officer noticed her driving erratically. The officer lawfully arrested the woman, but instead of taking the woman to the station house, he took her to her home and raped her. On facts like these, California's highest court held that the officer's intentional tort (not to mention crime) against the woman was within the scope of the officer's employment. The officer's lawful arrest of the woman, pursuant to his official authority, gave him the opportunity to rape the woman. Given the tremendous power police officers wield, it is foreseeable that, every so often, one will egregiously abuse that power, as here. [*See Mary M. v. City of Los Angeles*, 814 P.2d 1341 (Cal. 1991).

Compare:

A pregnant woman sustained injuries when she fell at a movie theater and went to the hospital for treatment. There, an ultrasound technician employed by the hospital stated that he needed to perform an ultrasound on the woman to check for injuries to the baby. Under that pretext, the technician sexually molested the woman. On facts like these, California's highest court found that the technician's intentional tort against the woman was not within the scope of the technician's employment. True, the technician's employment provided him the opportunity to commit the tort. Yet the technician's motivations arose entirely from his own lust. His actions had no connection to any events or conditions of his employment, nor were they provoked by anything that transpired during the examination. [*See Lisa M. v. Henry Mayo Newhall Mem'l Hosp.*, 907 P.2d 358 (Cal. 1995).]

E. Independent Contractors

If the relationship between the employer and the employee is not a master-servant relationship, then the employee is most likely an ***independent contractor***.

1. General Rule: No Vicarious Liability for Independent Contractors' Torts

The general rule, subject to some major exceptions, is that an employer is ***not vicariously liable*** for the torts of independent contractors. [*Reynoso v. Mallard Oil Co.*, 732 S.E.2d 609 (N.C. Ct. App. 2012); *see also Leaf River Forest Prods., Inc. v. Harrison*, 392 So. 2d 1138 (Miss. 1981).]

2. Exceptions to the General Rule

The three most important exceptions to the rule against vicarious liability for independent contractors' torts are (1) the exception for ***inherently dangerous work***, (2) the ***nondelegable-duties*** exception, and (3) the ***shoddy-construction*** exception.

a. Inherently Dangerous Work

An employer is vicariously liable for the torts of an independent contractor (and the contractor's employees) if the employer hires the contractor to carry out ***inherently dangerous work*** of a kind that would invite strict liability. Examples include blasting or providing armed security. [*See King v. Lens Creek, Ltd. P'ship.*, 483 S.E.2d 265 (W. Va. 1996); *Kinsey v. Spann*, 533 S.E.2d 487 (N.C. Ct. App. 2000); *Pusey v. Bator*, 762 N.E.2d 968 (Ohio 2002); Strict Liability, *infra*.]

i. Employer Negligence Required in Some Jurisdictions

Some jurisdictions have eliminated vicarious liability for independent contractors' torts in cases involving inherently dangerous work. These jurisdictions will hold the employer liable only if (1) the employer knew or had reason to know of the inherent danger of the work, and (2) the ***employer's own negligence*** actually and proximately caused the injury. [*See, e.g., Kinsey v. Spann*, 533 S.E.2d 487 (N.C. Ct. App. 2000).]

b. Nondelegable Duties

Some legal duties are considered so important that, as a matter of public policy, the law will not allow an employer to escape vicarious liability merely by delegating the work to an independent contractor. [*See Jackson v. Power*, 743 P.2d 1376 (Alaska 1987), *overturned due to legislative action in* 1997 Alaska Laws Ch. 26.]

i. No Clear-Cut Rules

There are ***no clear-cut rules*** to distinguish nondelegable duties from delegable ones. Courts tend to recognize these duties on an ad hoc basis, based on a judicial sense of what responsibilities to the community are especially important. Thus, a duty that is nondelegable in one jurisdiction may be delegable in another. [*See*

Jackson v. Power, 743 P.2d 1376 (Alaska 1987), overturned due to legislative action in 1997 Alaska Laws Ch. 26.]

ii. Examples of Nondelegable Duties

There are some common examples of duties courts have recognized as nondelegable.

1) Duty to Provide Competent Emergency Care

Some jurisdictions hold that a hospital has a nondelegable duty to provide ***competent emergency care***. Thus, a hospital will be vicariously liable for malpractice by physicians who are independent contractors. [*Jackson v. Power*, 743 P.2d 1376 (Alaska 1987), *overturned due to legislative action in* 1997 Alaska Laws Ch. 26; *Simmons v. Tuomey Reg'l Med. Ctr.*, 533 S.E.2d 312 (S.C. 2000).]

2) Common Carrier's Duty to Provide Safe Transportation

A common carrier, such as an airline, has a nondelegable duty to ***transport its passengers safely***. [*See Jackson v. Power*, 743 P.2d 1376 (Alaska 1987).]

3) Duty to Provide Safe Premises for Invitees

The proprietor of a business or other place regularly open to the public has a nondelegable duty to keep the premises ***safe for its invitees***. [*Jackson v. Power*, 743 P.2d 1376 (Alaska 1987); *Valenti v. NET Props. Mgmt., Inc.*, 710 A.2d 399 (N.H. 1998).]

4) Duty to Provide Safe Working Environment

Employers generally have a nondelegable duty to provide a ***safe working environment*** for their employees. [*Simmons v. Tuomey Reg'l Med. Ctr.*, 533 S.E.2d 312 (S.C. 2000).]

5) Duty Imposed by Statute or Regulation

A ***statute or regulation*** may impose a duty on one party to take specific precautions for another party's safety. The party bearing the duty cannot escape negligence liability by hiring an independent contractor to carry out the duty. [*Maloney v. Rath*, 445 P.2d 513 (Cal. 1968), *abrogation on other grounds recognized by SeaBright Ins. Co. v. US Airways, Inc.*, 258 P.3d 737 (Cal. 1968).]

c. Shoddy Construction

Some courts have adopted the ***shoddy-construction exception*** found in the Restatement (Second) of Torts. The exception applies if a possessor of premises hires an independent contractor to perform construction, repair, maintenance, or similar work on the premises or a structure on the premises, and the independent contractor makes the structure unsafe through negligent work. In these cases, the possessor is liable for injuries that (1) occur after the possessor retakes possession (or while the work is ongoing if the possessor in fact has retained possession during that time) and (2) are attributable to the contractor's negligent work. [*Otero v. Jordan Rest. Enters.*, 895 P.2d 243 (N.M. Ct. App. 1995) (adopting Restatement (Second) of Torts § 422(b)).]

Example:

A company owned and operated a retail store, in which the company hired an independent contractor to install a large monitor above a skylight. While this work was ongoing, the company retained possession of the store, which remained open for business. Due to the contractor's negligent installation, the monitor fell through the skylight and injured a customer. The company is liable to the customer for the contractor's negligence under the shoddy-construction exception. The company hired the contractor to perform construction (installing the monitor) on the premises and retained possession of the premises while that work was underway. The customer's injury owed to the contractor's negligent work in this behalf. [*See* Restatement (Second) of Torts § 422 illus. 1.]

d. Collateral-Negligence Doctrine

The ***collateral-negligence doctrine*** precludes vicarious liability for injuries caused by an independent contractor's collateral negligence. The collateral-negligence doctrine applies if (1) the contractor's negligence consists entirely of doing the work improperly, (2) the contractor's negligence creates a risk of harm that is abnormal to the work, that is, does not inhere in the work, and (3) the employer had no reason to anticipate the negligence when she entered the contract. Courts normally apply the collateral-negligence doctrine only if the contractor's negligence creates a temporary dangerous condition while the work is ongoing. The doctrine does not apply, then, to negligence creating a bad result or a defect in the final structure. [*Otero v. Jordan Rest. Enters.*, 895 P.2d 243 (N.M. Ct. App. 1995) (quoting Restatement (Second) of Torts § 426).]

Example:

A landowner hired a blasting company, an independent contractor, to demolish a building on her land. The blasting company negligently placed the explosive charges in the wrong locations. As a result, a large chunk of the building flew out of the blast zone and damaged a neighboring structure. The landowner will be vicariously liable for the contractor's negligence. Blasting is inherently dangerous work, and it includes an inherent risk of flying debris.

Compare:

A landowner hired a blasting company to demolish a building on her land. While placing the explosive charges on an upper floor of the building, one of the blasting company's workers negligently dropped a metal lunchbox from a window. The lunchbox struck and injured a passerby. This is an example of collateral negligence; the risk presented by falling lunchboxes is not inherent in the work of blasting. Thus, the landowner will not be vicariously liable.

F. Other Relationships Creating Vicarious Liability

Though the employer-employee relationship is perhaps the most common type of relationship producing vicarious liability, there are others.

1. General Partnerships

At common law, members of a general partnership are vicariously liable for torts committed by other partners in the ***course of the partnership's business***. Some jurisdictions alter this rule by statute, and it generally does not apply to registered partnerships such as limited-liability partnerships. [*See Rogers v. Carmichael*, 192 S.E. 39 (Ga. 1937); *e.g.*, Tenn. Code Ann. § 61-1-306.]

2. Joint Ventures

A joint venture is formed if two or more parties join to accomplish a defined goal, usually involving business or commercial activity. The hallmarks of a joint venture are (1) a ***shared purpose*** among the participants and (2) ***shared participation*** in control, profits, and losses. As with partnerships, participants in a joint venture are vicariously liable for the torts of other participants committed in the course of the venture. [*See Joint Venture*, *Black's Law Dictionary* (10th ed. 2014); *Am. Family Mut. Ins. Co. v. AN/CF Acquisition Corp.*, 361 P.3d 1098 (Colo. Ct. App. 2015).]

3. Vehicle Owners

With exceptions, a vehicle owner is normally not vicariously liable for torts committed by someone else driving the vehicle. Some jurisdictions alter this rule by statute, as discussed below. [*Meyer v. Nwokedi*, 759 N.W.2d 426 (Ct. App. Minn. 2009).]

a. Family-Use Doctrine

The ***family-use doctrine***, also called the family-purpose doctrine, posits that if a vehicle owner consents for a family member to use the vehicle for a family purpose, then the owner may be vicariously liable for vehicular torts committed while the family member is operating or otherwise in control of the vehicle for a family purpose. One state statute adopting this rule requires that (1) the vehicle's owner must give permission for a family member to drive the vehicle, (2) the owner must relinquish control of the vehicle to the family member, (3) the family member must be in the vehicle when the accident occurs, (4) the relative must be using the vehicle for a family purpose, and (5) the owner must have the right to exercise control sufficient to create an agency relationship between the owner and the family member concerning the use of the vehicle. This fifth requirement seems to be the most crucial and, hence, the most heavily litigated. [*See Dashtpeyma v. Wade*, 646 S.E.2d 335 (Ct. App. Ga. 2007).]

i. Family-Purpose Requirement

Courts seem to construe the family-purpose requirement quite generously. The requirement will normally be met if the vehicle is used for the family's convenience. For instance, in one case, a teenager caused an accident while driving to his girlfriend's house from a school function. [*E.g.*, *Clifton v. Zemurray*, 478 S.E.2d 897 (Ga. Ct. App. 1996); *Walston v. White*, 444 S.E.2d 855 (Ga. Ct. App. 1994).]

b. Permissive-Use Statutes

Under a permissive-use statute, a vehicle owner is vicariously liable for torts committed by ***any person*** operating the vehicle with the owner's permission. [*Meyer v. Nwokedi*, 759 N.W.2d 426 (Ct. App. Minn. 2009).]

4. Parents and Children

At common law, parents usually are not vicariously liable for torts committed by their children. However, some states impose vicarious liability by statute, whether generally or for specified kinds of torts. [Valerie D. Barton, *Reconciling the Burden: Parental Liability for the Tortious Acts of Minors*, 51 Emory L.J. 877 (Spring 2002); *Bd. of Educ. of Piscataway Twp. v. Caffiero*, 431 A.2d 799 (N.J. 1981).]

X. Strict Liability: No Culpability Required

Under strict liability, an actor is liable ***regardless*** of whether the actor was negligent or otherwise culpable. Strict liability is imposed only in limited situations; it generally applies to ***abnormally dangerous activities***, injuries caused by ***animals***, and ***products liability***. [*See* Restatement (Second) of Torts § 519; Products Liability, *infra*.]

A. Abnormally Dangerous Activities

Strict liability is imposed for injuries that foreseeably arise from the actor's ***abnormally dangerous activities*** if several requirements are satisfied.

1. Inherent High Risk of Harm

The activity must ***inherently*** create a high risk of significant harm that ***cannot be eliminated*** even with reasonable care by all participants, including the victim. [*McLane v. Nw. Nat. Gas Co.*, 467 P.2d 635 (Or. 1970); Restatement (Second) of Torts §§ 519, 520, with comments; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 20, with comments.]

2. Unusual for the Community

The activity must be ***unusual*** or out of place in the community where the injury occurs. [Restatement (Second) of Torts § 520 cmt. f; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 20, with comments.]

3. Resulting from Abnormally Dangerous Aspect of Activity

The injury must be a foreseeable result of ***the very characteristic*** that makes the activity abnormally dangerous. [*See Acushnet Co. v. Coaters, Inc.*, 937 F. Supp. 988 (D. Mass. 1996) (discussing Restatement (Second) of Torts cmt. e).]

Examples:

(1) A truck driver hauling dynamite on a public road negligently struck a pedestrian lawfully crossing at an intersection. The pedestrian sued on a theory of strict liability, arguing that hauling dynamite is an abnormally dangerous activity. Hauling dynamite is abnormally dangerous, but the pedestrian's strict-liability claim will fail. Hauling dynamite is inherently dangerous because of the risk of explosion. However, the pedestrian was not injured by an explosion, but by negligent driving. Therefore, strict liability will not apply.

(2) A mink farmer alleged that noise from an excavating firm's blasting activity upset her minks and caused them to kill their young. The mink farm was two miles away from the blasting site, and the noise at that distance was not notably loud. In the jurisdiction, blasting is considered an abnormally dangerous activity due to concussive noise in the vicinity. Nonetheless, the farmer probably will not recover under strict liability. Although concussive noise is an abnormally dangerous attribute of blasting, the modest noise level two miles away is not abnormally dangerous. Therefore, the harm to the minks was not a foreseeable result of the abnormally dangerous aspects of the blasting. [*Adapted from Foster v. Preston Mill Co.*, 268 P.2d 645 (Wash. 1954).]

4. Factors Considered in Determining Whether an Activity Is Abnormally Dangerous

The Restatement (Second) of Torts lists several factors relevant to determining whether an activity is abnormally dangerous, paraphrased here: (1) existence of a high risk of harm to others' persons or property, (2) likely magnitude of harm, (3) inability to eliminate the risk by reasonable care, (4) extent to which the activity is not one of common usage in the community, (5) the degree to which the activity is inappropriate to the area, and (6) the extent to which the activity's risk of harm outweighs its usefulness to the community. [Restatement (Second) of Torts § 520.]

B. Animals

Strict liability can arise if an actor's ***animal*** harms a victim. The application of strict liability varies, depending on the type of animal involved. The law divides animals into three categories: ***livestock***, ***domesticated animals***, and ***wild animals***.

1. Livestock

Livestock includes horses, cows, sheep, pigs, and other kinds of farm animals. It also includes poultry unless poultry in the area are customarily permitted to roam free. This category normally excludes animals like dogs and cats typically kept as pets. [Restatement (Second) of Torts § 504, with comments and illustrations.]

a. Trespass by Livestock

A livestock owner is ***strictly liable*** for any foreseeable personal injury or property damage caused by ***trespassing livestock (that is, livestock intruding on another's land)***. The foreseeability of particular harms may depend on the species. A sheep, for example, would foreseeably cause less harm than a bull. [Restatement (Second) of Torts §§ 504, with comments and illustrations.]

i. Need to Build a Fence

In a few jurisdictions, strict liability applies only if, before the animal trespassed, the ***victim*** had built a fence to protect her own land, at least if the applicable common law or a statute required the fence. [*See* Restatement (Second) of Torts § 504(4); Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 21 cmt. c.]

b. Personal Injury by Livestock

A livestock owner usually is strictly liable for personal injury foreseeably caused by trespassing livestock. Strict liability for personal injury may also apply if the livestock owner knows, or has reason to know, that the individual animal is ***abnormally dangerous*** for its species. [*See* Restatement (Second) of Torts § 509 cmt. e; Domesticated Animals, *infra*.]

c. Harm Done by Livestock Straying onto a Highway

The rule of strict liability does not apply to livestock straying onto a highway. Nor does it apply to livestock that might stray onto abutting property from a highway. [Restatement (Second) of Torts § 504(3)(b); Restatement (Third) of Torts: Liability for Physical and Emotional harm § 21 cmt. h-i.]

2. Domesticated Animals

Domesticated animals include those species that are customarily kept as pets, including dogs, cats, and some birds. [Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 22, with comments.]

a. Personal Injury by Domesticated Animals

Usually, an owner is strictly liable for personal injury caused by a domesticated animal only if (1) the owner knew or had reason to know that the particular animal had a ***dangerous propensity*** uncommon for the animal's species and (2) the victim's harm ***arose from*** that propensity. [Restatement (Second) of Torts § 509; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 23.]

Note: This rule is sometimes called the ***one-free-bite rule***, because an owner might not know that an animal is uncommonly dangerous until the animal first attacks someone. This is a misnomer, however, because behaviors other than attack might indicate that the animal is uncommonly dangerous.

Examples:

(1) A man kept a large dog chained in his backyard. The man knew that the dog's habit was to growl and bark menacingly at passersby, and at least once before, the dog had attacked a visitor to the man's home. This sort of behavior was not normal for the dog's species. If the dog were to break free of its chain and attack a pedestrian passing by, the man would be strictly liable. The dog had an unusually dangerous violent propensity for its species, and the owner had reason to know about it. Biting seems a natural and foreseeable result of this propensity. Yet if the dog were to escape its chain and cause harm by running underneath the wheels of an oncoming car, the owner might not be strictly liable. This sort of harm does not necessarily flow from the dog's unusual propensity to bite or attack strangers. [*See* Restatement (Second) of Torts § 509 cmt. i.]

(2) A man kept a small dog confined inside a fence in his backyard. The man knew that the dog's habit, whenever it got loose, was to chase oncoming cars and yap at the wheels. This habit was very unusual for the dog's species. If the dog were to get loose, chase an oncoming car, get caught underneath the wheel, and thereby force the car into a ditch, the man would be strictly liable to the driver for any resulting injuries. The man knew the dog had an unusual tendency to chase after cars, and the driver's injury was a foreseeable result of this tendency. [*See* Restatement (Second) of Torts § 509 illus. 1.]

3. Wild Animals

Wild animals include species that have not been generally domesticated and thus are likely to cause personal injury if not controlled. This definition looks to the general characteristics of the animal's ***species***, not the characteristics of the particular animal involved in the claim. Thus, an animal may be considered wild if it belongs to a wild species, even though the individual animal is tame. [Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 22, with comments.]

a. Strict Liability for Harm Caused by Wild Characteristic of Species

The keeper of a wild animal is strictly liable for any harm resulting from the wild characteristics of the animal's ***species***. The keeper may also be strictly liable, of course, for any unusual dangerous propensity of which she has reason to know. [Restatement (Second) of Torts § 507.]

b. People's Foreseeable Reactions to Wild Animals

Strict liability extends to harm that results from reasonably foreseeable panic, fear, and other ***reactions*** of people confronting a wild animal. [*See* Restatement (Second) of Torts § 507 cmt. g, illus. 1.]

Example:

A tiger escaped from a circus. The tiger had been defanged and declawed. In addition, the tiger was old, docile, and largely tame from years of human contact. As the tiger walked down the street, a woman was knocked down and injured by people fleeing from the tiger. Even though the tiger was harmless, the circus will be strictly liable for the woman's injuries. The tiger was a member of a wild species, and the woman was injured by the foreseeable reactions—*i.e.*, flight—of the people who saw the tiger.

C. Defenses to Strict Liability

Strict liability, whether for injuries caused by animals or by abnormally dangerous activities, is subject to certain defenses.

1. The Victim's Fault

In strict-liability cases, the victim's fault may defeat or diminish recovery.

a. Ordinary Negligence

In ***contributory-negligence*** jurisdictions, the victim's mere negligence is usually not a defense to strict liability. However, in many ***comparative-negligence*** jurisdictions, the victim's recovery is reduced proportionately to her allocated percentage of fault. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 25; Restatement (Second) of Torts §§ 515, 524.]

b. Victim's Heightened Fault

Jurisdictions of all types recognize a defense if the victim exhibits a ***heightened degree of fault*** by knowingly and unreasonably confronting a risk of harm created by an animal or abnormally dangerous activity. This principle closely resembles ***assumption of the risk***. [*See Austin v. Raybestos-Manhattan, Inc.*, 471 A.2d 280 (Me. 1984) (discussing strict liability in products liability); *Matkovic v. Shell Oil Co.*, 707 P.2d 2 (Mont. 1985); Restatement (Second) of Torts §§ 515, 524; Assumption of the Risk: A Complete Defense, *supra*.]

i. Effect in Contributory-Negligence Jurisdictions

In contributory-negligence jurisdictions, the victim's heightened fault is a ***complete bar*** to recovery in strict liability. [*See* Restatement (Second) of Torts §§ 515, 524.]

ii. Effect in Comparative-Fault Jurisdictions

In ***comparative-fault*** jurisdictions, the victim's heightened fault will generally ***diminish or bar*** recovery, depending on the comparative-fault principles that the jurisdiction has adopted. Some comparative-fault jurisdictions will diminish recovery in strict liability based only on heightened fault, not simple negligence. [*See Matkovic v. Shell Oil Co.*, 707 P.2d 2 (Mont. 1985).]

2. Victim's Voluntary Participation

Some courts reject strict liability altogether if the victim's injuries occurred because the victim voluntarily interacted with the animal or abnormally dangerous activity to ***gain some personal benefit,*** even a recreational one (*e.g.*, interacting with a wild animal during a recreational trip to a zoo). [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 24(a) cmt. a.]

Example:

A woman bought a ticket for admission to a zoo. While the woman was admiring the zoo's alligators on exhibit, one alligator escaped the pen and attacked the woman. The zoo is not strictly liable for the woman's injuries. The woman voluntarily interacted with the alligator to obtain recreational benefits of education and personal enrichment. Yet if the alligator were to escape the zoo altogether and attack someone in a nearby town, the zoo would be strictly liable. The people in the town did not voluntarily interact with the zoo for any benefit. [*See* Restatement (Third) of Torts § 24 cmt. a.]

3. Victim as Willful Trespasser

Generally, an actor is not strictly liable if the victim is injured while ***willfully trespassing*** on the actor's property. Yet the Restatement (Third) of Torts: Liability for Physical and Emotional harm would treat strict liability to trespassers under the rules governing the duties of a possessor of land to trespassers. [*See* Restatement (Second) of Torts §§ 511, 520B, with comments; Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 24, cmt. c; Trespasser Defined, *supra*.]

XI. Products Liability

Recovery in products liability requires that (1) a ***defective product*** actually and proximately caused the victim's injury, and (2) the actor is liable under a theory of products liability, usually ***strict liability*** or ***negligence***.

A. Defects

There are three types of product defects: (1) ***manufacturing*** defects, (2) ***design*** defects, and (3) ***informational*** defects.

1. The Role of Statutes and Regulations in Proving Defects

If the product violates a ***statute or regulation*** designed to promote product safety, and the injury is of the ***type*** that the statute or regulation was meant to prevent, then many courts will hold that the product is defective per se, or automatically. However, a product may still be found defective, even if it complies with all applicable product-safety statutes and regulations. [*See* Restatement (Third) of Torts: Products Liability § 4, with comments.]

2. Manufacturing Defects

A manufacturing defect is (1) a physical departure (2) from the product's ***intended design***, which makes the product (3) ***unreasonably dangerous***. [*See* Restatement (Third) of Torts: Products Liability § 2.]

a. Timing

A manufacturing defect might be identifiable at the time a product is manufactured, or it might arise through subsequent events, such as normal wear and tear. So long as the product was defective when it ***last left the actor's control***, the actor can be held liable. [*See Lee v. Crookston Coca-Cola Bottling Co.*, 188 N.W.2d 426 (Minn. 1971).]

b. Unreasonably Dangerous: The Consumer-Expectation Test

In cases that involve manufacturing defects, courts use the ***consumer-expectation test*** to decide whether the product is unreasonably dangerous. A product is unreasonably dangerous if (1) it is dangerous ***beyond the expectations*** of an ordinary, reasonable consumer (2) if ***used or misused*** in a reasonably foreseeable manner. If the product is only as dangerous as a reasonable consumer should expect it to be, then the product is not defective. [*See* Restatement (Second) of Torts § 402A cmt. i; *Lee v. Crookston Coca-Cola Bottling Co.*, 188 N.W.2d 426 (Minn. 1971).]

Example:

A beverage company sold soda in glass bottles. The company refilled and resold used bottles. The bottles were designed to withstand the pressure from the carbonation in the soda and to be reused at least 30 times before becoming unsafe. One bottle was recycled six times, during which it weakened excessively. A consumer bought the bottle, filled with soda. As the consumer started to remove the cap, the internal pressure exploded the bottle, injuring the consumer. Investigation revealed that the glass in the bottle contained impurities causing the bottle to weaken faster than it

should have. This was a manufacturing defect. The bottle's weakening after only six use cycles was a physical departure from the bottle's intended design to withstand 30 cycles. In addition, a reasonable consumer would not expect a bottle to explode during ordinary use. Thus, the bottle was unreasonably dangerous. [*Adapted from Lee v. Crookston Coca-Cola Bottling Co.*, 188 N.W.2d 426 (Minn. 1971).]

c. Defects in Food Products

Most courts treat food products the same as any other product under the ***consumer-expectation test***. An old test, called the ***foreign-natural test***, held that food could not be considered defective unless the injury was caused by a foreign substance in the food (*e.g.*, a rock in a piece of candy). The foreign/natural test is now largely obsolete. In those jurisdictions that continue to apply it, (1) the injury must arise from a foreign element in the food and (2) the food must be unreasonably dangerous under the consumer-expectation test. Some jurisdictions ask simply whether a reasonable consumer would, under the circumstances, expect the injurious component to appear in the food, regardless of whether the component would be considered natural or foreign. [*See Mexicali Rose v. Superior Court*, 822 P.2d 1292 (Cal. 1992); Restatement (Third) of Torts: Products Liability § 7, with comments and notes.]

3. Design Defects

A product has a design defect if (1) the product ***as designed*** is unreasonably dangerous (2) if used or misused in a reasonably foreseeable manner. Courts generally use one or both of two tests to identify a design defect: (1) the ***consumer-expectation test*** and (2) the ***risk-utility test***, also called the reasonable-alternative-design test.

a. Consumer-Expectation Test, Design Defects

The ***consumer-expectation test*** asks whether the product as designed is dangerous beyond the expectations of an ordinary, reasonable consumer if used or misused in a reasonably foreseeable manner. This is the same as the test used to identify a manufacturing defect. [*McCarthy v. Olin Corp.*, 119 F.3d 148 (2d. Cir. 1997); *Hernandez v. Tokai Corp.*, 2 S.W.3d 251 (Tex. 1999).]

b. Risk-Utility Test (Reasonable Alternative Design)

The ***risk-utility test*** asks whether the risks associated with using the product outweigh the product's utility. A court applying this test will find a defect if a ***reasonable alternative design*** would have made the product safer. [*See Honda of Am. Mfg., Inc. v. Norman*, 104 S.W.3d 600 (Tex. App. 2003).]

i. Obvious Risks, Risk-Utility Test

If the risk associated with the product is or should be ***obvious*** to a reasonable consumer, some courts may conclude that the product is ***not defective***. [*See Hernandez v. Tokai Corp.*, 2 S.W.3d 251 (Tex. 1999).]

c. Evaluating the Reasonable Alternative Design

Under the risk-utility test, the plaintiff generally must propose a ***reasonable alternative*** to the challenged design. Reasonableness depends on several factors.

i. Product Safer in the Aggregate

The plaintiff must show that the proposed alternative design would have reduced the risk of the plaintiff's injury while ***not increasing the overall danger*** of the product in other situations. That is, the alternative must make the product safer in the aggregate. [Restatement (Third) of Torts: Products Liability § 2 cmt. f; *Honda of Am. Mfg., Inc. v. Norman*, 104 S.W.3d 600 (Tex. App. 2003).]

Example:

A homeowner was injured falling from a riding lawn mower that came without a seat belt. The homeowner sued the manufacturer, asserting that the omission of a seat belt was a design defect. The evidence showed that a seat belt would have reduced the risk of the homeowner's injury. However, the evidence also showed that a seat belt would have increased the overall rate of injury by trapping users on the mower in other foreseeable situations. The homeowner therefore failed to propose a reasonable alternative design, because her alternative would have made the mower less safe overall.

ii. No Substantial Decrease in Product's Utility

The proposed alternative design must improve overall safety without substantially impairing the product's ***utility***. [*Honda of Am. Mfg., Inc. v. Norman*, 104 S.W.3d 600 (Tex. App. 2003).]

Example:

A consumer sued a knife manufacturer after being cut while using one of the manufacturer's steak knives. The consumer proposed that the knives be made duller, to reduce the risk that users would accidentally cut themselves. The proposed alternative design is unreasonable. Duller knives would be less likely to cut people, but they would also be substantially less useful for their primary purpose of cutting steak and other items.

iii. Technically Feasible

The proposed alternative design must be ***technically feasible***. That is, the proposed alternative design must be one that the manufacturer could actually have implemented, based upon the scientific and technical knowledge in existence at the time the product left the manufacturer's control. [*Smith v. Aqua-Flo, Inc.*, 23 S.W.3d 473 (Tex. App. 2000); *Honda of Am. Mfg., Inc. v. Norman*, 104 S.W.3d 600 (Tex. App. 2003).]

1) Implementation in the Marketplace

Technical feasibility may be shown if the proposed alternative design was being ***implemented in the marketplace*** at the time the product was manufactured. [*Smith v. Aqua-Flo, Inc.*, 23 S.W.3d 473 (Tex. App. 2000); *Honda of Am. Mfg., Inc. v. Norman*, 104 S.W.3d 600 (Tex. App. 2003).]

Example:

A consumer sued a flying-drone manufacturer after the propeller on one of the manufacturer's drones injured the consumer's finger. The consumer's proposed alternative design was that the drone should fly using compressed air instead of propellers. At the time of the injury, no technology existed to enable compressed air to power a drone in flight. Thus, the proposed alternative design was unreasonable, as it was not technically feasible.

iv. Economically Feasible

The proposed alternative design must be ***economically feasible***. That is, the design must not impose an excessive cost on the manufacturer in relation to the reasonably expected increase in safety. [*Robins v. Kroger Co.*, 982 S.W.2d 156 (Tex. App. 1998).]

1) Cost-Comparison Analysis

Courts may decide economic feasibility by balancing (1) the lives and costs that would likely be ***saved*** using the proposed alternative design against (2) the cost that the manufacturer (and, ultimately, its customers) would ***absorb*** if the proposed design were adopted. [*Robins v. Kroger Co.*, 982 S.W.2d 156 (Tex. App. 1998).]

Example:

A child was burned while playing with a cigarette lighter. The child's parents sued the manufacturer, alleging defective design. The parents' proposed alternative design was that the manufacturer should have installed a childproofing mechanism on the lighter. Evidence showed that the cost associated with fires started by children playing with lighters was around $300 million in property damage and 120 deaths each year. The mechanism could reasonably have been expected to prevent most of this loss, and it would have increased the manufacturer's per-lighter manufacturing costs by between one and five cents. This increase could easily have been passed on to consumers. The childproofing mechanism was likely economically feasible. The mechanism could be expected to save the better part of 120 lives and $300 million in damages annually, increasing the cost of each lighter by mere pennies. [*Adapted from Robins v. Kroger Co.*, 982 S.W.2d 156 (Tex. App. 1998).]

v. Subsequent Design Changes Relevant

Changes in the product's design ***following the victim's injury*** can sometimes be used as evidence that an alternative design is feasible, at least if feasibility is controverted. [*See Griffin v. Suzuki Motor Corp.*, 84 P.3d 1047 (Ct. App. Kan. 2004).]

d. Inherently Dangerous Products

Some products inevitably pose a very high risk of death or injury to be useful ***at all*** for their intended purposes. Some courts refuse to find that a product like this is defectively designed, if the victim's injury flows solely from a dangerous aspect of the product that is ***indispensable*** to its usefulness. Guns, ammunition, and knives are a common example of inherently dangerous products. [*See McCarthy v. Olin Corp.*, 119 F.3d 148 (2d. Cir. 1997).]

Example:

A carpenter using a chainsaw to cut wood was injured when the running saw chain cut through a log and contacted his foot beneath. The jurisdiction refused to impose products liability for injuries arising from properties essential to the usefulness of inherently dangerous products. The carpenter is unlikely to be able to prove a design defect. The chainsaw was an inherently dangerous product, and the carpenter was injured by the very characteristic of the chainsaw that made it useful; *i.e.*, the saw's ability to cut through tough substances like wood.

Compare:

A carpenter used a chainsaw to cut wood. The chain was driven by an exposed sprocket attached to the saw's engine. The carpenter was injured when her shirtsleeve got caught in the sprocket, dragging her arm into the moving chain. The injury could have been avoided if the manufacturer had placed a plastic cover over the sprocket. The cover would have cost 10 cents and would not have interfered with the chainsaw's operation. Here, although a chainsaw is inherently dangerous, this would not bar recovery for a design defect. The carpenter was injured because the chainsaw's design did not prevent clothing from being caught in the exposed drive mechanism. Because the cover would not have inhibited the saw's operation, an exposed drive mechanism was not indispensable to the chainsaw's intended purpose of cutting wood.

4. Informational Defects

Informational defects are often viewed as a subset of design defects. A product contains an informational defect if (1) it fails to include ***reasonable warnings or instructions*** about reasonably foreseeable risks, and (2) the omission makes the product ***unreasonably dangerous***. [Restatement (Third) of Torts: Products Liability § 2.]

a. Reasonable Warnings or Instructions

To be reasonable, a warning or instruction must be legally adequate in both its ***content*** and its ***presentation***. [Restatement (Third) of Torts: Products Liability § 2, with comments; *Carruth v. Pittway Corp.*, 643 So.2d 1340 (Ala. 1994).]

i. Content

A reasonable warning must contain information about (1) the ***existence*** of any reasonably foreseeable risk associated with using or misusing the product; (2) the ***nature and scope*** of the risk; and (3) how the user can ***minimize or avoid*** the risk, if possible. [Restatement (Third) of Torts: Products Liability § 2, with comments.]

1) Foreseeable Use or Misuse

A warning must inform foreseeable users about any risks associated with ***using or misusing*** the product in a reasonably foreseeable manner. [Restatement (Third) of Torts: Products Liability § 2, with comments.]

2) Obvious Dangers or Unforeseeable Misuse

The manufacturer has ***no duty*** to warn about risks that should be ***obvious*** to a foreseeable user. In addition, there is no duty to warn against misuse that is not reasonably foreseeable. However, a manufacturer may need to foresee

that certain ***types*** of users will overlook obvious dangers or, perhaps, appreciate the danger but not necessarily know of ways to remedy it. [*See* Restatement (Third) of Torts: Products Liability § 2, with comments; *Carruth v. Pittway Corp.*, 643 So.2d 1340 (Ala. 1994); *Liriano v. Hobart Corp.*, 170 F.3d 264 (2d. Cir. 1999).]

Example:

A painter positioned a ladder in front of a closed door in a busy office and climbed the ladder to paint the ceiling. An employee opened the door from the other side, knocking the ladder over and injuring the painter. The painter sued the ladder manufacturer, alleging that the manufacturer should have warned against using the ladder in front of an unlocked door. This claim will likely fail. As an adult and a reasonably foreseeable user of the ladder, the painter should have known better than to use the ladder in front of a closed door in a busy office environment where someone could open it any moment. The obvious risk imposed no duty to warn. [*Adapted from* Restatement (Third) of Torts: Products Liability § 2, illus. 12.]

Compare:

A bakery employee was injured when his hand was caught in an operating commercial mixer. The employee had been on the job for only a few days, had not previously worked in a bakery, and was only 17 years old. The employee sued the manufacturer for failure to warn about the dangers of placing one's hand near the mixer when it was operating. The manufacturer argued that it was entitled to summary judgment because this danger was or should have been obvious to a reasonable user. The trial court denied summary judgment. It held that, under these facts, the factfinder should decide whether it was reasonably foreseeable that a user of this type might overlook an otherwise obvious risk. Even if the user would appreciate the danger, he might not know how to prevent or mitigate it. [*Adapted from Liriano v. Hobart Corp.*, 170 F.3d 264 (2d. Cir. 1999).]

3) Nature and Scope of Risk

A reasonable warning must apprise foreseeable users not only of the ***existence*** of foreseeable risks, but also of the ***nature and scope*** of the risks. That is, the warning must convey what might happen to the user who fails to heed the warning. [*See* Restatement (Third) of Torts: Products Liability § 2, with comments; *Carruth v. Pittway Corp.*, 643 So.2d 1340 (Ala. 1994).]

4) How to Avoid Harm

If possible, a warning must inform the user of ***reasonable steps*** to avoid foreseeable harm associated with using the product. This may include instructions on ways to use the product safely. For instance, the warnings accompanying a meat slicer may need to instruct users that the slicer should be used only with a guard in place to prevent injury to the user's hands. [Restatement (Third) of Torts: Products Liability § 2, with comments; *Carruth v. Pittway Corp.*, 643 So.2d 1340 (Ala. 1994); *Liriano v. Hobart Corp.*, 170 F.3d 264 (2d. Cir. 1999).]

ii. Presentation

In addition to conveying the proper content, the warning or instruction must be adequately presented. That is, the warning must be formatted and positioned to attract the ***average user's attention***. Relevant factors include (1) the nature of the product, (2) the information to convey, and (3) the characteristics of the average user. For example, a complex, technical product marketed to educated users may need detailed instructions in a handbook. However, a product directed at the average consumer unlikely to read through a handbook should be formatted so that it is concise, plainly visible, readily comprehensible, and attention-grabbing. Indeed, for some foreseeable users, excessive information and detail might detract from the warning's overall effectiveness. [*See* Restatement (Third) of Torts: Products Liability § 2, with comments; *Carruth v. Pittway Corp.*, 643 So.2d 1340 (Ala. 1994).]

Example:

A fire erupted in a family's home late at night. The smoke detector failed to sound and alert the family to the fire because the smoke detector was installed in a so-called dead-air space where smoke was unlikely to reach. Several of the family members perished in the fire. Their estates sued the smoke detector's manufacturer, alleging an information defect in that the materials accompanying the smoke detector failed to adequately warn against installing the smoke detector in a dead-air space. The lengthy pamphlet accompanying the smoke detector addressed dead air throughout, but a user would have to read the whole pamphlet to ascertain this information, which most users were unlikely to do. No information about dead-air spaces appeared on the box or in prominent graphics on the pamphlet. Here, a jury could find the warnings adequate, even though they addressed dead-air spaces. [*See Carruth v. Pittway Corp.*, 643 So.2d 1340 (Ala. 1994).]

iii. Learned Intermediaries

Under the ***learned-intermediary rule***, a manufacturer of prescription drugs or medical devices usually has a duty to warn only medical providers about any dangers associated with the product; the manufacturer need not warn the product's end users. The reasoning is that the doctor or other medical professional can be expected to convey needed warnings to the patient. [*See* Daniel Richardson, *The Lost Child of Products Liability: New Thoughts about Advertising and the Learned Intermediary Doctrine*, 27 Vt. L. Rev. 1017 (Summer 2003).]

b. Causation: The Heeding Presumption

Recovery for an inadequate warning requires proof that the victim would have heeded the warning or instruction had it been provided. Otherwise, causation fails, because the warning would not have made a difference. Some courts adopt a rebuttable ***heeding presumption***. This means that, absent contrary evidence, the court will presume that the victim would have heeded any reasonable warning. [*See Coffman v. Keene Corp.*, 628 A.2d 710 (N.J. 1993).]

B. Theories of Recovery in Products Liability

Merely establishing that a product was defective is not enough to recover in products liability. Having done so, the plaintiff must prove the elements of one of the various theories of products liability. The main tort-based theories are ***strict liability*** and ***negligence***.

1. Strict Products Liability

Most jurisdictions have adopted a theory of ***strict products liability***. If the requirements of strict liability are proven, liability arises regardless of whether the manufacturer or seller exercised reasonable care to make the product safe. [Restatement (Second) of Torts § 402A.]

a. Elements of Strict Products Liability

In general, strict products liability is imposed if (1) the actor was a ***commercial supplier*** of the defective product, (2) the product was ***defective*** when it left the actor's control, (3) there was ***no significant change*** in the product's condition between the time it left the actor's control and the time it caused the injury, and (4) the defect actually and proximately ***caused*** the injury. [Restatement (Second) of Torts § 402A, with comments.]

i. Commercial Supplier Defined

A ***commercial supplier*** is one in the business of selling the product that caused the victim's injury. A commercial supplier includes a manufacturer, wholesaler, retailer, or anyone else selling the product on more than a casual basis in the regular course of its business. [*See* Restatement (Second) of Torts § 402A cmt. f; Restatement (Third) of Torts: Products Liability § 1, with comments.]

1) Casual Sales Excluded

A commercial supplier does not include someone who makes ***casual or occasional*** sales that are not part of his regular business. For example, someone selling an appliance at a yard sale is not a commercial supplier. [Restatement (Third) of Torts: Products Liability § 1 cmt. c.]

2) Supplier of Products versus Supplier of Services

If a transaction's dominant purpose is the provision of ***services***, not products, and the defective product is ***incidental*** to the services, the actor will not be treated as a commercial supplier of the product. [*See Grebing v. 24 Hour Fitness USA, Inc.*, 234 Cal. App. 4th 631 (2015).]

Example:

A fitness-club member was injured by a defective treadmill at the club. The member sued the club on a theory of strict products liability in products liability. The club's primary business was to provide fitness services, including access to facilities and equipment, not to sell exercise machines. Thus, the fitness center was not a commercial supplier of the treadmill. [*Adapted from Grebing v. 24 Hour Fitness USA, Inc.*, 234 Cal. App. 4th 631 (2015).]

Compare:

A mechanic repaired a customer's car by replacing a leaky radiator. Following regular business practices, the mechanic billed the customer for both the mechanic's time and the radiator itself. Soon after, the new radiator exploded, injuring the customer. The mechanic was a commercial supplier of the radiator. Although the mechanic provided a service, the mechanic also sold auto parts in the normal course of business. [*See* Restatement (Third) of Torts: Products Liability § 1 cmt. c.]

3) Blood-Shield Statutes

In some states, so-called ***blood-shield statutes*** insulate commercial suppliers of blood from strict products liability. Liability in these cases arises only in

negligence. [*See, e.g.*, *Doe v. Miles, Inc.*, No. ED 75100, 2000 WL 667383 (Mo. Ct. App. May 23, 2000).]

b. Special Issues of Proof for Manufacturing Defects

In cases involving manufacturing defects, it can be difficult to prove that a defect (1) existed when the product left the actor's control and (2) persisted to the time of the injury. This is because manufacturing defects are often latent, or hidden, from an average consumer's perspective. Discovering both the precise nature of the defect and the time when it arose may be cost-prohibitive.

i. Special Inference of Defect

In jurisdictions following the Restatement (Third) of Torts: Products Liability, a factfinder may infer that the harm was caused by a defect existing when the product left the actor's control, ***without proof of a specific defect***, if two requirements are both met. They are: (1) the type of accident typically occurs only because of a ***product defect*** and (2) the injury was not caused ***solely*** by identifiable factors other than a defect existing when the product left the actor's control (that is, a defect was the most likely cause of the accident). [Restatement (Third) of Torts: Products Liability § 3, with comments.]

ii. Special Inference If Product Malfunctions

The special inference of harm caused by a defect often applies if the product clearly ***malfunctions***, and the malfunction causes the injury. In these cases, it is often reasonable to infer that some sort of defect caused the injury, even if it is impossible to tell exactly what the defect was. [Restatement (Third) of Torts: Products Liability § 3, with comments.]

iii. Procedural Effect of Inference

The procedural effect of the special inference of harm caused by a defect is very similar to that of res ipsa loquitur. The factfinder will be ***permitted*** but ***not required*** to infer that a defect existing when the product left the actor's control caused the injury. [*See* Restatement (Third) of Torts: Products Liability § 3, with comments.]

Example:

A consumer bought a blender that he used exclusively to make milkshakes. On the consumer's tenth use of the blender, the blender's glass container suddenly exploded, injuring the consumer. Here, the consumer can likely invoke the special inference of a defect. Typically, a blender used in a normal way would explode

only if there were some sort of defect. There appears to be no explanation for the injury, save a defect that existed when the blender left the seller's control. [*See* Restatement (Third) of Torts: Products Liability § 3 illus. 1.]

c. Defenses to Strict Products Liability

The defenses to strict products liability are basically the same defenses that apply to strict liability in other contexts. Even so, some comparative-fault jurisdictions apply comparative fault to strict-products-liability cases in exactly the same way as they do to negligence cases, without requiring heightened fault on the victim's part. [*See* Restatement (Second) of Torts § 420A cmt. n; *e.g.*, *Daly v. Gen. Motors Corp.*, 575 P.2d 1162 (Cal. 1978); Defenses to Strict Liability, *supra*.]

d. Intermediate Seller's Liability and Right of Indemnification

Products that are defective upon leaving the manufacturer's control often pass through a chain of intermediate sellers between the manufacturer and the end user. These intermediate sellers include wholesalers, distributors, and retailers. ***Every*** intermediate seller in the chain of distribution is subject to strict products liability. If an intermediate seller pays damages, then in at least some jurisdictions, seller is entitled to complete ***indemnity*** (100 percent reimbursement) from the manufacturer. There is ***no*** right of indemnity, however, if the harm is caused by an act for which the intermediate seller is ***independently liable***, such as negligence. [*See Chesapeake Appalachia, LLC v. Cameron Int'l Corp.*, No. CIV–13–1118–M, 2014 WL 7187082 (W.D. Okla. Dec. 16, 2014).]

2. Negligence in Products Liability

If a plaintiff cannot establish the requirements for strict products liability, the plaintiff might still recover in products liability under a ***negligence*** theory. The usual elements of negligence apply in products-liability cases, with a few unique features.

a. General Duty of Care by Commercial Suppliers of Goods

Any supplier of goods, but especially a commercial supplier of goods, owes a duty to use ***reasonable care*** under the circumstances to avoid placing a dangerously defective product into the stream of commerce. The duty flows to anyone whom a defect in the product may reasonably foreseeably injure. [*See* Restatement (Third) of Torts: Products Liability § 1, with comments; *Mangano v. Town of Babylon*, 111 A.D.3d 801 (N.Y. App. Div. 2013).]

b. Manufacturer's Negligence: Manufacturing Defects

To hold a ***manufacturer*** liable under a theory of negligence in products liability for a manufacturing defect, a plaintiff must generally prove several elements.

i. Duty to Foreseeable Victims of Defective Product

A manufacturer, as a commercial supplier, owes foreseeable victims a duty to use ***reasonable care*** to avoid placing a dangerously defective product into the stream of commerce. [*See* Restatement (Third) of Torts: Products Liability § 1, with comments; *Mangano v. Town of Babylon*, 111 A.D.3d 801 (N.Y. App. Div. 2013).]

ii. Defect in the Product

The product must be defective when it leaves the manufacturer's ***control***. [*See O'Keefe v. Boeing Co.*, 335 F. Supp. 1104 (S.D.N.Y. 1971).]

iii. Breach, Causation, and Harm

The manufacturer's breach, or failure to use reasonable care, must actually and proximately ***cause*** the victim's ***harm***. Manufacturers usually breach the duty of care by either (1) failing to exercise reasonable care in manufacturing and handling the goods or (2) omitting to implement reasonable ***testing procedures*** to discover defects. [*See O'Keefe v. Boeing Co.*, 335 F. Supp. 1104 (S.D.N.Y. 1971).]

iv. Problems of Proof: Res Ipsa Loquitur

As in strict products liability, negligence plaintiffs in manufacturing-defect cases often have little or no direct evidence to prove the manufacturer's specific negligent act or omission. However, a negligence plaintiff may rely on res ipsa to raise a permissive inference that the manufacturer was negligent. As in any res ipsa case, the plaintiff generally must prove several elements to invoke the permissive inference.

1) Accident Usually Arising from Negligence

The type of accident must be one that usually would occur only if the product were negligently manufactured. [*See Ewer v. Goodyear Tire & Rubber Co.*, 480 P.2d 260 (Wash. Ct. App. 1971).]

2) Substantial Control or No Change in Condition

It must be that either (1) the product was substantially within the ***manufacturer's control*** when the negligence occurred (*e.g.*, when the product was improperly manufactured) ***or*** (2) there was ***no substantial change*** in the

product's condition between the time it left the manufacturer's control and the time of the injury. [*See Ewer v. Goodyear Tire & Rubber Co.*, 480 P.2d 260 (Wash. Ct. App. 1971).]

3) Elimination of Other Causes

It must be shown that more likely than not, causes other than the defendant's negligence did not produce the accident. [*See Ewer v. Goodyear Tire & Rubber Co.*, 480 P.2d 260 (Wash. Ct. App. 1971).]

Example:

An auto shop bought a tire from a manufacturer. The shop immediately stored the tire in its warehouse until an employee removed the tire. When the employee started inflating the tire, it exploded, injuring the employee. At trial in the employee's suit against the manufacturer, the employee testified that he never inflated a tire to more than 25 pounds of air pressure, which was normal industry practice. Experts testified that the shop's storage procedures probably didn't harm the tire, and the shop's personnel observed no appreciable change in the tire's condition before the explosion. Here, the elements of res ipsa are satisfied. A tire would not normally explode without some manufacturing defect. When this tire exploded, it was in substantially the same condition as when the shop received it. Finally, overinflation seems eliminated as a cause, seeing the employee inflated it to a pressure within normal industry parameters. [*See Ewer v. Goodyear Tire & Rubber Co.*, 480 P.2d 260 (Wash. Ct. App. 1971).]

c. Manufacturer's Negligence: Design and Informational Defects

A negligence plaintiff suing a manufacturer for a ***design defect*** or ***informational defect*** generally must prove several elements.

i. Duty and Defect in Design-Defect and Informational-Defect Cases

As in manufacturing-defect cases, a manufacturer owes foreseeable victims a duty not to place a defective product in the stream of commerce, and the product must have been defective when it left the manufacturer's control. [*See O'Keefe v. Boeing Co.*, 335 F. Supp. 1104 (S.D.N.Y. 1971).]

ii. Breach and Causation

To be liable, a manufacturer must have failed to use reasonable care to (1) ***design*** a reasonably safe product or (2) ***provide adequate warnings or instructions***. This may

be shown by demonstrating (1) knowledge of the defect and (2) failure to warn or make safe. [*See Blue v. Envtl. Eng'g, Inc.*, 828 N.E.2d 1128 (Ill. 2005).]

1) Knowledge

It must be that the manufacturer ***knew*** or ***should have known*** of a design or informational defect when the product was under the manufacturer's control. [*See Blue v. Envtl. Eng'g, Inc.*, 828 N.E.2d 1128 (Ill. 2005).]

2) Failure to Warn or Make Safe

The manufacturer must have disseminated the product ***without taking reasonable steps*** to (1) make the product safe or (2) provide reasonable warnings or instructions. [*See Blue v. Envtl. Eng'g, Inc.*, 828 N.E.2d 1128 (Ill. 2005).]

d. Negligence of Intermediate Sellers

Regardless of the type of defect involved, ***intermediate sellers*** are seldom held liable in products liability on negligence grounds. This differs from the rule imposing intermediate-seller liability in strict-products-liability cases. [*See* Strict Products Liability, *supra*.]

i. Limited Duty of Inspection and Care

Many jurisdictions hold that an intermediate seller has ***no duty to inspect*** the product for defects, unless the seller knows or has reason to know that the product is defective. A seller who knows or has reason to know of a defect must then take reasonable steps to prevent ensuing harm. [*See Shuras v. Integrated Project Servs., Inc.*, 190 F. Supp. 2d 194 (D. Mass. 2002); Restatement (Second) of Torts §§ 399, 402.]

e. Special Proximate-Cause Issues

Special ***proximate-cause issues*** can arise in products-liability cases involving negligence.

i. Intermediate Seller's Negligence No Superseding Cause

If an intermediate seller negligently sells a defective product, this does ***not*** constitute a superseding cause absolving the manufacturer of negligence liability. However, if an intermediate seller ***knowingly*** sells a defective product, this might constitute a superseding cause if the manufacturer could not foresee the

intermediate seller's action. [*See Miller Indus., Inc. v. Caterpillar Tractor Co.*, 473 F. Supp. 1147 (S.D. Ala. 1979).]

ii. Victim's Unforeseeable Misuse

The victim's ***unforeseeable misuse*** of a product may constitute a superseding cause that relieves the manufacturer or intermediate seller of liability. [*See Collins v. Li*, 933 A.2d 528 (Md. Ct. Spec. App. 2007).]

Example:

A dealer sold fishing vessels incorporating engines manufactured by Corporation X. Corporation X sent the dealer a letter stating that there was a dangerous problem with specified pins in a certain engine, which could cause catastrophic engine failure. Dealers should therefore replace the pins immediately. Yet after receiving the letter, the dealer sold a vessel to a fisherman without replacing the pins. When the fisherman took the vessel out, the engine failed, causing the vessel to run aground and sustain serious damage. Here, the dealer and corporation X are both liable in negligence. Corporation X's dissemination of, and the dealer's receipt of, the letter indicates that both parties knew of the problem with the pins. Yet neither party did anything to fix the pins. Corporation X could likely foresee dealers ignoring the letter, so the dealer's failure to replace the pins is not likely a superseding cause. [*See Miller Indus., Inc. v. Caterpillar Tractor Co.*, 473 F. Supp. 1147 (S.D. Ala. 1979).]

f. Defenses to Negligence in Products Liability

The defenses to negligence in products liability are the same as in any other negligence case. [*See* Defenses to Negligence, *supra*.]

C. No Privity Required in Tort

At one time, products liability required privity (*i.e.*, a contractual relationship) between the actor and the victim. Privity is ***no longer required*** in tort cases. Any reasonably foreseeable user or victim of a defective product may maintain a cause of action in tort. Even in contract cases, privity seems to be nowhere near the obstacle to recovery that it once was. [*See Moorman Mfg. Co. v. Nat'l Tank Co.*, 435 N.E.2d 443 (Ill. 1982); *MacPherson v. Buick Motor Co.*, 111 N.E. 1050 (1916); Restatement (Second) of Torts § 402A, with comments; Contracts Outline, Warranties.]

D. Damages in Products Liability

The types of harm for which the plaintiff may recover in products liability will depend on the theory under which the plaintiff proceeds.

1. Tort-Based Theories: No Recovery for Purely Economic Harm

A plaintiff proceeding under one of the tort-based theories, strict liability or negligence, may recover for (1) ***personal injury*** and (2) damage to property ***other than*** the defective product itself. In most jurisdictions, the plaintiff may not recover in tort for purely economic harm. [*Moorman Mfg. Co. v. Nat'l Tank Co.*, 435 N.E.2d 443 (Ill. 1982).]

2. Contract-Based Theories: Plaintiff May Recover for Economic Harm

A plaintiff under one of the contract-based theories, such as breach of warranty, may generally recover for purely economic harm. Products-liability plaintiffs usually proceed under both tort-based and contract-based theories to cast the widest possible net for recovery. [*See Moorman Mfg. Co. v. Nat'l Tank Co.*, 435 N.E.2d 443 (Ill. 1982); Contracts Outline, Warranties.]

3. Economic Harm in Products Liability Defined

In products-liability cases, purely economic harm means financial loss that is (1) caused by a defect in the product and (2) unconnected to any personal injury or property damage. Examples of purely economic harm include (1) any damage to the defective product itself, (2) lost profits, (3) the diminished value of a defective product, and (4) the cost of repairing a defective product. [*See Moorman Mfg. Co. v. Nat'l Tank Co.*, 435 N.E.2d 443 (Ill. 1982).]

Example:

A food processor bought a grain-storage tank from a manufacturer. Over time, due to a manufacturing defect, a large crack developed in the tank. The crack cost the food processor many thousands of dollars to repair. Here, the food processor likely cannot recover against the manufacturer on any tort theory of products liability. The loss here was purely economic because the only harm here was to the defective product itself, the storage tank. Nothing indicates that the crack caused harm to other property or to anyone's person, in which case tort theories of products liability would apply. [*See Moorman Mfg. Co. v. Nat'l Tank Co.*, 435 N.E.2d 443 (Ill. 1982).]

XII. Defamation

The tort of ***defamation*** compensates a victim for harmful falsehoods communicated about the victim to third parties. Written defamation is called ***libel***, and spoken defamation is called ***slander***.

Because defamation consists of speech, this tort raises issues under the First Amendment to the US Constitution. Accordingly, navigating a defamation case requires understanding two separate but interlocking sets of rules: (1) the ***traditional elements*** of defamation and (2) the impact of the ***First Amendment*** on modern defamation law. [*W.J.A. v. D.A.*, 43 A.3d 1148 (N.J. 2012); *see also* Restatement (Second) of Torts § 558.]

A. The Traditional Elements of Defamation

The traditional elements of defamation are that (1) the actor ***published*** (2) a defamatory statement of ***fact*** (3) ***of and concerning*** the victim, that (4) caused ***reputational harm*** to the victim. [*See* Restatement (Second) of Torts § 558, with comments.]

1. Traditional Rule: Truth as an Affirmative Defense

Under traditional defamation doctrine, the plaintiff need not prove the defamatory statement false. Instead, defamatory statements are presumed false, which means the defendant must assert the truth of the statement as an affirmative defense. Today, some states treat falsity as an element of the plaintiff's prima facie case. In addition, the plaintiff often has the burden to prove falsity if First Amendment concerns are implicated. [*See* Restatement (Second) of Torts § 558, with comments; Constitutional Limits on Defamation Actions, *infra*.]

2. Publication Defined

Publication is any form of communication to a third person (that is, someone other than the victim) who ***perceives and understands*** the communication. [Restatement (Second) of Torts § 577, cmts. b-d.]

a. Fault Regarding Publication

The actor must ***negligently*** or ***intentionally*** cause the publication. This fault requirement has nothing to do with the content or effect of the statement. That is, it is not necessary that the actor intend to falsely defame the victim or that she be negligent about the statement's truth or falsity. Rather, the fault requirement relates to the fact of the communication, meaning the actor must (1) communicate the statement by an intentional act or (2) fail to use reasonable care to prevent the communication. [Restatement (Second) of Torts § 577, with comments and illustrations.]

Example:

Two lawyers and a judge were meeting in the judge's chambers. The first lawyer spoke and understood French, but the second lawyer did not. The first lawyer leaned over to

the second lawyer and, in French, accused the judge of taking bribes from insurance companies. The first lawyer did not publish a statement, for purposes of defamation, because the second lawyer did not understand the communication. It does not matter whether the judge understood the statement, because the statement was about the judge. [*Adapted from* Restatement (Second) of Torts § 566 illus. 3-4.]

Compare:

Two lawyers and a judge were meeting in the judge's chambers. The judge's law clerk was present, also. The first lawyer and the law clerk both spoke and understood French; the second lawyer did not. The first lawyer leaned over to the second lawyer and, in French, accused the judge of taking bribes from insurance companies. The first lawyer did not understand the statement, but the law clerk overheard it and understood it. The first lawyer published a statement, for defamation purposes. She uttered a statement that a third party, the law clerk, perceived and understood. [*Adapted from* Restatement (Second) of Torts § 577 illus. 2-3.]

b. The Single-Publication Rule and Mass Communications

Normally, ***each separate communication*** of a defamatory statement is a distinct publication. Thus, for statute-of-limitations purposes, a new cause of action will arise each time the statement is repeated. However, the rule differs in cases of ***mass communication***, such as a book, newspaper, or website. In these cases, there is only ***one*** actionable publication, occurring on the date of the ***initial publication***. Of course, a new edition of a book or periodical or a substantive update (as opposed to a merely technical update to a webpage may be deemed a new, distinct publication even under this rule. [*See Churchill v. State*, 876 A.2d 311 (N.J. Super. Ct. App. Div. 2005).]

c. The Republication Rule

Under the ***republication rule***, any third party who ***repeats*** a defamatory statement to someone else is ***independently liable*** for defamation. This is true even if the republishing party merely quotes or reports on the initial defamatory statement. [*Pittman v. Gannet River States Publ'n Corp.*, 836 F. Supp. 377 n.4 (S.D. Miss. 1993) (citing Restatement (Second) of Torts § 581 cmt. e)); *Foretich v. Glamour*, 753 F. Supp. 955 (D. D.C. 1990).]

i. Initial Publisher's Liability for Republication

The person who first published the statement can be liable for any foreseeable republication by others. Even repetition by the person defamed can be actionable, but only if this repetition is "the natural and probable consequence" of the initial publication. [*See McKinney v. County of Santa Clara*, 110 Cal. App. 3d 787 (1980).]

Example:

A warehouse fired an employee. The warehouse's stated reason for the dismissal was that the employee had performed incompetently and embezzled funds. In fact, the employee had never embezzled, and she believed she had always performed competently. In seeking another job, the employee repeated these accusations to prospective employers in response to questions about her past employment, though she repeated the accusations only to refute them. Here, the warehouse may be liable for republication for each occasion on which the employee repeated the warehouse's accusations of incompetence and embezzlement. In this context, it seems natural and probable for the employee to raise and try to refute the accusations in seeking another job. [*Adapted from McKinney v. County of Santa Clara*, 110 Cal. App. 3d 787 (1980).]

ii. Limitation on Liability of Secondary Publishers

The republication rule has only limited application to ***secondary publishers***. A secondary publisher acts as a conduit for material published by others, usually in the course of the secondary publisher's business. For example, a bookstore is a secondary publisher of the information contained in the books that it sells. A secondary publisher is ***not liable as a republisher*** of defamatory information unless the secondary publisher knows or has reason to know of the defamatory statements in the material. A secondary publisher is normally under no duty to examine the materials it sells for defamatory matter, unless perhaps there are unusual facts to put the secondary publisher on notice of the defamatory matter. [*Dworkin v. Hustler Magazine, Inc.*, 611 F. Supp. 781 (D. Wyo. 1985) (*citing* Restatement (Second) of Torts § 581.)]

Example:

To a local newspaper reporter, a politician falsely and defamingly stated that a local business owner sold illegal drugs. The newspaper reported this statement verbatim and attributed it to the politician as part of a news article, in an edition of the paper sold in a local drugstore. The politician will be liable for defaming the business owner as a primary publisher. The newspaper will be liable as a republisher, even though it attributed the statement to the politician. However, as a secondary publisher, the drugstore will not be liable, unless the drugstore knew or had reason to know of the defamatory statement in the newspaper.

3. Defamatory Statement

Liability in defamation requires that the statement be ***defamatory***.

a. Defamatory Statement Defined

A defamatory statement is a statement of fact that ***tends to harm the victim's reputation.*** That is, a defamatory statement tends to expose the victim to hatred, contempt, or ridicule, or to cause the victim to lose goodwill, confidence, and esteem among others. The statement need not harm the victim's reputation in everyone's eyes. It is enough if the statement tends to harm the victim's reputation among a substantial minority of the community or among the victim's social or professional associates. [*See Romaine v. Kallinger*, 537 A.2d 284 (N.J. 1988); *Jews for Jesus, Inc. v. Rapp*, 997 So.2d 1098 (Fla. 2008); Restatement (Second) of Torts § 559 cmt. e.]

Example:

A woman wrote a letter to her friend indicating that a mutual associate of theirs was a prominent member of a notorious white-supremacist organization. In truth, the associate was not a member of this or any other white-supremacist organization, nor had he ever been. This statement is defamatory. It would not tend to lower the associate's estimation in literally everyone's eyes, for many people share the organization's white-supremacist views. Yet the statement, if believed, would tend to expose the associate to the contempt of a great many people. [*See* Restatement (Second) of Torts § 559 illus. 2.]

b. Defamation per Se and per Quod

The defamatory aspects of the statement may be obvious or implied. Obvious defamation is sometimes called defamation ***per se***, and implied defamation is sometimes called defamation ***per quod***. Either type of defamation is actionable.

i. Defamation per Se

Defamation per se involves a statement that is defamatory ***on its face***, without reference to facts outside the statement itself. [*See Boyles v. Mid-Florida Television Corp.*, 431 So.2d 627 (Fla. Dist. Ct. App. 1983).]

ii. Defamation per Quod

Defamation per quod involves a statement that is defamatory ***only*** if understood in the context of facts outside the statement itself. The extrinsic facts, whose understanding is necessary to make the statement defamatory, are sometimes called innuendo. [*See Boyles v. Mid-Florida Television Corp.*, 431 So.2d 627 (Fla. Dist. Ct. App. 1983).]

Examples:

(1) A city clerk falsely told a third party that a city official was embezzling money. This was defamation per se. The statement on its face accused the official of immoral and criminal activity. This accusation could be understood without reference to any additional facts.

(2) A police officer purchased a new car. A citizen stated to his friend that there was no way the policeman could afford the car on a public servant's salary. Both the citizen and the friend knew that the officer was under investigation for accepting bribes. This is an example of defamation per quod. In isolation, a statement that someone could not afford a car would likely not damage that person's reputation enough to be defamatory. However, in the context of the external fact, the innuendo, that the officer was being investigated for taking bribes, the statement made the defamatory implication that the officer bought the car with bribe money.

c. Fact versus Opinion, Insult, or Hyperbole

A defamatory statement must contain ***facts*** tending to injure the victim's reputation. A statement that merely conveys opinion, insults, or hyperbole is not defamatory. The distinction between fact and opinion is often a difficult one to make. The ultimate question is whether a reasonable third party would perceive the statement as fact or opinion, based on the context of the statement and all relevant circumstances. [*See* Restatement (Second) of Torts § 566, with comments and illustrations; *Indiaweekly.com, LLC v. Nehaflix.com, Inc.*, 596 F. Supp. 2d 497 (D. Conn. 2009).]

i. Fact

A statement will be treated as a statement of fact if it sets forth ***literal***, ***objective***, ***unequivocal information*** capable of being proven true or false. [*Indiaweekly.com, LLC v. Nehaflix.com, Inc.*, 596 F. Supp. 2d 497 (D. Conn. 2009).]

ii. Facts Couched as Opinion

A statement that appears to be an opinion might nonetheless be treated as a statement of fact if the statement expressly states or necessarily implies particular facts. [*Indiaweekly.com, LLC v. Nehaflix.com, Inc.*, 596 F. Supp. 2d 497 (D. Conn. 2009).]

iii. Mere Opinion, Insult, Hyperbole, or Puffery

A statement will be treated as an ***opinion*** insofar as it consists of hyperbole, insults, name-calling, or the speaker's mere subjective impression of actual facts. [*Indiaweekly.com, LLC v. Nehaflix.com, Inc.*, 596 F. Supp. 2d 497 (D. Conn. 2009).]

Examples:

(1) A man said to his colleague that their supervisor at work was a thief. This was a statement of fact, being a direct, unequivocal statement of objective reality that could be proven true or false.

(2) A woman said to her colleague that she believed their supervisor at work was a thief. This statement was in an uncertain gray area between statements of fact and statements of opinion. On the one hand, the statement seemed to convey the woman's subjective impressions. On this view, it was not a direct, unequivocal statement, because it did not firmly, objectively convey that the supervisor had stolen something. Some courts would therefore treat the statement as an opinion. On the other hand, the statement arguably implied that the woman knew of facts indicating the supervisor had stolen. Thus, some courts might find this to be a statement of fact couched as opinion.

Compare:

A client told a friend that the client's lawyer was "a world-class con artist." This statement was likely mere insult or hyperbole, not a statement of fact. True, the term "con artist" may seem to convey objectively verifiable information. However, the use of the modifier "world-class" in front of "con artist" seems to indicate that the client was not trying to convey literal information, but rather to insult and demean the lawyer using hyperbole, name-calling, and colorful rhetoric.

4. Of and Concerning the Victim

A statement is ***of and concerning the victim*** if someone who understands the statement could reasonably conclude that it refers to the victim. The question is ***not*** what the actor intends by the statement, but rather, it is what a reasonable third party would conclude. Defamation does ***not*** require specific intent to refer to the victim. [*See* Restatement (Second) of Torts § 564, with comments; *Marr v. Putnam*, 246 P.2d 509 (Or. 1952).]

a. Implied Reference to Victim

A statement that does not expressly refer to the victim may still make ***implied*** reference to the victim if either (1) the statement sets forth facts creating a reasonable inference that the statement refers to the victim, or (2) the statement,

considered in conjunction with ***extrinsic facts***, creates a reasonable inference that the statement refers to the victim. [*See Marr v. Putnam*, 246 P.2d 509 (Or. 1952); Restatement (Second) of Torts § 564, with comments.]

Example:

A voting-rights activist from a city began to register voters in a neighboring small town. No one else was involved in voter-registration activities in the town. Soon afterwards, the town's local newspaper published the following statement: "Outside activists are known to use fake voter registrations to steal personal information and defraud people." This statement did not refer to the activist by name. However, the activist was the only out-of-town party engaging in voter-registration activities in the town. Thus, in context, the statement could reasonably be understood to refer to the activist.

b. Defamation of Artificial Entities

A corporation or other artificial entity can be defamed and, thus, has standing to sue for defamation, especially regarding statements that implicate the entity's ***honesty or integrity*** in conducting its business. However, statements that criticize an entity's services or products are usually not treated as defamatory. Some states provide a separate cause of action for product disparagement. [*Neiman Marcus Co. v. Lait*, 107 F. Supp. 96 (S.D.N.Y. 1952); *e.g.*, *Dairy Stores, Inc. v. Sentinel Publ'g Co.*, 516 A.2d 220 (N.J. 1986).]

c. Statements Referring to Groups

Special issues arise if a defamatory statement refers to a ***group or class*** of people, rather than to a specific person.

i. General Rule: No Group Defamation

The general rule is that if the defamatory statement refers to a ***group*** of people, without naming a specific person, then ***no person in that group*** may recover for defamation. [*See Alexis v. District of Columbia*, 77 F. Supp. 2d 35 (D. D.C. 1999).]

ii. Small-Group Exception

Under the ***small-group exception***, all members of a group may recover for defamation ***if*** the group is so small that a recipient would reasonably understand that the statement refers to all of the group's members. [*See Alexis v. District of Columbia*, 77 F. Supp. 2d 35 (D. D.C. 1999).]

Example:

A newspaper published an article falsely stating that the officers of Corporation X had embezzled funds. Corporation X had only four officers. Each officer could maintain an action for defamation. The group of Corporation X's officers had only four members. Hence, the reference to the corporation's "officers" could reasonably be understood to reference each officer individually. Yet if Corporation X had 162 officers, then likely none of the officers could maintain an action for defamation. A group of 162 seems too large for the small-group exception to apply. [*See* Restatement (Second) of Torts § 564A illus. 2-3.]

iii. Implied Reference to a Member of a Group

A member of a group may have a defamation claim concerning a statement about the group if the surrounding circumstances reasonably indicate that the statement refers to the particular member. [Restatement (Second) of Torts § 564A.]

Example:

A city newspaper published an article stating that each radio repairman in the area who solicited and responded to telephone calls was engaged in a racketeering scheme in which he would call for the radio, take possession of it, and never return it. Of the many radio repairmen in the city, only one actually solicited business in this way, and he advertised it widely. Hence, locals could reasonably be expected to understand that the article referred to that particular repairman. Accordingly, the repairman can likely maintain an action for defamation, although the article referenced the large group of radio repairmen in the city. [*Adapted from* Restatement (Second) of Torts § 564A, illus. 5.]

d. Decedents

A statement about someone made ***after that person's death*** is ***not actionable*** as defamation. Some states do, however, allow a preexisting defamation case to continue as a survival action after the victim's death. [*Gugliuzza v. K.C.M.C., Inc.*, 606 So.2d 790 (La. 1992); *e.g.*, *Canino v. N.Y. News, Inc.*, 475 A.2d 528 (N.J. 1984).]

5. Damages in Defamation

Traditionally, a defamation plaintiff must prove damages consisting of actual harm to her reputation and related injuries. Sometimes, damages may be presumed. [*W.J.A. v. D.A.*, 43 A.3d 1148 (N.J. 2012).]

a. General and Special Damages

Under the traditional law of defamation, there are two types of damages: ***general*** damages and ***special*** damages. General damages are awarded for ***reputational harm*** and related noneconomic harm, such as mental anguish. Special damages are awarded for financial injuries flowing from general damages—*e.g.*, lost business. [*See In re Lipsky*, 460 S.W.3d 579 (Tex. 2015).]

i. General Damages Presumed in Some Cases

In some cases, if the other elements of defamation are established, courts will ***presume*** that the plaintiff has suffered reputational harm, without requiring further proof of reputational harm to satisfy the plaintiff's prima facie defamation case. Special damages are not presumed, but they must be separately proven. General damages are usually presumed only if the defamation is either ***libel*** or ***slander per se***. [*See In re Lipsky*, 460 S.W.3d 579 (Tex. 2015); *W.J.A. v. D.A.*, 43 A.3d 1148 (N.J. 2012).]

1) Libel

Libel is defamation ***in writing,*** especially a writing published to an audience of significant size (*e.g.*, a book, radio, magazine article, Internet posting, motion picture, television, broadcast, etc.). Most courts presume general damages in any case of libel. The theory behind this presumption is that written defamation is apt to be longer-lasting and more easily spread than spoken defamation, justifying a presumption of harm. [*W.J.A. v. D.A.*, 43 A.3d 1148 (N.J. 2012); Restatement (Second) of Torts §§ 568, 568A.]

2) Slander per Se

Slander is defamation through ***spoken words***. In slander cases, damages are presumed only if the statement falls within one of four special categories of ***slander per se***, namely statements: (1) accusing the victim of ***criminal conduct***, (2) that the victim is presently afflicted with a ***loathsome disease***, such as a sexually transmitted disease or leprosy; (3) imputing conduct or characteristics ***incompatible with the victim's profession or occupation***—for example, that a doctor lacks medical training or that a merchant is insolvent; and (4) accusing the victim of ***serious sexual misconduct***, such as adultery or promiscuity. [*W.J.A. v. D.A.*, 43 A.3d 1148 (N.J. 2012); *Biondi v. Nassimos*, 692 A.2d 103 (N.J. Super. Ct. App. Div. 1997); *Villasenor v. Villasenor*, 911 S.W.2d 411 (Tex. Ct. App. 1995); *Matson v. Bd. of Educ. of City Sch. Dist. of N.Y.*, 631 F.3d 57 (2d. Cir. 2011); Restatement (Second) of Torts §§ 572 cmt. b, 574.]

ii. Special Damages

If damages are not presumed, the plaintiff must plead and prove actual reputational harm, often by showing objective indicia of harm, such as lost business or harm to specific relationships. Once this is done, the plaintiff may then recover related economic or other damages in addition. [*See Ward v. Zelikovsky*, 643 A.2d 972 (N.J. 1994); *Biondi v. Nassimos*, 692 A.2d 103 (N.J. Super. Ct. App. Div. 1997).]

B. Constitutional Limits on Defamation Actions

The United States Supreme Court has held that the constitutional guarantee of freedom of speech places an increased burden of proof on defamation plaintiffs in specific cases. The scope of this increased burden will depend on whether the plaintiff is a public figure and, sometimes, whether the subject matter of the defamatory statement is of public concern or solely private concern. [*See N.Y. Times Co. v. Sullivan*, 376 U.S. 254 (1964).]

1. Public Figures: Falsity and Actual Malice

A plaintiff who is a ***public figure*** must prove (1) all traditional elements of defamation ***plus*** (2) the elements of ***falsity*** and ***actual malice***. The standard of proof is also heightened beyond a preponderance of the evidence to require ***clear and convincing evidence***. If the plaintiff is a public figure, there is no need to determine whether the statement involves a matter of public or private concern; the rule is the same in any case. [*See N.Y. Times Co. v. Sullivan*, 376 U.S. 254 (1964); *see also Gertz v. Robert Welch, Inc.*, 418 U.S. 323, 331-32 (1974).]

a. Public Figure Defined

Broadly speaking, a ***public figure*** is either (1) a public official or (2) a private citizen who has attained a sufficient degree of notoriety, whether generally or in relation to a specific matter.

i. Public Official

A ***public official*** is someone who has significant responsibility in government, for instance, a city police commissioner. This may include policymakers, as well as officials in positions that invite public scrutiny. Thus, not every government employee is a public official. In general, a plaintiff in government who is suing over statements about the plaintiff's work-related conduct is a public official. [*See N.Y Times Co. v. Sullivan*, 376 U.S. 254 (1964).]

ii. Persons of Notoriety

A person who is not a public official may nevertheless be a public figure if the person has attained a sufficient degree of notoriety. There are two types of public figures of notoriety: ***general*** public figures and ***limited-purpose*** public figures.

1) General Public Figures

General public figures are people of such pervasive notoriety that they should be treated as public figures for ***all purposes***. Examples include well-known celebrities or famous athletes. It is not enough that the person is well-known within limited professional or social circles. Instead, the person must be generally well-known within a wider community, if not nationally. [*Gertz v. Robert Welch, Inc.*, 418 U.S. 323, 331-32 (1974).]

2) Limited-Purpose Public Figures

A ***limited-purpose public figure*** is someone who voluntarily and substantially participates in a public controversy, usually to influence public opinion or to affect the outcome of the controversy. More rarely, this category can include someone drawn into a controversy involuntarily. A limited-purpose public figure is treated as a public figure ***only*** with reference to the particular controversy with which the person is associated. [*Gertz v. Robert Welch, Inc.*, 418 U.S. 323 (1974).]

Example:

A woman graduated Navy flight school and became the first female Navy fighter pilot, at a time when nationwide controversy raged over whether women should be permitted to be fighter pilots in any military branch. Being the first female Navy fighter pilot, the woman made national headlines. Advocacy groups opposed to women being fighter pilots sent letters to several United States senators stating that the woman had graduated flight school under relaxed standards and was not qualified to be a fighter pilot. In the woman's defamation suit against the advocacy groups, she will likely be treated as a limited-purpose public figure. She became the nation's first Navy female fighter pilot at a time when that subject was nationally controversial, and the allegedly defamatory statements concerned that controversy. [*Adapted from Lohrenz v. Donnelly*, 350 F.3d 1272 (D.C. Dir. 2003).]

b. Burden of Proving Falsity

If the plaintiff is a public figure, then the ***plaintiff*** has the burden to prove that the alleged defamatory statement was ***false***, as part of the plaintiff's prima facie case. This

differs from traditional defamation, in which falsity is presumed, and truth is an affirmative defense. [*See N.Y. Times Co. v. Sullivan*, 376 U.S. 254 (1964); *see also Phila. Newspapers, Inc. v. Hepps*, 475 U.S. 767 (1986).]

c. Actual Malice

Actual malice is ***knowledge*** of falsity or ***reckless disregard*** of truth or falsity. [*N.Y. Times Co. v. Sullivan*, 376 U.S. 254 (1964).]

i. Knowledge of Falsity

Actual malice exists if the actor ***subjectively knows*** that the statement is false. [*N.Y. Times Co. v. Sullivan*, 376 U.S. 254 (1964).]

ii. Reckless Disregard of Truth or Falsity

Actual malice exists if the actor publishes the statement with reckless disregard of whether it is true or false. Reckless disregard occurs if the actor (1) ***seriously doubts*** the statement's truth, (2) has a high degree of awareness that the statement is ***probably false***, or (3) ***deliberately*** ignores available information to avoid learning the truth. Mere failure to investigate the facts is not enough to show actual malice. [*See St. Amant v. Thompson*, 390 U.S. 727 (1968); *see also Harte-Hanks Commc'ns, Inc. v. Connaughton*, 491 U.S. 657 (1989).]

iii. Mere Ill Will Insufficient

Actual malice does not exist just because the actor was motivated by ill will or dislike for the victim. [*Gertz v. Robert Welch, Inc.*, 418 U.S. 323, 331-32 (1974).]

2. Private Figures

A ***private figure*** is someone who does not fit the definition of a public figure. The burden on a private-figure defamation plaintiff depends on whether the subject of the alleged defamatory statement is a matter of ***public concern*** or purely ***private concern***. [*Gertz v. Robert Welch, Inc.*, 418 U.S. 323 (1974).]

a. Matters of Public Concern

If the defamatory statement involves a matter of ***public concern***, then a private-figure plaintiff must prove both ***falsity*** and the defendant's ***fault***.

i. Matters of Public Concern Defined

A matter of public concern is a matter of ***legitimate news interest***, not limited private interest. Matters of public concern include those implicating political and social concern, as well as those involving the public health, safety, morals, welfare, and policy. [*See Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 U.S. 749 (1985) (plurality op.); *Snyder v. Phelps*, 562 U.S. 443 (2011).]

Example:

A newspaper reported that a local restaurateur had ties to organized crime, which he exploited to influence municipal policy. This was a matter of public concern because it implicated not only the private interests of the restaurateur but also the interests of the public at large in government corruption. [*Adapted from Phila. Newspapers, Inc. v. Hepps*, 475 U.S. 767 (1986).]

ii. Proving Falsity, Matter of Public Concern

If a defamatory statement implicates a matter of ***public concern***, then the private-figure plaintiff must prove that the statement is ***false*** as part of her prima facie case. [*Phila. Newspapers, Inc. v. Hepps*, 475 U.S. 767 (1986).]

iii. Proving Fault, Matter of Public Concern

If a defamatory statement implicates a matter of ***public concern***, then the private-figure plaintiff must prove some type of ***fault***.

1) Negligence Required

To recover at all, the private-figure plaintiff must ***at least*** prove that the defendant was ***negligent*** with respect to the falsity of a statement implicating matters of public concern. States are free to impose a higher threshold, such as actual malice, but are not required to do so. [*See Phila. Newspapers, Inc. v. Hepps*, 475 U.S. 767 (1986); *Gertz v. Robert Welch, Inc.*, 418 U.S. 323 (1974).]

iv. Matters of Public Concern: No Presumed or Punitive Damages

Without actual malice, the plaintiff must prove ***actual injury*** from the defamation if it implicates a matter of public concern, and she is limited to recovery for actual injury actually proven. This means that damages may not be presumed at all, and the plaintiff may not recover punitive damages. The Supreme Court has defined actual injury to include reputational harm, as well as pecuniary losses. [*Gertz v. Robert Welch, Inc.*, 418 U.S. 323 (1974).]

v. Presumed and Punitive Damages for Actual Malice

A private-figure plaintiff suing over defamation on a matter of public concern must prove ***actual malice*** to recover presumed damages or punitive damages. Actual malice obviates the need to prove actual injury. [*Gertz v. Robert Welch, Inc.*, 418 U.S. 323, 331-32 (1974).]

b. Matters of Purely Private Concern

If the defamatory statement involves a matter of purely ***private concern***, then a private-figure plaintiff faces ***no constitutional restrictions***. The case will proceed according to the ordinary defamation law of the relevant jurisdiction. [*See* The Traditional Elements of Defamation, *supra*.]

i. Matters of Private Concern Defined

A matter of ***private concern*** is a matter that implicates only the interests of the actor and the actor's limited audience. The matter does not implicate public health, safety, morals, welfare, or policy. [*See Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 U.S. 749 (1985) (plurality op.).]

Example:

A credit-reporting agency sent a report to five subscribers, stating that a construction contractor (a debtor of the subscribers) had filed for bankruptcy. The contractor, a private figure, sued the credit-reporting agency for defamation. Under similar facts, a plurality of the Supreme Court held that the publication implicated a matter of purely private concern, involving only the interests of the credit-reporting agency and its subscribers in the contractor's creditworthiness. [*Adapted from Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 U.S. 749 (1985) (plurality op.).]

C. Privileges and Defenses to Defamation

A defamation defendant may avoid liability by establishing a defense or a privilege to defamation. The major defenses are ***consent*** and ***truth***. The privileges are divided into two categories: ***qualified privileges*** and ***absolute privileges***.

1. Consent

Consent is a defense to defamation. Here, consent does not require that the victim know the statement's defamatory character. It is enough that she knows either its precise

contents or, if she does not, at least that it might be defamatory. [*See* Restatement (Second) of Torts § 583); Consent, *supra*.]

Example:

A local school board summarily fired a teacher. Without knowing the precise reason she was fired, the teacher demanded that the board make the reason for her dismissal public. The school board did so. As it turned out, the teacher was dismissed due to rumors that she had inappropriate sexual contact with a student. Here, even if the allegations turn out to be false, the school board has a defense of consent against the teacher's claim for defamation. When she demanded that the school board publish the reason for her firing, she had ample reason to know that this reason might be defamatory—that is, might harm her reputation if published. [*Adapted from* Restatement (Second) of Torts § 583 illus. 2.]

2. Truth as an Affirmative Defense in Some Cases

If the plaintiff does not have the burden to prove falsity as part of her prima facie case, then under traditional defamation principles, the ***truth*** of the statement is an affirmative defense. [*See Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 U.S. 749 (1985) (plurality op.).]

a. No Defense for Attributing Defamatory Statement to Another

An actor may be liable as a republisher for repeating a defamatory statement, even if the actor truthfully attributes the original statement to someone else. [*See* The Republication Rule, *supra*.]

3. Qualified Privileges

A ***qualified privilege*** is one that can be lost through abuse. The most important qualified privileges are (1) the ***fair-reporting*** privilege, (2) statements made in the ***public interest***, (3) the ***fair-comment*** privilege, and (4) statements made in support of the ***private interests*** of the speaker and others.

a. Fair-Reporting Privilege

The ***fair-reporting privilege*** applies if the actor (1) fairly and accurately reports or summarizes (2) an official proceeding or public meeting that (3) deals with a matter of public concern. [Restatement (Second) of Torts § 611.]

i. Public Proceedings Defined

Public proceedings include governmental and judicial proceedings in which official action is taken or contemplated, as well as nongovernmental proceedings of

significant public interest. Also, in this context, the term ***proceeding*** includes discrete events that one might not deem to be proceedings at first blush. For example, an arrest by the police may be treated as a public proceeding. [Restatement (Second) of Torts § 611, with comments and illustrations.]

ii. Accuracy Required

The fair-reporting privilege covers only ***accurate*** reports. An inaccurate or embellished report that does not constitute a ***fair summary*** of the proceeding is not privileged. However, immaterial errors that do not bear on the essential truth of what took place will not defeat the privilege. [Restatement (Second) of Torts § 611, cmt. f.]

iii. Fairness Required

For the fair-reporting privilege to apply, the report must be ***fair***. This means the report must be evenhanded. If the report is unduly skewed in favor of one side, in a context in which opposing or diverging viewpoints are at play, the privilege may not apply. More fundamentally, a report is unfair if, though it is accurate as far as it goes, it is materially misleading because it omits context or other relevant information. [*See* Restatement (Second) of Torts § 611, with comments.]

Example:

A reporter published daily articles covering a lengthy, high-profile criminal trial. A juvenile testifying in the trial made false and defamatory statements about a local restaurateur. The reporter published an article accurately conveying the witness's statements. The next day, a credible impeachment witness refuted the juvenile's testimony. The reporter did not publish the impeachment witness's statement. Here, the reporter's coverage of the trial, as to the restaurateur, was unfair. The reporter accurately conveyed the juvenile's false and defamatory statements, but he did not convey the later credible refutation. [*See* Restatement (Second) of Torts § 611 cmt. f.]

iv. Restatement View: Actual Malice Not Abuse

According to the Restatement (Second) of Torts, the fair-reporting privilege is almost absolute. The only way to abuse it and, thus, lose it is to convey a report about a public proceeding that is not substantially accurate or fair. If the report is conveyed with actual malice—that is, with knowledge or reckless disregard of the falsity of any defamatory matter conveyed—then the privilege may still apply so long as, objectively speaking, the report is a substantially accurate and fair account

of what transpired at the public proceeding. [*See* Restatement (Second) of Torts § 611 cmts. a, f; *Moreno v. Crookston Times Printing Co.*, 610 N.W.2d 321 (Minn. 2000).]

Example:

A city council held regular public meetings, at which city residents could address the council. At one meeting, a resident openly and falsely accused a city policeman of unlawful brutality. A reporter quoted the resident's statement verbatim in an article, attributing the statement to the resident by name. The article was a fair and accurate account of the council meeting. The reporter knew that the resident's accusations were false, but the article did not say so. Ordinarily, the reporter would be liable for republishing the resident's false and defamatory statement, even though the reporter accurately attributed the statement to the resident. However, the fair-reporting privilege insulates the reporter from liability. The article was, overall, a fair and accurate account of what took place at the city council meeting, and the privilege applies even if the actor knows the defamatory matter is false. [*Adapted from Moreno v. Crookston Times Printing Co.*, 610 N.W.2d 321 (Minn. 2000).]

b. Statements in the Public Interest

The privilege protecting statements made ***in the public interest*** applies if the circumstances induce a correct or reasonable belief that (1) there is information affecting a public interest, (2) that interest is sufficiently important, and (3) in the public interest, the actor must communicate the information to either a public official or a private citizen who, provided the information is true, is authorized or privileged to act. [*See* Restatement (Second) of Torts § 598, with comments.]

i. Examples of Sufficiently Important Public Interests

Examples of public interests sufficiently important to evoke the privilege for statements made in the public interest include the interests in (1) preventing crime and apprehending criminals, (2) public officials' honest performance of their duties, and (3) enacting laws to address significant societal ills. [*See* Restatement (Second) of Torts § 598 cmt. d.]

ii. Matters on Which a Public Official is Authorized to Act

Matters on which a public official is authorized to act generally include matters falling within the scope of the official's duties. Perhaps a prime example involves the conduct of other public employees who answer to the relevant public officer.

Thus, a report to a superior public officer concerning the official activities of her subordinates may fall within the privilege for statements in the public interest. Another example includes information conveyed to legislators concerning pending legislation. [*See* Restatement (Second) of Torts § 598 cmts. d-e.]

Example:

A citizen made a false and defamatory statement to a police officer in a sincere effort to bring a criminal to justice. This statement may merit protection under the public-interest privilege, assuming the citizen has not abused the privilege. The statement was a communication to the police officer, a public official, regarding criminal justice, which was within the officer's duties.

iii. Statements to a Private Person

According to the Restatement (Second) of Torts, a statement to someone who is not a public official (*i.e.*, a private individual) may fall within the privilege for statements in the public interest. In this context, the privilege generally applies only if the private individual would be privileged to take action if the defamatory statement were true. For instance, the private individual may be privileged to use force to prevent a crime or apprehend a criminal. [*See* Restatement (Second) of Torts § 598 cmts. e-f.]

c. Fair-Comment Privilege

The ***fair-comment privilege*** protects certain statements of ***opinion or commentary*** on matters of public interest. For this privilege to apply, several criteria must be met.

i. Opinion or Criticism Only

The fair-comment privilege protects only statements of ***opinion or commentary***, not statements of fact. [*Piscatelli v. Van Smith*, 35 A.3d 1140 (Md. 2012).]

ii. Statements Based on Facts Disclosed or Generally Known

The fair-comment privilege does not protect opinion or criticism based on undisclosed facts. Rather, it protects opinions based on facts that are ***disclosed*** by the speaker, ***generally known***, or ***generally accessible***. [*Piscatelli v. Van Smith*, 35 A.3d 1140 (Md. 2012).]

iii. Statements Based on True, Assumed, or Privileged Facts

The fair-comment privilege protects only opinions or criticisms based on facts that are (1) ***true***, (2) ***assumed true*** by both the speaker and the recipient, or (3) gleaned from a ***prior statement*** that is itself privileged under defamation law. The privilege does not protect opinions based on false, defamatory, unprivileged facts. [*Piscatelli v. Van Smith*, 35 A.3d 1140 (Md. 2012).]

iv. Statements Concerning Matters of Public Interest

The fair-comment privilege protects only opinions or commentary concerning matters of ***legitimate public interest***. The concept of matters of legitimate public interest is defined very broadly in this context. For example, a report about patient satisfaction with a renowned plastic surgeon's services would likely be a matter of legitimate public interest, as it concerns public health and the availability of competent physicians. [*Piscatelli v. Van Smith*, 35 A.3d 1140 (Md. 2012); *Metcalf v. KFOR-TV, Inc.*, 828 F. Supp. 1515 (W.D. Okla. 1992).]

d. Statements in Support of Private Interests

A statement made in support of the ***private interests*** of the speaker or someone else can be privileged under the right conditions.

i. Interests of Another

A statement made in support of the private interests of someone other than the speaker may be privileged. [Restatement (Second) of Torts § 595, with comments; *see also Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

1) Statement Relates to Sufficiently Important Interest

For the private-interests privilege to apply, the speaker must correctly or reasonably believe that the defamatory matter pertains to a ***sufficiently important private interest***. A sufficiently important interest is generally one for which the law affords protection, such as a ***property*** or ***pecuniary*** interest. For instance, the conduct of one's employees in the course of their duties generally implicates a sufficiently important interest. [Restatement (Second) of Torts § 595, with comments; *see also Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

2) Reasonable Necessity

The speaker must ***reasonably*** believe that communicating the matter to the recipient is ***necessary*** to protect the interest. [Restatement (Second) of Torts § 595, with comments; *see also Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

3) General Standards of Decency

Communicating the defamatory matter should comport with ***general standards of decency***. A factor of paramount importance is whether the speaker communicated the defamatory matter ***gratuitously*** or ***on request***. Many statements will be privileged if made on request. Another important factor is whether there is a ***relationship*** between the parties whose interests the statement implicates, such as a family or business relationship. One safe harbor here is that communication of the defamatory matter will normally fall within generally accepted standards of decency if the actor has a legal duty to publish the defamatory matter. For instance, a fiduciary, such as a trustee or attorney, often must convey information to the beneficiary or client in the course of her duties. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001); Restatement (Second) of Torts § 595 cmt. f.]

4) General Standards of Decency: Defamatory Matter Not Communicated on Request

If defamatory matter is communicated gratuitously, not on request, then it might still fall within the privilege. Even so, the actor must carefully evaluate the interest sought to be protected and must balance the likely harm to the victim's reputation against the harm to the third-party's interests if the defamatory matter is not conveyed. [Restatement (Second) of Torts § 595 cmt. f.]

Example:

A car-dealership owner considered hiring a man as a sales manager. The man once worked for the owner's friend at another dealership, so the owner asked the friend about the man's performance. The friend responded that the man was fired upon rumors that he embezzled funds, admitting the rumors were never proven. The owner declined to hire the man, who sued the friend for defamation. The friend will likely be protected under the privilege for statements made in others' private interests, even if the rumors are proven false. Because of the rumors, the friend reasonably believed that the owner's pecuniary interests could have been endangered. Communicating the rumors was a reasonable way to protect those interests. There was a relationship of professional affinity between the friend and the owner, and the friend offered the information in response to a request, not gratuitously. Thus, the communication likely comported with general standards of decency. [*Adapted from Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

ii. Common-Interest Privilege

The ***common-interest privilege*** is similar to the privilege protecting statements in the private interests of others. The common-interest privilege applies if people have a common interest, or meaningful stake, in a particular subject. These people have a qualified privilege to exchange information germane to their shared interest. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

1) Interests Protected

The interest that the speaker seeks to protect should generally be a ***business***, ***pecuniary***, or ***professional*** interest. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

2) Commonality of Interest Necessary

The interest that the speaker seeks to protect must be a ***shared or common interest*** among the speaker, the recipient, and perhaps others. Membership in some identifiable group with shared values or a common endeavor is a typical example of a shared interest. Also, the privilege often applies if the speaker and the recipient share business dealings together, for instance, the business relationship between a franchisor and franchisee. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

3) Reasonable Relationship between Communication and Interest

There must be a ***reasonable relationship*** between the communication and protecting the common interest. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001); Restatement (Second) of Torts § 596 cmt. a.]

4) Reasonable Belief in Recipient's Right to Know

The speaker must reasonably believe that the recipient is ***entitled to know*** the defamatory information. Generally, anyone who genuinely shares the common interest will be entitled to know the information. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001). *See also* Restatement (Second) of Torts § 596 cmt. e.]

Example:

A congregant of a local church came to believe that the church's pastor was cheating on his wife with the church's secretary. The congregant conveyed this information to the church's board of trustees, which then summarily fired the pastor. As it turned out, the pastor had never cheated on his wife. Even

so, the congregant's statement to the board likely qualifies for the shared-interest privilege. The congregant was a member of the very church that the board oversaw, so the congregant and the board had a shared interest in the church's well-being. The information bore directly on the pastor's moral fitness as spiritual head of the congregation. [*See* Restatement (Second) of Torts § 596 cmt. e.]

iii. Self-Vindication Privilege

A statement may be privileged if the speaker makes the statement to protect a sufficiently important interest (*e.g.*, a business or pecuniary interest, or some other interest protected under the civil or criminal law) ***of the speaker's own***, provided the speaker ***reasonably believes*** that conveying the statement to the recipient would aid in lawfully protecting that interest. This privilege is often invoked by speakers responding to attacks on their own reputations, though the privilege may arise in other contexts. [*See Stark v. Zeta Phi Beta Sorority, Inc.*, 587 F. Supp. 2d 170 (D. D.C. 2008); Restatement (Second) of Torts § 594, with comments.]

Example:

A teacher saw a man driving a car. Because the car was the same make, model, and color as the teacher's own vehicle, the teacher sincerely and reasonably (though incorrectly) believed that the car was hers and that the man had stolen it. Hence, the teacher called the police and conveyed this information to them. Although the teacher's statement to the police was false and defamatory, it is likely protected under the self-vindication privilege. The teacher reasonably believed that the man had stolen her car. Communicating that belief to the police would seem quite reasonably related to protecting the teacher's lawful property interest in her vehicle. [*See* Restatement (Second) of Torts § 594 illus. 1.]

e. Abuse of Qualified Privileges

A qualified privilege is considered to be ***abused*** and thus ***lost*** in one of four situations.

i. Actual Malice as Abuse

Except for the fair-reporting privilege, a qualified privilege is abused if the actor publishes the defamatory matter with ***actual malice***, *i.e.*, knowledge or reckless disregard of the statement's falsity. Some courts also find abuse if the defamatory statement is communicated with evil motive, bad faith, or ill will. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001); *Stark v. Zeta Phi Beta Sorority, Inc.*, 587 F. Supp. 2d 170 (D.C. 2008).]

ii. Excessive Publication

A qualified privilege may be abused through ***excessive publication***. Excessive publication occurs if the actor communicates the defamatory matter to a third party, and the actor cannot reasonably believe communication to that third party would serve the interest the privilege is meant to protect. Of course, as the Restatement (Second) of Torts notes, it is often true that communication of the defamatory matter to those with no need to hear it is unavoidable. Here, the privilege might not be abused if the communication is reasonable given the importance of the interest at stake, the gravity of potential harm involved, and the inconvenience of any other method of publication. [*Feggans v. Billington*, 677 A.2d 771 (N.J. Super. Ct. 1996); Restatement (Second) of Torts § 604 cmt. f.]

Example:

A bank director walked through the bank's lobby on his way to the board room, where the full board of directors was meeting. The director was about to inform the board that he thought one of the tellers was stealing from the bank. While in the lobby, surrounded by customers, the director pointed to the cashier and cried out with a loud voice that "This woman has been stealing from the bank!" This publication was likely excessive and, hence, abusive of any qualified privilege that might apply. Communicating the statement to the board in the privacy of the boardroom would likely be a reasonable way to advance the bank's interest in assuring its employees' honesty. But there was no need to defame the cashier in front of all those depositors in a public lobby. Even if the cashier were stealing from the bank, the depositors could do nothing about it. [*See* Restatement (Second) of Torts § 604 illus. 1.]

Compare:

A woman heard commotion in the apartment next door to hers and sincerely (but wrongly) believed that her neighbor's roommate was killing the roommate. The woman looked out her window and saw a uniformed police officer walking by on a public street. The woman shouted to the officer, "Come quick! I think my neighbor's roommate is killing him!" Numerous passers-by heard the statement. Here, the woman did not engage in excessive publication. Given the perceived urgency of the situation (*i.e.*, the woman thought a murder was ongoing), it seems reasonable for the woman to have cried out to the first police officer she saw, regardless of who else might have overheard her. [*See* Restatement (Second) of Torts § 604 illus. 2.]

iii. Publication for Unrelated Purpose

A qualified privilege is abused if the actor publishes the defamatory matter for some purpose ***other than*** advancing the interest the privilege was designed to protect. Thus, if a statement is made solely out of malice or ill will, and not in any way to advance the relevant interest, then the privilege is abused. Yet if the statement is really made to protect the relevant interest, then the privilege might apply even though some resentment or ill will underlies it. But a statement not made to protect the relevant interest abuses the privilege even if made without malice or ill will. For example, a newspaper reporter might publish a defamatory article solely to create sensationalism and sell newspapers or generate website traffic, rather than to protect any interest protected by a qualified privilege. [*Bainhauer v. Manoukian*, 520 A.2d 1154 (N.J. Super. Ct. 1987); Restatement (Second) of Torts § 603 cmt. a, and Reporter's Notes.]

iv. Unnecessary Publication

A qualified privilege is abused if the actor cannot ***reasonably*** believe that publishing the defamatory matter is necessary to advance the interest protected by the privilege. [*Bainhauer v. Manoukian*, 520 A.2d 1154 (N.J. Super. Ct. 1987).]

Example:

A man sincerely (but wrongly) believed that his neighbor was beating his wife. The man communicated this fact to a police officer. The man also remarked (incorrectly) that the neighbor routinely watched "strange and perverse pornography," which the man then described with particularity. The statement that the neighbor beat his wife might be protected as a statement in the public interest. Yet the statement that the neighbor watched strange and perverse pornography, together with the particular description of that pornography, is likely not protected. That statement bore no reasonable relationship to any interest in addressing or preventing the asserted spousal abuse here. [*See* Restatement (Second) of Torts § 605 cmt. a; Statements in the Public Interest, *supra*.]

4. Absolute Privileges

An ***absolute privilege*** is a complete defense to liability for defamation, even if the privilege is abused. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001).]

a. Legislative Statements

State and federal ***legislators*** enjoy an absolute privilege for statements made in the course of their legislative functions, including floor debates, committee work, and other legislative business. The privilege applies even if a statement is ***irrelevant*** to any

matter under consideration. The privilege does ***not*** apply, however, to statements made by a legislator not engaged in legislative business, such as campaigning or public relations. [Restatement (Second) of Torts § 590 cmt. a; *Hutchinson v. Proxmire*, 443 U.S. 111 (1979).]

Example:

A US senator annually identified federally funded projects that the senator considered wastes of taxpayer money. One year, the senator singled out a project involving research on monkeys. The senator attacked the project on the Senate floor, in a press release, and in a newsletter. A scientist involved in the project sued the senator for defamation. The senator's statements on the Senate floor are absolutely privileged. However, the press release and the newsletter are not. The press release and newsletter were not part of the business of the United States Senate, but they were communications by the senator to persons outside the legislature and on the senator's own behalf. [*See Hutchinson v. Proxmire*, 443 U.S. 111 (1979). *But see* Restatement (Second) of Torts § 590 cmt. a (indicating some Supreme Court authority contradicting *Hutchison* and indicating that statements by legislators in things like press releases and newsletters might be protected).]

b. Executive Privilege

Officials of the ***executive branch*** of any government enjoy an absolute privilege for communications made in the course of their public duties. Unlike the legislative privilege, the executive privilege requires that the statement bear a ***reasonable relationship*** to the official's executive functions. The Restatement (Second) of Torts would apply this privilege only to (1) any executive or administrative officer in the federal government and (2) the governor or any superior executive official in a state government. In accord with the Restatement, many states apply the privilege only to high-ranking executive officials in state government, such as department heads or cabinet-level officials. Some states, though, extend the privilege to lower-ranking state officials. [*Jones v. State*, 426 S.W.3d 50 (Tenn. 2013); Restatement (Second) of Torts § 591 cmt. c.]

Example:

A state attorney general published a report explaining why her office had not yet begun criminal prosecution of an alleged racketeering operation in the state. Part of her rationale was that a certain restaurateur with mob ties had suppressed incriminating evidence. Even if this statement about the restaurateur is false and defamatory, it is absolutely privileged. The attorney general, a superior officer in state

government, made the statement in the course of her executive duties. [*Adapted from* Restatement (Second) of Torts § 591 illus. 3.]

c. Statements Made in Judicial Proceedings

Statements made in the course of ***judicial proceedings*** are absolutely privileged, provided they are ***reasonably related*** to the subject matter of the litigation. The privilege encompasses papers filed in court, witness statements, statements by attorneys, and settlement communications between parties. Some authority also construes the privilege to apply to statements (*e.g.*, statements between attorneys and their clients) made before litigation has commenced, provided litigation is seriously contemplated. For instance, allegations made in a draft complaint that has not yet been filed might be privileged. [*See Clark Cty. Sch. Dist. v. Virtual Educ. Software, Inc.*, 213 P.3d 496 (Nev. 2009); *Mansfield v. Bernabei*, 727 S.E.2d 69 (Va. 2012).]

d. Communications between Spouses

Communications ***between spouses*** are absolutely privileged. [*Gohari v. Darvish*, 767 A.2d 321 (Md. 2001) (*citing* Dan B. Dobbs, *The Law of Torts*, §§ 413–414 (2000)).]

e. Communications Required by Law

If an actor is ***legally required*** to make or permit particular communications without censorship, the actor is generally immune from liability for any defamatory matter contained within the statements. Broadcasting laws requiring a station to give equal time to political candidates and to refrain from censoring political communications by legally qualified candidates for political office are one example. [*See Farmers Educ. and Co-Op Union of Am., N.D. Div. v. WDAY, Inc.*, 360 U.S. 525 (1959).]

XIII. Invasion of Privacy

Privacy is protected by four independent causes of action: (1) commercial misappropriation of identity, (2) intrusion upon seclusion, (3) false light, and (4) public disclosure of private facts.

A. Misappropriation of Identity

Misappropriation of identity arises if the actor utilizes the victim's identity, name, or likeness for the actor's own purposes, without the victim's consent. The tort usually involves misappropriation for commercial gain, though misappropriation for other purposes may also be actionable. For instance, a husband's paramour may misappropriate the identity of the husband's legal wife by going about posing as his common-law wife and adopting his last name as the paramour's own. This proposition holds true even though there is no apparent commercial benefit to the paramour. [*Matthews v. Wozencraft*, 15 F.3d 432 (5th Cir. 1994);

Newcombe v. Adolf Coors Co., 157 F.3d 686 (9th Cir. 1998); Restatement (Second) of Torts § 652C illus. 4.]

1. Permissible Incidental Use

There is no liability if the actor merely refers to the victim or uses the victim's identity for purposes other than exploiting the commercial or financial value associated with it, even if the actor makes money by doing so. This rule is especially likely to apply to information about public figures, who cannot rely on the tort of misappropriation of identity to shield themselves from criticism and commentary. [*See Yeager v. Cingular Wireless, LLC*, 673 F. Supp. 2d 1089 (E.D. Cal. 2009); *Matthews v. Wozencraft*, 15 F.3d 432 (5th Cir. 1994).]

Example:

A telephone manufacturer aired a commercial depicting a robot fashioned to resemble a famous game-show hostess. The robot used one of the company's phones to perform various tasks related to the hostess's role on the game show. The hostess did not consent to the manufacturer's use of her name, identity, or likeness. The hostess sued the manufacturer for misappropriation of identity, and she is likely to prevail. Although the manufacturer did not use the hostess's name or exact likeness, it did attach her identity to its product, meaning to exploit the commercial value associated with her fame. [*Adapted from White v. Samsung Elecs. Am., Inc.*, 971 F.2d 1395 (9th Cir. 1992).]

Compare:

An author wrote an unauthorized biography of a famous actress. The book was a bestseller, and the author earned millions of dollars in royalties. The actress sued the author, claiming the author had misappropriated her identity. The claim will probably fail because the author's use is likely to be deemed incidental. The author did not use the actress's identity to promote a product or service. Rather, the author simply told a story about the actress, and her notoriety happened to enhance the story's appeal. Misappropriation of identity is not meant to shield famous people from commentary, but to protect the commercial value in their personas from unauthorized exploitation by others. [*See* Restatement (Second) of Torts § 652C illus. 9.]

B. Intrusion upon Seclusion

Liability for intrusion upon seclusion arises if the actor intentionally and intrudes upon the victim's solitude, seclusion, or private affairs, and the intrusion would be highly offensive to a reasonable person. [*Wolf v. Rigardie*, 553 A.2d 1213 (D.C. Ct. App. 1989); *Mauri v. Smith*, 929 P.2d 307 (Or. 1996).]

1. Physical or Other Intrusion

Perhaps most often, the actor will intrude ***physically***, by sense-enhancing devices or otherwise, upon the victim's solitude, seclusion, or private affairs. Examples include voyeurism, eavesdropping, peeping, harassment (as by repeated and unwanted phone calls), breaking into the victim's private home, and so on. Yet the intrusion need not always be physical and, thus, may occur by some other investigation or examination of the victim's private affairs. For instance, an actor may open the victim's private mail or deceive the victim's bank into letting the actor examine the victim's financial information. [*Wolf v. Rigardie*, 553 A.2d 1213 (D.C. Ct. App. 1989); Restatement (Second) of Torts § 652B cmt. b.]

a. Private Affairs

The matter upon which the actor intrudes must actually be ***private***. There is no liability if the matter has already been exposed to the public or is a matter of public record or knowledge. For example, an actor is not liable for surreptitiously photographing or observing someone who is already in a public place, nor for gleaning information about the victim from public records. [*Helton v. United States*, 191 F. Supp. 2d 179 (D. D.C. 2002); Restatement (Second) of Torts § 652b cmt. c.]

2. Intent

The intrusion must be ***intentional***, not accidental or negligent. [*Mauri v. Smith*, 929 P.2d 307 (Or. 1996).]

3. High Degree of Offense to a Reasonable Person

The intrusion upon private affairs must be ***highly offensive*** to a reasonable person. Examples of highly offensive intrusions include eavesdropping, looking through windows, trespassing in someone's home, examining someone's banking records, and unwanted bodily touching. All these involve intrusion upon matters that the victim would reasonably expect to remain private. [*Wolf v. Rigardie*, 553 A.2d 1213 (D.C. Ct. App. 1989); *Helton v. United States*, 191 F. Supp. 2d 179 (D. D.C. 2002).]

C. False Light

The tort of ***false light*** is recognized in most, but not all, jurisdictions. False light often overlaps with defamation. However, there are important differences between the two.

1. Elements of False Light

A claim for false light arises if the actor (1) publicizes (2) ***false information*** about the victim, and (3) the false portrayal would be highly offensive to a reasonable person. Some courts may also require some fault or even ***actual malice***, especially if the victim is a public figure. [*Meyerkord v. Zipatoni Co.*, 276 S.W.3d 319 (Mo. Ct. App. 2008); *Parnell v. Booth Newspapers, Inc.*, 572 F. Supp. 909 (W.D. Mich. 1983); *Pfannenstiel v. Osborne Publ'g Co.*, 939 F. Supp. 1497 (D. Kan. 1996); *Jews for Jesus, Inc. v. Rapp*, 997 So.2d 1098 (Fla. 2008).]

a. Publicizing Information, False Light

The term ***publicizing*** as used in false light should be distinguished from the term ***publication*** as used in the law of defamation. In defamation, publication occurs if the actor communicates defamatory material to even a single third party. Publicizing in false light requires much ***wider communication***, either to the public at large or to so many people that the falsehood is likely to become a matter of public knowledge. Publicizing can involve a smaller audience if the victim shares a special connection with that group, so that the group's opinion is especially important to the victim. These groups might include coworkers or fellow church members. [Restatement (Second) of Torts § 652D cmt. a, 652E cmt. a; *Miller v. Motorola, Inc.*, 560 N.E.2d 900 (Ill. App. Ct. 1990).]

b. Placing Victim in False Light

The publicized information must put the victim in a ***false light***. This is the case if the information falsely attributes characteristics, beliefs, history, or conduct to the victim. [*Meyerkord v. Zipatoni Co.*, 276 S.W.3d 319 (Mo. Ct. App. 2008).]

c. False Information Highly Offensive to a Reasonable Person

The matter publicized must be ***highly offensive*** to a reasonable person. The false matter does ***not*** need to be defamatory. That is, false light does not require that the victim suffer harm to reputation. [*See* Restatement (Second) of Torts § 652E cmt. d.]

Example:

A reporter published a newspaper article stating that the principal of a local high school favored a proposal to eliminate the school's interscholastic-sports program. This statement was false. In fact, the principal strongly opposed the proposal. The principal likely cannot recover for defamation. Taking one position or another on an interscholastic-sports program almost certainly would not tend to damage the principal's reputation. However, publicizing this falsehood might highly offend a reasonable person in the principal's position who felt strongly about the matter. Thus, the principal may be able to recover for false light.

d. Constitutional Limitations and the Fault Requirement

The courts take differing views about what level of ***fault*** must be shown in a false-light claim. As in defamation law, the question of fault can implicate constitutional protections for free speech. The cases reflect at least three different approaches. [*See* Constitutional Limits on Defamation Actions, *supra*.]

i. Applying Constitutional Limits on Defamation to False Light

Some jurisdictions apply the constitutional limitations on defamation claims to false-light claims, as well. These jurisdictions require (1) ***actual malice*** if the victim is a public figure and (2) at least ***negligence*** if the victim is a private figure suing about a matter of public concern. [*See Pfannenstiel v. Osborne Publ'g Co.*, 939 F. Supp. 1497 (D. Kan. 1996).]

ii. Special Rules for Matters of Public Concern

Some jurisdictions require actual malice if the false light involves a matter of ***public concern***, regardless of whether the victim is a public or private figure. Some of these same courts require only ***negligence*** as to truth or falsity if the victim is a ***private*** figure, and the matter is one of purely ***private*** concern. [*See Pfannenstiel v. Osborne Publ'g Co.*, 939 F. Supp. 1497 (D. Kan. 1996).]

iii. Actual Malice in All False-Light Cases

Some jurisdictions require actual malice in ***all*** false-light cases, regardless of who the victim is or the subject matter involved. [*See Pfannenstiel v. Osborne Publ'g Co.*, 939 F. Supp. 1497 (D. Kan. 1996).]

D. Public Disclosure of Private Facts

The tort of public disclosure of private facts provides a cause of action if the actor has publicized particular kinds of ***truthful*** information about the victim. Some courts do not recognize this cause of action, though most do. The claim arises if the actor (1) publicizes (2) ***private facts*** about the victim, (3) the disclosure of which would be ***highly offensive*** to a reasonable person, and (4) those facts are not a matter of legitimate public interest. [*Brown v. Wabash Nat'l Corp.*, 293 F. Supp. 2d 903 (N.D. Ind. 2003); *Fernandez-Wells v. Beauvais*, 983 P.2d 1006 (N.M. Ct. App. 1999); *Haynes v. Alfred A. Knopf, Inc.*, 8 F.3d 1222 (7th Cir. 1993); Restatement (Second) of Torts § 652D.]

1. Publicity in Public Disclosure of Private Facts

The actor must ***publicize*** private facts about the victim. As with false light, publicizing requires communication either to the public at large or to so many people that the fact is likely to become a matter of public knowledge. [Restatement (Second) of Torts §§ 652D cmt. a, 652E cmt. a).]

2. Private Truthful Facts

The true facts that the actor publicizes must be truly ***private*** facts. Information that is publicly known or publicly accessible cannot be considered private. [*See* Restatement (Second) of Torts § 652D cmt. b.]

3. Highly Offensive to a Reasonable Person, Public Disclosure of Private Facts

Disclosure of the private information must be ***highly offensive*** to a reasonable person. Examples include medical information (*e.g.*, the fact that a woman has had a hysterectomy, financial information, and (sometimes) information about the victim's sexuality. [*See Haynes v. Alfred A. Knopf, Inc.*, 8 F.3d 1222 (7th Cir. 1993); *Young v. Jackson*, 572 So. 2d 378 (Miss. 1990); Restatement (Second) of Torts § 652D, with comments, illustrations, and Reporter's Notes.]

4. No Legitimate Public Interest, Public Disclosure of Private Facts

The matter publicized must ***not*** be a matter of legitimate public interest. The concept of public interest is construed broadly. Matters of public record are matters of public interest, as are matters regarding the commission of a crime and its consequences. [*See Cox Broad. v. Cohn*, 420 U.S. 469 (1975); *Int'l Union v. Garner*, 601 F. Supp. 187 (M.D. Tenn. 1985); *Lowe v. Hearst Commc'ns, Inc.*, 487 F.3d 246 (5th Cir. 2007).]

Example:

Six teenagers raped and murdered a 17-year-old girl. Soon after, the teenagers were arrested and charged with rape and murder. A newspaper reporter gleaned the essential facts (including the girl's name) from the indictment, a matter of public record, and publicized those facts in a news article. The girl's father sued the reporter for public disclosure of private facts. The father's claim will fail. Though disclosure of the girl's name and of the brutal sexual assault she suffered might reasonably highly offend the father, the occurrence of this crime and the related facts were matters of legitimate public concern. [*See Cox Broad. v. Cohn*, 420 U.S. 469 (1975).]

E. Privileges and Defenses to Privacy Torts

Generally, the privileges and defenses that apply to defamation also apply to privacy torts. This means consent is a defense to privacy torts. [*See Young v. Jackson*, 572 So. 2d 378 (Miss. 1990); *Childs v. Williams*, 825 S.W.2d 4 (Mo. Ct. App. 1992); Restatement (Second) of Torts § 652E cmt. e (noting the lack of authority on the precise extent to which defamation defenses applied to false light, but there was a strong argument that the defenses should apply, especially in circumstances where the two torts would overlap); Privileges and Defenses to Defamation, *supra*.]

XIV. Misrepresentation

There are two misrepresentation torts: ***fraudulent*** misrepresentation and ***negligent*** misrepresentation.

A. Fraudulent Misrepresentation

Fraudulent misrepresentation requires (1) a ***false statement*** of fact that is (2) made with ***knowledge or reckless disregard*** of its falsity and (3) intended to induce the victim's reliance, provided (4) the victim actually (and, in some jurisdictions, reasonably) ***relies*** on the misrepresentation and (5) suffers ***damages*** as a result. [*M.H. v. Caritas Family Servs.*, 488 N.W.2d 282 (Minn. 1992); *Shah v. Racetrac Petroleum Co.*, 338 F.3d 557 (6th Cir. 2003); *Nutmeg Secs., Ltd. v. McGladrey & Pullen*, 112 Cal. Rptr. 2d 657 (Cal. Ct. App. 2001); *see also Field v. Mans*, 516 U.S. 59 (1995).]

1. False Statement of Material Fact

The actor must make a false statement of past or present ***material fact***. A fact is material if it is reasonably likely to affect the victim's decision on the subject matter of the fraud, or else if the actor knows that the fact will affect the victim's decision, reasonably or not. [*M.H. v. Caritas Family Servs.*, 488 N.W.2d 282 (Minn. 1992). *See also* Restatement (Third) of Torts: Liability for Economic Harm § 9 cmt. d.]

a. Subjective Opinions Not Actionable

A ***statement of fact*** is an assertion that can be proven true or false. Subjective opinions and exaggerated boasting (sometimes called ***puffery***) about quality, value, and other matters of judgment are not statements of fact. Examples of puffery include statements that a product is "top of the line" or of "premium quality" or provides the "ultimate experience." These statements generally cannot be objectively proven true or false, and the general public typically knows better than to rely upon them. [*See Slane v. Emoto*, 582 F. Supp. 2d 1067 (W.D. Wis. 2008); Restatement (Third) of Torts: Liability for Economic Harm § 9 illus. 6.]

i. Exceptions in Which Opinions Actionable as Fraud

An opinion may be actionable as fraud if (1) the supposed opinion states or implies objective facts, (2) a professional or fiduciary, such as a lawyer, knowingly conveys a false legal opinion to one to whom the professional or fiduciary owes a duty to convey honest opinions, and (3) knowingly false opinions by one with special or superior knowledge of the subject matter of a transaction between the parties (*e.g.*, a lawyer knowingly conveying a false opinion to an unrepresented layperson). Many of these exceptions seem to boil down to the actor claiming to have an opinion that she does not, in fact, espouse, thus falsely representing the fact of her actual state of mind. [*See* Douglas R. Richmond, *Fraud and Misrepresentation Claims against Lawyers*, 16 Nev. L.J. 57 (Fall 2015); Restatement (Second) of Torts § 525 cmt. d.]

b. Broken Promises Generally Not Actionable in Tort

A ***broken promise*** is usually not actionable in tort. That the actor broke a promise does not turn the promise into a false statement of fact. [*Bouvier Bros. Inc. v. Baker Protective Servs.*, 2 Mass. L. Rptr. 101 (Mass. Super. Ct. 1994).]

i. Promissory-Fraud Exception

If the actor had ***no intention*** of keeping a promise at the time he made the promise, then the promise can be actionable as a false statement of the fact of the actor's present intent to do what was promised. [*Shah v. Racetrac Petroleum Co.*, 338 F.3d 557 (6th Cir. 2003).]

c. Predictions Generally Not Actionable

Predictions of future events are not statements of past or present fact. So, they are generally not actionable in misrepresentation. Yet this rule assumes that the prediction is an honest reflection of the actor's belief in the prediction. If the actor knows or believes present facts that make the prediction impossible or improbable, then she may be liable for falsely representing her present state of mind. [*D'Huyvetter v. A.O. Smith Harvestore Prods.*, 475 N.W.2d 587 (Wisc. Ct. App. 1991); Restatement (Second) of Torts § 525 cmt. f.]

d. Nondisclosure Generally Not Actionable

The mere ***failure to disclose*** a material fact is generally not a false statement. [*Odyssey Travel Ctr. v. RO Cruises, Inc.*, 262 F. Supp. 2d 618 (D. Md. 2003).]

i. Exception: Duty to Disclose

If the actor has a ***legal duty*** to disclose material information to the victim, failure to disclose may be treated as a false statement.

1) Fiduciary Relationship

If the actor owes the victim a ***fiduciary duty***, the actor must disclose material information. For instance, partners in a partnership generally owe each other fiduciary duties concerning partnership business and property, and professionals like lawyers often owe their clients fiduciary duties. [Restatement (Third) of Torts: Liability for Economic Harm § 13(b).]

Example:

A brother and a sister formed a partnership to buy Blackacre, which they did. An investor approached the brother and offered to buy Blackacre for $1,000,000—significantly above market value. The brother offered to buy the sister's partnership interest for $100,000 without telling her of the investor's offer. The sister agreed and sold the brother her partnership interest for this sum. The brother then sold Blackacre to the investor for $1,000,000. Here, the brother may be liable to the sister for intentional misrepresentation. The brother's fiduciary relationship to the sister likely required him to disclose the investor's offer to her. [*See* Restatement (Third) of Torts: Liability for Economic Harm § 13 illus. 5.]

2) Facts Peculiarly within Actor's Knowledge

The actor may owe a duty to disclose material information if (1) the actor and the victim are parties to a transaction, (2) the actor knows that the victim is mistaken about a basic factual assumption underlying the transaction, and (3) the victim would, under the circumstances, reasonably expect the actor to disclose this information. [*Ollerman v. O'Rourke Co., Inc.*, 288 N.W.2d 95 (Wis. 1980); *Kaloti Enters., Inc. v. Kellogg Sales Co.*, 699 N.W.2d 205 (Wis. 2005).]

Example:

A prospective buyer of a house had a reasonable inspection performed on the house. The inspection revealed no defects. Yet the seller knew that the house had serious structural defects that most reasonable inspections would miss. Here, the seller must inform the buyer of the defects or risk liability for intentional misrepresentation. The seller and buyer were parties to a transaction, and the seller knew of the defects and how a reasonable inspection would likely miss them. Of course, any reasonable buyer of real

estate would expect disclosure of serious, latent defects. [*See* Restatement (Third) of Torts: Liability for Physical and Emotional Harm § 13 illus. 8.]

3) Actor Creating False Impression

If the actor knows or should know that his words or actions have ***deceived*** the victim or created a ***false impression***, then the actor must disclose enough facts so that the victim is no longer materially misled. This situation often arises if the actor conveys half-truths or only partially discloses material facts, and the half-truth or partial disclosure materially misleads the victim. This situation may also arise if the actor's statement is true when made, but the actor later learns that the facts have since changed, such that the statement is no longer true. Here, the actor must normally disclose the intervening events to the victim. [*Ollerman v. O'Rourke Co., Inc.*, 288 N.W.2d 95 (Wis. 1980); Restatement (Third) of Torts: Liability for Economic Harm § 13 cmt. b.]

Example:

A seller of a building told the buyer that the building's septic systems were in good working order. At the time, this statement was true. A week later, the seller learned that the septic system failed. The seller must inform the buyer of this development, so that the buyer no longer wrongly believes the septic systems to be in good working order. If she does not, then she may be liable for false representation. [*See* Restatement (Third) of Torts: Liability for Economic Harm § 13 illus. 1.]

ii. Active Concealment

If the actor ***actively conceals*** material facts with ***intent to deceive***, the concealment will be treated as a false statement. Active concealment generally involves intentionally hindering the victim from discovering material facts, as by hiding them or covering them up to induce or facilitate a false belief by the victim. For instance, one selling aluminum sheets might stack good sheets on top to hide corroded sheets beneath. [*Nehme v. Smithkline Beecham Clinical Labs., Inc.*, 863 So. 2d 201 (Fla. 2003); Restatement (Second) of Torts § 525 Reporter's Notes.]

2. Knowledge or Reckless Disregard

The actor must make the false statement of fact with either ***knowledge*** or ***reckless disregard*** of its falsity. [*Shah v. Racetrac Petroleum Co.*, 338 F.3d 557 (6th Cir. 2003); *compare* Actual Malice, *supra*.]

3. Intent to Induce Reliance

The actor must ***induce*** the victim to ***rely*** on the false statement of fact. Here, inducement means that the actor ***intended*** the reliance, or else the actor could ***reasonably foresee*** reliance by someone in the victim's position. Of course, multiple parties might foreseeably rely on a given fraudulent representation. Put another way, the actor's misrepresentation of material fact must be an actual cause of the victim's financial harm. [Restatement (Third) of Torts: Liability for Economic Harm § 12 cmt. b.]

Example:

A farmer negotiated to buy cattle from a rancher. The farmer asked the rancher for written assurances that the cattle were healthy. The farmer told the rancher that the bank through which the farmer sought to finance the purchase demanded the assurances. The rancher provided the written assurance, though in fact, the rancher knew the cattle were fatally diseased. Relying on the written assurance, the bank provided the financing, and the farmer bought the cattle. Soon after, substantially all the cattle died from the disease, and the farmer accordingly went bankrupt. The rancher could be found to have induced both the farmer and the bank to rely on his fraudulent representation. The farmer obviously foreseeably relied on the representation, and the rancher likely intended that she do so. Further, because the farmer told the rancher that the bank demanded the assurance, the rancher could foresee the bank's reliance, too. [Restatement (Third) of Torts: Liability for Economic Harm § 12 illus. 5.]

4. Actual Reliance and Harm

The victim must ***actually rely*** on the false statement to her ***detriment***. Courts are split over whether the reliance must be ***justifiable*** or ***reasonable***.

a. Justifiable Reliance, False Representation

Most courts require only ***justifiable reliance***, which does ***not*** require the victim to act reasonably. For example, justifiable reliance does not require the victim to make a reasonable investigation to discover the statement's falsity. However, it is not justifiable for the victim to rely on statements that are ***patently and obviously false***. Thus, if the victim should be able to tell at a glance that the statement is untrue, then reliance might not be justifiable. Justifiable reliance is a subjective standard, so whether reliance is justifiable in a given case depends much on the particular victim's knowledge, intelligence, and experience. [*See Field v. Mans*, 516 U.S. 59 (1995) (citing Restatement (Second) of Torts §§ 540 illus. 1, 545A cmt. b).]

Example:

A novice equestrian negotiated to buy a horse from a rancher. The rancher told the equestrian that the horse was healthy and vital. Yet when the equestrian inspected the horse, she saw that the horse was emaciated and missing one eye. Here, the equestrian could not justifiably rely on the rancher's representations. Though the equestrian was a novice and, hence, inexperienced in matters relating to horses, even a novice should be able to tell right away that an emaciated horse missing one eye is not healthy and vital. [*See Field v. Mans*, 516 U.S. 59 (1995) (citing Restatement (Second) of Torts § 541 cmt. a).]

Compare:

A novice equestrian, highly inexperienced in matters relating to horses, negotiated to buy a horse from a rancher. The rancher told the equestrian that the horse was young. Upon visually inspecting the horse, the equestrian noticed that the horse's teeth were very long. Among experienced equestrians, it was commonly known that a horse's teeth never stop growing for as long as it lives. Hence, a horse with long teeth is likely quite old. Yet a novice, inexperienced with horses, would not necessarily know that a horse's teeth grow for its whole life. Hence, the equestrian's reliance on the rancher's representation here might well be justifiable. [*See Field v. Mans*, 516 U.S. 59 (1995).]

b. Reasonable Reliance, Fraudulent Representation

Some courts require the victim to use ***reasonable care*** to discover whether the statement is true or false. This standard may require the victim to ***reasonably investigate*** whether the statement is true or false. Only a few jurisdictions require justifiable reliance. [*See Field v. Mans*, 516 U.S. 59 (1995).]

Example:

A buyer contracted to buy real estate from a seller. The seller assured the buyer that the seller had good title to the land. Relying on this assurance, the buyer consummated the purchase. As it turned out, the seller lacked good title to the land, due to which the buyer lost the land. The buyer could have ascertained the true state of title to the land by walking across the street to the courthouse and checking with the local register of deeds. Here, the buyer's reliance on the seller's assurance of good title was justifiable. The buyer could not tell at a glance that the assurance was false, and the standard of justifiable reliance does not require the victim to make any investigation, even if it would be easy. Yet the buyer's reliance here was likely not reasonable. A reasonable buyer in the circumstances would likely have checked with the register of deeds to check the state of title before consummating the purchase. [*See Field v. Mans*, 516 U.S. 59 (1995) (discussing Restatement (Second) of Torts § 540.]

c. Reliance in Fact as Standard for Fraudulent Misrepresentation

In a few jurisdictions, the victim need only prove reliance in fact. That is, the victim need only show that she relied on the misrepresentation. She need not show that the reliance was reasonable or even justifiable. [*Slane v. Emoto*, 582 F. Supp. 2d 1067 (W.D. Wis. 2008).]

B. Negligent Misrepresentation

Negligent misrepresentation arises if (1) the actor makes a false statement of fact, (2) which the actor knows or reasonably should know is false, and (3) the victim foreseeably relies on the misrepresentation and (4) suffers financial damages as a result. Like fraudulent misrepresentation, negligent-misrepresentation actions are an exception to the rule barring tort claims for purely economic losses. [*See Sovereign Bank v. Licata*, 977 A.2d 228 (Conn. App. Ct. 2009).]

1. Limited Application

The duty to avoid making negligent misrepresentations applies only in ***limited settings***, typically if (1) the parties have a ***fiduciary*** or other ***relationship*** creating a legal duty to use reasonable care to provide accurate information, (2) the actor is in the ***business*** of supplying information, (3) the parties are involved in a ***commercial transaction***, or (4) the actor is under a public duty to convey the information (*e.g.*, a public recording clerk under a duty to furnish certified copies of records or corporate officers under a duty to file accurate information with the state). Most often, negligent misrepresentation applies if the parties take part in a commercial transaction. In any case, negligent misrepresentation applies only if the actor has a pecuniary interest in the transaction, even an indirect one (*e.g.*, how the officers of a corporation have at least an indirect pecuniary interest in the corporation's transactions). [*See* Restatement (Second) of Torts § 522, with comments; *McLachlan v. N.Y. Life Ins. Co.*, 488 F.3d 624 (5th Cir. 2007).]

Example:

A trust company kept a copy of a decedent's will. A biographer asked the trust company for a copy of the decedent's will for use in an upcoming biography of the decedent. Solely as a courtesy, the trust company agreed. Yet the trust company negligently gave the biographer a copy of the will of a third party with the same first and last name as the decedent. The biographer incorporated information about the third party's will in the biography. When this error became known, the biographer suffered pecuniary harm. The trust company is not liable to the biographer for negligent misrepresentation. There was no commercial transaction between the trust company and the biographer, and nothing else indicates that the trust company had any pecuniary interest here (*e.g.*, if the trust

company was in the business of supplying wills). Rather, the trust company furnished the copy solely as a courtesy. [*Adapted from* Restatement (Second) of Torts § 552 illus. 1.]

2. False Statement, Negligent Misrepresentation

As with fraudulent misrepresentation, the actor must make a ***false statement*** of past or present material fact. [*See Sovereign Bank v. Licata*, 977 A.2d 228 (Conn. App. Ct. 2009); False Statement of Material Fact, *supra*.]

3. Fault, Negligent Misrepresentation

Liability arises if the actor knows or in the exercise of reasonable care should know that the statement is false. [*See Sovereign Bank v. Licata*, 977 A.2d 228 (Conn. App. Ct. 2009); Restatement (Second) of Torts § 552.]

4. Negligent Misrepresentation, Transactions to Which Liability Extends

Liability for negligent misrepresentation extends only to loss arising from (1) any transaction that the actor intends to influence or knows that the recipient intends to influence or (2) a substantially similar transaction. [Restatement (Second) of Torts § 552.]

Example:

A business consultant wrote a letter to a title-insurance company, meaning to aid the company in selling title insurance. In the letter, the consultant negligently praised the company's management, business practices, and public relations. In truth, the company was objectively mismanaged and, as a result, insolvent. Relying on the letter, a customer (1) took out title insurance with the company and (2) bought stock in the company, suffering pecuniary loss in both transactions. The consultant may be liable to the customer for the loss she suffered on the title insurance because the consultant wrote the letter to help the company sell title insurance. Yet the consultant is likely not liable for the customer's loss on buying stock in the title company. The consultant's decision to write the letter had nothing to do with selling stock. [*Adapted from* Restatement (Second) of Torts § 552 illus. 13.]

5. Foreseeable Reliance, Negligent Misrepresentation

The circumstances must make it ***reasonable*** for the actor to foresee the victim's reliance on the false statement. [*Smiley v. S&J Invs., Inc.*, 580 S.E.2d 283 (Ga. Ct. App. 2003).]

a. Class of Plaintiffs Limited, Some Jurisdictions

Some jurisdictions allow negligent-misrepresentation claims only by those whom the actor intends to rely on the information or those the actor knows will rely on the information in a transaction or type of transaction known to her. Put another way, the actor is liable for negligent misrepresentation only to (1) the recipient of the information and (2) third parties for whose benefit the actor intends to supply the information in a transaction or type of transaction known to the actor. It is not enough if the actor merely knows that the information might be shared with others, nor is the actor liable to all persons who might foreseeably rely on the information. [*In re Fannie Mae 2008 Secs. Litig.*, 891 F. Supp. 2d 458 (S.D.N.Y. 2012); *Bily v. Arthur Young & Co.*, 834 P.2d 745 (Cal. 1992); Restatement (Second) of Torts § 552 cmt. h.]

Example:

A real estate developer had several lots for sale in a subdivision. The developer negligently supplied false information about the lots to a local real estate board. The developer supplied the information so that the board would include the information in its newsletter, circulated monthly to some 1,000 or so potential real estate buyers. Relying on the misinformation, a buyer purchased one of the developer's lots and consequently suffered financial harm. Here, the developer is liable to the buyer. The developer intended for the recipients of the developer's newsletter to rely on the information in purchasing the lots. The buyer, one such recipient, did just that. [*Adapted from* Restatement (Second) of Torts § 552 illus. 4.]

b. Privity Required in Some Jurisdictions

Privity is a contractual relationship or a relationship so close and interdependent that it resembles a contractual relationship. Some courts require privity in an action for negligent misrepresentation. [*See Anschutz Corp. v. Merrill Lynch & Co., Inc.*, 690 F.3d 98 (2d. Cir. 2012).]

c. Class of Plaintiffs, Actor under Public Duty to Provide Information

If the actor is under a public duty to supply the information, then liability for negligent misrepresentation extends to the entire class of persons for whose benefit the law imposes the duty. This duty, of course, extends only to transactions in which the duty was intended to protect the relevant class. [Restatement (Second) of Torts § 552.]

Example:

A federal meat inspector negligently labeled a shipment of beef Grade A, though the beef was actually of inferior quality. Relying on the inspector's Grade A certification, a meat-packing plant bought the shipment of meat. Because of the meat's inferior quality, the plant suffered significant pecuniary loss. The meat inspector may be liable

to the plant for negligent misrepresentation. The meat inspector's position imposed upon him a public duty to furnish accurate certifications of the quality of meat. This duty was intended to protect intermediate sellers and ultimately consumers of federally inspected meat. [*Adapted from* Restatement (Second) of Torts § 552 illus. 18).]

6. Detrimental Reliance, Negligent Misrepresentation

The victim must actually ***rely*** on the false statement, and that reliance must actually and proximately cause the victim's harm. Many courts treat the question of reliance in negligent misrepresentation in the same manner as fraudulent misrepresentation by requiring that the reliance be either ***justifiable*** or ***reasonable***. [*See Sovereign Bank v. Licata*, 977 A.2d 228 (Conn. App. Ct. 2009); *Smiley v. S&J Invs., Inc.*, 580 S.E.2d 283 (Ga. Ct. App. 2003); *MacFadden v. Louf*, 643 S.E.2d 432 (N.C. 2007); Restatement (Second) of Torts § 552; Actual Reliance and Harm, *supra*.]

XV. Tortious Interference with Business Relations

Interference with business relations is addressed by two torts with overlapping elements: intentional interference with ***contract*** and intentional interference with ***economic opportunity***.

A. Elements

Tortious interference occurs if the actor (1) intentionally (2) interferes with (3) a victim's existing contract or prospective economic opportunity and thus (4) causes ***economic harm*** to the victim.

1. Existence of a Contract or Prospective Economic Opportunity

Tortious interference requires the existence of either (1) a valid ***contract*** between the victim and a third party or (2) a ***prospective economic opportunity***, not yet memorialized in contract, involving the victim and a third party. Broadly speaking, a prospective economic opportunity is any potential transaction that could reasonably benefit the victim financially. Examples include a job opportunity, the prospective sale or purchase of property or services, an option to renew or extend a contract, and other relationships that might lead to profitable contracts. [*Guard-Life Corp. v. S. Parker Hardware Mfg. Corp.*, 406 N.E.2d 445 (N.Y. 1980); Restatement (Second) of Torts § 766B cmt. c.]

2. Actor's Knowledge of Contract or Opportunity

The actor must ***know*** of the contract or the prospective opportunity. [*Guard-Life Corp. v. S. Parker Hardware Mfg. Corp.*, 406 N.E.2d 445 (N.Y. 1980); Restatement (Second) of Torts § 766B cmt. d.]

3. Intentional Interference with Contract or Opportunity

Intentional interference requires that the actor ***intentionally*** (1) induce a third party to breach a contract with the victim or (2) disrupt the victim's economic opportunity. The actor may disrupt the opportunity by (1) inducing the third party to abandon the opportunity or (2) preventing the victim from acquiring the opportunity. In the case of a prospective opportunity, some jurisdictions require conduct amounting to unlawful or unfair competition, especially if the actor is the victim's competitor. [*Guard-Life Corp. v. S. Parker Hardware Mfg. Corp.*, 406 N.E.2d 445 (N.Y. 1980); Restatement (Second) of Torts § 766B cmt. d.]

4. Improper Interference

Liability for tortious interference requires that the actor's interference with the contract or prospective economic opportunity be improper. In this context, impropriety is a fairly nebulous concept that defies a bright-line definition. Broadly speaking, conduct is proper if it is fair and reasonable under the circumstances. Even so, the Restatement (Second) of Torts sets forth seven factors to consider in determining whether interference is improper. [*See* Restatement (Second) of Torts § 767 cmt. j, *but see* Justifications for Interference, *infra*.]

Note: With some exceptions, conduct inducing a third party to breach a binding contract not terminable at will is virtually always improper. [*See* Justifications for Interference, *infra*.]

a. Nature of the Actor's Conduct

A prime factor in determining whether interference is improper is the nature of the actor's conduct. In this vein, criminal or tortious activity is typically improper. Examples include violence, threats of violence, fraudulent misrepresentation, and other actionable conduct. [Restatement (Second) of Torts § 767 cmt. d.]

b. Actor's Motive for Interfering

The actor's motive for the interference is a factor in determining whether the interference is improper. A closely related factor is the particular interest that the actor seeks to advance by her conduct. If the actor's sole purpose is to interfere with another's contractual relations, the interference is almost always improper. But if the

actor seeks to advance the public interest, this may weigh in favor of finding the interference proper. [*See* Restatement (Second) of Torts § 767 cmts. d-f.]

c. Interest with Which the Actor Interferes

The interest with which the actor interferes is a factor in determining whether the interference is improper, especially if the interference is with a prospective economic opportunity. Again, interference with a binding contract not terminable at will is usually improper. [*See* Restatement (Second) of Torts § 767 cmt. e.]

d. Competing Social Interests

In determining whether interference is improper, courts should generally balance the social interest in the actor's freedom to act against the victim's interests in the transaction. [*See* Restatement (Second) of Torts § 767 cmt. g.]

e. Causal Connection between the Actor's Conduct and the Interference

In determining whether interference is improper, courts should consider the strength of the causal connection between the actor's conduct and the interference. The more directly the actor's conduct causes the interference, all other things equal, the more likely the interference is improper. Contrariwise, the more indirect the causal relationship, the less likely the interference is to be improper. For instance, if the actor directly induces a third party to breach a contract with the victim, then this conduct is likely improper. Yet if the actor's conduct causes A to breach her contract with B, which prevents B from fulfilling a separate contract with C, the connection between A's conduct and the interference with C's contract is substantially more attenuated and, hence, less likely to be improper. [Restatement (Second) of Torts § 767 cmt. h.]

f. Relationship between the Parties, Tortious Interference

The parties' relationship is a factor to consider in determining whether the actor's conduct is improper. For instance, conduct that is proper if the parties are business competitors may be improper if they share another relationship. And if the actor bears a fiduciary or similar relationship with the third party, the actor might be justified even to induce the third party to break a binding contract with the victim. [Restatement (Second) of Torts § 767 cmt. j.]

5. Harm, Tortious Interference

The victim must suffer ***economic loss*** because of the interference. The intentional-interference torts are exceptions to the rule barring tort recovery for purely economic losses. Provided the victim suffers economic harm, she may also recover for other harms that the interference causes, such as emotional distress or harm to reputation. [*See*

Guard-Life Corp. v. S. Parker Hardware Mfg. Corp., 406 N.E.2d 445 (N.Y. 1980); Restatement (Second) of Torts § 774A.]

B. Justifications for Interference

Several ***justifications***, if established, will prevent liability for intentional interference.

1. Lawful Competition

With respect to prospective opportunities, an actor may use ***lawful*** means of competition to attract customers, even if those customers would otherwise have dealt with the victim. Lawful competition typically does ***not*** excuse deliberate interference with an existing binding contract, not terminable at will, of which the actor has knowledge. [*Guard-Life Corp. v. S. Parker Hardware Mfg. Corp.*, 406 N.E.2d 445 (N.Y. 1980); Restatement (Second) of Torts § 768.]

a. Competitor Defined

Generally speaking, a competitor is one (1) vying for the same potential customers in the same or a similar trade or business or (2) seeking the right to acquire or sell the same property. [*See* Restatement (Second) of Torts § 768 cmts. c, d.]

b. Requirement That Interference Concern Subject of Competition

For the justification for lawful competition to apply, the interference must concern the subject of the competition between the actor and the victim. [*See* Restatement (Second) of Torts § 768 cmt. d.]

Example:

Corporation A manufactured and sold shoes. Corporation B also manufactured and sold shoes, making Corporation B a competitor of Corporation A. Several wholesalers were seriously considering buying large shipments of shoes from Corporation A but had not yet contracted to do so. Corporation B induced the wholesalers to buy from Corporation B instead, by offering the wholesalers a lower price per box of shoes. Corporation B's interference with Corporation A's prospective economic relations with the wholesalers was proper. Corporation B simply used lawful competition to woo prospective shoe purchasers from A, and the manufacture and sale of shoes was the precise subject of the competition between the two corporations. [*Adapted from* Restatement (Second) of Torts § 768 illus. 1.]

Compare:

Corporation A manufactured and sold shoes. Corporation B also manufactured and sold shoes, making Corporation B a competitor of Corporation A. Corporation B's chief financial officer (CFO) learned that Corporation A's president intended to sell her home. The CFO deliberately persuaded the president's buyer to abandon the sale before the sale could be set to contract. The justification for lawful competition does not apply. Certainly, Corporation A and Corporation B were competitors concerning the manufacture and sale of shoes. The sale of the president's personal residence had nothing to do with this line of business. [*See* Restatement (Second) of Torts § 768 illus. 2.]

2. Actor's Legitimate Self-Interest

An actor will not be liable for intentional interference for acting lawfully and in ***good faith*** to protect the actor's own legitimate ***business interests***. Usually, this rule applies if the actor has an interest in the third party, typically an investment. Examples include stockholders, partners, and other equity stakeholders in the third party's business. Creditors or bondholders might also benefit from this rule. This rule normally does not justify interference with a binding contract not terminable at will. [*See* Restatement (Second) of Torts § 769, with comments.]

Example:

An investor backed a theatrical production titled *Winter in Venice*. The producer announced his intent to hire a specific actress to play the lead role. The investor sincerely believed that the actress was not right for the part and that she would make *Winter in Venice* less profitable by playing the lead role. To that end, the investor persuaded the producer not to hire the actress. Here, the investor's interference with the prospective economic relationship between the actress and the producer was justified. The investor merely protected his legitimate business interest in the production's success. Yet if the producer and the actress had entered a binding contract for the actress to play the lead role, the interference likely would not have been justified. [*Adapted from* Restatement (Second) of Torts § 769 illus. 1.]

3. Advice to Others

Also, interference may be justified if it is by one who is to some degree responsible for the third party's welfare, provided the actor employs lawful means and sincerely acts for the third party's benefit. For instance, a school is responsible for its students' welfare, and a doctor is responsible for her patients' well-being. Under this rule, it may even be justifiable for the actor to induce an outright breach of contract. [*See* Restatement (Second) of Torts § 770.]

Example:

Suppose a patient contracted to represent a corporation in Southeast Asia for a year. The particular region of Asia was hot, humid, and highly populated with insects carrying various diseases. The patient's doctor feared that the time in Asia could severely harm the patient's health, owing to the patient's poor respiratory condition and low immune function. Here, if the doctor persuaded the patient to breach his contract and refuse to go to Asia, the interference would likely be justified. [*Adapted from* Restatement (Second) of Torts § 770 illus. 4.]

4. Truthful Information or Advice in Response to a Request

An actor is not liable for tortious interference merely for conveying truthful information to someone else. Similarly, an actor normally is not liable for tortious interference just because she gives lawful and honest advice, in good faith within the scope of a request for advice. This rule applies even if the result is an outright breach of contract by the third party. [Restatement (Second) of Torts § 722 with comments.]